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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. HULTGREN).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
June 16, 2015.

I hereby appoint the Honorable RANDY HULTGREN to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

RICHARD ALBERO'S 1,150-MILE WALK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. JOLLY) for 5 minutes.

Mr. JOLLY. Mr. Speaker, I rise today to recognize a man who has literally walked the walk in support of our Nation's wounded warriors.

Mr. Speaker, 65-year-old Richard Albero, a former Naval officer and math teacher from Dunedin, Florida, recently completed an 86-day, 1,150-mile walk from home plate at Steinbrenner Field in Tampa during a spring training game to home plate at Yankee Stadium in New York City. He did so to honor his fallen nephew. Richard's nephew, Gary, worked at the World Trade Center and lost his life in the 9/11 attacks.

In addition to honoring his nephew, Richard also chose to do something very special. He walked to raise money for the Wounded Warrior Project. His goal was to raise $25,000.

During Richard's trek up the East Coast, which began on March 2, he went through six pairs of shoes. He suffered blisters on his feet and traveled over countless hills and endured the many elements, yet Richard never gave up.

Very recently, just a few weeks ago, he completed his walk, arriving at Yankee Stadium to a cheering crowd. Along the way, Richard blew past his goal for raising money and raised $55,000 for the Wounded Warrior Project.

Mr. Speaker, Richard's nephew would be most proud and the Members of this body should be most proud as well as we reflect on and remember those who lost their lives and those who pay tribute to them today, those like Richard Albero.

May God bless Mr. Albero. May God bless our men and women in uniform who protect us each and every day. And may God bless these United States.

TRANSPORTATION FUNDING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, there is a tremendous crisis facing America, but it is not one you hear much about on Capitol Hill. It is killing hundreds of people a year, injuring thousands more. It is crippling America's global standing, as we have fallen in the world ranking from number 1 down to 27 and falling further. It is having a profound effect on our global economic competitiveness, while costing American families hundreds of dollars a year in extra expenses.

Of course, it is complicating the lives of American business and families by losing millions of hours that otherwise could be put to productive work, at exercise, or with their families, and on the job.

If it were any other subject, there would be cries of outrage and alarm and calls for action. You would see a flurry of action here on Capitol Hill.

Sadly, this decline, this cost, this damage is the result of our very real infrastructure crisis, a crisis to which Congress has been indifferent at best and negligent at worse.

Despite countless examples of the crying need for infrastructure investment, Congress has been paralyzed, trying to pay for 2015 costs of infrastructure with 1993 dollars. Congress has not taken any systematic action since 1993, and the time has long since passed for action.

Thirty-three short-term extensions of transportation finance is not a substitute for action. No nation became great building its infrastructure 9 months at a time.

To be fair, there are people on Capitol Hill who do care about this and have proposed action:

My friend and colleague PETER DEFAZIO, the ranking member on the Transportation and Infrastructure Committee, has proposed a barrel tax on petroleum. He has proposed a financial fee on transactions, both of which would go a long way toward solving this problem.

My Ways and Means colleagues JIM RENACCI and BILL PASCRELL have proposed a mechanism that would be a failsafe, that if Congress didn't act to fund infrastructure, the gas tax would be indexed and increased.

Our Maryland colleague JOHN DELANEY has identified vast sums of

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corporate money parked overseas that could be made available for infrastructure investment in the United States if it were returned for that purpose.

And I have proposed, along with two dozen of my colleagues, that we simply bite the bullet and do what Ronald Reagan did in 1992—raise the gas tax for the 1st time in 22 years.

When I introduced this proposal in this Congress, it was supported by the widest array of groups on any major contested issue on Capitol Hill. It was supported by the top echelons of business, of organized labor, of the building trades, construction companies, local government, transit, bicycles, truckers, AAA, all in alignment that Congress should step up and remedy this situation.

There are solutions. There are people who think about it. We need to have the same level of courage and urgency that has been shown by people at the State and local level where they don't have the luxury of living in a Capitol Hill bubble. They have to deal with the consequences, and they have stepped up, 19 States since 2012—in fact, 6 States already this year. Idaho, Utah, Iowa, South Dakota, Nebraska, and Georgia, deep red States, have all raised the gas tax in 2015.

I am pleased that tomorrow the Ways and Means Committee will have its first hearing on transportation finance in the 56 months since my Republican colleagues took over. It is no substitute for Congress rolling up its sleeves and acting, but it is an important start. And I hope it will signify a full-court press in that committee to finally get down to cases and solve this problem.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Ms. Wanda Neiman, one of his secretaries.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 8 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, we give You thanks for giving us another day.

Guide the Members of this people's House with the spirit of understanding, which might lead them to their best judgment. We live in a world of human failure and broken promises; may they be tolerant of the faults of others because they are aware of their own shortcomings.

Bless all with a quiet respect for the diversity of opinions to be found here. Through honest dialogue and contemplative listening, may Your servants search all the avenues open to them to meet today's challenges with integrity and justice.

May all that is done be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Ms. FOXX. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker announced that the ayes appeared to have it.

Ms. FOXX. Mr. Speaker, I object to the vote on the ground that a quorum is not present and make the point of order that a quorum is not present.

The SPEAKER. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

The point of no quorum is considered withdrawn.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Pennsylvania (Mr. THOMPSON) come forward and lead the House in the Pledge of Allegiance.

Mr. THOMPSON of Pennsylvania led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

HOLDING THE PRESIDENT ACCOUNTABLE ON TRADE

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, last week, the House approved part of a legislative package on trade promotion authority, or TPA.

There have been many mischaracterizations of what TPA is. Every day I hear from constituents who want me to hold President Obama accountable. Well, TPA does just that by providing accountability to the President's trade negotiation efforts through enhanced congressional oversight and additional transparency. The allegations that TPA is something for President Obama is false.

It is important to recognize that more than 95 percent of the world's customers live beyond U.S. borders, and 1.2 million jobs in North Carolina rely on trade with them. Trade-related employment in North Carolina grew 3.8 times faster than total State employment from 2004 to 2013.

While I heard many different perspectives on TPA from my constituents, the argument from North Carolina families, farmers, and employers that negotiating these trade agreements is in the economic best interest of our State was a deciding factor for my vote in favor of TPA.

REBUILDING OUR NATION'S INFRASTRUCTURE

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, it is long past time for Congress to come together and pass a bold, bipartisan plan to rebuild our Nation's infrastructure.

Right now, China is spending 10 times as a percentage of GDP what we are on infrastructure. They are making huge investments in roads, bridges, ports, and rail. Meanwhile, Congress has simply not acted to put us on a competitive path in this global economy.

Now, a lot of debate has occurred here in the last weeks and days about our position in global trade, and we should have a trade deal that protects American jobs.

Meanwhile, what are we doing about China outspending us on infrastructure, which makes us less competitive? How are we supposed to compete with them when we haven't done anything to deal with our crumbling roads and bridges that are essential to making our manufacturers competitive in delivering their products to market?

It is time for bold action, big action on infrastructure, like the development of a national infrastructure bank that would leverage public capital with private capital to rebuild our crumbling roads and bridges.

Mr. Speaker, it is long past time for action. There is bipartisan support for this. We need to bring a big infrastructure bill to the floor of the House.

MAJORITY OF PENNSYLVANIANS SUPPORT HYDRAULIC FRACTURING

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, a recent poll conducted by Robert Morris University reveals that 57.1 percent of Pennsylvanians support natural gas production and hydraulic fracturing, with nearly half

saying they would welcome the industry into their hometown. This poll comes just 2 weeks after the Environmental Protection Agency released a report indicating that fracking poses ''no widespread systemic harm to drinking water.''

Mr. Speaker, Pennsylvania is the third largest natural gas producer in the Nation and continues to drive record-breaking oil and natural gas production. The Marcellus shale, which extends through most of Pennsylvania, has grown from less than 2 billion cubic feet per day in 2007 to 16 billion in 2014 and has jolted Pennsylvania's economy.

As co-chair of the bipartisan Congressional Natural Gas Caucus, I will continue to explore and promote best practices so that we can highlight the safety and the positive impacts of natural gas.

MEN'S HEALTH WEEK

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, as we celebrate national Men's Health Week, I urge all Americans to take action to reduce health risks and prevent disease. It can be as simple as exercising, eating right, or setting up an appointment for a checkup.

I also rise as the CBC Health Braintrust chair to bring awareness to the critical state of Black men's health and the need to expand educational opportunities and treatment options to reduce incidence of disease in communities of color.

Black men suffer disproportionately from many chronic and infectious diseases, many of which are preventible. Today, almost 40 percent of Black men are obese, which contributes to stroke, heart disease, and diabetes. In 2015, Black men were found to be twice as likely to die from prostate cancer as White men and have a higher incidence and death rate from colorectal cancer. Your skin color and ZIP Code shouldn't determine your health outcomes.

Together, through legislation and community engagement, we can reduce health inequities and provide a healthier and more prosperous life for all Americans.

PROTECT MEDICAL INNOVATION ACT

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, I rise today in support of H.R. 160, the Protect Medical Innovation Act, that will be considered on the floor this week.

One of the most fundamental flaws of what is known as the Affordable Care Act is trying to offset the trillion-dollar price tag by imposing an arbitrary 2.3 percent tax on lifesaving medical devices, such as pacemakers and heart valves. It actually discourages the type of innovation that will improve our healthcare system for people needing these devices.

Hindered with these new high costs, our small businesses are finding it increasingly difficult to innovate, curtailing medical advancements and often delaying the availability of new treatments and cures for patients. I personally visited a number of these companies and understand how important their work is to improving our healthcare system.

Taxing innovation is not a 21st century healthcare solution. This devastating tax is reported to have already caused a net loss of over 33,000 jobs.

American families and small businesses deserve better, and the House is committed to advancing commonsense ideas to ease the burdens of the President's healthcare law. H.R. 160 is one of those solutions.

I ask my colleagues to join me in support of repealing this job- and innovation-killing tax that only limits options for those who really need these lifesaving devices.

CRIMINAL JUSTICE REFORM

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Mr. Speaker, as we rally around the obvious in the need for criminal justice reform and, in essence, the rehabilitation of our criminal justice laws as we deal with the interaction of law enforcement and civilians, having a pathway for respect for both, one of the most forgotten aspects is dealing with the treatment of juveniles in the criminal justice system.

I intend, over the next couple of weeks, to introduce a series of legislative initiatives that address that form of the criminal justice system, which we find, as parents and family members, touches all juveniles.

One of the things that the bill recognizes is that a young person's brain is still developing into his or her early twenties, and that those who commit crimes before this point should be treated differently by the criminal justice system.

The purpose of this effort is to improve the treatment of young offenders within the Federal criminal justice system and to put them on a path toward successful reentry by providing options for the sentencing judges: a safety valve for young offenders which would, in essence, break through the mandatory minimum; an early release for young offenders; and, particularly, alternatives such as massive use of home arrest.

Our children are our future. They get on the wrong path. Let's not celebrate that wrong path and force them to live that wrong path. Let's save their lives.

AXING THE TAX

(Mr. GUINTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUINTA. Mr. Speaker, I rise today on behalf of the estimated 145 million Americans who are at risk of losing their employer-sponsored healthcare insurance due to an excise tax included in the President's healthcare law. Beginning in 2018, employers will be required to pay a 40 percent tax on their employees' healthcare plans due to ObamaCare.

I am already hearing from constituents back home who hear from their employers and employees alike that are preparing for this devastating tax by looking at increasing deductibles, reducing benefits, and shifting costs to consumers and property taxpayers alike. This tax is set to cost New Hampshire's largest city, Manchester, over $5 million.

Americans simply can't afford another costly tax, and that is why I introduced H.R. 879, a bill to repeal the so-called Cadillac tax. As we prepare to vote on a series of healthcare bills this week, I urge my colleagues to join me in cosponsoring this commonsense bill.

H.R. 879 is a win for employers. It is also a win for municipalities. And, most importantly, it is a win for all those hard-working Americans who expected the President to keep his promise that, if you like your healthcare plan, you can keep it.

EXPORT-IMPORT BANK REAUTHORIZATION

(Mrs. TORRES asked and was given permission to address the House for 1 minute.)

Mrs. TORRES. Mr. Speaker, in just 6 legislative days, the charter of the Export-Import Bank will expire.

The Ex-Im Bank has proven an important tool in expanding U.S. exports and creating American jobs. It has done that with bipartisan support at zero cost to the taxpayers.

I would like to mention two companies in particular that have received support from the Ex-Im Bank: Able Industrial Products in Ontario and Desiccare in Pomona. These aren't giant, faceless corporations. They are very small businesses that provide jobs for the Inland Empire residents.

The world economy is getting more competitive, and the Ex-Im Bank is helping to level the playing field for American companies. If my colleagues truly want to protect U.S. jobs and U.S. workers, we can't afford to let the Ex-Im Bank expire. It is time to allow a vote.

□ 1215

TRIBUTE TO DORELLA ANDERSON

(Mr. TAKANO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TAKANO. Mr. Speaker, I rise today to pay tribute to Dorella Alexis Anderson, a resident of Riverside, California, who passed away last month.

For more than 40 years, Dorella worked at the Riverside Community Settlement Association, which provided a number of services for residents in the Eastside area of Riverside.

A lifetime member of the Riverside African American Historical Society, Dorella worked to preserve the rich African American history in Riverside. She worked on numerous charitable endeavors in Riverside, including Toys for Tots, and gave back to the community in countless ways.

Dorella was a wife, a mother, a grandmother, a great-grandmother, a sister, an aunt, and a friend. Her dedication toward our community cements her legacy as one of our greatest residents. She will be missed.

CARRY-ON FREEDOM ACT

(Mr. COHEN asked and was given permission to address the House for 1 minute.)

Mr. COHEN. Mr. Speaker, last week the International Air Transport Association recommended a new guideline that would reduce the size of carry-on luggage. The new carry-on size limit is 21 percent smaller than the size currently permitted by most major domestic airlines.

Eight major international carriers have already adopted the new size limits, and the trade association is suggesting more airlines will be adopting it soon. If implemented by our domestic carriers, this will force consumers to spend more on checked baggage fees and/or purchase new luggage to meet this new guideline.

Enough is enough. Airline passengers are tired of getting squeezed by airlines, both physically and fiscally. The seats are smaller, the legroom is less, the prices are more, and the profits are more.

That is why I introduced the Carry-on Freedom Act. The bill would prohibit airlines who charge for checked baggage from reducing the size of carry-on baggage from the current size standards and would protect consumers from even more cost to travel. I urge my colleagues to stand up for consumers and pass the Carry-on Freedom Act.

PROSTATE CANCER IS A NATIONAL EPIDEMIC

(Mr. BUTTERFIELD asked and was given permission to address the House for 1 minute.)

Mr. BUTTERFIELD. Mr. Speaker, prostate cancer is a national epidemic, the most common cancer in men. One in seven men will be diagnosed, with more than 220,000 new cases each year, and 28,000 men will die from prostate cancer this year. Prostate cancer, Mr. Speaker, disproportionately impacts African American men, who have the highest prostate cancer rates of any racial or ethnic group. Black men are twice as likely to be diagnosed with prostate cancer, nearly 2½ times as likely to die from that disease.

Last week, I introduced the National Prostate Cancer Plan Act along with Congressmen MIKE MCCAUL, ELIJAH CUMMINGS, and WALTER JONES. The bill would establish the National Prostate Cancer Council and direct them to develop and implement a national strategic plan to accelerate the innovation of diagnostic tools to improve early detection and reduce unnecessary treatment.

Prostate cancer can strike anyone. Many of us have either been personally affected by this disease or have lost a loved one. Enactment of this bill would be a giant step forward in our battle to combat this treatable disease so that men can live longer and healthier.

My bill, Mr. Speaker, has been endorsed by the American Urological Association, American Medical Association, Prostate Cancer Foundation, ZERO, and PCRI.

Mr. Speaker, I urge my colleagues to join me in this effort by cosponsoring H.R. 2730.

WOMAN ON THE TWENTY ACT

(Mrs. BEATTY asked and was given permission to address the House for 1 minute.)

Mrs. BEATTY. Mr. Speaker, the American people have spoken. I join over 1 million Americans who voted in an online poll conducted by Women on 20s, a nonprofit grassroots organization, to put a woman on the $20 bill.

To celebrate the amazing achievements of women throughout our history, I introduced the legislation to Put a Woman on the Twenty Act, H.R. 2147, which would empower the Secretary of Treasury to put a woman on the face of a $20 bill as soon as possible.

Since the first general circulation of paper currency in this country, no woman has ever held the honor of being featured on paper money, and I would say to Secretary Lew that you need look no further than the people's choice winner, Harriet Tubman, for inspiration. In her words, ''Every great dream begins with a dreamer.'' In her dreams, she always had a vision. More than ever, my vision is a redesign of the $20 bill.

Mr. Speaker, I ask my colleagues to join me and support putting a woman on the $20 bill.

CONGRATULATIONS TO THE GUAM MEN'S NATIONAL SOCCER TEAM

(Ms. BORDALLO asked and was given permission to address the House for 1 minute.)

Ms. BORDALLO. Mr. Speaker, I rise today to congratulate the Guam men's national soccer team, Team Matao, as they lead group D in the second round of the FIFA World Cup Asian qualifiers. It was a David versus Goliath moment yesterday when Team Matao defeated India with a 2–1 victory. This follows Team Matao's 1–0 victory over Turkmenistan last week.

I congratulate Guam Football Association President Richard Lai, coach Gary White, and all of Team Matao on their great victory. Biba Guam.

HONORING DR. DENNIS GALLON ON HIS RETIREMENT

(Mr. DEUTCH asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DEUTCH. Mr. Speaker, I rise today for myself and on behalf of my colleague Congresswoman LOIS FRANKEL to honor one of south Florida's most respected leaders in higher education.

After 18 years of service, our friend Dr. Dennis Gallon is retiring as president of Palm Beach State College. Under his watch, Palm Beach State College has become the eighth-largest producer of associate degree graduates in America. From expanding STEM education programs coveted by local employers to creating an honors college for high-achieving students, Palm Beach State College flourished under Dr. Gallon's leadership.

Just last year, the United States Department of Education reported that Palm Beach State College offers the sixth-lowest tuition rates nationwide. Dr. Dennis Gallon's commitment to high-quality, affordable higher education is truly admirable, and his tenure as president of Palm Beach State College deserves our praise and gratitude.

Congresswoman FRANKEL, and I am sure Congressman HASTINGS, and I proudly thank him for his remarkable service.

RENEW THE EXPORT-IMPORT BANK

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, there are just 6 more working days before the Ex-Im Bank expires, and given the critical importance of this program, I thought it would be useful to provide a quick index of hard numbers showing what this would mean to the United States economy:

Sixty—the number 60. That is the approximate number of Ex-Im credit agencies that are competing with us around the world that are waiting for our Bank to expire so they can grab that American export business.

3,340. That is the number of small businesses that are supported right now by the Ex-Im Bank, helping them to export their goods and provide jobs.

164,000. That is the number of American jobs that are provided right now this year by the Ex-Im Bank that we would lose immediately.

1.3 million. That is the number of private sector jobs that have been created by the Bank since 2009, with no additional cost to the American taxpayer. In fact, it makes money to help us pay down our debt.

And, finally, zero. That is what we gain by killing our Bank. Zero. We don't get the revenue. We don't get the jobs. We don't get to export our goods. Let's renew it.

REMEMBERING DOMENIC D'AMBROSIO

(Mr. MOULTON asked and was given permission to address the House for 1 minute.)

Mr. MOULTON. Mr. Speaker, today I come to the floor of the House with a heavy heart. This past weekend, the city of Lynn lost a dedicated public servant, a tireless local volunteer, and an inspiring advocate for the people of our community. Domenic D'Ambrosio, known by many as Dom, was loved by many for his uncanny ability to connect with people. Whether they were old friends or someone he was meeting for the first time, Dom's compassion for others was contagious, encouraging all of us to be better members of our community.

At a time when public opinion of Congress is at an all-time low, Dom's belief in this institution and the power of the democratic process could not have been stronger. I thank him for bringing a reinvigorating energy to our Nation's political dialogue and for reminding us why we are so fortunate to have a free and democratic government, and why we should all take part in making it better.

My thoughts and prayers are with his wife, Kelly, his family, and friends. The Sixth District of Massachusetts lost a true champion, but I know that his legacy will live on through our shared commitment to public service. Dom, you will be missed.

JUNE IS ALZHEIMER'S AND BRAIN AWARENESS MONTH

(Mr. GENE GREEN of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GENE GREEN of Texas. Mr. Speaker, I rise today to recognize the month of June as Alzheimer's and Brain Awareness Month. Approximately 340,000 Texans and 5.4 million Americans currently have Alzheimer's disease. One in nine Americans over 65 is projected to develop Alzheimer's, and it is the sixth-leading cause of death in the United States.

The rapidly growing number of older Americans will lead to a corresponding rapid growth in the prevalence of Alzheimer's disease. The devastating emotional and financial impact of this debilitating disease is known by too many. My mother-in-law battled this disease, so I know firsthand how difficult it can be for patients and their loved ones.

I strongly support efforts to advocate and raise awareness and robust funding for research to find treatments and cure for this disease. Congress has a real opportunity to dramatically impact the lives of millions of Americans by funding research and outreach programs for Alzheimer's.

I urge my colleagues to join me in recognizing the month of June as Alzheimer's and Brain Awareness Month. Together we can help turn the world purple for Alzheimer's, and by doing so, promote care, support, and research of this terrible disease.

REAUTHORIZE THE EXPORT-IMPORT BANK

(Ms. TITUS asked and was given permission to address the House for 1 minute.)

Ms. TITUS. Mr. Speaker, I rise today to urge Republican leadership to stop blocking the will of the House and immediately call for a vote to reauthorize the Export-Import Bank, set to expire June 30.

This May I hosted Fred Hochberg, chairman of the Ex-Im Bank, in my district to tour Innova Technologies, a leader in civil-structural engineering and one of 32 Nevada companies working with the Bank. At a time when our local economy was fighting to recover from the recession and unemployment was rampant, the Bank provided critical support that allowed Innova not just to survive but nearly double its workforce.

In 2014 alone, the Bank supported 164,000 jobs and reduced the Federal deficit by $675 million. In Nevada, it helped increase our export value by $165 million. Now is the time for a long-term reauthorization to renew, reenergize, and reform the Bank so it can continue supporting businesses and creating jobs in Nevada and across the country.

MAKING IN ORDER AT ANY TIME CONSIDERATION OF H. CON. RES. 55, REMOVAL OF UNITED STATES ARMED FORCES FROM IRAQ AND SYRIA

Mr. COLLINS of Georgia. Mr. Speaker, I ask unanimous consent that it be in order at any time to consider H. Con. Res. 55 in the House if called up by the chair of the Committee on Foreign Affairs or his designee; that the concurrent resolution be considered as read; and that the previous question be considered as ordered on the concurrent resolution to adoption without intervening motion or demand for division of the question, except for 2 hours of debate equally divided among and controlled by Representative ROYCE of California, Representative ENGEL of New York, and Representative MCGOVERN of Massachusetts or their respective designees.

The SPEAKER pro tempore (Mr. DUNCAN of Tennessee). Is there objection to the request of the gentleman from Georgia?

There was no objection.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, June 16, 2015.

Hon. JOHN A. BOEHNER,
The Speaker, U.S. Capitol,
House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on June 16, 2015 at 11:02 a.m.:

That the Senate passed S. 565.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

□ 1230

PROVIDING FOR CONSIDERATION OF H.R. 2596, INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEAR 2016

Mr. COLLINS of Georgia. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 315 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 315

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 2596) to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and amendments specified in this section and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Permanent Select Committee on Intelligence. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence now printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–19. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in

the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. Notwithstanding clause 8 of rule XX, further proceedings on the recorded vote ordered on the question of reconsideration of the vote on the question of concurring in the matter comprising the remainder of title II of the Senate amendment to H.R. 1314 may continue to be postponed through the legislative day of Thursday, July 30, 2015.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 1 hour.

Mr. COLLINS of Georgia. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. COLLINS of Georgia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on House Resolution 315, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. COLLINS of Georgia. Mr. Speaker, I am pleased to bring forward today this rule on behalf of the Rules Committee. This rule provides for a robust amendment debate on a wide variety of issues related to the authorization of funds for 16 intelligence agencies.

This rule provides for the consideration of H.R. 2596, the Intelligence Authorization Act for Fiscal Year 2016. The Rules Committee met on this measure yesterday evening and heard testimony from both the chairman of the committee and the ranking member, in addition to receiving amendment testimony from multiple Members.

This rule brought forward by the committee is a structured rule. There were 29 amendments in total submitted to the Rules Committee. Of those 29, I am pleased that the full House will debate and vote on 16 of those amendments, over half that were submitted.

The majority of the amendments made in order are bipartisan, a fact demonstrating the unity of this body in advancing funds that will go directly to fighting against terrorism proliferation and weapons of mass destruction.

''To provide for the common defense'' is a common phrase to us all, and one that clearly sets forth the more basic responsibility of our government, a responsibility that the members of the Rules Committee, the Intelligence Committee, and, yes, I believe the entire House do not take lightly.

This rule provides for 1 hour of general debate equally divided and controlled by the chair and the ranking member of the Permanent Select Committee on Intelligence.

As most of the intelligence budget involves highly classified programs, all Members were given the opportunity to review the classified annexes to the underlying legislation prior to Rules Committee consideration.

Members should also be aware that section 2 of the rule provides that the motion to reconsider the vote on Trade Adjustment Assistance, or title II of the Senate amendment to H.R. 1314, may continue to be postponed through Thursday, July 30, 2015.

This postponement was necessary to allow House and Senate leadership, in addition to the President, sufficient time to consider legislative options related to this action on trade promotion authority and Trade Adjustment Assistance.

I am proud of the work undertaken by the Intelligence Committee to advance this vitally important legislation whose consideration is provided for by this rule.

There are a few key provisions that I want to ensure Members are aware of because I believe they speak to the overwhelming awareness the Intelligence Committee possesses of the responsibility of Congress to protect this Nation from terrorism, and also of our unwavering fidelity to the United States Constitution.

First, section 302 of the underlying legislation provides that the authorization of appropriations by this act shall not be deemed to constitute authority for the conduct of any intelligence activity that is not otherwise authorized by the Constitution or the laws of the United States.

Sections 303 and 304 require specific elements of the executive branch to provide Congress with timely notifying requirements on key intelligence activities. Congressional notification requirements generally remain a vitally important mechanism to ensure that Congress is able to conduct robust oversight.

Notification requirements specific to the intelligence community are even more essential, given the classified and delicate nature of the situations our intelligence agencies face every day.

The classification of documents and the decisionmaking factors that go into such classification have historically been an area of great interest and, at times, concerns by Members of this body and the citizens that we represent.

In response to the valid concerns and interest by Members and the public at large, in the Intelligence Committee's report on H.R. 2596, they specifically state that the committee ''seeks to improve its visibility into the classification process and better understand how the intelligence community determines the classification level of especially sensitive reporting and analysis.''

In the underlying legislation, the committee carries out this goal by directing the Director of National Intelligence to provide, within 60 days of the enactment, a report to the congressional intelligence committees outlining each instance in the past 5 years that the Office of Director of National Intelligence or any other entity within the executive branch directed an element of the intelligence community to begin disseminating existing uncompartmented intelligence reporting or analysis through a compartment or subcompartment.

This requirement is just one of several additional reporting requirements in the legislation to serve to enhance Congress' role in and understanding of the classification process, again, emphasizing Congress' oversight role. The committee has done a good job in clarifying that.

The underlying legislation also directs the Central Intelligence Agency to provide the congressional intelligence committees with all intelligence reports based on the documents collected in the May 1, 2011, raid that killed Osama bin Laden.

We live in a dangerous world and face constant and evolving threats from terrorist groups like al Qaeda, Boko Haram, al Shabaab, and ISIS. These groups successfully use the Internet to anonymously build their resources, both human and financial.

The United States Government must maintain and enhance their ability to counter extremists online. By understanding how and where terrorist groups operate, we can more effectively fight for freedom at home and abroad. I am pleased to see strong provisions in the legislation that will further this goal.

These provisions that I have just spoken of are just a few examples of the thoughtful and difficult work the Intelligence Committee undertook to bring forward this legislation that authorizes critical national security functions while staying within the funding constraints of the Budget Control Act, or BCA.

I want to thank the Intelligence Committee and their staff for their hard work on the authorization measure.

Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, I yield myself such time as I may consume, and I thank the gentleman, my friend from Georgia, for yielding the customary 30 minutes for debate.

Mr. Speaker, this rule provides for consideration of H.R. 2596, the Intelligence Authorization Act for Fiscal Year 2016, as well as provides that the

motion to reconsider the vote on passage of the Trade Adjustment Assistance measure may continue to be postponed until the end of the legislative day on July 30.

First, I commend the efforts of Chairman NUNES and Ranking Member SCHIFF for their effort in crafting a bill with largely bipartisan support that provides our Nation's intelligence community with the resources they need to keep us safe. Our national security relies on the continued strength of our intelligence community.

As we face ongoing security challenges both at home and abroad from threats such as ISIL, lone wolf attacks, the emergence of cybercrime, as well as the specter of unknown challenges that may be awaiting us, a strong intelligence apparatus is of the utmost importance.

This legislation will do much to meet those challenges. Specifically, this bill supports investments in cutting-edge technology like spy satellites, enhances our Nation's human intelligence capabilities, provides resources to safeguard valuable signals intelligence collection, and partners with our foreign allies to maximize the reach of our intelligence efforts.

This investment in our country's intelligence infrastructure comes at a critically important time. As you know, the Office of Personnel Management recently suffered a disastrous breach. Hackers were able to target OPM and gain access to personnel data, including employees' names, addresses, Social Security numbers, and numerous other personal details.

Perhaps most disturbing, OPM houses the applications and files submitted by those applying for security clearances, with data going back until 1985. These files were compromised as well, leading some experts to argue that the compromise of these files could have tremendous negative effects for our human intelligence gathering capabilities.

These cyber attacks represent a critical threat to our national security. We all love the convenience that technology provides us, but we must also be prepared to invest in technologies that will protect us from those who wish to sabotage our security in the virtual world. It is time for the OPM to implement and abide by best practices so that we never face a data breach like the one we saw last week.

To the extent that Congress will play a role in securing our virtual infrastructure, we should work as quickly as possible to ensure that our employees and our most sensitive material are not needlessly exposed to those who wish to do us harm.

Mr. Speaker, while I support the strong national security protections this authorization provides, I am extremely disappointed yet again in how my Republican colleagues have skirted the fiscal cuts imposed by sequestration in order to fund the things that they care about, while ignoring the effects such fool-headed cuts have on the vital domestic programs that they don't seem to care about. We have people hurting all over this Nation because of this irresponsible and senseless policy of sequestration.

Republicans claim to be using this policy as an important tool to rein in out-of-control government spending; yet, when sequestration affects programs and areas of the budget they care about, they magically get around this dilemma by using accounting gimmicks.

That is just what they have done here in this measure. The majority has yet again used the overseas contingency operations account to evade sequestration spending caps.

Wouldn't it be nice if Republicans wanted to evade spending caps for the Department of Education so that we can get around sequestration and properly educate our children? Or if they could use accounting tricks to get around sequestration to fully fund and repair our crumbling infrastructure? Or if they were also inclined to use their budgetary magic to get around sequestration caps to properly fund critically important agencies like the Environmental Protection Agency so that our children and grandchildren can continue to have access to clean water and clean air?

Alas, all we get from the majority is more of the same budgetary double standard, using tricks to get around spending caps on things you like to spend money on and then cry, ''sequester, sequester,'' on things you don't like to spend money on.

□ 1245

Let's stop pretending. That isn't a plan to rein in government spending. That is just spending taxpayer money on things you deem worthy of unfettered spending and ignoring programs, for political reasons, that you don't even like, even though such programs remain vital to our country's success.

Mr. Speaker, many on my side of the aisle have taken issue with the detention facility in Guantanamo Bay since day one; I certainly have. Once again, the Republicans look to continue the operation of this prison, when we should be working to bring about its orderly closure.

We are better than this prison. As a country dedicated to the rule of law, as a country that inspires people the world over to work for and even die for the establishment of democratic rule, we are better than this prison. This prison is an exercise in Kafkaesque justice, which has long worked to undermine our standing with our allies and helped terrorist organizations recruit more and more fighters.

Look, I don't think that anyone is arguing that, if we close the prison, then the myriad terrorist groups who use it as a recruiting tool will no longer have people joining their ranks, but it would be one less arrow in their quiver.

For that reason, we need to work together to close the prison as quickly as possible. In doing so, we will not jeopardize the safety of our country, but will act more fully to reflect our commitment to democracy and the rule of law.

We know and I know, having been in the judiciary, that our justice system is more than capable of handling the prosecution of terrorists, no matter where they are, including those held in Guantanamo Bay.

We have successfully tried Richard Reid, Umar Farouk Abdulmutallab, Faisal Shahzad, and Dzhokhar Tsarnaev—the Boston bomber—and we have either sentenced them to death or life imprisonment in our most secure prisons.

At last night's Rules Committee meeting, my friends on the other side of the aisle decided to make a last-minute change to today's rule—or, I might add, to further pollute today's rule. That last-minute change allows for the postponement of the motion to reconsider TAA.

Over the course of my tenure in Congress, I voted to support thousands of pieces of legislation. In the 20-plus years that I have served in this body, I can think of only three votes which I deeply regret making, and one of those was in support of NAFTA.

In the years since, I have seen after NAFTA a decrease in American jobs, a rollback of critical environmental protections here and in Mexico, where I was promised that the environmental circumstances in the maquiladoras would be cleaned up and they were not and a stagnation of wages that has prevented the financial upward mobility of working class and middle class Americans and has ground poor Americans into poverty beyond belief.

If we are going to create trade policy that is worthy of future generations, then we must ensure that that policy strengthens, not weakens, labor rights. It must strengthen, not weaken, environmental protections. It must ensure other countries' responsibility to adhere to basic human rights. It must expand and strengthen our middle class, not squeeze hard-working Americans in favor of corporate interests.

The legislation included in this rule today is part of a trade package that does nothing to bolster these important priorities.

Finally, as I have stated time and again, I take issue with the manner in which these important measures are being considered. Legislation as important as the ones at hand deserve an open and transparent process where Members of both parties and both Houses of Congress may debate and offer amendments as they please.

This process, envisioned and designed by our Founding Fathers to serve as a safeguard to democracy, continues to be eroded by the majority's insistence on grouping multiple, unrelated bills together under one rule and limiting the number of amendments that can be made in order, as well as the time available for debate.

There were amendments offered last night. For example, Congresswoman SPEIER offered whistleblower protection, not made in order. My colleague Representative SCHWEIKERT from Arizona and I offered a very sensible measure under the intelligence provision to allow for us, as a sense of Congress only, to say that we will participate with Tunisia's intelligence operation in a more pronounced manner—totally innocuous, but at the very same time, helping a country that may very well make the bridge to democracy and certainly has been an ally in intelligence—and a needed one, in light of the number of people that come up from north Africa through Tunisia and wind up fighting in the Middle East.

If we are truly to operate as the deliberative body the U.S. House of Representatives was created to function as, we must do more to ensure that our Nation's most critical pieces of legislation are afforded the time and consideration they rightly deserve.

Mr. Speaker, I reserve the balance of my time.

Mr. COLLINS of Georgia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I appreciate the gentleman from Florida. One of the things that I, coming on to the Rules Committee, have found is really the vigorous debates that we do have—and the gentleman from Florida, we have had many of those, and that is a good place for it.

It is a good place for it also here on the floor to discuss what really, as was focused on very clearly, is a rule for a bill, and then there is a procedural issue that we are extending the TAA reconsideration until July 30. I am understanding what he is saying, but I do want to make Members clear that is what is happening.

We are working on the majority side for a process that is open. Sixteen amendments are going to be made in order, and they are going to be debated right here on the floor of this House and voted. I think that is what the Republican majority is focused on.

One of the things that came up—and I want it to be clear, Mr. Speaker, is the gentleman brings up a point. It is about priorities. It is about priorities. When we are dealing with authorizations and spending bills, is what we are dealing with in the majority here, we have made it very clear, I believe, from the Republican majority standpoint, although I personally and others may have discussions on how we use overseas contingency funds, and those have been debated on this floor and should be continued to be debated on this floor.

However, one of the things that we are doing, and I believe, from our perspective, is we are putting priorities first—priorities for national defense; securing our national interest; and in light of this bill, making sure that our country is safe, abroad and here, from attacks from people who don't like us.

I don't buy the argument—and the debate on Guantanamo is a different issue—but the argument that if we closed it up, it takes away one recruiting piece. I am sorry. Boko Haram, al Qaeda, these others do not hate us only because of a prison; they just hate us because we are free. They hate us because we have a society that is open.

I understand the debate that we want to have, but let's make it crystal clear. There was no Guantanamo when they rammed planes into our World Trade Center. There was no Guantanamo at that time. They just don't like us. Let's make that very clear.

Funding is appropriate. We will debate those entirely upon this House and continue to. The Republicans will still look out for jobs and those working in the middle class, and those that are trying to find their families' priorities in their own economic sphere and looking at it in a country that is in debt and trying to make sure we make good fiscal decisions.

Our priorities are that we help businesses start, we encourage the creation of jobs, not a government strangulation of jobs, and that is what resources do.

With this bill, it is very focused, though. This is about our intelligence community. This is a rule that supports an authorization coming from a very difficult community that does a very difficult job. We are supporting a rule that funds those agencies so that it keeps us safe and does the things that keeps America free. That is the continued argument that we will continue to have.

I appreciate, Mr. Speaker, the other debates that we want to have here, but let's be focused. This rule is about that. It is also about a policy decision or a procedural decision in this rule.

Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, at this time, I am very pleased to yield 2 minutes to the distinguished gentlewoman from Connecticut (Ms. DELAURO).

Ms. DELAURO. Mr. Speaker, the vote on Trade Adjustment Assistance failed in the House of Representatives last Friday by a 3–1 margin; yet this rule today would extend the revote on Trade Adjustment Assistance through the end of July. This is one more attempt to play games with the future of hard-working families.

American workers demand and they deserve respect. They deserve a living wage and the right not to have their jobs shipped overseas. That is what we are united in fighting for.

A vote for this rule is a vote for fast track. A vote for fast track is a vote against jobs and against wages.

United States trade policy has been failing American workers, failing American consumers and families for 20 years.

The U.S.-Korea Free Trade Agreement has already cost up to 75,000 jobs, and it was just passed 3 years ago. Up to 5 million jobs have been destroyed by currency manipulation; and a number of the signatories to this trade agreement, their policy is to manipulate their currency to have their goods sold at a lower price than American goods, putting American workers out of jobs and lowering their wages.

Joseph Stiglitz, the Nobel Laureate in Economics, has written: ''Inequality is not inevitable. It is a choice that we make with the rules that we create to structure our economy.''

Trade policy is one of those choices. If we approve fast track, we throw away our ability, our constitutional authority to represent the people who sent us here in good faith. We throw away that ability to be able to fix the flaws in the trade agreement, like the Trans-Pacific Partnership, to the detriment of millions of American families.

I urge a ''no'' vote on this rule.

Mr. COLLINS of Georgia. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, at this time, I am very pleased to yield 2 minutes to the distinguished gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Friday, this House sent a strong message to the Fast-Trackers: Not so fast.

Forty-eight hours ago, Republican leaders were telling the world that, at this moment, we would be voting to approve Fast Track; but now, the Fast-Trackers have become backtrackers, pushing back the vote.

The only reason that they seek this postponement in this rule of up to 6 weeks is that they do not have the votes to approve Fast Track today, and the only way they can get those votes today is to use this strange shenanigan of connecting it and cloaking it in a rule for the authorization of our intelligence agencies.

After Friday's Fast Track vote, one official said those who ''vote against this Trade Adjustment Assistance are adding their names to the death certificate for [it].'' Well, let's play it straight for a change. TAA is not authorized now. It expired last year. Its future depends, not upon this authorization, but upon an adequate level of funding.

The Elementary and Secondary Education Act, the Juvenile Justice and Delinquency Prevention Act, and many more have not been authorized for years, but they continue to operate perfectly well, based upon appropriated funds. This TAA argument is phony.

□ 1300

Really, it doesn't take much intelligence to see what is happening here. These Fast-Trackers are desperate, and this postponement vote for this extent, of this nature, is unprecedented in the history of this Congress. It has never happened before in American history that someone has asked to postpone a vote for up to 6 weeks.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. HASTINGS. I yield the gentleman an additional 30 seconds.

Mr. DOGGETT. And understand what that means. Understand that they are looking for the ideal time—morning, noon, or night—to muscle through a broken trade policy that a majority of this House and of the American people do not want.

This rule provides that the Speaker at any time of day can come with no notice, no debate, and say, we are voting to send this bill to the President's desk.

What really needs adjusting is not trade assistance but the no-compromise, no-amendment attitude on trade that gives us broken trade policies.

This vote wouldn't be so close if this process hadn't been so closed.

Reject this rule. Vote for democracy. Don't change the precedents of the House. Don't let this be muscled through.

Mr. COLLINS of Georgia. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, I am very pleased to yield 2 minutes to the distinguished gentleman from Georgia (Mr. DAVID SCOTT), my good friend.

Mr. DAVID SCOTT of Georgia. Mr. Speaker, ladies and gentlemen, what is about to happen on this floor with this rule is a direct violation of the United States Constitution; for in the United States Constitution, it clearly says that the United States Congress shall have the power ''to regulate commerce with foreign nations.'' And in this rule is a clear violation of that.

We already voted it down overwhelmingly 302–126, Republicans and Democrats. It was the foremost bipartisan vote in this 21st century, the very thing that the American people are crying for.

Now, why did Alexander Hamilton and Thomas Jefferson and James Madison all agree? Very strong, very independent minds. Alexander Hamilton and Thomas Jefferson could hardly bear to be in the same room with each other, but they agreed on this because they knew that every State had Representatives in Congress to look out for jobs that could be shipped overseas. This is the primary reason, ladies and gentlemen.

Look at every trade agreement. This country has lost over 2 million manufacturing jobs to China as a result of the China deal. Over 150,000 jobs to Mexico. Yes, it created jobs—not in the United States. And what kind of jobs? These are jobs that impacted at the lower- and middle-income levels of our economy. It is the middle class that is the heart and the soul of America.

Let this Congress stand up and reject this rule.

We proved our mettle with that 302 vote. Congress, I am asking you, the American people are asking you: Do what Alexander Hamilton and Thomas Jefferson and James Madison asked us to do, and let it be the Congress that regulates commerce with foreign nations.

Mr. COLLINS of Georgia. Mr. Speaker, I will continue to reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, at this time, I yield 2 minutes to the distinguished gentleman from California (Mr. SHERMAN).

Mr. SHERMAN. Mr. Speaker, intelligence is critical to our national security. It should not be besmirched by a controversial and unrelated procedural shenanigan, unprecedented in the annals of the House of Representatives.

In the words of the President of the United States, It is time to play it straight. TAA and TPA, that package was voted on. It was defeated. We are done. Play it straight.

Write new legislation. Put together a new package. Bring it to the floor of the House. See if it has a majority. That is playing it straight.

Instead, in an unprecedented move, a vote we took last week is being held in never-never land to be revoted on as late as the end of July. That is right. Early June votes tabulated in late July.

If you are against unprecedented shenanigans, vote ''no'' on the rule. If you are for playing it straight, vote ''no'' on the rule. If you are against TAA, vote ''no'' on the rule. If you are against TPA, if you are against fast track, vote ''no'' on the rule.

If you vote for an unprecedented procedural shenanigan, an unprecedented procedural mutation today, you can be sure it will be used against you and your district and your beliefs tomorrow. And if you are not against fast track, you should be because it gives an enormous gift to China, and we get nothing in return.

China's number one tactic for running up the largest trade surplus against us in history is currency manipulation. This deal that is put on the fast track enshrines the view that currency manipulation is just fine. Go to it. A giant gift to China.

In addition, the rules of origin provisions say that goods that the manufacturer admits are 50 or 60 percent made in China—which means actually 70 or 80 percent made in China—get fast-tracked into the United States.

Vote ''no'' on this procedural mutation.

Mr. COLLINS of Georgia. I yield myself such time as I may consume.

Mr. Speaker, just for a moment, let's focus back on the rule and the underlying bill and the procedural issue that has been discussed. It is out in the open. It was not snuck in or anything else. It has been there and has been discussed.

But also, I want to get back to the fact of the rule, itself, which is stand alone. We are going to be voting on an intelligence bill. We are going to have a debate on an intelligence bill.

And, among other things, I will give us a reminder of what this legislation does:

It sustains critical capabilities to fight terrorism and counter the proliferation of weapons of mass destruction. That is a separate bill. This is what we are going to be discussing. It has funds to assist our efforts to recover unauthorized disclosures of intelligence capabilities. It sustains activities in Afghanistan and Iraq to continue the fight against ISIS, al Qaeda, and the Taliban. It invests in the resiliency of our national security space architecture. It provides policy discretion on sensitive intelligence operations. It promotes intelligence integration and sharing through investment in intelligence communitywide information technology enterprises. It enhances investment in military intelligence, surveillance, and reconnaissance aircraft. It funds initiatives to thwart cyber attacks and insider threats. And it requires a report every 60 days on foreign fighters in Syria and Iraq.

This is the bill, the underlying bill that we are discussing. And I just wanted to make a reminder of that. As we have discussions on different parts of this rule, let's be reminded also that we are dealing with a stand-alone bill that we will work.

Mr. HASTINGS. Will the gentleman yield for just a question?

Mr. COLLINS of Georgia. I yield to the gentleman from Florida for just a question.

Mr. HASTINGS. Mr. Speaker, all of the things that the gentleman from Georgia said are in the measure are true. But does he also agree that it is unprecedented that we have included a measure to delay an already-voted-on rule? Never before has that been done.

Or to your knowledge, has it been?

Mr. COLLINS of Georgia. Well, I think it is a fact that it is a part of this rule. The gentleman from Florida states it in whatever adjectival terms he wants to give. But it is in the rule. We have not made it secretive that it is part of this rule. And we can discuss either part.

I will just simply focus on the intelligence part.

I reserve the balance of my time.

Mr. HASTINGS. Mr. Speaker, at this time, I am very pleased to yield 2 minutes to the distinguished gentlewoman from Texas (Ms. JACKSON LEE), my good friend.

Ms. JACKSON LEE. I thank the gentleman from Florida for yielding and for the astute question that he asked, which is one that I would like to follow up on.

Mr. Speaker, let me say to the gentleman from Georgia that he is quite right. There are very serious and important components of the intelligence bill covered by this rule.

As many of us have experienced over the last couple of days, we are in and out of intelligence and security briefings because that is the era in which we live. And in most instances, Members draw their concern from the responsibility they have for protecting the American people.

I am on the Homeland Security Committee and have continued on that committee since the tragedy, the heinous act of 9/11, and before, when the

select committee was in place. So I have no quarrel with some of the important elements of this legislation. But the gentleman from Georgia should recognize that this is an aberration.

There are two or three points that I would like to make:

First of all, we are long overdue for getting rid of the sequester. This joke was played on Members and the American people only because of the supercommittee—not because of any individual Members, but there was a supercommittee structure put in place, the time ran out, and they could not come to a budget conclusion. So this was the ultimate end. Members didn't vote on this. They voted on the supercommittee, and then this was the hatchet that fell when the supercommittee did not work. So sequester should be something that Speaker BOEHNER puts on the floor and immediately gets rid of.

And the reason why I say that is because I am going to talk about the shenanigans dealing with the trade bill. But what I am going to say is that the overseas contingency fund is being used to bolster up this bill, the intelligence bill. But I can't get those resources to be utilized for infrastructure or summer jobs or fixing the education system that we have responsibilities for or providing opportunities for young people to finish their education or criminal justice reform. So this is being 43 percent pumped up when used by funds that are not in the stream.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. HASTINGS. I yield the gentlewoman an additional 30 seconds.

Ms. JACKSON LEE. I thank the gentleman.

The funding is not in the stream of funding that other appropriators have to utilize. That is wrong.

Then I might conclude on the shenanigans of the trade fix, if you will. I am for TAA, the Trade Adjustment Assistance. I want it to be voted on straight up or down, like many Members do, to provide for workers and not have, unfortunately, the addition that was added coming from the other body. So now we know that, whatever shenanigans that will come up, it probably won't be in the way that will help American workers.

Mr. Speaker, this rule should be voted down because we need an opportunity to work on behalf of the American workers, to get rid of sequester, and to find a way to move this country forward.

Mr. COLLINS of Georgia. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS. I yield myself such time as I may consume.

Mr. Speaker, perhaps I should say to the membership of this body that if they vote against this rule, it doesn't mean that we would not have an intelligence authorization. It simply would mean that those of us—my friend from Georgia and myself—would have to go back to the Rules Committee and fashion a rule that does not include an unprecedented matter that should not be in this Intelligence Authorization Act for Fiscal Year 2016 in the first place.

And toward that end, among the things that were sought to be included, if we were going to include the TAA measure, then the ranking member, Ms. SLAUGHTER, proposed on behalf of the minority that we also include a vote on the Trans-Pacific Partnership, TPP, for the reason, one, TAA was overwhelmingly—3–1—defeated; TPP passed by a very thin margin.

So if we are going to twist arms and find methodologies to employ to try to change the minds of Members over a 6-week period of time, then perhaps it would be those of us who are opposed to the measure would have an opportunity to try to persuade some of those people who caused the thin margin of it to pass on TPP. We felt that was a fairness measure. At least if you were going to include it, that should have been included as well.

Before proceeding, Mr. Speaker, perhaps I should learn how much time each side has at this time.

The SPEAKER pro tempore. The gentleman from Florida has 4½ minutes remaining. The gentleman from Georgia has 19½ minutes remaining.

□ 1315

Mr. COLLINS of Georgia. Mr. Speaker, I am prepared to close.

Mr. HASTINGS. Mr. Speaker, at this time, I am waiting for one additional speaker, but perhaps I can engage in a colloquy with my colleague from Texas.

Mr. DOGGETT. Will the gentleman yield for a question?

Mr. HASTINGS. I yield to the gentleman from Texas.

Mr. DOGGETT. You served both on the Intelligence Committee and on the Rules Committee. There is reason to authorize intelligence, but am I correct it has nothing to do with this sneak attack to put in a postponement that has never been done in American history, where never has anyone sought to delay for 6 weeks the consideration of this bill that we are doing today; isn't that correct?

Mr. HASTINGS. I think you are absolutely correct, and it is unprecedented. At the very same time, as my friend from Georgia pointed out, they have done so transparently by putting it here, but that does not mean it would not be used at some point in the future.

Mr. DOGGETT. Does this rule provide any notice to Members of the House, or can this be entirely a surprise attack? Can they come out here on the floor at any time, perhaps when the floor is as empty as it is now, and give no notice to the Members of the House that they are about to move to send this bill to the President's desk, have absolutely no debate on that rule, but then have a vote here, perhaps a day when some Members are out on important business in their district, basically picking the best time because they are so desperate to force through a bill that they know a majority of this House does not support and that the American people don't support because it will just foist off on us a broken, failed trade policy that does not respect the interests of the American people? Is that what is happening here?

Mr. HASTINGS. That is certainly allowed. Anytime before July 30, the measure could be brought to the floor, and it could be brought to the floor without any notice to the membership because it is a motion to reconsider. It is a part of this particular rule sought by the Speaker of the House, I might add, and therefore it could be brought at any time under the aegis of the Speaker's authority.

Mr. DOGGETT. Was the gentleman present in the Rules Committee when every single constructive improvement to this fast-track bill was rejected by the Rules Committee—not with your vote, of course—but a majority of the Rules Committee said ''no'' to telling the Members of this Congress as much about this deal as the Vietnamese Politburo already knows, saying ''no'' to at least meeting the standards on the environment that the Bush administration agreed to, saying ''no'' to putting the foreign corporations on the same level as our American corporations and businesses so that foreign corporations wouldn't have an advantage to come in and attack health, safety, and environmental rules that might be established by the Congress or the State of Florida or a city like San Antonio or Austin? Because under this fast-track bill, we are headed toward jeopardizing those rules, those State laws, and those Federal laws that deal with the needs of the American family and letting these foreign corporations circumvent them as they did in Canada, recently, to demand millions of dollars of taxpayer money for a decision locally to just prevent the expansion of a quarry. We can't have that happen. But the Rules Committee would not allow us to address those problems.

Mr. HASTINGS. Many of those measures in a 5½-hour, into-the-night session that the Rules Committee operated.

Mr. DOGGETT. I thank the gentleman.

Mr. HASTINGS. Mr. Speaker, I yield myself the balance of my time.

I would urge that Members understand that we have already voted on this measure, and it was defeated, as I say, 3–1.

Robust funding for our intelligence infrastructure is clearly needed and, indeed, welcomed, but enough is enough. It is time for Republicans to stop squeezing important domestic programs through their arbitrary implementation of sequester. We must invest in education in this country; we must invest in our decaying infrastructure; we must invest in a clean environment; and we must invest in a strong middle class.

Republicans want to make investments in our intelligence community.

Great. So do I. We all do. But at some point, we have to start asking: What is it that that community is protecting? Without investments in education, infrastructure, and our middle class, we risk undermining what makes this country so exceptional and worth protecting in the first place.

I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. COLLINS of Georgia. Mr. Speaker, I yield myself the balance of my time.

I appreciate the discussion we have had over the last little bit. I appreciate the gentleman from Florida. Again, although we have some differences—those have been evident today—the rule provides for ample debate on the floor and the opportunity to debate and vote on up to 16 amendments offered by a largely bipartisan group of Members.

I look forward to those debates. I look forward to the debate on how best to provide tools for our intelligence community and to combat the dangerous threats that we face while still respecting both the constitutional and budgetary restraints. Those are things that sometimes, I think, in the midst of discussion today, got lost in that this is a separate vote that we are going to be voting on our intelligence bill. There is a procedural issue that is part of this that is, again, not snuck in. It has been posted; it has been online; and it is there for Members to see.

When we look at priorities, again, I think, for us, it goes back to, again, in the overall budgetary and authorization process, the Republican majority stands for protecting our national interests, protecting and empowering the voters who actually send us here, not for growing and empowering an ever-encroaching Federal Government. This is what the budgets reflect. This is what the authorizations reflect. These are the priorities of the American people, and these are the priorities of the Republican majority.

Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, this 15-minute vote on adoption of House Resolution 315 will be followed by a 5-minute vote on agreeing to the Speaker's approval of the Journal, if ordered.

The vote was taken by electronic device, and there were—yeas 236, nays 189, not voting 8, as follows:

[Roll No. 366]

YEAS—236

Abraham
Aderholt
Allen
Amodei
Ashford
Babin
Barletta
Barr
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cooper
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Price, Tom
Ratcliffe
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—189

Adams
Aguilar
Amash
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brooks (AL)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gohmert
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Posey
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—8

Barton
Byrne
Chaffetz
Kelly (MS)
King (NY)
Reed
Sanchez, Loretta
Sewell (AL)

□ 1356

Mr. BEN RAY LUJÁN of New Mexico, Mses. EDDIE BERNICE JOHNSON of Texas, and SINEMA changed their vote from ''yea'' to ''nay.''

Mr. ASHFORD changed his vote from ''nay'' to ''yea.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on agreeing to the Speaker's approval of the Journal, which the Chair will put de novo.

The question is on the Speaker's approval of the Journal.

Pursuant to clause 1, rule I, the Journal stands approved.

AGREEMENT FOR COOPERATION BETWEEN THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND THE GOVERNMENT OF THE REPUBLIC OF KOREA CONCERNING PEACEFUL USES OF NUCLEAR ENERGY—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–43)

The SPEAKER pro tempore laid before the House the following message

from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

I am pleased to transmit to the Congress, pursuant to sections 123 b. and 123 d. of the Atomic Energy Act of 1954, as amended (42 U.S.C. 2153(b), (d)) (the ''Act''), the text of a proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Republic of Korea Concerning Peaceful Uses of Nuclear Energy (the ''Agreement''). I am also pleased to transmit my written approval, authorization, and determination concerning the proposed Agreement, and an unclassified Nuclear Proliferation Assessment Statement (NPAS) concerning the proposed Agreement. (In accordance with section 123 of the Act, as amended by Title XII of the Foreign Affairs Reform and Restructuring Act of 1998 (Public Law 105–277), two classified annexes to the NPAS, prepared by the Secretary of State, in consultation with the Director of National Intelligence, summarizing relevant classified information, will be submitted to the Congress separately.) The joint memorandum submitted to me by the Secretaries of State and Energy and a letter from the Chairman of the Nuclear Regulatory Commission stating the views of the Commission are also enclosed. An addendum to the NPAS containing a comprehensive analysis of the export control system of the Republic of Korea (ROK) with respect to nuclear-related matters, including interactions with other countries of proliferation concern and the actual or suspected nuclear, dual-use, or missile-related transfers to such countries, pursuant to section 102A(w) of the National Security Act of 1947 (50 U.S.C. 3024(w)), is being submitted separately by the Director of National Intelligence.

The proposed Agreement has been negotiated in accordance with the Act and other applicable law. In my judgment, it meets all applicable statutory requirements and will advance the nonproliferation and other foreign policy interests of the United States.

The proposed Agreement contains all of the requirements established by section 123 a. of the Act. It provides a comprehensive framework for peaceful nuclear cooperation with the ROK based on a mutual commitment to nuclear nonproliferation. It would permit the transfer of material, equipment (including reactors), components, information, and technology for nuclear research and nuclear power production. It would not permit the transfer of Restricted Data, and sensitive nuclear technology or technology or information that is not in the public domain concerning fabrication of nuclear fuel containing plutonium could only be transferred if specifically provided by an amendment to the proposed Agreement or a separate agreement. Any special fissionable material transferred could only be in the form of low enriched uranium, with two exceptions: small quantities of material for use as samples; or for other specified applications such as use in loading and operation of fast reactors or the conduct of fast reactor experiments. The proposed Agreement would also obligate the United States to endeavor to take such actions as may be necessary and feasible to ensure a reliable supply of low enriched uranium fuel to the ROK, similar to terms contained in other recent civil nuclear cooperation agreements.

The proposed Agreement would also establish a new standing High-Level Bilateral Commission (HLBC) to be led by the Deputy Secretary of Energy for the Government of the United States of America and the Vice Minister of Foreign Affairs for the Government of the ROK. The purpose of the HLBC is to facilitate peaceful nuclear and strategic cooperation between the parties and ongoing dialogue regarding areas of mutual interest in civil nuclear energy, including the civil nuclear fuel cycle.

The proposed Agreement will have an initial term of 20 years and would renew for one additional period of 5 years unless either party gives written notice at least 2 years prior to its expiration that it does not want to renew the proposed Agreement. The proposed Agreement also requires the parties to consult as soon as possible after the seventeenth anniversary of its entry into force to decide whether to pursue an extension of the proposed Agreement. In the event of termination of the proposed Agreement, key nonproliferation conditions and controls will continue in effect as long as any nuclear material, moderator material, byproduct material, equipment, or component subject to the proposed Agreement remains in the territory of the party concerned or under its jurisdiction or control anywhere, or until such time as the parties agree that, in the case of nuclear material or moderator material, such items are no longer usable for any nuclear activity relevant from the point of view of international safeguards or have become practically irrecoverable, or in the case of equipment, components, or byproduct material, such items are no longer usable for nuclear purposes.

The ROK has a strong track record on nonproliferation and its government has consistently reiterated its commitment to nonproliferation. The ROK is a party to the Treaty on the Non-proliferation of Nuclear Weapons, has an International Atomic Energy Agency safeguards agreement and Additional Protocol in force, is a member of the four multilateral nonproliferation export control regimes (Missile Technology Control Regime, Wassenaar Arrangement, Australia Group, and Nuclear Suppliers Group, for which it served as Chair in 2003–2004 and is scheduled to do so again in 2015–2016), and is an active participant in the Proliferation Security Initiative. A more detailed discussion of the ROK's civil nuclear program and its nuclear nonproliferation policies and practices, including its nuclear export policies and practices, is provided in the NPAS and in two classified annexes to the NPAS submitted to you separately. As noted above, the Director of National Intelligence will provide an addendum to the NPAS containing a comprehensive analysis of the export control system of the ROK with respect to nuclear-related matters.

I have considered the views and recommendations of the interested departments and agencies in reviewing the proposed Agreement and have determined that its performance will promote, and will not constitute an unreasonable risk to, the common defense and security. Accordingly, I have approved the proposed Agreement and authorized its execution and urge that the Congress give it favorable consideration.

This transmission shall constitute a submittal for purposes of both sections 123 b. and 123 d. of the Act. My Administration is prepared to begin immediately the consultations with the Senate Foreign Relations Committee and the House Foreign Affairs Committee as provided in section 123 b. Upon completion of the 30 days of continuous session review provided for in section 123 b., the 60 days of continuous session review provided for in section 123 d. shall commence.

BARACK OBAMA.

THE WHITE HOUSE, *June 16, 2015.*

INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEAR 2016

GENERAL LEAVE

Mr. NUNES. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and insert extraneous material on H.R. 2596, the Intelligence Authorization Act for Fiscal Year 2016.

The SPEAKER pro tempore (Mr. HOLDING). Is there objection to the request of the gentleman from California?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 315 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 2596.

The Chair appoints the gentleman from Utah (Mr. BISHOP) to preside over the Committee of the Whole.

□ 1406

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 2596) to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States

Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, with Mr. BISHOP of Utah in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from California (Mr. NUNES) and the gentleman from California (Mr. SCHIFF) each will control 30 minutes.

The Chair recognizes the gentleman from California (Mr. NUNES).

Mr. NUNES. Mr. Chair, I yield myself such time as I may consume.

The Intelligence Authorization Act is the annual blueprint for the work of the intelligence community and America's military intelligence efforts. The bill sets priorities for our critical intelligence efforts and the legal framework of guidance and oversight for those efforts. As you may recall, the House has passed intelligence authorization bills with strong bipartisan support in the past several Congresses.

The ranking member, Mr. SCHIFF, and I worked in a bipartisan manner to draft this legislation in front of you today. Passing annual intelligence authorization legislation is the most effective way for Congress to exercise oversight over the executive branch and helps ensure that the country's intelligence agencies have the resources and authorities necessary to keep Americans safe. This legislation passed unanimously out of our committee.

As most of the intelligence budget involves highly classified programs, the bulk of the committee's recommendations each year are found in the classified annex of the bill, which has been available for Members to review since June 4. Among other initiatives, the bill provides authorization for critical national security functions, including fighting terrorism, countering the proliferation of weapons of mass destruction, funding efforts to recover from unauthorized disclosures of intelligence capabilities, and investing in the resiliency of our national security space architecture.

At an unclassified level, I can report that the annex for fiscal year 2016 authorizes funding that is slightly below the President's budget request level. Its funding levels are in line with the House-passed Defense Appropriations bill for the National Intelligence Program and with the National Defense Authorization Act for the Military Intelligence Program. Overall, this bill sustains today's intelligence capabilities and provides for future capabilities while staying within the funding constraints of the Budget Control Act and the budget resolution.

Mr. Chair, we are currently facing one of the most challenging global environments in our Nation's history. Nearly 14 years after the 9/11 attacks, the U.S. continues to hunt al Qaeda and its affiliates. We have taken the fight to the enemy and achieved tremendous success. But despite various strategies employed by two administrations to prevent the spread of radical Islam, that threat remains. The Arab Spring civil war in Syria and the emergence of the Islamic State of Iraq and the Levant in places such as north Africa highlight only a few of the many events in the past several years that now define U.S. policy failures in the Middle East. In just over a year, ISIL has exploded from a largely localized force in Iraq to seriously challenge al Qaeda as the vanguard of global jihad.

Moreover, nation-states like Russia and China continue to expand their spheres of influence and diminish U.S. clout worldwide. Russia has taken advantage of indecisiveness in Europe and exploited uneven leadership in the U.S. to pressure Ukraine and its neighbors on core Russian interests. China bullies its neighbors in the South and East China Sea and, if left unchecked, will likely exercise de facto control over maritime trade in its perceived territorial waters in the next decade. Meanwhile, North Korea and Iran continue to pose significant proliferation risks and remain strategic threats to the U.S. and its allies. State actors can bring a tremendous amount of resources to counter U.S. policy, placing an immense burden on the intelligence community to collect information on and to assess these activities carefully and accurately.

Perhaps more troubling, state and nonstate actors alike are developing new ways to project power, particularly in cyberspace. Cyber attacks are becoming so pervasive that network defenders are overwhelmed. Attackers seem to gain access to sensitive systems at will. The most recent attacks on the Office of Personnel Management servers, possibly one of the most significant national security incidents in the past decade, highlight the continued threat to our Nation's infrastructure.

Mr. Chair, in this year's intelligence authorization bill, the committee has taken a great deal of care in addressing the wide range of issues described above. This bill is an essential tool in supporting our Nation's efforts to tackle today's challenges while also directing the intelligence community to make strategic investments in the future. In particular, I believe that the bill goes a long way toward encouraging the intelligence community to make much-needed investments, such as recovering from unauthorized disclosures of intelligence capabilities.

Additionally, this year's authorization bill comes on the heels of the committee's recent bipartisan successes on key national security issues, like reauthorizing important provisions related to the Foreign Intelligence Surveillance Act, and overwhelmingly passing bipartisan legislation on cyber threat sharing information. I applaud Ranking Member SCHIFF for his help on these issues, and I look forward to working together in the future.

Finally, I want to thank all the Intelligence Committee staff on both sides of the aisle for their support drafting this bill. The committee staff spent countless hours assisting Members and finalizing the legislation.

In particular, I would like to recognize our Sandia National Labs fellow, Mr. Randy Smith. He has been with the committee for almost 2 years and will be leaving us soon to return to Sandia. He has been a tremendous asset to this committee, and I would like to thank him for all his hard work.

I would also like to thank the men and women of the intelligence community for all their efforts to continue to protect this Nation.

I look forward to passing this legislation.

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exploded from a largely localized force in Iraq to seriously challenge al-Qa'ida as the vanguard of the global jihad.

Moreover, nation states like Russia and China continue to expand their spheres of influence and diminish U.S. clout worldwide. Russia has taken advantage of indecisiveness in Europe and exploited uneven leadership in the U.S. to pressure Ukraine and its neighbors on core Russian interests. China bullies its neighbors in the South and East China Sea, and if left unchecked, will likely exercise de facto control over maritime trade in its perceived territorial waters in the next decade. Meanwhile, North Korea and Iran continue to pose significant proliferation risks and remain strategic threats to the U.S. and its allies. State actors can bring a tremendous amount of resources to counter U.S. policy, placing an immense burden on the Intelligence Community to collect information on, and assess, these activities carefully and accurately.

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Mr. Chair, I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I yield myself such time as I may consume.

First, I want to say thank you to Chairman NUNES. This Intelligence Authorization Act for Fiscal Year 2016 is our third major piece of legislation together, and it once again demonstrates the fruits of our commitment to bipartisanship.

We also have our difference of opinion from time to time, and on this bill, we have some differences. But I know that as long as we continue to work together, there is no end to the good that we can accomplish.

Through our cyber bill and our surveillance reform bill, we have been guided by two core principles: first, that national security is truly the security of the entire Nation and all Americans; second, that national security can and must coexist with privacy and civil liberties. I believe the bill today largely furthers these principles as well.

The IAA funds, equips, and sets the priorities for the U.S. intelligence community; and it is a crucial vehicle by which Congress provides oversight of the IC and ensures that U.S. intelligence professionals and intelligence programs have the funds and authorities they need to keep us safe, as well as our allies and partners.

As the annual IAA provides hundreds of pages of detailed guidance, strict authorizations, and precise limitations, it is also the single most important means by which Congress conducts its oversight of the intelligence community.

□ 1415

As in past years, this year's IAA is a carefully considered bill and the result of thoughtful oversight.

The Fiscal Year 2016 IAA funds the intelligence community at about 1 percent below the President's budget request and about 7 percent above last year's enacted budget level.

The bill makes cuts to less-effective programs, adds money to underfunded programs, and requires intelligence agencies to regularly inform Congress of their activities, ensuring funds are spent responsibly and lawfully.

Notably, the bill today holds, or ''fences,'' significant amounts of money to make sure Congress' direction is followed to the letter and on time.

I want to highlight just a few particular aspects of the bill. It continues the committee's longstanding emphasis on counterintelligence and security reforms. It also continues to support our overhead architecture by funding our most critical space programs, investing in space protection and resiliency, preserving investments in cutting-edge technologies, and enhancing oversight of contracting and procurement practices.

It also promotes enhancements to our foreign partner capabilities, which are critical to multiplying the reach and impact of our own intelligence efforts. It enhances human intelligence, or HUMINT, capabilities, which are often the key to understanding and predicting global events.

It provides resources to safeguard vulnerable signals intelligence, or SIGINT, collection while enhancing oversight of these and other sources of intelligence. It emphasizes collection to monitor and ensure compliance with treaties and potential international agreements. It greatly enhances oversight of Defense special operation forces activities worldwide.

The bill also incorporates some excellent provisions championed by the Democratic members of the Intelligence Committee, as well as the Republican members.

In particular, I want to highlight Mr. HIMES' provision to enhance the quality of metrics we receive to enable more thorough oversight; Ms. SEWELL's multiple provisions to enhance diversity within the intelligence community; Mr. CARSON's provisions to better understand FBI resource allocation against domestic and foreign threats and the role of the FBI and DNI in countering violent extremism, particularly in minors; Ms. SPEIER's provision to provide greater human rights oversight of the IC's relationship with certain foreign partners; Mr. QUIGLEY's provision regarding intelligence support to Ukraine; and Mr. SWALWELL's provision to ensure that Department of Energy National Labs can work with State and local government recipients of homeland security grants.

All this said, while I believe the bill largely reflects sound choices, I am concerned that it uses the overseas contingency operations—or OCO—funding as a way to evade the sequestration levels mandated by the ill-conceived Budget Control Act.

Again, I largely support the funding levels and the programs which the IAA authorizes, but I cannot endorse how it has funded them. We need to be serious and thoughtful about the budget and undo sequestration—not just employ accounting tricks to evade its levels only for defense and national security-related items.

Even some domestic programs and agencies that contribute to our homeland security cannot qualify for OCO dollars, while vital programs like our children's education and our social services are left to languish.

Instead of arbitrary, across-the-board cuts, let's do what this bill does substantively: make cuts to some areas and add money to others in a deliberate, well thought out manner. It is time to forthrightly deal with sequestration for all of our national priorities, not just for defense.

I am also opposed to provisions in this bill which would tie the hands of the administration and prevent the orderly transfer of detainees from the detention center at Guantanamo Bay. These restrictions have never been included in prior versions of the IAA, and there is no reason to introduce them into the IAA process now.

The bill goes even further than restricting transfer of detainees to the United States and includes a new provision which restricts transfers to ''combat zones,'' a term that is so

broad as to include allies and partners such as Jordan.

As I have long said, keeping the Guantanamo prison serves as a recruitment tool for militants, undercuts our relationships with our allies, and undermines our international standing.

With that said, the bill, as a whole, is largely a strong product, and I appreciate the close partnership we have enjoyed with the chairman in working on it. But, unfortunately, I cannot support the bill so long as it includes these Guantanamo restrictions and employs the OCO budget gimmick at the expense of our domestic spending priorities.

I look forward to a robust amendment process today, and I am committed to working with the chairman, the Senate, the administration, the other committees of jurisdiction, and all Members of Congress to make critical improvements to the bill as it moves forward, and to resolve the issues to keep alive the string of consecutive signed IAAs.

Mr. Chairman, I reserve the balance of my time.

Mr. NUNES. Mr. Chair, at this time I yield 2 minutes to the gentleman from North Carolina (Mr. PITTENGER).

Mr. PITTENGER. I thank the chairman for his vital leadership on the Intelligence Committee.

I rise in support of this legislation providing the intelligence community the authorization needed to protect and defend the United States and support critical national security programs protecting Americans from nation states and Islamic terrorists.

In December, NSA Director Admiral Rogers warned that China has the capability of shutting down the U.S. electric grid through cyber attack. Homeland security Secretary Johnson has warned about the threat of attacks launched by sleeper cells in most of our States. ISIS continues to expand into new territory, while Americans are more at risk because President Obama has no strategy for defeating ISIS, whom he initially referred to as the JV team.

This is not the time to impede our intelligence efforts. America faces grave danger from those who wish to destroy our way of life. Please join me in full bipartisan support of the Intelligence Authorization Act. Let us be united in confronting the perilous threats of our adversaries.

Mr. SCHIFF. Mr. Chairman, at this time I am pleased to yield 2 minutes to the gentleman from New York (Mr. ENGEL), the ranking member on the House Foreign Affairs Committee.

Mr. ENGEL. I thank my friend for yielding.

I want to say that I appreciate the bipartisan, hard work of Chairman NUNES and Ranking Member SCHIFF, but I want to bring to the House's attention recent reports that this bill makes drastic cuts in our so-called covert support to the moderate Syrian opposition.

A headline in the Saturday Washington Post read: ''Secret CIA effort in Syria faces large funding cut.'' If these reports are true, just as the moderate Syrian forces may be starting to make progress, especially in the south, then I am afraid we may be making a big mistake.

Unfortunately, most Members of the House don't know for certain if this legislation will reduce our support for the moderate opposition. Those funding decisions are made behind closed doors. And that is why I believe this bill is not the right place for us to be making decisions that have a major impact on our Syria strategy.

I have no doubt that Chairman NUNES and Ranking Member SCHIFF are determined to get the intelligence piece of our Syria response right, but this is not merely an intelligence issue, and our overall strategy in Syria goes far beyond what is included in any covert program. I believe we shouldn't be dealing with this problem in a piecemeal way.

As we have been doing in the Foreign Affairs Committee on a bipartisan basis, I urge my colleagues to take a step back, look at the big picture, and address our Syria policy in a way that makes sense and involves all the relevant players.

I am troubled if it is true that this bill makes drastic cuts in our so-called covert support to the moderate Syria opposition. And I commend the hard work of our chairman and ranking member.

Mr. NUNES. Mr. Chairman, I yield myself such time as I may consume.

I would urge my colleague, the ranking member on the Foreign Affairs Committee, that we shouldn't always believe what is in the newspaper. There have been lots of different reports about lots of different things.

I would say that Mr. SCHIFF and I worked in a bipartisan manner to look at all programs across the spectrum of the 17 agencies. And we would be glad to spend some time with the gentleman from New York down in the committee spaces to raise the concerns that he brought up about a newspaper article. As I said, I think there are a lot of things that we read in the newspaper.

I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I yield myself such time as I may consume.

The Intelligence Authorization Act is the vehicle by which we ensure that U.S. intelligence professionals and programs have the funds and the authorities that they need. It is the single most important means by which Congress can conduct its oversight. We need to pass this legislation, just as the committee has done over the last several years.

It is my hope that as the legislation moves forward, we will be able to dispose of the Guantanamo provisions—I will have an amendment to address that in a few minutes—and that we can also resolve the issues regarding the overseas contingency account. I look forward to working with my colleague as the bill moves forward to address those issues.

I want to join the chairman in saluting the members of the intelligence community—the men and women who do such an extraordinary job for us each and every day. They have our sincerest gratitude and full appreciation for their dedication, their patriotism, and their unparalleled skills. I also want to thank again our chairman for his leadership, his commitment to bipartisanship, and his determination to do what is right. I want to thank our colleagues on the committee, who have done an extraordinary job in helping to put this bill together.

I also want to join the chairman in thanking our wonderful staff on our side of the aisle. I want to thank Carly Blake, Linda Cohen, Allison Getty, Robert Minehart, Amanda Rogers Thorpe, Rheanne Wirkkala, as well as Patrick Boland and our shared technical and security staff, including Kristin Jepson, Brandon Smith, and Kevin Klein. We have an extraordinary team on the committee. It is a great pleasure to serve and work with each and every one of them.

I yield back the balance of my time.

Mr. NUNES. Mr. Chair, I yield myself such time as I may consume.

I want to thank the ranking member for his continued cooperation to work in a bipartisan fashion. As I think most Americans know, the threats continue to add up every day, and it is up to the men and women in the intelligence community to help keep us safe. I know the ranking member and I are committed to doing just that.

With that, I look forward to debate on the amendments and passage of the final underlying bill, and I yield back the balance of my time.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

In lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence, printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the 5-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–19. That amendment in the nature of a substitute shall be considered as read.

The text of the amendment in the nature of a substitute is as follows:

H.R. 2596

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Intelligence Authorization Act for Fiscal Year 2016''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.

TITLE I—INTELLIGENCE ACTIVITIES
Sec. 101. Authorization of appropriations.
Sec. 102. Classified schedule of authorizations.
Sec. 103. Personnel ceiling adjustments.
Sec. 104. Intelligence Community Management Account.
TITLE II—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM
Sec. 201. Authorization of appropriations.
TITLE III—GENERAL PROVISIONS
Subtitle A—General Matters
Sec. 301. Increase in employee compensation and benefits authorized by law.
Sec. 302. Restriction on conduct of intelligence activities.
Sec. 303. Prior congressional notification of initiations of certain new special access programs.
Sec. 304. Prior congressional notification of transfers of funds for certain intelligence activities.
Sec. 305. Designation of lead intelligence officer for tunnels.
Sec. 306. Clarification of authority of Privacy and Civil Liberties Oversight Board.
Sec. 307. Reporting process required for tracking certain requests for country clearance.
Sec. 308. Prohibition on sharing of certain information in response to foreign government inquiries.
Sec. 309. National Cyber Threat Intelligence Integration Center.
Sec. 310. Intelligence community business system transformation.
Sec. 311. Inclusion of Inspector General of Intelligence Community in Council of Inspectors General on Integrity and Efficiency.
Sec. 312. Authorities of the Inspector General for the Central Intelligence Agency.
Sec. 313. Provision of information and assistance to Inspector General of the Intelligence Community.
Sec. 314. Clarification relating to information access by Comptroller General.
Sec. 315. Use of homeland security grant funds in conjunction with Department of Energy national laboratories.
Sec. 316. Technical amendments relating to pay under title 5, United States Code.
Subtitle B—Matters Relating to United States Naval Station, Guantanamo Bay, Cuba
Sec. 321. Prohibition on use of funds for transfer or release of individuals detained at United States Naval Station, Guantanamo Bay, Cuba.
Sec. 322. Prohibition on use of funds to construct or modify facilities in United States to house detainees transferred from United States Naval Station, Guantanamo Bay, Cuba.
Sec. 323. Prohibition on use of funds to transfer or release individuals detained at United States Naval Station, Guantanamo Bay, Cuba, to combat zones.
Subtitle C—Reports
Sec. 331. Reports to Congress on individuals formerly detained at United States Naval Station, Guantanamo Bay, Cuba.
Sec. 332. Reports on foreign fighters.
Sec. 333. Reports on prisoner population at United States Naval Station, Guantanamo Bay, Cuba.
Sec. 334. Report on use of certain business concerns.
Sec. 335. Repeal of certain reporting requirements.

SEC. 2. DEFINITIONS.

In this Act:

(a) CONGRESSIONAL INTELLIGENCE COMMITTEES.—The term ''congressional intelligence committees'' means—

(1) the Select Committee on Intelligence of the Senate; and

(2) the Permanent Select Committee on Intelligence of the House of Representatives.

(b) INTELLIGENCE COMMUNITY.—The term ''intelligence community'' has the meaning given that term in section 3(4) of the National Security Act of 1947 (50 U.S.C. 3003(4)).

TITLE I—INTELLIGENCE ACTIVITIES

SEC. 101. AUTHORIZATION OF APPROPRIATIONS.

Funds are hereby authorized to be appropriated for fiscal year 2016 for the conduct of the intelligence and intelligence-related activities of the following elements of the United States Government:

(1) The Office of the Director of National Intelligence.

(2) The Central Intelligence Agency.

(3) The Department of Defense.

(4) The Defense Intelligence Agency.

(5) The National Security Agency.

(6) The Department of the Army, the Department of the Navy, and the Department of the Air Force.

(7) The Coast Guard.

(8) The Department of State.

(9) The Department of the Treasury.

(10) The Department of Energy.

(11) The Department of Justice.

(12) The Federal Bureau of Investigation.

(13) The Drug Enforcement Administration.

(14) The National Reconnaissance Office.

(15) The National Geospatial-Intelligence Agency.

(16) The Department of Homeland Security.

SEC. 102. CLASSIFIED SCHEDULE OF AUTHORIZATIONS.

(a) SPECIFICATIONS OF AMOUNTS AND PERSONNEL LEVELS.—The amounts authorized to be appropriated under section 101 and, subject to section 103, the authorized personnel ceilings as of September 30, 2016, for the conduct of the intelligence activities of the elements listed in paragraphs (1) through (16) of section 101, are those specified in the classified Schedule of Authorizations prepared to accompany the bill H.R. 2596 of the One Hundred Fourteenth Congress.

(b) AVAILABILITY OF CLASSIFIED SCHEDULE OF AUTHORIZATIONS.—

(1) AVAILABILITY.—The classified Schedule of Authorizations referred to in subsection (a) shall be made available to the Committee on Appropriations of the Senate, the Committee on Appropriations of the House of Representatives, and to the President.

(2) DISTRIBUTION BY THE PRESIDENT.—Subject to paragraph (3), the President shall provide for suitable distribution of the classified Schedule of Authorizations, or of appropriate portions of the Schedule, within the executive branch.

(3) LIMITS ON DISCLOSURE.—The President shall not publicly disclose the classified Schedule of Authorizations or any portion of such Schedule except—

(A) as provided in section 601(a) of the Implementing Recommendations of the 9/11 Commission Act of 2007 (50 U.S.C. 3306(a));

(B) to the extent necessary to implement the budget; or

(C) as otherwise required by law.

SEC. 103. PERSONNEL CEILING ADJUSTMENTS.

(a) AUTHORITY FOR INCREASES.—The Director of National Intelligence may authorize employment of civilian personnel in excess of the number authorized for fiscal year 2016 by the classified Schedule of Authorizations referred to in section 102(a) if the Director of National Intelligence determines that such action is necessary to the performance of important intelligence functions, except that the number of personnel employed in excess of the number authorized under such section may not, for any element of the intelligence community, exceed 3 percent of the number of civilian personnel authorized under such schedule for such element.

(b) TREATMENT OF CERTAIN PERSONNEL.—The Director of National Intelligence shall establish guidelines that govern, for each element of the intelligence community, the treatment under the personnel levels authorized under section 102(a), including any exemption from such personnel levels, of employment or assignment in—

(1) a student program, trainee program, or similar program;

(2) a reserve corps or as a reemployed annuitant; or

(3) details, joint duty, or long-term, full-time training.

(c) NOTICE TO CONGRESSIONAL INTELLIGENCE COMMITTEES.—The Director of National Intelligence shall notify the congressional intelligence committees in writing at least 15 days prior to each exercise of an authority described in subsection (a).

SEC. 104. INTELLIGENCE COMMUNITY MANAGEMENT ACCOUNT.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated for the Intelligence Community Management Account of the Director of National Intelligence for fiscal year 2016 the sum of $501,850,000. Within such amount, funds identified in the classified Schedule of Authorizations referred to in section 102(a) for advanced research and development shall remain available until September 30, 2017.

(b) AUTHORIZED PERSONNEL LEVELS.—The elements within the Intelligence Community Management Account of the Director of National Intelligence are authorized 785 positions as of September 30, 2016. Personnel serving in such elements may be permanent employees of the Office of the Director of National Intelligence or personnel detailed from other elements of the United States Government.

(c) CLASSIFIED AUTHORIZATIONS.—

(1) AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts authorized to be appropriated for the Intelligence Community Management Account by subsection (a), there are authorized to be appropriated for the Community Management Account for fiscal year 2016 such additional amounts as are specified in the classified Schedule of Authorizations referred to in section 102(a). Such additional amounts for advanced research and development shall remain available until September 30, 2017.

(2) AUTHORIZATION OF PERSONNEL.—In addition to the personnel authorized by subsection (b) for elements of the Intelligence Community Management Account as of September 30, 2016, there are authorized such additional personnel for the Community Management Account as of that date as are specified in the classified Schedule of Authorizations referred to in section 102(a).

TITLE II—CENTRAL INTELLIGENCE AGENCY RETIREMENT AND DISABILITY SYSTEM

SEC. 201. AUTHORIZATION OF APPROPRIATIONS.

There is authorized to be appropriated for the Central Intelligence Agency Retirement and Disability Fund for fiscal year 2016 the sum of $514,000,000.

TITLE III—GENERAL PROVISIONS

Subtitle A—General Matters

SEC. 301. INCREASE IN EMPLOYEE COMPENSATION AND BENEFITS AUTHORIZED BY LAW.

Appropriations authorized by this Act for salary, pay, retirement, and other benefits for Federal employees may be increased by such additional or supplemental amounts as may be necessary for increases in such compensation or benefits authorized by law.

SEC. 302. RESTRICTION ON CONDUCT OF INTELLIGENCE ACTIVITIES.

The authorization of appropriations by this Act shall not be deemed to constitute authority for the conduct of any intelligence activity

which is not otherwise authorized by the Constitution or the laws of the United States.

SEC. 303. PRIOR CONGRESSIONAL NOTIFICATION OF INITIATIONS OF CERTAIN NEW SPECIAL ACCESS PROGRAMS.

(a) LIMITATION.—Except as provided in subsection (b), none of the funds authorized to be appropriated by this Act or otherwise made available for the intelligence community for fiscal year 2016 may be used to initiate any new special access program pertaining to any intelligence or intelligence-related activity or covert action unless the Director of National Intelligence or the Secretary of Defense, as appropriate, submits to the congressional intelligence committees and the Committees on Armed Services of the House of Representatives and the Senate, by not later than 30 days before initiating such a program, written notification of the intention to initiate the program.

(b) WAIVER.—

(1) IN GENERAL.—The Director of National Intelligence or the Secretary of Defense, as appropriate, may waive subsection (a) with respect to the initiation of a new special access program if the Director or Secretary, as the case may be, determines that an emergency situation makes it impossible or impractical to provide the notice required under such subsection by the date that is 30 days before such initiation.

(2) NOTICE.—If the Director or Secretary issues a waiver under paragraph (1), the Director or Secretary, as the case may be, shall submit to the congressional intelligence committees and the Committees on Armed Services of the House of Representatives and the Senate, by not later than 48 hours after the initiation of the new special access program covered by the waiver, written notice of the waiver and a justification for the waiver, including a description of the emergency situation that necessitated the waiver.

(c) SPECIAL ACCESS PROGRAM DEFINED.—In this section, the term ''special access program'' has the meaning given such term in Executive Order 13526 as in effect on the date of the enactment of this Act.

SEC. 304. PRIOR CONGRESSIONAL NOTIFICATION OF TRANSFERS OF FUNDS FOR CERTAIN INTELLIGENCE ACTIVITIES.

(a) LIMITATION.—Except as provided in subsection (b), none of the funds authorized to be appropriated by this Act or otherwise made available for the intelligence community for fiscal year 2016 may be used to initiate a transfer of funds from the Joint Improvised Explosive Device Defeat Fund or the Counterterrorism Partnerships Fund to be used for intelligence activities unless the Director of National Intelligence or the Secretary of Defense, as appropriate, submits to the congressional intelligence committees, by not later than 30 days before initiating such a transfer, written notice of the transfer.

(b) WAIVER.—

(1) IN GENERAL.—The Director of National Intelligence or the Secretary of Defense, as appropriate, may waive subsection (a) with respect to the initiation of a transfer of funds if the Director or Secretary, as the case may be, determines that an emergency situation makes it impossible or impractical to provide the notice required under such subsection by the date that is 30 days before such initiation.

(2) NOTICE.—If the Director or Secretary issues a waiver under paragraph (1), the Director or Secretary, as the case may be, shall submit to the congressional intelligence committees, by not later than 48 hours after the initiation of the transfer of funds covered by the waiver, written notice of the waiver and a justification for the waiver, including a description of the emergency situation that necessitated the waiver.

SEC. 305. DESIGNATION OF LEAD INTELLIGENCE OFFICER FOR TUNNELS.

The Director of National Intelligence shall designate an official to manage the collection and analysis of intelligence regarding the tactical use of tunnels by state and nonstate actors.

SEC. 306. CLARIFICATION OF AUTHORITY OF PRIVACY AND CIVIL LIBERTIES OVERSIGHT BOARD.

Section 1061(g) of the Intelligence Reform and Terrorism Prevention Act of 2004 (42 U.S.C. 2000ee(g)) is amended by adding at the end the following new paragraph:

''(5) LIMITATIONS.—Nothing in this section shall be construed to authorize the Board, or any agent thereof, to gain access to information that an executive branch agency deems related to covert action, as such term is defined in section 503(e) of the National Security Act of 1947 (50 U.S.C. 3093(e)).''.

SEC. 307. REPORTING PROCESS REQUIRED FOR TRACKING CERTAIN REQUESTS FOR COUNTRY CLEARANCE.

(a) IN GENERAL.—By not later than September 30, 2016, the Director of National Intelligence shall establish a formal internal reporting process for tracking requests for country clearance submitted to overseas Director of National Intelligence representatives by departments and agencies of the United States. Such reporting process shall include a mechanism for tracking the department or agency that submits each such request and the date on which each such request is submitted.

(b) CONGRESSIONAL BRIEFING.—By not later than December 31, 2016, the Director of National Intelligence shall brief the congressional intelligence committees on the progress of the Director in establishing the process required under subsection (a).

SEC. 308. PROHIBITION ON SHARING OF CERTAIN INFORMATION IN RESPONSE TO FOREIGN GOVERNMENT INQUIRIES.

(a) PROHIBITION.—None of the funds authorized to be appropriated by this Act for any element of the intelligence community may be used to respond to, share, or authorize the sharing of any non-public information related to intelligence activities carried out by the United States in response to a legislative or judicial inquiry from a foreign government into the intelligence activities of the United States.

(b) CONGRESSIONAL NOTIFICATION.—Not later than 30 days after an element of the intelligence community receives a legislative or judicial inquiry from a foreign government related to intelligence activities carried out by the United States, the element shall submit to the congressional intelligence committees written notification of the inquiry.

(c) CLARIFICATION REGARDING COLLABORATION WITH FOREIGN PARTNERS.—The prohibition under subsection (a) shall not be construed as limiting routine intelligence activities with foreign partners, except in any case in which the central focus of the collaboration with the foreign partner is to obtain information for, or solicit a response to, a legislative or judicial inquiry from a foreign government related to intelligence activities carried out by the United States.

SEC. 309. NATIONAL CYBER THREAT INTELLIGENCE INTEGRATION CENTER.

(a) ESTABLISHMENT.—Title I of the National Security Act of 1947 (50 U.S.C. 3021 et seq.) is amended—

(1) by redesignating section 119B as section 119C; and

(2) by inserting after section 119A the following new section:

''SEC. 119B. CYBER THREAT INTELLIGENCE INTEGRATION CENTER.

''(a) ESTABLISHMENT.—There is within the Office of the Director of National Intelligence a Cyber Threat Intelligence Integration Center.

''(b) DIRECTOR.—There is a Director of the Cyber Threat Intelligence Integration Center, who shall be the head of the Cyber Threat Intelligence Integration Center, and who shall be appointed by the Director of National Intelligence.

''(c) PRIMARY MISSIONS.—The Cyber Threat Intelligence Integration Center shall—

''(1) serve as the primary organization within the Federal Government for analyzing and integrating all intelligence possessed or acquired by the United States pertaining to cyber threats;

''(2) ensure that appropriate departments and agencies of the Federal Government have full access to and receive all-source intelligence support needed to execute the cyber threat intelligence activities of such agencies and to perform independent, alternative analyses;

''(3) disseminate cyber threat analysis to the President, the appropriate departments and agencies of the Federal Government, and the appropriate committees of Congress;

''(4) coordinate cyber threat intelligence activities of the departments and agencies of the Federal Government; and

''(5) conduct strategic cyber threat intelligence planning for the Federal Government.

''(d) LIMITATIONS.—The Cyber Threat Intelligence Integration Center—

''(1) may not have more than 50 permanent positions;

''(2) in carrying out the primary missions of the Center described in subsection (c), may not augment staffing through detailees, assignees, or core contractor personnel or enter into any personal services contracts to exceed the limitation under paragraph (1); and

''(3) shall be located in a building owned or operated by an element of the intelligence community as of the date of the enactment of this section.''.

(b) TABLE OF CONTENTS AMENDMENTS.—The table of contents in the first section of the National Security Act of 1947, as amended by section 102 of this title, is further amended by striking the item relating to section 119B and inserting the following new items:

''Sec. 119B. Cyber Threat Intelligence Integration Center.

''Sec. 119C. National intelligence centers.''.

SEC. 310. INTELLIGENCE COMMUNITY BUSINESS SYSTEM TRANSFORMATION.

Section 506D of the National Security Act of 1947 (50 U.S.C. 3100) is amended to read as follows:

''INTELLIGENCE COMMUNITY BUSINESS SYSTEM TRANSFORMATION

''SEC. 506D. (a) LIMITATION ON OBLIGATION OF FUNDS.—(1) Subject to paragraph (3), no funds appropriated to any element of the intelligence community may be obligated for an intelligence community business system transformation that will have a total cost in excess of $3,000,000 unless the Chief Information Officer of the Intelligence Community makes a certification described in paragraph (2) with respect to such intelligence community business system transformation.

''(2) The certification described in this paragraph for an intelligence community business system transformation is a certification made by the Chief Information Officer of the Intelligence Community that the intelligence community business system transformation—

''(A) complies with the enterprise architecture under subsection (b) and such other policies and standards that the Chief Information Officer of the Intelligence Community considers appropriate; or

''(B) is necessary—

''(i) to achieve a critical national security capability or address a critical requirement; or

''(ii) to prevent a significant adverse effect on a project that is needed to achieve an essential capability, taking into consideration any alternative solutions for preventing such adverse effect.

''(3) With respect to a fiscal year after fiscal year 2010, the amount referred to in paragraph (1) in the matter preceding subparagraph (A) shall be equal to the sum of—

''(A) the amount in effect under such paragraph (1) for the preceding fiscal year (determined after application of this paragraph), plus

''(B) such amount multiplied by the annual percentage increase in the Consumer Price Index (all items; U.S. city average) as of September of the previous fiscal year.

''(b) ENTERPRISE ARCHITECTURE FOR INTELLIGENCE COMMUNITY BUSINESS SYSTEMS.—(1) The Director of National Intelligence shall develop and implement an enterprise architecture to cover all intelligence community business systems, and the functions and activities supported by such business systems. The enterprise architecture shall be sufficiently defined to effectively guide, constrain, and permit implementation of interoperable intelligence community business system solutions, consistent with applicable policies and procedures established by the Director of the Office of Management and Budget.

''(2) The enterprise architecture under paragraph (1) shall include the following:

''(A) An information infrastructure that will enable the intelligence community to—

''(i) comply with all Federal accounting, financial management, and reporting requirements;

''(ii) routinely produce timely, accurate, and reliable financial information for management purposes;

''(iii) integrate budget, accounting, and program information and systems; and

''(iv) provide for the measurement of performance, including the ability to produce timely, relevant, and reliable cost information.

''(B) Policies, procedures, data standards, and system interface requirements that apply uniformly throughout the intelligence community.

''(c) RESPONSIBILITIES FOR INTELLIGENCE COMMUNITY BUSINESS SYSTEM TRANSFORMATION.—The Director of National Intelligence shall be responsible for the entire life cycle of an intelligence community business system transformation, including review, approval, and oversight of the planning, design, acquisition, deployment, operation, and maintenance of the business system transformation.

''(d) INTELLIGENCE COMMUNITY BUSINESS SYSTEM INVESTMENT REVIEW.—(1) The Chief Information Officer of the Intelligence Community shall establish and implement, not later than 60 days after October 7, 2010, an investment review process for the intelligence community business systems for which the Chief Information Officer of the Intelligence Community is responsible.

''(2) The investment review process under paragraph (1) shall—

''(A) meet the requirements of section 11312 of title 40, United States Code; and

''(B) specifically set forth the responsibilities of the Chief Information Office of the Intelligence Community under such review process.

''(3) The investment review process under paragraph (1) shall include the following elements:

''(A) Review and approval by an investment review board (consisting of appropriate representatives of the intelligence community) of each intelligence community business system as an investment before the obligation of funds for such system.

''(B) Periodic review, but not less often than annually, of every intelligence community business system investment.

''(C) Thresholds for levels of review to ensure appropriate review of intelligence community business system investments depending on the scope, complexity, and cost of the system involved.

''(D) Procedures for making certifications in accordance with the requirements of subsection (a)(2).

''(e) RELATION TO ANNUAL REGISTRATION REQUIREMENTS.—Nothing in this section shall be construed to alter the requirements of section 8083 of the Department of Defense Appropriations Act, 2005 (Public Law 108–287; 118 Stat. 989), with regard to information technology systems (as defined in subsection (d) of such section).

''(f) RELATIONSHIP TO DEFENSE BUSINESS ENTERPRISE ARCHITECTURE.—Intelligence community business system transformations certified under this section shall be deemed to be in compliance with section 2222 of title 10, United States Code. Nothing in this section shall be construed to exempt funds authorized to be appropriated to the Department of Defense for activities other than an intelligence community business system transformation from the requirements of such section 2222, to the extent that such requirements are otherwise applicable.

''(g) RELATION TO CLINGER-COHEN ACT.—(1) Executive agency responsibilities in chapter 113 of title 40, United States Code, for any intelligence community business system transformation shall be exercised jointly by—

''(A) the Director of National Intelligence and the Chief Information Officer of the Intelligence Community; and

''(B) the head of the executive agency that contains the element of the intelligence community involved and the chief information officer of that executive agency.

''(2) The Director of National Intelligence and the head of the executive agency referred to in paragraph (1)(B) shall enter into a memorandum of understanding to carry out the requirements of this section in a manner that best meets the needs of the intelligence community and the executive agency.

''(h) DEFINITIONS.—In this section:

''(1) The term 'enterprise architecture' has the meaning given that term in section 3601(4) of title 44, United States Code.

''(2) The terms 'information system' and 'information technology' have the meanings given those terms in section 11101 of title 40, United States Code.

''(3) The term 'intelligence community business system' means an information system, including a national security system, that is operated by, for, or on behalf of an element of the intelligence community, including a financial system, mixed system, financial data feeder system, and the business infrastructure capabilities shared by the systems of the business enterprise architecture, including people, process, and technology, that build upon the core infrastructure used to support business activities, such as acquisition, financial management, logistics, strategic planning and budgeting, installations and environment, and human resource management.

''(4) The term 'intelligence community business system transformation' means—

''(A) the acquisition or development of a new intelligence community business system; or

''(B) any significant modification or enhancement of an existing intelligence community business system (other than necessary to maintain current services).

''(5) The term 'national security system' has the meaning given that term in section 3552(b) of title 44, United States Code.''.

SEC. 311. INCLUSION OF INSPECTOR GENERAL OF INTELLIGENCE COMMUNITY IN COUNCIL OF INSPECTORS GENERAL ON INTEGRITY AND EFFICIENCY.

Section 11(b)(1)(B) of the Inspector General Act of 1978 (Public Law 95–452; 5 U.S.C. App.) is amended by striking ''the Office of the Director of National Intelligence'' and inserting ''the Intelligence Community''.

SEC. 312. AUTHORITIES OF THE INSPECTOR GENERAL FOR THE CENTRAL INTELLIGENCE AGENCY.

(a) INFORMATION AND ASSISTANCE.—Paragraph (9) of section 17(e) of the Central Intelligence Agency Act of 1949 (50 U.S.C. 3517(e)(9)) is amended to read as follows:

''(9)(A) The Inspector General may request such information or assistance as may be necessary for carrying out the duties and responsibilities of the Inspector General provided by this section from any Federal, State, or local governmental agency or unit thereof.

''(B) Upon request of the Inspector General for information or assistance from a department or agency of the Federal Government, the head of the department or agency involved, insofar as practicable and not in contravention of any existing statutory restriction or regulation of such department or agency, shall furnish to the Inspector General, or to an authorized designee, such information or assistance.

''(C) Nothing in this paragraph may be construed to provide any new authority to the Central Intelligence Agency to conduct intelligence activity in the United States.

''(D) In this paragraph, the term 'State' means each of the several States, the District of Columbia, the Commonwealth of Puerto Rico, the Commonwealth of the Northern Mariana Islands, and any territory or possession of the United States.''.

(b) TECHNICAL AMENDMENTS RELATING TO SELECTION OF EMPLOYEES.—Paragraph (7) of such section (50 U.S.C. 3517(e)(7)) is amended—

(1) by inserting ''(A)'' before ''Subject to applicable law''; and

(2) by adding at the end the following new subparagraph:

''(B) Consistent with budgetary and personnel resources allocated by the Director, the Inspector General has final approval of—

''(i) the selection of internal and external candidates for employment with the Office of Inspector General; and

''(ii) all other personnel decisions concerning personnel permanently assigned to the Office of Inspector General, including selection and appointment to the Senior Intelligence Service, but excluding all security-based determinations that are not within the authority of a head of other Central Intelligence Agency offices.''.

SEC. 313. PROVISION OF INFORMATION AND ASSISTANCE TO INSPECTOR GENERAL OF THE INTELLIGENCE COMMUNITY.

Section 103H(j)(4) of the National Security Act of 1947 (50 U.S.C. 3033) is amended—

(1) in subparagraph (A), by striking ''any department, agency, or other element of the United States Government'' and inserting ''any Federal, State (as defined in section 804), or local governmental agency or unit thereof''; and

(2) in subparagraph (B), by inserting ''from a department, agency, or element of the Federal Government'' before ''under subparagraph (A)''.

SEC. 314. CLARIFICATION RELATING TO INFORMATION ACCESS BY COMPTROLLER GENERAL.

Section 348(a) of the Intelligence Authorization Act for Fiscal Year 2010 (Public Law 111–259; 124 Stat. 2700; 50 U.S.C. 3308) is amended by adding at the end the following new paragraph:

''(4) REQUESTS BY CERTAIN CONGRESSIONAL COMMITTEES.—Consistent with the protection of classified information, the directive issued under paragraph (1) shall not prohibit the Comptroller General from obtaining information necessary to carry out the following audits or reviews:

''(A) An audit or review carried out—

''(i) at the request of the congressional intelligence committees; or

''(ii) pursuant to—

''(I) an intelligence authorization Act;

''(II) a committee report or joint explanatory statement accompanying an intelligence authorization Act; or

''(III) a classified annex to a committee report or joint explanatory statement accompanying an intelligence authorization Act.

''(B) An audit or review pertaining to intelligence activities of the Department of Defense carried out—

''(i) at the request of the congressional defense committees (as defined in section 101(a)(16) of title 10, United States Code); or

''(ii) pursuant to a national defense authorization Act.''.

SEC. 315. USE OF HOMELAND SECURITY GRANT FUNDS IN CONJUNCTION WITH DEPARTMENT OF ENERGY NATIONAL LABORATORIES.

Section 2008(a) of the Homeland Security Act of 2002 (6 U.S.C. 609(a)) is amended in the matter preceding paragraph (1) by inserting ''including by working in conjunction with a National Laboratory (as defined in section 2(3) of the Energy Policy Act of 2005 (42 U.S.C. 15801(3)),'' after ''plans,''.

SEC. 316. TECHNICAL AMENDMENTS RELATING TO PAY UNDER TITLE 5, UNITED STATES CODE.

Section 5102(a)(1) of title 5, United States Code, is amended—

(1) in clause (vii), by striking ''or'';

(2) by inserting after clause (vii) the following new clause:

''(viii) the Office of the Director of National Intelligence;''; and

(3) in clause (x), by striking the period and inserting a semicolon.

Subtitle B—Matters Relating to United States Naval Station, Guantanamo Bay, Cuba

SEC. 321. PROHIBITION ON USE OF FUNDS FOR TRANSFER OR RELEASE OF INDIVIDUALS DETAINED AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

No amounts authorized to be appropriated or otherwise made available to an element of the intelligence community may be used during the period beginning on the date of the enactment of this Act and ending on December 31, 2016, to transfer, release, or assist in the transfer or release, to or within the United States, its territories, or possessions, Khalid Sheikh Mohammed or any other individual detained at Guantanamo (as such term is defined in section 322(c)).

SEC. 322. PROHIBITION ON USE OF FUNDS TO CONSTRUCT OR MODIFY FACILITIES IN UNITED STATES TO HOUSE DETAINEES TRANSFERRED FROM UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

(a) IN GENERAL.—No amounts authorized to be appropriated or otherwise made available to an element of the intelligence community may be used during the period beginning on the date of the enactment of this Act and ending on December 31, 2016, to construct or modify any facility in the United States, its territories, or possessions to house any individual detained at Guantanamo for the purposes of detention or imprisonment in the custody or under the control of the Department of Defense.

(b) EXCEPTION.—The prohibition in subsection (a) shall not apply to any modification of facilities at United States Naval Station, Guantanamo Bay, Cuba.

(c) INDIVIDUAL DETAINED AT GUANTANAMO DEFINED.—In this section, the term ''individual detained at Guantanamo'' means any individual located at United States Naval Station, Guantanamo Bay, Cuba, as of October 1, 2009, who—

(1) is not a citizen of the United States or a member of the Armed Forces of the United States; and

(2) is—

(A) in the custody or under the control of the Department of Defense; or

(B) otherwise under detention at United States Naval Station, Guantanamo Bay, Cuba.

SEC. 323. PROHIBITION ON USE OF FUNDS TO TRANSFER OR RELEASE INDIVIDUALS DETAINED AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA, TO COMBAT ZONES.

(a) IN GENERAL.—No amounts authorized to be appropriated or otherwise made available to an element of the intelligence community may be used during the period beginning on the date of the enactment of this Act and ending on December 31, 2016, to transfer, release, or assist in the transfer or release of any individual detained in the custody or under the control of the Department of Defense at United States Naval Station, Guantanamo Bay, Cuba, to a combat zone.

(b) COMBAT ZONE DEFINED.—In this section, the term ''combat zone'' means any area designated as a combat zone for purposes of section 112 of the Internal Revenue Code of 1986 for which the income of a member of the Armed Forces was excluded during 2014, 2015, or 2016 by reason of the member's service on active duty in such area.

Subtitle C—Reports

SEC. 331. REPORTS TO CONGRESS ON INDIVIDUALS FORMERLY DETAINED AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

(a) ADDITIONAL MATTERS FOR INCLUSION IN REPORTS.—Subsection (c) of section 319 of the Supplemental Appropriations Act, 2009 (Public Law 111–32; 123 Stat. 1874; 10 U.S.C. 801 note) is amended by adding after paragraph (5) the following new paragraphs:

''(6) A summary of all contact by any means of communication, including telecommunications, electronic or technical means, in person, written communications, or any other means of communication, regardless of content, between any individual formerly detained at Naval Station, Guantanamo Bay, Cuba, and any individual known or suspected to be associated with a foreign terrorist group.

''(7) A description of whether any of the contact described in the summary required by paragraph (6) included any information or discussion about hostilities against the United States or its allies or partners.

''(8) For each individual described in paragraph (4), the period of time between the date on which the individual was released or transferred from Naval Station, Guantanamo Bay, Cuba, and the date on which it is confirmed that the individual is suspected or confirmed of reengaging in terrorist activities.

''(9) The average period of time described in paragraph (8) for all the individuals described in paragraph (4).''.

(b) FORM.—Subsection (a) of such section is amended by adding at the end the following: ''The reports may be submitted in classified form.''.

(c) RULE OF CONSTRUCTION.—Nothing in this section or the amendments made by this section shall be construed to terminate, alter, modify, override, or otherwise affect any reporting of information required under section 319(c) of the Supplemental Appropriations Act, 2009 (Public Law 111–32; 123 Stat. 1874; 10 U.S.C. 801 note), as in effect immediately before the enactment of this section.

SEC. 332. REPORTS ON FOREIGN FIGHTERS.

(a) REPORTS REQUIRED.—Not later than 60 days after the date of the enactment of this Act, and every 60 days thereafter, the Director of National Intelligence shall submit to the congressional intelligence committees a report on foreign fighter flows to and from Syria and to and from Iraq. The Director shall define the term ''foreign fighter'' in such reports.

(b) MATTERS TO BE INCLUDED.—Each report submitted under subsection (a) shall include each of the following:

(1) The total number of foreign fighters who have traveled to Syria or Iraq since January 1, 2011, the total number of foreign fighters in Syria or Iraq as of the date of the submittal of the report, the total number of foreign fighters whose countries of origin have a visa waiver program described in section 217 of the Immigration and Nationality Act (8 U.S.C. 1187), the total number of foreign fighters who have left Syria or Iraq, the total number of female foreign fighters, and the total number of deceased foreign fighters.

(2) The total number of United States persons who have traveled or attempted to travel to Syria or Iraq since January 1, 2011, the total number of such persons who have arrived in Syria or Iraq since such date, and the total number of such persons who have returned to the United States from Syria or Iraq since such date.

(3) The total number of foreign fighters in Terrorist Identities Datamart Environment and the status of each such foreign fighter in that database, the number of such foreign fighters who are on a watchlist, and the number of such foreign fighters who are not on a watchlist.

(4) The total number of foreign fighters who have been processed with biometrics, including face images, fingerprints, and iris scans.

(5) Any programmatic updates to the foreign fighter report since the last report was issued, including updated analysis on foreign country cooperation, as well as actions taken, such as denying or revoking visas.

(6) A worldwide graphic that describes foreign fighters flows to and from Syria, with points of origin by country.

(c) FORM.—The reports submitted under subsection (a) may be submitted in classified form.

(d) TERMINATION.—The requirement to submit reports under subsection (a) shall terminate on the date that is three years after the date of the enactment of this Act.

SEC. 333. REPORTS ON PRISONER POPULATION AT UNITED STATES NAVAL STATION, GUANTANAMO BAY, CUBA.

(a) REPORTS REQUIRED.—Not later than 60 days after the date of the enactment of this Act, and every 30 days thereafter, the Director of the Defense Intelligence Agency, in coordination with the Director of National Intelligence, shall submit to the Members of Congress specified in subsection (b) a report on the prisoner population at the detention facility at United States Naval Station, Guantanamo Bay, Cuba.

(b) SPECIFIED MEMBERS AND COMMITTEES OF CONGRESS.—The Members of Congress specified in this subsection are the following:

(1) The majority leader and minority leader of the Senate.

(2) The Chairman and Ranking Member of the Committee on Armed Services of the Senate.

(3) The Chairman and Vice Chairman of the Select Committee on Intelligence of the Senate.

(4) The Chairman and Vice Chairman of the Committee on Appropriations of the Senate.

(5) The Speaker of the House of Representatives.

(6) The minority leader of the House of Representatives.

(7) The Chairman and Ranking Member of the Committee on Armed Services of the House of Representatives.

(8) The Chairman and Ranking Member of the Permanent Select Committee on Intelligence of the House of Representatives.

(9) The Chairman and Ranking Member of the Committee on Appropriations of the House of Representatives.

(c) MATTERS TO BE INCLUDED.—Each report submitted under subsection (a) shall include each of the following:

(1) The name and country of origin of each prisoner detained at the detention facility at United States Naval Station Guantanamo Bay, Cuba, as of the date of such report.

(2) A current summary of the evidence, intelligence, and information used to justify the detention of each prisoner listed under paragraph (1) at United States Naval Station, Guantanamo Bay, Cuba.

(3) A current accounting of all the measures taken to transfer each prisoner listed under paragraph (1) to the individual's country of citizenship or another country.

(4) A current description of the number of individuals released or transferred from detention at United States Naval Station, Guantanamo Bay, Cuba, who are confirmed or suspected of returning to terrorist activities after such release or transfer.

(5) An assessment of any efforts by foreign terrorist organizations to recruit individuals released from detention at United States Naval Station, Guantanamo Bay, Cuba.

(6) A summary of all contact by any means of communication, including telecommunications, electronic or technical means, in person, written

communications, or any other means of communication, regardless of content, between any individual formerly detained at United States Naval Station, Guantanamo Bay, Cuba, and any individual known or suspected to be associated with a foreign terrorist group.

(7) A description of whether any of the contact described in the summary required by paragraph (6) included any information or discussion about hostilities against the United States or its allies or partners.

(8) For each individual described in paragraph (4), the period of time between the date on which the individual was released or transferred from United States Naval Station, Guantanamo Bay, Cuba, and the date on which it is confirmed that the individual is suspected or confirmed of reengaging in terrorist activities.

(9) The average period of time described in paragraph (8) for all the individuals described in paragraph (4).

SEC. 334. REPORT ON USE OF CERTAIN BUSINESS CONCERNS.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence communities a report on the representation, as of the date of the report, of covered business concerns among the contractors that are awarded contracts by elements of the intelligence community for goods, equipment, tools, and services.

(b) MATTERS INCLUDED.—The report under subsection (a) shall include the following:

(1) The representation of covered business concerns as described in subsection (a), including such representation by—

(A) each type of covered business concern; and

(B) each element of the intelligence community.

(2) If, as of the date of the enactment of this Act, the Director does not record and monitor the statistics required to carry out this section, a description of the actions taken by the Director to ensure that such statistics are recorded and monitored beginning in fiscal year 2016.

(3) The actions the Director plans to take during fiscal year 2016 to enhance the awarding of contracts to covered business concerns by elements of the intelligence community.

(c) COVERED BUSINESS CONCERNS DEFINED.—In this section, the term ''covered business concerns'' means the following:

(1) Minority-owned businesses.

(2) Women-owned businesses.

(3) Small disadvantaged businesses.

(4) Service-disabled veteran-owned businesses.

(5) Veteran-owned small businesses.

SEC. 335. REPEAL OF CERTAIN REPORTING REQUIREMENTS.

(a) QUADRENNIAL AUDIT OF POSITIONS REQUIRING SECURITY CLEARANCES.—Section 506H of the National Security Act of 1947 (50 U.S.C. 3104) is amended—

(1) by striking subsection (a); and

(2) by redesignating subsections (b) and (c) as subsections (a) and (b), respectively.

(b) REPORTS ON ROLE OF ANALYSTS AT FBI AND FBI INFORMATION SHARING.—Section 2001(g) of the Intelligence Reform and Terrorism Prevention Act of 2004 (Public Law 108–458; 118 Stat. 3700; 28 U.S.C. 532 note) is amended by striking paragraphs (3) and (4).

(c) REPORT ON OUTSIDE EMPLOYMENT BY OFFICERS AND EMPLOYEES OF INTELLIGENCE COMMUNITY.—

(1) IN GENERAL.—Section 102A(u) of the National Security Act of 1947 (50 U.S.C. 3024) is amended—

(A) by striking ''(1) The Director'' and inserting ''The Director''; and

(B) by striking paragraph (2).

(2) CONFORMING AMENDMENT.—Subsection (a) of section 507 of such Act (50 U.S.C. 3106(a)) is amended—

(A) by striking paragraph (5); and

(B) by redesignating paragraph (6) as paragraph (5).

(3) TECHNICAL AMENDMENT.—Subsection (c)(1) of such section 507 is amended by striking ''subsection (a)(1)'' and inserting ''subsection (a)''.

(d) REPORTS ON NUCLEAR ASPIRATIONS OF NON-STATE ENTITIES.—Section 1055 of the National Defense Authorization Act for Fiscal Year 2010 (50 U.S.C. 2371) is repealed.

(e) REPORTS ON ESPIONAGE BY PEOPLE'S REPUBLIC OF CHINA.—Section 3151 of the National Defense Authorization Act for Fiscal Year 2000 (42 U.S.C. 7383e) is repealed.

(f) REPORTS ON SECURITY VULNERABILITIES OF NATIONAL LABORATORY COMPUTERS.—Section 4508 of the Atomic Energy Defense Act (50 U.S.C. 2659) is repealed.

The CHAIR. No amendment to the amendment in the nature of a substitute shall be in order except those printed in House Report 114–155. Each such amendment may be offered only in the order printed in the report, by a Member designated in the report, shall be considered read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. ISRAEL

The CHAIR. It is now in order to consider amendment No. 1 printed in House Report 114–155.

Mr. ISRAEL. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 12, line 10, strike ''The Director'' and insert ''(a) IN GENERAL.—The Director''.

Page 12, after line 13, insert the following:

(b) ANNUAL REPORT.—Not later than the date that is 10 months after the date of the enactment of this Act, and biennially thereafter until the date that is four years after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees and the congressional defense committees (as such term is defined in section 101(a)(16) of title 10, United States Code) a report describing—

(1) trends in the use of tunnels by foreign state and nonstate actors; and

(2) collaboration efforts between the United States and partner countries to address the use of tunnels by adversaries.

The CHAIR. Pursuant to House Resolution 315, the gentleman from New York (Mr. ISRAEL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. ISRAEL. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I rise to offer an amendment with my very good friend from Colorado (Mr. LAMBORN) and my very good friend from Florida (Ms. GRAHAM). This is a bipartisan amendment with respect to tunnels being used as a military tactic, technology, and strategy in asymmetric warfare.

Mr. Chairman, almost exactly a year ago, when war broke out in the Middle East and Hamas attacked Israel, I visited Israel and saw for myself the sophistication of the tunnels being dug from Gaza to Israel through which terrorists traveled. They went to the other side of the tunnels, popped up, and tried to kill innocent civilians.

These tunnels are not the tunnels that many of us characterize in our own minds. These tunnels are sophisticated. These are expressways underground. It is like the Queens-Midtown Tunnel going from Gaza to Israel. They are ventilated. They are lit. They are massive. They are deep. They are huge. They are impenetrable, and they are very difficult to detect.

Mr. Chairman, the FY16 Intelligence Authorization bill properly says that the Director of National Intelligence will designate an official to manage the collection and analysis of intelligence regarding the tactical use of tunnels by state and nonstate actors.

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This bipartisan amendment simply asks for accountability. It requires a report from this new lead intelligence officer for tunnels describing the trends in the use of tunnels by foreign state and nonstate actors and collaborative efforts between the United States and partner nations to address the use of tunnels by our adversaries.

Mr. Chairman, I talked about tunnels in the Middle East, but in fact, these tunnels are dynamic force multipliers for our enemies and enemies of our allies around the world. They are used for terrorist attacks, but they are also used to smuggle arms and contraband.

We have learned that these tunnels are being used well beyond Israel. Korea is another example. Tunnels have been found in North Korea. Here at home, more than 150 tunnels have been found since 2009.

Mr. Chairman, we have plenty of enemies today looking for ways to attack the United States and our interests around the globe. This bill recognizes these threats and, very wisely, creates a lead intelligence officer for tunnels.

This amendment simply encourages greater oversight by Congress. It allows Congress to make informed decisions on how and where to spend future funds in order to counter this threat and protect U.S. national security interests.

Most importantly, Mr. Chairman, these reports will help shape the efforts of the newly created position, making it clear that Congress expects accountability and transparency, and that is something that the American people require.

I ask my colleagues to support this bipartisan amendment, and I reserve the balance of my time.

Mr. NUNES. Mr. Chair, I claim the time in opposition, although I do not intend to oppose the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. I yield 2 minutes to the gentleman from Colorado (Mr. LAMBORN).

Mr. LAMBORN. Mr. Chairman, I want to thank Congressman STEVE ISRAEL and Congresswoman GWEN GRAHAM for working together with me on this bipartisan effort in the defense bills, as well as now in the Intelligence Authorization Act. I would also like to thank Chairman NUNES and his staff for working together with me on this important issue.

Mr. Chairman, as Representative ISRAEL just described, there is a real and growing tunnel threat to American bases and embassies around the world, to our southern border, as well as to our ally Israel, both in Gaza, as well as Israel's northern border.

Language I offered in the base intelligence bill, combined with this amendment, will ensure that our intelligence community stays focused on this threat. There will be a dedicated person watching on this issue.

Going forward, partnership with Israel is the best way to address this growing threat. As we have seen with Iron Dome and other missile defense efforts, partnering with a vital ally like Israel enables both countries to learn quickly, while sharing costs and new technologies. It is a win-win situation for Israel and the U.S. and, hopefully, a loss situation for the bad guys.

I urge my colleagues to support this amendment.

Mr. ISRAEL. Mr. Chairman, I thank my very good friend from Colorado for his bipartisan support of this bill.

I yield 1 minute to the gentlewoman from Florida. (Ms. GRAHAM).

Ms. GRAHAM. Mr. Chairman, I rise in support of Representative STEVE ISRAEL's amendment to the Intelligence Authorization Act to provide oversight for the joint U.S.-Israel antitunneling defense project.

The joint antitunneling project, which was added to the National Defense Authorization Act in an amendment sponsored by my good friend Representative LAMBORN and myself, will help our closest ally in the Middle East, Israel, protect its borders.

The terrorist group Hamas has spent years developing a complex network of tunnels under the Gaza Strip and Israel to smuggle weapons, kidnap Israelis, and launch mass murder attacks.

This project will develop new technology to detect and destroy these tunnels, and it will send a clear message to our allies and enemies alike. The United States is committed to protecting Israel and to rooting out and destroying the terrorists who wish to do her harm.

Mr. NUNES. Mr. Chairman, I reserve the balance of my time.

Mr. ISRAEL. Mr. Chairman, I yield 1 minute to the gentleman from California (Mr. SCHIFF), the distinguished ranking member of the committee.

Mr. SCHIFF. I thank the gentleman for yielding, and I thank Mr. ISRAEL, Mr. LAMBORN, and Ms. GRAHAM for this very important amendment and issue.

This will call for a report on our adversaries' use of tunnels and an update on our collaboration with international partners in ways to detect and defeat tunnels.

All of us remember the fear that set in, in much of southern Israel last summer, as Hamas militants used a complex network of tunnels to attack Israeli soldiers from the Gaza Strip. This was not the first use of tunnels by Hamas. Cross-border tunnels were used in the capture of IDF soldier Gilad Shalit in 2006.

In addition to using them against military targets, Israel has uncovered evidence that the tunnels are being prepared for large-scale attacks against Israeli civilians.

Tunnels are not just a problem for Israel. For decades, the North Korean military has also been digging tunnels under the DMZ to facilitate infiltration of South Korea.

According to press reports, four tunnels from the north have been found in all, although none since 1990. The South Korean Defense Ministry believes there may be 20 in all, and they could pose a mortal threat to Koreans and American service personnel in the region.

I strongly support the amendment and urge my colleagues to do the same.

Mr. NUNES. Mr. Chairman, I am prepared to support the amendment.

I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, all that I can say is thank you.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. ISRAEL).

The amendment was agreed to.

AMENDMENT NO. 2 OFFERED BY MR. ISRAEL

The CHAIR. It is now in order to consider amendment No. 2 printed in House Report 114–155.

Mr. ISRAEL. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 16, after line 24, insert the following new subsection:

''(e) REPORTS.—Not later than 10 months after the date of the enactment of this subsection, and annually thereafter for three years, the Director of the Cyber Threat Intelligence Integration Center shall submit a report to Congress that includes the following:

''(1) With respect to the year covered by the report, a detailed description of cyber threat trends, as compiled by the Cyber Threat Intelligence Integration Center.

''(2) With respect to the year covered by the report, a detailed description of the coordination efforts by the Cyber Threat Intelligence Integration Center between departments and agencies of the Federal Government, including the Department of Defense, the Department of Justice, and the Department of Homeland Security.

''(3) Recommendations for better collaboration between such departments and agencies of the Federal Government.''.

The CHAIR. Pursuant to House Resolution 315, the gentleman from New York (Mr. ISRAEL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. ISRAEL. Mr. Chairman, I will attempt to continue my winning streak on the floor this morning.

I rise to offer an amendment with my distinguished friend and partner from New York (Mr. HANNA).

This bipartisan amendment addresses an issue that has concerned many of us for some time, and that is the fact that, when it comes to cyber defense and cyber war, many Federal agencies are doing something; it is just that they may not be aware of what each of them is doing. We need closer coordination and collaboration among all the Federal agencies and entities dealing with cyber war.

Mr. Chairman, we recently found out that the United States Office of Personnel Management suffered a cyber attack impacting millions of Federal workers. This attack, in my view, highlights a disconnect between agencies tasked to provide cyber defense, a foreign government hacking into a Federal government system, taking the records of millions of government employees, spanning the jurisdiction of several Federal agencies.

It is clear that there is an obvious need for greater collaboration between these agencies to create a credible defense and, if needed, a deterrent to those wishing to attack through the cyber domain.

That is why I was very pleased in February of this year when the President directed the DNI to establish the Cyber Threat Intelligence Integration Center, CTIIC. This bill very properly authorizes that position.

CTIIC will serve as the primary organization within the Federal Government for analyzing and integrating all intelligence possessed or acquired by the U.S. pertaining to cyber threats and coordinate cyber threat intelligence activities.

This bipartisan amendment, Mr. Chairman, simply ensures congressional oversight of CTIIC by requiring an annual report detailing three things: number one, cyber attack trends identified by the CTIIC; number two, an assessment of the collaborative efforts between the CTIIC and various Federal agencies tasked to defend this country against cyber attacks; and number three, recommendations for better collaboration between these agencies.

Mr. Chairman, we have entered a new era of warfare. Our networks are being attacked daily. We need to do a much better job of coordinating, collaborating, and cooperating at the Federal level. This amendment ensures oversight and accountability.

I want to thank my partner on this measure, Mr. HANNA, for his bipartisan assistance and support.

I reserve the balance of my time.

Mr. NUNES. Mr. Chairman, I claim the time in opposition, although I do not intend to oppose the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chair, over the last several years, cyber attacks have become a pressing concern for the United States. The recent breach of the Office of Personnel Management has put the personal information of millions of current and former Federal employees, including many of the men and women of our intelligence community, at risk.

Every day, cyber thieves attack private companies, stealing credit card numbers, accessing medical records, leaking proprietary information, and publishing confidential emails, affecting tens of millions of Americans.

The intelligence community has worked to improve our cyber defenses by improving information sharing between the private sector and the Federal Government through the support of H.R. 1560, the Protecting Cyber Networks Act.

While the Senate has yet to act on this bill, the legislation we consider today will help improve the Federal Government's ability to detect and defeat cyber attacks by creating the new Cyber Threat Intelligence Integration Center.

This thoughtful amendment by Mr. ISRAEL and Mr. HANNA will require that the Center produce a report on cyber threat trends and coordination on cyber threats between different government agencies.

I thank the gentlemen from New York for their work on this issue and urge my colleagues to support this amendment.

I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, I yield 1 minute to the gentleman from California (Mr. SCHIFF), the ranking member of the committee.

Mr. SCHIFF. I thank the gentleman, and I thank him for his excellent amendment and support in the intelligence process.

With each passing day, we are learning more about the cyber breach at the Office of Personnel Management. The volume of personal information lost during these events is of tremendous concern. Mr. ISRAEL's amendment will help us better inform Congress on the effectiveness of the government's collaborative efforts to defend against future cyber events.

I thank my colleagues for their work on it, and I urge support of Mr. ISRAEL's amendment.

Mr. ISRAEL. Mr. Chairman, I want to thank the distinguished chairman for his bipartisan leadership and the distinguished ranking member. I appreciate their support for this amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. ISRAEL).

The amendment was agreed to.

AMENDMENT NO. 3 OFFERED BY MR. CROWLEY

The CHAIR. It is now in order to consider amendment No. 3 printed in House Report 114–155.

Mr. CROWLEY. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 29, after line 17, insert the following:

SEC. 317. INCLUSION OF HISPANIC-SERVING INSTITUTIONS IN GRANT PROGRAM TO ENHANCE RECRUITING OF INTELLIGENCE COMMUNITY WORKFORCE.

Section 1024 of the National Security Act of 1947 (50 U.S.C.) is amended—

(1) in subsection (c)—

(A) in paragraph (1), by inserting '', Hispanic-serving institutions, and'' after ''universities''; and

(B) in the subsection heading for such subsection, by striking ''HISTORICALLY BLACK'' and inserting ''CERTAIN MINORITY-SERVING''; and

(2) in subsection (g)—

(A) by redesignating paragraph (5) as paragraph (6); and

(B) by inserting after paragraph (4) the following new paragraph (5):

''(5) HISPANIC-SERVING INSTITUTION.—The term 'Hispanic-serving institution' has the meaning given that term in section 502(a)(5) of the Higher Education Act of 1965 (20 U.S.C. 1101a(a)(5)).''.

The CHAIR. Pursuant to House Resolution 315, the gentleman from New York (Mr. CROWLEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. CROWLEY. Mr. Chairman, I yield myself as much time as I may consume.

Mr. Chairman, like many of my colleagues, I am focused on growing educational opportunities for young Hispanic Americans, particularly in the areas that will be so critical to our Nation's success in the years ahead.

Last month, the House approved a bipartisan amendment to the America COMPETES Reauthorization Act designed to increase opportunities for Latinos in the STEM fields.

The amendment I am offering today with my colleagues, Mr. SERRANO and Mr. CURBELO, builds upon that effort and would further expand opportunities for Hispanic students.

Our proposal would allow the Director of National Intelligence to offer grants to Hispanic-Serving Institutions of higher education for advanced foreign language education programs that are in the immediate interest of the intelligence community.

It would also promote study abroad and cultural immersion programs in those areas, which we all know are crucial to truly understanding the intricacies of other languages and other cultures. This is a time when we need to be encouraging more of our young people to enter careers aimed at making our Nation safer.

Of the nearly 2 million Latino students enrolled in college today, the majority attend Hispanic-Serving Institutions. With these targeted grants, HSIs would be able to help increase the ranks of Latinos going into the intelligence community, where they are underrepresented today.

This amendment would not only promote diversity in national security and intelligence communities, but it would also strengthen our youngest and fastest growing minority, Hispanic Americans.

We must ensure that these young people are prepared with the knowledge and skills that will contribute to our Nation's future strength, security, and global leadership because, when education is available to everyone, our entire Nation is a stronger nation.

I want to thank my colleagues who have worked with me on this issue, Mr. SERRANO and Mr. CURBELO, who have cosponsored this amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. NUNES. Mr. Chair, I claim the time in opposition, although I do not intend to oppose the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chair, I thank Mr. CROWLEY, Mr. SERRANO, and Mr. CURBELO for offering this amendment to include Hispanic-Serving Institutions in the grant program to improve recruitment efforts for the intelligence community.

I yield 2 minutes to the gentleman from Florida (Mr. CURBELO).

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Mr. CURBELO of Florida. I thank the chairman for yielding.

Mr. Chairman, I rise today in strong support of this amendment and thank my colleague from New York for allowing me to join in leading on this important issue.

This amendment would allow the Director of National Intelligence to provide grants to Hispanic-Serving Institutions of higher education to offer advanced foreign language programs that are important to our intelligence community. These students, in addition to the traditional classroom setting, would also be able to travel and study abroad so they can gain a firsthand perspective of the culture in which they are immersing themselves.

Mr. Chairman, the study of Farsi, Middle Eastern, and South Asian dialects is of the utmost importance in developing our country's continued relationships abroad. I am proud to advocate for Hispanic-Serving Institutions, like Florida International University and Miami Dade College in my district, and will strive to provide them the opportunity to train their students so that they can go on to serve our country.

I am proud to be working with the gentleman from New York (Mr. CROWLEY) and the gentleman from New York (Mr. SERRANO) to provide more opportunities for these young Hispanic students who want to serve their country and to provide our intelligence community this special tool to recruit those who could be useful in advancing the cause of building the relationships that are so critical to our intelligence services operating throughout the world.

Mr. CROWLEY. Mr. Chairman, I appreciate the gentleman from Florida's comments on this bill and his support.

At this time, I yield 1 minute to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. I thank my colleague from New York (Mr. CROWLEY) for yielding and for his work on this amendment. I am very happy to support it.

Diversity and language skills are critical to national security. Together, they allow the intelligence community to reach its potential and expand its reach, its access, as well as its understanding.

This amendment would further both goals by providing better language-learning opportunities to students of Hispanic-Serving Institutions. I am very proud to support this amendment and urge my colleagues to do the same.

Again, I thank my friend from New York (Mr. CROWLEY) as well as my other colleagues who worked with him on this amendment. I urge passage.

Mr. NUNES. Mr. Chairman, I support the amendment, and I yield back the balance of my time.

Mr. CROWLEY. Mr. Chairman, I thank the chairman for his support of this amendment as well as the ranking member, Mr. SCHIFF, for his support of this amendment, and all the Members who have worked on this amendment.

I think the amendment speaks for itself. It is providing a great opportunity for a growing minority community within our country who want to serve our country in this capacity.

With that, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. CROWLEY).

The amendment was agreed to.

AMENDMENT NO. 4 OFFERED BY MR. KEATING

The CHAIR. It is now in order to consider amendment No. 4 printed in House Report 114–155.

Mr. KEATING. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 35, after line 17, insert the following new subsection (and redesignate the subsequent subsections accordingly):

(c) ADDITIONAL REPORT.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report that includes—

(1) with respect to the travel of foreign fighters to and from Iraq and Syria, a description of the intelligence sharing relationships between the United States and member states of the European Union and member states of the North Atlantic Treaty Organization; and

(2) an analysis of the challenges impeding such intelligence sharing relationships.

Page 35, line 19, insert ''and (c)'' after ''(a)''.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Massachusetts (Mr. KEATING) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. KEATING. Mr. Chairman, I offer this bipartisan amendment with the support of Homeland Security Chairman MICHAEL MCCAUL and Representatives KATKO and LOUDERMILK to help Congress identify ways to improve intelligence sharing on the flow of foreign fighters around the world—with particular attention to their travel to and from Iraq and Syria.

Already, this legislation that we are considering today makes substantial strides in ensuring that intelligence surrounding the flow of foreign fighters is shared with Congress. These continuous reports will shed light on the total number of attempted and successful fighters since the beginning of 2011.

My amendment would require the Director of National Intelligence to report to Congress on the intelligence community's progress in forging information-sharing agreements with foreign partners and help Congress identify the challenges impeding coordinated intelligence efforts.

Over 20,000 foreign fighters have traveled to join rebel and terrorist groups in Iraq and Syria, including ISIS and al Qaeda affiliates like al-Nusrah. Their movements are proving increasingly difficult to track in our globalized world, particularly given the uneven or nonexistent tracking efforts from some of our foreign partners.

As the ranking member of the Foreign Affairs Subcommittee on Terrorism, Nonproliferation, and Trade and as a member of the Homeland Security Subcommittee on Counterterrorism and Intelligence, I have engaged on the issue of intelligence sharing from two perspectives—from our efforts to improve the intelligence community's coordination with State, local, and other Federal agencies and from our work to better improve our information-sharing practices with our overseas allies to prevent terrorist attacks and the flow of foreign fighters here at home.

While the intelligence community has made improvements to the processes of sharing pertinent information with the relevant Federal, State, and local agencies, there still exists a blind spot in our intelligence-gathering efforts on foreign fighters. That blind spot stems from the failure of some foreign governments to take common-sense information-sharing steps, and it has made the task of tracking foreign fighters even more challenging.

The inability or unwillingness of some foreign governments to pass along even the most basic information about these individuals represents a major risk to the safety of the American people.

An additional threat looms when some of these individuals return to their homelands from Iraq and Syria, battle-hardened and radicalized. Once back home, some can travel between international borders with relative ease, which makes tracking them a truly difficult feat.

This amendment will also provide insight into our current intelligence-sharing relationships and will give Congress the opportunity to highlight best practices while also revealing areas for improvement.

I thank Chairman NUNES and Ranking Member SCHIFF for their cooperation.

I yield such time as he may consume to the gentleman from Texas (Mr. MCCAUL).

Mr. MCCAUL. I thank the gentleman for yielding.

Mr. Chair, I rise in strong support of the Keating-McCaul amendment in the Intelligence Authorization Act. If adopted, our amendment would require the Director of National Intelligence to report to Congress on the state of intelligence information sharing with overseas partners to help us identify security gaps so that we can improve international monitoring of foreign fighter travel both in and out of Syria and Iraq.

Islamist fanatics from more than 100 countries have traveled overseas to fight with groups like ISIS and al Qaeda. Thousands of the jihadists carry Western passports and can exploit security gaps in places like Europe to return to the West, where they can plot attacks against America and our allies.

Last month, I led a congressional delegation to the Middle East to investigate the flow of these foreign fighters. And while progress is being made, I am still troubled by intelligence and screening gaps, especially with our foreign partners. We need to make sure our allies not only share the identities of terrorists and foreign fighters with us but also with each other so that these extremists can be stopped before they cross our borders into the United States.

This amendment will provide Congress critical information needed to close these security gaps and improve intelligence information sharing to defend our homeland.

I applaud the gentleman from Massachusetts (Mr. KEATING) for his hard work on the amendment and for his strong participation in our delegation overseas, where we learned quite a bit. It is not very often you can pass something you think can save American lives, and I think this is one of them. I thank the gentleman again.

Mr. KEATING. Mr. Chairman, I thank the chairman of Homeland Security for his leadership on this issue. We really have established a very strong bipartisan effort, putting our national security first and realizing what holes there are in our system, in our security for our country.

Mr. Chairman, I yield 15 seconds to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. I thank the gentleman.

Mr. Chairman, I rise in strong support of the work of my colleagues from Massachusetts and from Texas. This is a superb amendment that will help us track foreign fighters, and I am proud to support it.

Mr. KEATING. Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Massachusetts (Mr. KEATING).

The amendment was agreed to.

AMENDMENT NO. 5 OFFERED BY MR. KEATING

The CHAIR. It is now in order to consider amendment No. 5 printed in House Report 114–155.

Mr. KEATING. Mr. Chairman, I have another amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 41, line 8, strike ''paragraphs (3) and (4)'' and insert ''paragraph (3) and redesignating paragraph (4) as paragraph (3)''.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Massachusetts (Mr. KEATING) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. KEATING. Mr. Chairman, the recent events involving the plan of radicalized individuals in Massachusetts to target law enforcement officials—police, in particular—underscore the truth that protecting America will require the efforts of local, State, and Federal law enforcement.

Since the Boston Marathon bombings, the FBI has made great efforts to improve their information-sharing efforts with the Joint Terrorism Task Force and other Federal agencies.

With my work and the work of my colleagues on the congressional investigation of the Boston Marathon bombings through the Homeland Security Committee, I can attest to the seriousness in which the Federal Bureau of Investigation has set out to improve their information-sharing practices.

However, the FBI's efforts to institutionalize sharing across law enforcement and intelligence are still a work in progress.

The current version of this bill eliminates the requirement for the FBI to report to Congress on their progress to implement information-sharing principles. This is a reporting requirement that has kept Congress aware of the FBI's information-sharing practices since 2004, and it has been vital to understand what works and what can be improved.

This amendment will reinstate that requirement, with the recognition that the FBI has more work to do on information sharing to better protect the American public.

These necessary reforms include reexecuting FBI current memorandums of understanding with local partners, improving training and accessibility for the eGuardian platform, and formalizing methods for disseminating intelligence to relevant consumers up- and downstream.

Without information on the progress the FBI is making in these reforms, Congress is hindered in taking the critical steps needed to protect the American public.

I would like to again thank Chairman NUNES and Ranking Member SCHIFF.

I yield such time as he may consume to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. I thank my colleague from Massachusetts, who has been an active and important voice on national security since he joined the Congress several years ago. In particular, he has worked to ensure that we maintain a strong focus on information sharing across agencies.

One of the key lessons we learned from 9/11 is the need to tear down stovepipes and to ensure that inappropriate barriers to information sharing across agencies never reappear.

The gentleman from Massachusetts' amendment seeks to maintain our vigilance on this issue and would require the FBI to report to Congress on its information-sharing progress.

As a fellow native Bostonian, I am very pleased to see my colleague do such great work. I want to thank him for his commitment to the issue. And I am very happy to support the amendment.

Mr. KEATING. I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Massachusetts (Mr. KEATING).

The amendment was agreed to.

AMENDMENT NO. 6 OFFERED BY MR. SCHIFF

The CHAIR. It is now in order to consider amendment No. 6 printed in House Report 114–155.

Mr. SCHIFF. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike sections 321, 322, 323, and 331.

The CHAIR. Pursuant to House Resolution 315, the gentleman from California (Mr. SCHIFF) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. SCHIFF. Mr. Chairman, my amendment would strike the sections of the bill which would undermine the administration's ability to close the prison at Guantanamo by transferring the remaining detainees to the United States for further disposition of their cases or to third countries that agree to accept them, secure them, and monitor them.

I am grateful that my colleague from Washington, ADAM SMITH, ranking member of the Armed Services Committee, has joined me in urging the House to make this important change to the bill.

Every day that it remains open, the prison at Guantanamo Bay damages the United States. Because there are other, better options for the prosecution and detention of these inmates, we are not safer for Guantanamo's existence. In fact, it makes us more vulnerable by drawing new recruits to the jihad.

The Congress, the administration, and the military can work together to find a solution that protects our people even as we maintain our principles and devotion to the rule of law.

Under the provisions included in this bill, the administration would be barred from transferring Guantanamo detainees to a ''war zone.''

While I agree that it would be foolhardy to seek to send a detainee to Yemen while that country is immersed in civil war, the definition of ''war zone'' used here is derived from the U.S. Tax Code and is extremely broad, ruling out countries like Jordan, for example, that have either successfully resettled and monitored former detainees or demonstrated a genuine commitment to doing so.

These provisions also prevent the administration from transferring Guantanamo detainees to the United States for further proceedings under the military commissions process or for trial in an article III court.

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The Department of Justice and our courts have proven themselves time and time again to be more than capable of handling the toughest terrorism cases and doing so in a way that ennobles us and sets an example to the world that a great nation can both safeguard its people and the rule of law.

As a practical matter, our civilian courts have proven much more adept at handling these cases than the military commissions process has. In fact, this past Friday, a three-judge panel of the Court of Appeals for the D.C. Circuit, one of the most important appellate courts in the Nation, further struck down the legality of commission charges, so narrowing the jurisdiction of the military commissions themselves that any utility as an alternative to article III courts has been called into further question.

And while Khalid Sheikh Mohammed and his fellow Guantanamo terrorists still await their date with justice, a host of others—including Richard Reid, the shoe bomber; and Umar Farouk Abdulmutallab, the underwear bomber; and Faisal Shahzad, the Times Square bomber—have been tried, convicted, and sent to ADX Florence, the toughest prison in America. They are gone, and they are not coming back.

The inclusion of these provisions is the first time that restrictions related to Guantanamo have been included in the Intelligence Authorization Act, and I believe that alone sets an unfortunate precedent that could undermine what has been a largely bipartisan effort. These provisions are unnecessary and unwise, and they do not belong in this bill.

Mr. Chairman, I urge the House to reconsider these provisions, to trust in American justice, diplomacy, and the best military advice, and to give the administration a means to shutter a prison that both shames us and perpetuates the threat to the Nation.

I reserve the balance of my time.

Mr. NUNES. Mr. Chairman, I rise in opposition to this amendment.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. NUNES. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, although I appreciate the ranking member's concerns about these provisions, I do remain concerned that further releases from Guantanamo will threaten our national security.

Press reports now indicate that the administration intends to transfer up to 10 additional detainees this month. As the committee learned through its many briefings and hearings, the five detainees released to Qatar last May have participated in activities that threaten the United States and its allies and are counter to U.S. national security interests, not unlike their activities before they were detained. No intelligence community element should enable any future transfers that endanger national security.

Furthermore, I would note that these provisions are substantively identical to the provisions passed by the House Armed Services Committee as part of the National Defense Authorization Act. Mr. Chairman, 26 of the 27 Democrats on that committee voted to advance an NDAA that contained similar restrictions. The provisions in our bill will complement those restrictions, as well as the restrictions put forward in the defense appropriations bills for several years running and this committee's previous intelligence authorization bills. The ranking member may have forgotten, but in 2012, there were provisions similar to this one that were included in the legislation.

In sum, these provisions represent a strong and enduring consensus in Congress that Guantanamo should remain open and that detainees should not be transferred to the U.S. for any reason. As everyone here is aware, several detainees who have been released from Guantanamo have gone back to the fight and killed and wounded Americans. Putting detainees in U.S. prisons, as the administration originally proposed, would be disruptive and potentially disastrous. The threat is real, and Guantanamo is already equipped to handle the detention and military trial of these individuals, as appropriate.

For those reasons, I would urge my colleagues to oppose this amendment, and I reserve the balance of my time.

Mr. SCHIFF. I yield myself such time as I may consume.

I want to urge support for this amendment. This is one of the few areas of disagreement between the chairman and myself. When we look at how we are progressing or the lack of more progress in our struggle against ISIS and al Qaeda in places like Syria and Iraq, we are often tempted to consider those that we take off the battlefield as a metric of our success—we have eliminated so many combatants from the battlefield. But of course that number in isolation means very little. And the challenge is that with every one we take off the battlefield, there are new foreign fighters coming onto the battlefield.

The recruitment of those additional fighters uses a variety of images and issues to attract people to join the jihad. One of the issues that is continually used as recruiting propaganda is the presence of the detention center at Guantanamo Bay. This is a recruitment vehicle for the jihadis. It is a rallying cry for the jihadis.

The closure of this prison will not end the threat from ISIS or al Qaeda. There will be other efforts to recruit. But why give them this recruitment tool when there are other, better ways that these people can be incarcerated? Why give them this recruitment vehicle when there are ways that we can secure the people at Guantanamo Bay, prosecute the people at Guantanamo Bay, uphold our highest standards and the rule of law, and remove at least one part the jihadi social media and other propaganda campaign?

Mr. Chairman, I think it is in our national security interest to do so. I would urge support for the amendment.

I yield back the balance of my time.

Mr. NUNES. Mr. Chair, I yield myself such time as I may consume.

Mr. Chair, I know that the gentleman believes every word that he is saying. We have had robust debate in the Intelligence Committee behind closed doors, and we have had robust debate out in open session, and it is a debate I think that will always continue.

However, the concern remains from the majority Members of Congress that they would prefer to keep Guantanamo open because no one wants to bring those terrorists to the United States, to their backyard, to try them in their State or their county or their community.

So I respect the gentleman's concerns, and we will continue to debate those, but I will continue to oppose closing Guantanamo or having our intelligence community participate in the removal of detainees from Guantanamo.

Mr. Chair, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from California (Mr. SCHIFF).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. SCHIFF. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 7 OFFERED BY MR. ROONEY OF FLORIDA

The CHAIR. It is now in order to consider amendment No. 7 printed in House Report 114–155.

Mr. ROONEY of Florida. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of subtitle C of title III, add the following new section:

SEC. 3___. REPORT ON HIRING OF GRADUATES OF CYBER CORPS SCHOLARSHIP PROGRAM BY INTELLIGENCE COMMUNITY.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence, in coordination with the Director of the National Science Foundation, shall submit to the congressional intelligence committees a report on the employment by the intelligence community of graduates of the Cyber Corps Scholarship Program. The report shall include the following:

(1) The number of graduates of the Cyber Corps Scholarship Program hired by each element of the intelligence community.

(2) A description of how each element of the intelligence community recruits graduates of the Cyber Corps Scholar Program.

(3) A description of any processes available to the intelligence community to expedite the hiring or processing of security clearances for graduates of the Cyber Corps Scholar Program.

(4) Recommendations by the Director to improve the hiring by the intelligence community of graduates of the Cyber Corps Scholarship Program, including any recommendations for legislative action to carry out such improvements.

(b) CYBER CORPS SCHOLARSHIP PROGRAM DEFINED.—In this section, the term ''Cyber Corps Scholarship Program'' means the Federal Cyber Scholarship-for-Service Program under section 302 of the Cybersecurity Enhancement Act of 2014 (15 U.S.C. 7442).

The CHAIR. Pursuant to House Resolution 315, the gentleman from Florida (Mr. ROONEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. ROONEY of Florida. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, as we debate this bill today, hackers across the world are trying furiously to break into our cyber networks, as we all know. And as we have seen in recent weeks, they are occasionally successful, and the consequences are grave. These cracks in our cyber defense put our security at risk. They also threaten American businesses and the privacy and credit of individuals across this country.

For the sake of our national security and our economy, we must work together to improve our cyber capabilities. This requires a stronger, more capable cyber workforce, which our bipartisan amendment will help facilitate.

The Federal CyberCorps Scholarship for Service program gives scholarships to students who study in the cybersecurity field. In exchange, those students commit to serving in government cybersecurity positions after graduation. Leaders within the intelligence community and DOD have told us that they need to expand their workforce and want to hire graduates from this program. Unfortunately, outdated personnel rules and insufficient direct hire authority make it extremely difficult for them to do so. As a result, these

students aren't able to fulfill their work commitment and we are unable to meet our workforce needs, and our cybersecurity suffers.

We believe Congress should help remove those obstacles and make it easier to bring those graduates into the cyber workforce. Our amendment starts that process by requiring a report back to us on how many CyberCorps graduates go to work for the intelligence community and how these agencies recruit them. This information will help us determine how to streamline the hiring process so we are capitalizing on the best cybersecurity talent available.

Mr. Chairman, this is a simple, bipartisan amendment, but it will pay dividends to improve and expand our cyber workforce and strengthen our national security.

I would like to thank Congresswoman SEWELL from Alabama for her assistance in this amendment.

With that, Mr. Chairman, I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I rise to claim the time in opposition, even though I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized.

There was no objection.

Mr. SCHIFF. Mr. Chairman, I yield myself such time as I may consume.

I want to thank the gentleman from Florida and the gentlewoman from Alabama, both HPSCI colleagues, for their amendment, and I am happy to support it.

This amendment furthers two important goals: first, to ensure that academic programs that should serve as a resource to the government—in this case, the National Science Foundation's CyberCorps Scholarship for Service—actually do result in a good number of students choosing employment within the intelligence community; and second, to deepen the bench of our cyber defenders.

As a recent series of serious cyber breaches has demonstrated, it is an imperative for the protection of this Nation's workforce, privacy, and sensitive intelligence that we strengthen the IC's cyber cadre with our best and brightest. Mr. Chairman, this amendment is a fine addition to the gentleman's and the gentlewoman's other initiatives already represented in the bill, particularly those that advance diversity in the intelligence community.

Again, Mr. Chairman, I want to thank my colleagues for their work. I urge support for this bipartisan amendment.

I yield back the balance of my time.

Mr. ROONEY of Florida. Mr. Chairman, I yield back the balance of my time.

Ms. SEWELL of Alabama. Mr. Chair, I rise today in support of this bipartisan, common sense amendment that seeks to streamline and strengthen our Intelligence Community's (IC) cyber workforce. I am pleased to join my fellow colleague, Rep. ROONEY, who shares my deeply held desire to help meet the incredible need to raise the number of professionals in the critically important field of cybersecurity.

The recent breach of OPM which compromised the personal information of nearly 4 million federal employees further illustrates our urgent and immediate need to make substantial improvements to our cyber databases and overall cyber infrastructure. Cyberattacks have become increasingly common, and state sponsored bad actors pose a serious threat to our national security. These types of attacks are one of the most urgent modern challenges to our nation. Our government must be poised to do more to prevent future attacks. We must position ourselves to curtail any threat, no matter how great or small.

In December 2011, the National Science and Technology Council, in cooperation with the National Science Foundation (NSF), advanced a broad, coordinated federal strategic plan to enhance cybersecurity research and education. As part of this plan, the NSF launched the CyberCorps Scholarship for Service (SFS) program. In an effort to bolster our federal workforce's capacity and advance the nation's economic prosperity and national security, this program provides funding for undergraduate and graduate level scholarships to students interested in cybersecurity. In return, scholarship recipients are required to work for a Federal, State, Local, or Tribal Government organization in a position related to cybersecurity for a period equal to the length of the scholarship. In essence, students receive a scholarship in exchange for their commitment to federal civil service. This program seeks to cultivate pipelines for applicants from undergraduate and graduate programs into federal careers focusing on combatting emerging cyber security threats.

Leaders within the Intelligence Community tell me, however, that outdated policies and onerous clearance procedures are inhibiting their ability to fill industry vacancies with young and diverse cybersecurity professionals.

Our amendment simply requires the Intelligence Community to report to Congress on how many CyberCorps graduates actually go to work for the IC and how IC agencies recruit these CyberCorps graduates. This information will help Congress determine how we can best improve the hiring process.

I strongly believe that Congress should be facilitating ways to help the Intelligence Community hire these critically important CyberCorps graduates and create a pipeline directly into our cyber workforce.

I encourage my colleagues to vote yes on this amendment.

The CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. ROONEY).

The amendment was agreed to.

AMENDMENT NO. 8 OFFERED BY MR. MOULTON

The CHAIR. It is now in order to consider amendment No. 8 printed in House Report 114–155.

Mr. MOULTON. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of subtitle C of title III, add the following new section:

SEC. 3___. REPORT ON EFFECTS OF DATA BREACH OF OFFICE OF PERSONNEL MANAGEMENT.

(a) REPORT.—Not later than 120 days after the date of the enactment of this Act, the President shall transmit to the congressional intelligence committees a report on the data breach of the Office of Personnel Management disclosed in June 2015.

(b) MATTERS INCLUDED.—The report under subsection (a) shall include the following:

(1) The effects, if any, of the data breach on the operations of the intelligence community abroad, including the types of operations, if any, that have been negatively affected or entirely suspended or terminated as a result of the data breach.

(2) An assessment of the effects of the data breach to each element of the intelligence community.

(3) An assessment of how foreign persons, groups, or countries may use the data collected by the data breach (particularly regarding information included in background investigations for security clearances), including with respect to—

(A) recruiting intelligence assets;

(B) influencing decision-making processes within the Federal Government, including regarding foreign policy decisions; and

(C) compromising employees of the Federal Government and friends and families of such employees for the purpose of gaining access to sensitive national security and economic information.

(4) An assessment of which departments or agencies of the Federal Government use the best practices to protect sensitive data, including a summary of any such best practices that were not used by the Office of Personnel Management.

(5) An assessment of the best practices used by the departments or agencies identified under paragraph (4) to identify and fix potential vulnerabilities in the systems of the department or agency.

(c) BRIEFING.—The Director of National Intelligence shall provide to the congressional intelligence committees an interim briefing on the report under subsection (a), including a discussion of proposals and options for responding to cyber attacks.

(d) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Massachusetts (Mr. MOULTON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Massachusetts.

Mr. MOULTON. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, recently, the Office of Personnel Management disclosed a massive security breach that may have exposed personal information of millions of current and former Federal employees, including those who work in sensitive national security positions. Simply put, this cyber breach is unacceptable and breaks faith with those dedicated military and civilian personnel who commit their lives to keeping our country safe.

Although responsibility has not yet been officially confirmed, many observers believe that individuals in China, who may have been acting on orders of the Chinese Government, were responsible for hacking into OPM databases.

Two things are clear, Mr. Chairman. First, we must ensure this does not

happen again; we must protect our Federal employees—our foreign service officers, State Department staff, members of the intelligence community, and many others. Second, we must make clear to the rest of the world that these attacks will not be tolerated and that there will be consequences.

Mr. Chairman, that is why my amendment takes the first of many critical steps to respond to this breach. My amendment starts the process of holding OPM accountable. It makes sure we leverage the best data security practices that our intelligence agencies use to protect sensitive personal information about our military and civilian personnel who work day in and day out to keep our country safe.

Finally, my amendment ensures that the United States Congress can play a constructive role in developing a meaningful, forceful response to cyber attacks—especially attacks aimed at our Nation's security. We must stop these attacks and protect those who commit their lives to our safety. This amendment is an important first step in doing just that.

Mr. Chairman, I reserve the balance of my time.

Mr. NUNES. Mr. Chair, we are prepared to accept the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chairman, the Intelligence Committee, I think, in a bipartisan manner, has the same concerns as the gentleman.

I yield back the balance of my time.

Mr. MOULTON. Mr. Chairman, I yield 1 minute to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. I thank the gentleman for yielding.

We expect timely briefs on all major cyber attacks, but in this case, I agree, we need to require specific reporting and briefing on the impacts of the recent OPM breach. We need to learn far more about how hackers accessed the systems, what they obtained, and how we can prevent this from happening again. In addition, this will help us understand the impact to the intelligence community.

Mr. Chairman, as I have said before, our public and private networks are not sufficiently secure, and they are a regular target for cyber attacks. We must do everything we can to shore them up, and we must do so now.

I want to thank my colleague for his work, and I urge support of his amendment.

Mr. MOULTON. Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Massachusetts (Mr. MOULTON).

The amendment was agreed to.

AMENDMENT NO. 9 OFFERED BY MR. TURNER

The CHAIR. It is now in order to consider amendment No. 9 printed in House Report 114–155.

Mr. TURNER. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of subtitle C of title III, add the following:

SEC. 3___. ASSESSMENT ON FUNDING OF POLITICAL PARTIES AND NONGOVERNMENTAL ORGANIZATIONS BY THE RUSSIAN FEDERATION.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the appropriate congressional committees an intelligence community assessment on the funding of political parties and nongovernmental organizations in former Soviet states and countries in Europe by the Russian Federation and the security and intelligence services of the Russian Federation since January 1, 2006. Such assessment shall include the following:

(1) The country involved, the entity funded, the security service involved, and the intended effect of the funding.

(2) An evaluation of such intended effects, including with respect to—

(A) undermining the political cohesion of the country involved;

(B) undermining the missile defense of the United States and the North Atlantic Treaty Organization; and

(C) undermining energy projects that could provide an alternative to Russian energy.

(b) FORM.—The report under subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means the following:

(1) The congressional intelligence communities.

(2) The Committees on Armed Services of the House of Representatives and the Senate.

(3) The Committee on Foreign Affairs of the House of Representatives and the Committee on Foreign Relations of the Senate.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Ohio (Mr. TURNER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Ohio.

□ 1515

Mr. TURNER. Mr. Chairman, my bipartisan amendment requires the Director of National Intelligence to submit a report to Congress on the funding of political parties and NGOs in former Soviet states by the Russian Federation and its associated security and intelligence services.

As Congress well knows, a resurgent Russia, led by President Vladimir Putin, is once again determined to destabilize the West and various Euro-Atlantic institutions such as NATO.

While we have seen the blatant use of military force both in Georgia and Ukraine, Russia has employed a variety of nontraditional methods to disrupt the West. These methods include the use of propaganda through state-owned media outlets such as Russia Today, manipulation of European natural gas markets, and the use of money to influence political parties and nongovernmental organizations throughout Europe.

In a recent New York Times article, authors Peter Baker and Steven Erlanger highlight a series of instances in which the Russian Federation covertly funneled money to political organizations in Europe in order to influence various decisionmakers and parties.

While their ultimate goal remains the fragmentation of institutions such as the EU and NATO, Russia hopes to achieve incremental victories like influencing the EU's upcoming decision on whether or not to renew sanctions against them.

As president of the NATO Parliamentary Assembly and chair of the Assembly's U.S. delegation, I have had the opportunity to meet frequently with my European counterparts to discuss this issue. In all instances, Assembly members continue to validate and echo the concerns discussed here today. Only through an increased understanding can we begin to effectively plan and combat President Putin and a resurging Russia.

I ask all of my colleagues to rise in support of this bipartisan amendment, and I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I rise in opposition, even though I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. SCHIFF. Mr. Chairman, I want to thank the gentlemen from Ohio, Alabama, and New York for their amendment, which I am proud to support.

This amendment requires the Director of National Intelligence to provide an assessment on funding of political parties and NGOs in the former Soviet states and countries in Europe by the Russian Federation and its security and intelligence services.

Over the past few years, we have witnessed a number of highly visible, aggressive actions by Russia, particularly in Ukraine; but Moscow's efforts to destabilize its neighbors are also subtler and more nefarious. Russia is sponsoring and funding political parties to groom the next generation of puppets which they can control from Moscow.

We must better understand what they are doing, even if what they are doing is very deep behind the scenes; so long as sources and methods are properly protected, I support this effort.

Again, I want to thank my colleagues for their work, and I urge support of the amendment.

I yield back the balance of my time.

Mr. TURNER. Mr. Chairman, as the chairman well remembers, with the cold war, there was a time when the conflict between the United States and Russia was very tense. This amendment will help us bring to bear light on the actions of Russia so that we can make certain our policies reflect the new aggressiveness of the Russian Federation.

Mr. NUNES. Will the gentleman yield?

Mr. TURNER. I yield to the gentleman from California.

Mr. NUNES. I really appreciate the gentleman. He is one of the most involved Members of Congress with NATO, so I know that his concerns are valid. I, too, share those concerns and would urge my colleagues to support the amendment.

Mr. TURNER. Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Ohio (Mr. TURNER).

The amendment was agreed to.

AMENDMENT NO. 10 OFFERED BY MR. FARR

The CHAIR. It is now in order to consider amendment No. 10 printed in House Report 114–155.

Mr. FARR. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of subtitle C of title III, add the following new section:

SEC. 3___. REPORT ON CONTINUOUS EVALUATION OF SECURITY CLEARANCES.

Not later than 120 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees and the congressional defense committees (as defined in section 101(a)(16) of title 10, United States Code) a report on the continuous evaluation of security clearances of employees, officers, and contractors of the intelligence community. The report shall include the following:

(1) The status of the continuous evaluation program of the intelligence community, including a timeline for the implementation of such program.

(2) A comparison of such program to the automated continuous evaluation system of the Department of Defense.

(3) Identification of any possible efficiencies that could be achieved by the intelligence community leveraging the automated continuous evaluation system of the Department of Defense.

The CHAIR. Pursuant to House Resolution 315, the gentleman from California (Mr. FARR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. FARR. Mr. Chairman, today, I rise to offer an amendment which strengthens the process for granting security clearances to those working in the intelligence community through a continuous evaluation process.

This amendment directs the National Intelligence Director to provide the intelligence and defense committees a report on the status of its current efforts for continuous evaluation of security clearance holders, including a timeline for its rollout. The report will also provide a cost-benefit analysis of DNI's efforts to similar efforts that are being carried on in the Department of Defense.

We learned, after the tragic shooting in the Navy Yard in September 2013, the DOD should continuously evaluate these personnel, rather than do it every once every 5 years.

Clearance starts by an initial vetting that determines a person's suitability and eligibility to have access to classified material by examining the person's past and making a judgment on future reliability. Now, once cleared, a continuous evaluation process is designed to examine a person's behavior to ensure its continued reliability.

Congress directed the DOD to create a process that would be a government-wide solution for continuous personnel security evaluations. This solution is called ACES, Automated Continuous Evaluation System.

Now, the Director of National Intelligence is also seeking its own capability for continuous evaluation. While I support the intelligence community's requirement, their efforts may be redundant.

DOD's system already has measurable successes. Their system is also flexible enough to be tailored to meet any specific requirements that the intelligence community may need.

My amendment simply assures that the DNI does not work towards a continuous evaluation system in a vacuum. By working together to share lessons learned or build a common evaluation system, the DNI and the DOD can build a better program that ensures our national security and uses taxpayer dollars effectively.

As we have all seen recently, the insider threat to our national security is real. We must continue to ensure that we remain secure by only granting security clearances to those who are suitable and reliable.

I ask for an ''aye'' vote on the amendment, and I reserve the balance of my time.

Mr. NUNES. Mr. Chairman, I claim the time in opposition, although I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chairman, I am prepared to accept the amendment.

I yield back the balance of my time.

Mr. FARR. Mr. Chairman, I yield 1 minute to the gentleman from California (Mr. SCHIFF), my colleague, the ranking member of the Intelligence Committee.

Mr. SCHIFF. Mr. Chairman, I want to thank the gentleman and my good friend from California for his amendment, which I am very happy to support.

An important role of Congress and of this bill is to ensure that our intelligence agencies protect sensitive information and protect taxpayer dollars.

This amendment supports both of these goals by requiring that the Office of the Director of National Intelligence report to Congress on its continuous evaluation process for security clearances and to compare those processes to those the Department of Defense uses. This comparative study will help identify places where we may be able to make improvements and save money.

I want to thank Mr. FARR for his amendment and his diligence.

Mr. FARR. Mr. Chairman, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from California (Mr. FARR).

The amendment was agreed to.

AMENDMENT NO. 11 OFFERED BY MS. SINEMA

The CHAIR. It is now in order to consider amendment No. 11 printed in House Report 114–155.

Ms. SINEMA. Mr. Chairman, I have an amendment at the desk, and I offer that amendment at this time.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. REPORT ON STRATEGY, EFFORTS, AND RESOURCES TO DETECT, DETER, AND DEGRADE ISLAMIC STATE REVENUE MECHANISMS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that the intelligence community should dedicate necessary resources to defeating the revenue mechanisms of the Islamic State.

(b) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the intelligence committees a report on the strategy, efforts, and resources of the intelligence community that are necessary to detect, deter, and degrade the revenue mechanisms of the Islamic State.

The CHAIR. Pursuant to House Resolution 315, the gentlewoman from Arizona (Ms. SINEMA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Arizona.

Ms. SINEMA. Mr. Chairman, I yield myself such time as I may consume.

I want to say thank you to Mr. FITZPATRICK for cosponsoring this amendment and for his leadership as the chairman of the Task Force to Investigate Terrorism Financing. Thank you also to Chairman NUNES and Ranking Member SCHIFF for supporting this important amendment.

The purpose of the bipartisan Sinema-Fitzpatrick amendment is to choke off the Islamic State's revenue stream. Our amendment directs the intelligence community to detect, deter, and degrade Islamic State's revenue sources and to report on the strategy and resources needed for success.

The Islamic State is one of the world's most violent and dangerous terrorist groups. Its goals to build a caliphate in the Middle East and encourage attacks in Europe and the United States represent a new threat to our country and to global stability.

ISIL is also believed to be the richest terrorist organization in history, controlling a huge territory in Iraq and Syria containing significant oil resources. In 2014, the Islamic State generated approximately $1 million per day through the sale of smuggled oil, extortion, and kidnapping for ransom.

U.S. strikes have reportedly diminished ISIL's oil revenues, but the breadth of this terrorist organization's

funding sources represents a serious challenge to our national security.

A February report by the Financial Action Task Force estimated that ISIL now largely finances itself through extortion in the territory it controls, and another study places this extortion revenue at $360 million per year. In Iraq, ISIL levies a 5 percent tax on all withdrawals from banks, and the organization also gains tens of millions of dollars from kidnapping on an annual basis.

To defeat ISIL and protect our country, we must cut off the Islamic State's diverse and substantial sources of revenue.

I encourage my colleagues to support this commonsense bipartisan amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. NUNES. Mr. Chairman, I claim the time in opposition, although I do not intend to oppose the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chairman, at this time, I yield 3 minutes to the gentleman from Pennsylvania (Mr. FITZPATRICK).

Mr. FITZPATRICK. Mr. Chairman, I thank the chairman, and I thank my colleague Ms. SINEMA for her work on this important amendment and for her work as well on the task force established to investigate terrorism financing.

Today, the terror threat faced by our Nation and our intelligence community is more diverse and sophisticated than it has ever been before. Organizations like Hezbollah, ISIS, and Boko Haram can no longer simply be considered terrorist groups.

They have grown into much more dangerous entities, ones with the abilities to self-finance their actions through means far beyond traditional methods, from illicit oil sales and human trafficking to regional taxation and antiquity dealing.

In order to effectively combat such evolved threats, U.S. policy must also evolve. As chair of the bipartisan Task Force to Investigate Terrorism Financing, established by the Committee on Financial Services, I have worked with lawmakers and policy experts to guarantee the U.S. response to terror's new revenue streams are quickly and effectively choked out.

This amendment is important to ensure each level of our government, from Congress to the intelligence community, has identified the problem, as well as potential weaknesses, and is ready to address the threats that we face.

By both expressing the sense of Congress that our intelligence agencies must dedicate resources to eradicate terror revenue mechanisms, as well as report to relevant committees on their strategies, this amendment strengthens the underlying bill and Congress' understanding of our global response to terrorism.

The threat to freedom and democracy posed by the Islamic State and groups like it circles the globe, and the United States can ill afford to combat these enemies on the battlefield alone. Any strategy against terror groups worldwide must attack not only militarily, but at their funding source. Organizations, no matter how complex, cannot effectively function without requisite resources.

Mr. Chairman, our intelligence community is second to none, and I am certain that, together, we can formulate and carry out long-term solutions to combat terror financing.

I thank the chairman for his leadership on this issue and Ms. SINEMA for offering this amendment.

Ms. SINEMA. Mr. Chairman, I yield 1 minute to the gentleman from California, Ranking Member SCHIFF, and thank him for his leadership on national security issues.

Mr. SCHIFF. Mr. Chairman, I want to thank the gentlewoman from Arizona for her amendment, as well as the gentleman from Pennsylvania. I am proud to support it.

Behind ISIL's rapid and dangerous rise are its many sources of illicit funding. This amendment expresses the conviction of Congress that the intelligence community should dedicate resources to finding and eliminating those revenue sources and that the IC must report on its effort to do so.

Again, I want to thank both of my colleagues for their leadership on this issue, and I urge strong support of their amendment.

Mr. NUNES. Mr. Chairman, at this time, I yield 1 minute to the gentleman from North Carolina (Mr. PITTENGER).

Mr. PITTENGER. Mr. Chairman, I rise in support of this amendment and congratulate Ms. SINEMA and Mr. FITZPATRICK, the chairman of the committee. This will help our terrorism task force efforts undermine the funding of ISIS.

Terrorism experts concur that ISIS is the most well-funded terrorist threat that we have ever faced. Through the illicit sale of stolen oil and antiquities, kidnapping for ransom, extortion, bank robberies, and usurious taxation, ISIS continues to amass tens of millions of dollars.

Stopping this flow of money to terrorists must be a top priority if we are to defeat ISIS. Unfortunately, earlier this month, the President admitted he does not have a comprehensive strategy to defeat ISIS.

This amendment will require the Director of National Intelligence to submit to Congress the current efforts they use to undermine the funding of ISIS, increasing our ability to ensure these efforts are a priority.

I urge my colleagues to support this amendment. I will look forward to the continued bipartisan support of the Financial Services Task Force to Investigate Terrorism Financing.

□ 1530

Ms. SINEMA. Mr. Chair, as a member of the Task Force to Investigate Terrorism Financing, I am working with my colleagues on both sides of the aisle to keep money out of the hands of terrorists and to find solutions like this amendment, which strengthens America's security.

Again, I would like to thank Mr. FITZPATRICK for his partnership and leadership on this issue. I also thank Chairman NUNES, Ranking Member SCHIFF, and Mr. PITTENGER for their work on this important legislation.

I yield back the balance of my time.

Mr. NUNES. Mr. Chair, we are prepared to support the amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Arizona (Ms. SINEMA).

The amendment was agreed to.

AMENDMENT NO. 12 OFFERED BY MR. CROWLEY

The CHAIR. It is now in order to consider amendment No. 12 printed in House Report 114–155.

Mr. CROWLEY. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. REPORT ON NATIONAL SECURITY COOPERATION BETWEEN UNITED STATES, INDIA, AND ISRAEL.

Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional intelligence committees a report on possibilities for growing national security cooperation between the United States, India, and Israel.

The CHAIR. Pursuant to House Resolution 315, the gentleman from New York (Mr. CROWLEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New York.

Mr. CROWLEY. Mr. Chairman, I yield myself such time as I may consume.

I rise today to urge my colleagues to support this bipartisan amendment.

I appreciate the support of my colleagues from California, Ohio, North Carolina, Arizona, and New York, who are coleaders on this effort. They are Mr. BERA, Mr. ENGEL, Mr. NADLER, Mr. CHABOT, Mr. SCHWEIKERT, and Mr. HOLDING. I also thank the chairman and ranking member of the Intelligence Committee for their support of this amendment.

This amendment is about expanding the cooperation between the world's oldest democracy, the world's largest democracy, and a true democracy within the Middle East. That is the United States, India, and Israel. In recent years, the United States has expanded relations with Israel, as well as with India, in a number of areas.

We have also seen India and Israel work more and more together on a bilateral basis. Of course, that is because a lot of their interests overlap, but it is

also because many of our values overlap.

There is so much that our three countries can be doing together in the realm of scientific cooperation, research, best practices, national security implementation, defense, and much, much more.

There is also a lot that we can learn from each other, whether it is about drip irrigation to build food supplies, desalinization to address water shortages, or refrigeration practices to prevent the kind of food spoilage that leads to hunger, not to mention how much potential there is in technological research and economic development.

This amendment, of course, just deals with a narrow portion of these areas because the underlying bill is limited to security issues, but it is a needed start.

I truly believe that the United States-India relationship has the potential to be the world's most important ''big country'' relationship in the 21st century. As our ties with India grow, it is important to see the India-Israel ties increasing as well.

Here in the United States, as a former co-chair of the Congressional Caucus on India and Indian Americans, I have met with many members of the Indian American community, and I have consistently heard from visiting members of India's Government that there is a genuine desire to expand relations between India and Israel now and in the future.

In fact, it has already been reported that, in the coming months, India's Prime Minister will become the first-ever Indian Prime Minister to travel to Israel. We are going to see the leader of what will be the world's most populous nation visiting and engaging with one of the smallest nations.

The sky is really the limit on this effort going forward, and that is why the amendment asks the Director of National Intelligence to submit to Congress a plan on how to grow the U.S.-India-Israel national security relationship. This is a real possibility, and I hope the DNI can identify a solid number of ways to work together even more in the future.

I reserve the balance of my time.

Mr. NUNES. Mr. Chair, I claim the time in opposition, although I do not intend to oppose the amendment.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. NUNES. Mr. Chair, Mr. HOLDING was just here, but unfortunately, he got called away to another meeting because I know he worked closely with Mr. CROWLEY and others as chair of the India Caucus, and he wanted me to express his strong support for this amendment. I also urge my colleagues to support the amendment.

I yield back the balance of my time.

Mr. CROWLEY. Mr. Chair, I yield 1 minute to the gentleman from California (Mr. SCHIFF).

Mr. SCHIFF. I thank the gentleman for yielding.

Mr. Chair, working with international partners is an essential element of the IC's mission to understand the global threat environment, as well as the political, social, and economic trends around the world.

For nearly 70 years, Israel has been a close friend and ally, as well as a vital source of intelligence about the world's most volatile region. In recent years, India, the world's largest democracy, has upgraded its bilateral relationships with both the United States and Israel. Given India's complex relationship with both Pakistan and China, exploring the potential for enhanced trilateral intelligence cooperation is very much in our interest.

Mr. CROWLEY's amendment to direct the DNI to report to Congress on the potential for intelligence sharing is timely, and I urge the House to support it.

Mr. CROWLEY. Mr. Chairman, again, let me thank Mr. NUNES, the chair of the committee, as well as the ranking member, Mr. SCHIFF, for their support of this valuable amendment.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from New York (Mr. CROWLEY).

The amendment was agreed to.

AMENDMENT NO. 13 OFFERED BY MR. WILSON OF SOUTH CAROLINA

The CHAIR. It is now in order to consider amendment No. 13 printed in House Report 114–155.

Mr. WILSON of South Carolina. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. CYBER ATTACK STANDARDS OF MEASUREMENT STUDY.

(a) STUDY REQUIRED.—The Director of National Intelligence, in consultation with the Secretary of Homeland Security, the Director of the Federal Bureau of Investigation, and the Secretary of Defense, shall carry out a study to determine appropriate standards that—

(1) can be used to measure the damage of cyber incidents for the purposes of determining the response to such incidents; and

(2) include a method for quantifying the damage caused to affected computers, systems, and devices.

(b) REPORTS TO CONGRESS.—

(1) PRELIMINARY FINDINGS.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall provide to the Committee on Armed Services, the Committee on Homeland Security and Governmental Affairs, and the Select Committee on Intelligence of the Senate and the Committee on Armed Services, the Committee on Homeland Security, and the Permanent Select Committee on Intelligence of the House of Representatives the initial findings of the study required under subsection (a).

(2) REPORT.—Not later than 360 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the Committee on Armed Services, the Committee on Homeland Security and Governmental Affairs, and the Select Committee on Intelligence of the Senate and the Committee on Armed Services, the Committee on Homeland Security, and the Permanent Select Committee on Intelligence of the House of Representatives a report containing the complete findings of such study.

(3) FORM OF REPORT.—The report required by paragraph (2) shall be submitted in unclassified form, but may contain a classified annex.

The CHAIR. Pursuant to House Resolution 315, the gentleman from South Carolina (Mr. WILSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from South Carolina.

Mr. WILSON of South Carolina. Mr. Chairman, I am grateful for Chairman NUNES and the House Permanent Select Committee on Intelligence for their leadership on this important legislation.

I am particularly grateful that I was here to hear the presentation by Congressman JOE CROWLEY relative to promoting a better relationship with the world's largest democracy, India, by the world's oldest democracy, the United States.

He and I have served as the past co-chairs of the Caucus of India and Indian Americans, and I know of his commitment to promoting a better relationship between India and the United States.

Last week, the Office of Personnel Management revealed they were the targets of an extended cyber attack on Federal employee personnel records. These attacks stole personal data, such as Social Security numbers, financial information, and security clearance documents, putting the personal and financial security of our citizens at risk.

This cyber attack was not a novelty. Recently, we have seen a growing number of cyber attacks on government Web sites, national retailers, and small businesses. Indeed, according to Symantec, most businesses reported a completed or an attempted cyber attack in the last year, and 60 percent of those facing an attack were small- or medium-sized businesses. These cyber attacks are a sober reminder to Congress that all government agencies need to work together to better protect their public and private networks.

After each of these attacks, we have had a number of questions: Who is behind it? Is it an agent of a foreign government or a nonstate actor? How many records were affected? What kind of information was accessed?

As of now, we gather this information through various government agencies, and each uses a different measure to assess and quantify the damage of the attack, so we waste valuable time and resources when trying to piece together a response.

We need a clear, unified system of measurement for cyber attacks that can be used across all government agencies and military branches. By putting government agencies and branches of the military on the same

page, we can have an effective and rapid response.

This amendment directs the Director of National Intelligence, in consultation with the Secretary of Homeland Security, the Director of the FBI, and the Secretary of Defense, to conduct a study to define a method of measuring a cyber incident so we can determine an appropriate response.

As chairman of the House Armed Services Subcommittee on Emerging Threats and Capabilities, it is apparent that cyber is a new domain of warfare. This amendment is a critical first step in building a more comprehensive cyber defense system.

I yield back the balance of my time.

Mr. SCHIFF. Mr. Chairman, I rise in opposition even though I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. SCHIFF. Mr. Chairman, I would like to thank the gentleman from South Carolina for his important amendment.

There is a limit to how effective a defensive cyber strategy can be because, while we have to defend everything at all times, our adversaries get to attack everywhere and need to be successful only once, so we need to create a more effective deterrent, which this amendment will help further.

It would require that the Office of the Director of National Intelligence report to Congress on how we measure cyber attacks so that we can know how best to respond once we are attacked or to communicate in advance how we would respond if we were attacked. Measuring the scale and effects of cyber attacks is no easy task, especially as we must factor in second and third order effects.

I want to thank Mr. WILSON for his amendment. I am proud to support it.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from South Carolina (Mr. WILSON).

The amendment was agreed to.

AMENDMENT NO. 14 OFFERED BY MR. POE OF TEXAS

The CHAIR. It is now in order to consider amendment No. 14 printed in House Report 114–155.

Mr. POE of Texas. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. REPORT ON WILDLIFE TRAFFICKING.

(a) REPORTS REQUIRED.—Not later than 365 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional committees specified in subsection (b) a report on wildlife trafficking.

(b) SPECIFIED MEMBERS AND COMMITTEES OF CONGRESS.—The congressional committees specified in this subsection are the following:

(1) Select Committee on Intelligence of the Senate.

(2) Committee on Foreign Relations of the Senate.

(3) Committee on Environment and Public Works of the Senate.

(4) Permanent Select Committee on Intelligence of the House of Representatives.

(5) Committee on Foreign Affairs of the House of Representatives.

(6) Committee on Natural Resources of the House of Representatives.

(c) MATTERS TO BE INCLUDED.—The report submitted under subsection (a) shall include each of the following:

(1) An assessment of the major source, transit, and destination countries for wildlife trafficking products or their derivatives and how such products or derivatives are trafficked.

(2) An assessment of the efforts of those countries identified as major source, transit, and destination countries to counter wildlife trafficking and to adhere to their international treaty obligations relating to endangered or threatened species.

(3) An assessment of critical vulnerabilities that can be used to counter wildlife trafficking.

(4) An assessment of the extent of involvement of designated foreign terrorist organizations and transnational criminal organizations in wildlife trafficking.

(5) An assessment of key actors and facilitators, including government officials, that are supporting wildlife trafficking.

(6) An assessment of the annual net worth of wildlife trafficking globally and the financial flows that enables wildlife trafficking.

(7) An assessment of the impact of wildlife trafficking on key wildlife populations.

(8) An assessment of the effectiveness of efforts taken to date to counter wildlife trafficking.

(9) An assessment of the effectiveness of capacity-building efforts by the United States Government.

(10) An assessment of the impact of wildlife trafficking on the national security of the United States.

(11) An assessment of the level of coordination between United States intelligence and law enforcement agencies on intelligence related to wildlife trafficking, the capacity of those agencies to process and act on that intelligence effectively, existing barriers to effective coordination, and the degree to which relevant intelligence is shared with and acted upon by bilateral and multilateral law enforcement partners.

(12) An assessment of the gaps in intelligence capabilities to assess transnational wildlife trafficking networks and steps currently being taken, in line with the Implementation Plan to the National Strategy for Combating Wildlife Trafficking, to remedy such information gaps.

(d) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Texas (Mr. POE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. POE of Texas. Mr. Chairman, I yield myself such time as I may consume.

This amendment, cosponsored by the ranking member on the Terrorism, Nonproliferation, and Trade Subcommittee, Mr. KEATING from Massachusetts, requires the Director of National Intelligence to produce a report on wildlife trafficking, how terrorist organizations are involved, how they are making money off of wildlife trafficking, and the impact it has on U.S. national security.

During our Terrorism, Nonproliferation, and Trade Subcommittee hearing on this very issue in February, we learned that rhinos and elephants are on the path to extinction.

For example, back in the seventies, there were approximately 65,000 rhinos in Africa. Since then, about 1,000 a year have been killed, and now, there are only 5,000 left in Africa. That is a 94 percent drop in those rhinos. There are only five white rhinos in the whole world.

Elephants are not faring much better. From 2002 to 2010, the elephant population across Africa dropped 66 percent. Back in the thirties and forties, Mr. Chairman, there were approximately 5 million African elephants. Now there are about a half a million African elephants.

One of the most famous was Satao in this photograph that was taken last year. He was, presumably, the oldest elephant that was in existence in Africa. He was killed last year for his tusks, which almost touched the ground. In fact, National Geographic, a year ago today, did an article on him and how he was killed for his tusks and how other elephants are being killed for their tusks. He was about 46 years old when he was killed for those tusks.

The reason that poaching seems to be on the increase over the last few years is that there is a low risk of apprehension, and it is easy to commit these crimes. Also, even when someone is captured, penalties for wildlife trafficking are far less than for drug trafficking.

Who uses these tusks? Who uses these rhino horns? The number one country in the world that is the consumer of the illegal ivory trade is China. Vietnam is the number one country in the world that uses the illegal trade of rhino horns. This is where these tusks and these rhino horns go, and it brings in a lot of money.

For example, a kilogram of rhino horns—if I remember my math correctly, that is 2.2 pounds—sells for $60,000. So there is a lot more money involved in the sale of rhino horns and of elephant tusks than even of gold and platinum.

Overall, the illegal wildlife trade is about $10 billion to $20 billion a year. It should come as no surprise that terrorist organizations are also involved in this criminal enterprise, like al Qaeda's affiliate al Shabaab and like Joseph Kony's Lord's Resistance Army. They are cashing in on the illegal wildlife trafficking.

It is getting so bad that the poachers have become very sophisticated in the sense that they no longer just shoot elephants, for example, because that makes a noise, that warns them. They are even being poisoned. An elephant is poisoned, and the elephant dies.

Then, when people approach the elephant, they not only see the dead elephant, but they see other animals that

were feeding on the carcass of the elephant, and they are all dead, too, so that the poachers can get those tusks. They have become very innovative.

□ 1545

Local park rangers are underresourced; they are ill-equipped; and some of them are corrupt as well. So we can't fight what we don't know.

There is a lot about this issue—and terrorist involvement in wildlife trafficking—that is murky, so we need to find out, for example: How much money do terrorists get from wildlife trafficking? Who are the key facilitators of the trade? What government officials are complicit? What impact does this have on the U.S. national security?

This amendment requires the Director of National Intelligence to report to Congress on these and other questions. The better we understand the threat, the better we understand what is happening and how terrorists are involved in the illegal killing of rhinos and elephants, the more effective we can be against fighting those terrorists. And that is just the way it is.

I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I claim the time in opposition, even though I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. SCHIFF. Mr. Chairman, I want to thank the gentlemen from Texas and Massachusetts for their amendment, which I am proud to support.

The trafficking of wildlife by terrorist organizations is an important issue, not only because it threatens to wipe out elephants, rhinos, and tigers, but also because it could threaten our national security. The World Wildlife Fund estimates that the amount of money generated by wildlife trafficking trade reaches into the hundreds of millions of dollars, and much of this goes to fund terrorists, including The Lord's Resistance Army, al-Shabaab, and Boko Haram. That is money going into the coffers of those who every day seek to harm us and others.

We must put our intelligence professionals to the task. We must understand from beginning to end how terrorists acquire, transfer, and profit from wildlife trafficking. This is the first step to putting an end to it.

Again, I want to thank my colleagues for offering this amendment. I urge support.

I yield back the balance of my time.

Mr. POE of Texas. I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. POE).

The amendment was agreed to.

AMENDMENT NO. 15 OFFERED BY MR. POE OF TEXAS

The CHAIR. It is now in order to consider amendment No. 15 printed in House Report 114–155.

Mr. POE of Texas. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. REPORT ON TERRORIST USE OF SOCIAL MEDIA.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the congressional committees specified in subsection (b) a report that represents the coordinated assessment of the intelligence community on terrorist use of social media.

(b) SPECIFIED MEMBERS AND COMMITTEES OF CONGRESS.—The congressional committees specified in this subsection are the following:

(1) Select Committee on Intelligence of the Senate.

(2) Committee on Foreign Relations of the Senate.

(3) Committee on Judiciary of the Senate.

(4) Committee on Homeland and Government Affairs of the Senate.

(5) Permanent Select Committee on Intelligence of the House of Representatives.

(6) Committee on Foreign Affairs of the House of Representatives.

(7) Committee on Judiciary of the House of Representatives.

(8) Committee on Homeland Security of the House of Representatives.

(c) MATTERS TO BE INCLUDED.—The report submitted under subsection (a) shall include each of the following:

(1) An assessment of what role social media plays in radicalization in the United States and elsewhere.

(2) An assessment of how terrorists and terrorist organizations are using social media, including trends.

(3) An assessment of the intelligence value of social media posts by terrorists and terrorist organizations.

(4) An assessment of the impact on the national security of the United States of the public availability of terrorist content on social media for fundraising, radicalization, and recruitment.

(d) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Texas (Mr. POE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. POE of Texas. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, terrorists' use of social media has exploded over the past several years. A recent study by The Brookings Institution found that ISIS had over 40,000 Twitter accounts. Terrorist groups from ISIS to the Taliban use social media platforms to recruit, to radicalize, to spread propaganda, and to raise money. I have seen fan pages for the Khorasan Group, an online press conference held on Twitter by the al Qaeda branch in Yemen, and we all remember al-Shabaab live tweeting the murder of 72 people in Kenya. All terrorist groups.

The benefits of social media are clear. Social media is easy to use, it is free, and it reaches huge audiences across the world. We need to better understand why terrorists' use of social media is effective and what impact it is having on the world.

This bipartisan amendment is cosponsored by the ranking member on our Subcommittee on Terrorism, Nonproliferation, and Trade, Mr. KEATING from Massachusetts. This amendment requires the Director of National Intelligence to assess four parts of the social media problem: First, what role does social media play in radicalizing people in the United States and abroad?

The rise of the lone wolf terrorism in recent years has been fueled, in part, by terrorists' use of social media. Just recently, in Garland, Texas, two individuals claiming ISIS connections were killed while they were attacking an assembly on free speech and peaceable assembly of religion. Evidence shows that they had some social connection, social media connection with ISIS. The Boston bombers made two pressure cooker bombs. The recipes for those bombs were published before the attack in al Qaeda's Inspire magazine. That magazine was released and promoted on social media.

Second, how exactly are terrorists using social media? Social media is constantly evolving, just like terrorists' use of social media platforms. Following online trends is an essential element in putting resources where they have the most impact. We need to make fast-paced improvements in this area as new trends and platforms emerge.

Third, what is the real intelligence value of terrorists' posts? In 2012, a number of my colleagues and I sent a letter to the FBI asking, What intelligence value is terrorists' use of social media? The FBI has not come up with an answer. We need a detailed understanding from the whole intelligence community on just how valuable the intelligence is that we are getting from terrorists' use of social media.

Finally, how does online fundraising, radicalization, and recruitment by terrorists impact U.S. national security? We know social media is a valuable tool to the terrorists just by how often they use it. Unfortunately, the United States is way behind on countering terrorists' use of social media, so we should do more. Terrorists like ISIS are out to destroy us. We have to fight to defeat them on every battlefield, and that includes in social media.

I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I claim the time in opposition, even though I am not opposed.

The CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. SCHIFF. Mr. Chairman, social media, like any other form of communication, can be exploited by bad actors for nefarious purposes. While we are lucky to live in a time of remarkable innovation that brings us closer to

one another no matter what our geographical distance may be, our adversaries use the same tools to spread hateful and dangerous messages across the globe.

I, therefore, support this amendment that calls on the intelligence community to provide Congress with greater information about how terrorist organizations use social media for fundraising, radicalization, and recruitment. Armed with that knowledge, we are more capable of stopping them.

I yield back the balance of my time.

Mr. POE of Texas. I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. POE).

The amendment was agreed to.

AMENDMENT NO. 16 OFFERED BY MR. POE OF TEXAS

The CHAIR. It is now in order to consider amendment No. 16 printed in House Report 114–155.

Mr. POE of Texas. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 42, after line 12, insert the following:

SEC. 336. REPORT ON UNITED STATES COUNTERTERRORISM STRATEGY TO DISRUPT, DISMANTLE, AND DEFEAT ISIL, AL-QAEDA, AND THEIR AFFILIATED GROUPS, ASSOCIATED GROUPS, AND ADHERENTS.

(a) REPORT.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Director of National Intelligence shall submit to the appropriate committees of Congress a comprehensive report on the United States counterterrorism strategy to disrupt, dismantle, and defeat the Islamic State of Iraq and the Levant (ISIL), al-Qaeda, and their affiliated groups, associated groups, and adherents.

(2) COORDINATION.—The report required by paragraph (1) shall be prepared in coordination with the Secretary of State, the Secretary of the Treasury, the Attorney General, and the Secretary of Defense, and the head of any other department or agency of the United States Government that has responsibility for activities directed at combating ISIL, al-Qaeda, and their affiliated groups, associated groups, and adherents.

(3) ELEMENTS.—The report required by paragraph (1) shall include each of the following:

(A) A definition of—

(i) al-Qaeda core, including a list of which known individuals constitute al-Qaeda core;

(ii) ISIL, including a list of which known individuals constitute ISIL leadership;

(iii) an affiliated group of ISIL or al-Qaeda, including a list of which known groups constitute an affiliate group of ISIL or al-Qaeda;

(iv) an associated group of ISIL or al-Qaeda, including a list of which known groups constitute an associated group of ISIL or al-Qaeda;

(v) an adherent of ISIL or al-Qaeda, including a list of which known groups constitute an adherent of ISIL or al-Qaeda; and

(vi) a group aligned with ISIL or al-Qaeda, including a description of what actions a group takes or statements it makes that qualify it as a group aligned with ISIL or al-Qaeda.

(B) An assessment of the relationship between all identified ISIL or al-Qaeda affiliated groups, associated groups, and adherents with ISIL leadership or al-Qaeda core.

(C) An assessment of the strengthening or weakening of ISIL or al-Qaeda, its affiliated groups, associated groups, and adherents, from January 1, 2010, to the present, including a description of the metrics that are used to assess strengthening or weakening and an assessment of the relative increase or decrease in violent attacks attributed to such entities.

(D) An assessment of whether or not an individual can be a member of al-Qaeda core if such individual is not located in Afghanistan or Pakistan.

(E) An assessment of whether or not an individual can be a member of al-Qaeda core as well as a member of an al-Qaeda affiliated group, associated group, or adherent.

(F) A definition of defeat of ISIL or core al-Qaeda.

(G) An assessment of the extent or coordination, command, and control between ISIL or core al-Qaeda and their affiliated groups, associated groups, and adherents, specifically addressing each such entity.

(H) An assessment of the effectiveness of counterterrorism operations against ISIL or core al-Qaeda, their affiliated groups, associated groups, and adherents, and whether such operations have had a sustained impact on the capabilities and effectiveness of ISIL or core al-Qaeda, their affiliated groups, associated groups, and adherents.

(4) FORM.—The report required by paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(b) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Permanent Select Committee on Intelligence, the Committee on Foreign Affairs, and the Committee on Armed Services of the House of Representatives; and

(2) the Select Committee on Intelligence, the Committee on Foreign Relations, and the Committee on Armed Services of the Senate.

The CHAIR. Pursuant to House Resolution 315, the gentleman from Texas (Mr. POE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. POE of Texas. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, this amendment requires a strategy to defeat ISIS and other like-minded groups. It is incredible that after 4 years of the rise of ISIS, we still have to talk about needing a strategy, but here we are.

Four years, Mr. Chairman, what is that? Well, in 4 years the United States mobilized the whole country and had to fight two wars—one in the Pacific and one in Europe—during World War II, and we were successful in protecting the United States, but here after 4 years of the rise of ISIS, we are not sure even what our strategy is.

One thing we do know: controlling land is a top priority for ISIS. Its own credibility is wrapped up in the idea of establishing a caliphate. Without land, ISIS has no caliphate. Without a caliphate, ISIS loses its legitimacy among its hardcore fighters. Controlling land is also how ISIS makes a lot of its money. See, ISIS extorts the people that it controls. It also taxes them. ISIS is still bringing in millions of dollars a day by other illegal activities.

The only way to stop that source of money is by taking back land that ISIS controls. Because ISIS is embedded in civilian populations, U.S. airstrikes are not enough to take the land back. The Iraqi Army is still too unprofessional to show that they are up to the job, and we have all seen ourselves how the Iraqis have dropped American weapons and run. We have yet to give the Kurds the weapons they need to fight for themselves, and we don't expect the dictator Assad to get the job done.

The problem of ISIS is only getting bigger. Thousands of foreign fighters are still streaming into Iraq and Syria from other countries. Outside of Iraq and Syria, ISIS still has 10 networks, not including Iraq and Syria. There are three in Libya, two in Saudi Arabia, and one each in the Sinai, Nigeria, Yemen, Algeria, and one in Pakistan and Afghanistan.

Saudi Arabia is known for its strong government control, but the ISIS affiliate in Saudi Arabia recently pulled off two successful suicide attack bombings in 2 weeks. Its affiliate in Yemen has taken advantage of the fall of the government to take over more land. The ISIS affiliate in Libya is running free in a lawless area throughout the same country that killed our Ambassador and three other Americans. All of ISIS' 10 networks are growing stronger, not weaker, by the day.

The President said last year that the United States would defeat and dismantle ISIS. Well, here we are a year later; we still do not have that strategy. That is at least according to the President himself last week when he was meeting with the world leaders at the G7 summit. He said: We do not yet have a complete strategy against ISIS.

This amendment requires the Director of National Intelligence to report to Congress within 6 months a complete strategy to defeat ISIS and other groups like it. The same amendment did pass unanimously last year with this committee's support. So I ask Members to support it once again this year and make it become the law of the land. Today's terrorists control more land than they have at anytime since World War II. We need a strategy; we need a plan; and we need it soon.

I reserve the balance of my time.

Mr. SCHIFF. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. SCHIFF. Mr. Chairman, it is critical that the United States continue to refine and implement a comprehensive and aggressive strategy to counter ISIL, al Qaeda, and their affiliates, but that responsibility does not lie with the Director of National Intelligence. The DNI's job is to ensure that our national leadership, who do generate our counterterrorism strategy, have the timeliest, most germane, and detailed information to be sure our strategy will be successful.

Mr. POE's amendment misclassifies that responsibility and misconstrues

the important role of the Director of National Intelligence. Our intelligence community must be free to collect and assess intelligence outside of the scope of political decisions to be sure their analysis remains impartial and objective.

So, reluctantly, I must oppose this amendment and urge my colleagues to do the same.

I reserve the balance of my time.

Mr. POE of Texas. The amendment does state that the Director of National Intelligence will work with other appropriate agencies.

Mr. Chairman, it is hard to fathom that this Nation does not have a plan to deal with ISIS. This amendment says Congress will move forward and expect and put into law that we will have a plan; we will have a strategy; and if the Director of National Intelligence is not an individual who is supposed to help form that plan, then I don't know who would be.

I would ask that this amendment be adopted.

I yield back the balance of my time.

Mr. SCHIFF. Mr. Chairman, with respect to my colleague, we have a strategy with respect to defeating al Qaeda and ISIL, with respect to the war in Syria and Iraq. It is a comprehensive strategy and, frankly, it is a difficult strategy to implement. It is a strategy that involves cutting off terrorism financing. It is a strategy that involves cutting off the flow of foreign fighters into Syria and Iraq. It is a strategy that involves drying up the resources, the propaganda, the attacking of the recruitment mechanism of ISIS. It is a strategy that involves enlisting the support of our partners in the region and within the Islamic world to combat the perversion of their faith that is used to recruit people to this jihad. It is a strategy that is also military in character, that employs our air assets, that seeks to train and assist Iraqi forces. So we have a strategy. It is comprehensive, and it is tough.

While I recognize that there is frustration that many of my colleagues have that our strategy has thus far not borne more success—and I share that frustration—I have yet to hear any of my colleagues offer an alternative. It is one thing to bash the administration because you don't like the strategy; it is another to ignore the fact that we have a strategy or to propose improvements to it.

But the subject matter of this amendment is whether the top intelligence official in the country should be charged with the responsibility of developing the policy to defeat ISIS, and I think it is rather his responsibility to make sure that the policymakers in Congress and the administration have the very best intelligence to inform those decisions.

We see, frankly, this misunderstanding of the role of the intelligence community many times even in our committee when committee members will ask witnesses from the intelligence community to state policy positions on how they think certain policies should be implemented when that is really not their responsibility.

Here, much as I concur with the need to perfect our strategy, improve our strategy, and the execution of that strategy, I don't believe that this is something that we should lay at the feet of the Director of National Intelligence.

I urge a ''no'' vote on the amendment.

I yield back the balance of my time.

□ 1600

Mr. POE of Texas. I don't have anything to say, believe it or not, Mr. Chairman, so I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. POE).

The amendment was agreed to.

Mr. NUNES. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. POE of Texas) having assumed the chair, Mr. BISHOP of Utah, Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 2596) to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, had come to no resolution thereon.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the chair.

Accordingly (at 4 o'clock and 2 minutes p.m.), the House stood in recess.

□ 1700

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. WESTMORELAND) at 5 p.m.

INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEAR 2016

The SPEAKER pro tempore. Pursuant to House Resolution 315 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 2596.

Will the gentleman from Texas (Mr. POE) kindly take the chair.

□ 1701

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 2596) to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, with Mr. POE of Texas (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose earlier today, amendment No. 16 printed in House Report 114–155 offered by the gentleman from Texas (Mr. POE) had been disposed of.

AMENDMENT NO. 6 OFFERED BY MR. SCHIFF

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, the unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. SCHIFF) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 176, noes 246, not voting 11, as follows:

[Roll No. 367]

AYES—176

Adams	Doyle, Michael F.	Levin
Amash	Duckworth	Lewis
Ashford	Duncan (TN)	Lieu, Ted
Bass	Edwards	Loebsack
Beatty	Ellison	Lofgren
Becerra	Engel	Lowenthal
Bera	Eshoo	Lowey
Beyer	Esty	Lujan Grisham (NM)
Bishop (GA)	Farr	Luján, Ben Ray (NM)
Blumenauer	Foster	Lynch
Bonamici	Frankel (FL)	Maloney, Carolyn
Brady (PA)	Fudge	Massie
Brown (FL)	Gabbard	Matsui
Bustos	Gallego	McCollum
Butterfield	Garamendi	McDermott
Capps	Grayson	McGovern
Capuano	Green, Al	McNerney
Cárdenas	Grijalva	Meeks
Carney	Gutiérrez	Meng
Carson (IN)	Hahn	Moore
Cartwright	Hastings	Moulton
Castor (FL)	Heck (WA)	Murphy (FL)
Castro (TX)	Higgins	Nadler
Chu, Judy	Himes	Napolitano
Cicilline	Hinojosa	Neal
Clark (MA)	Honda	Nolan
Clarke (NY)	Hoyer	Norcross
Clay	Huffman	O'Rourke
Cleaver	Israel	Pallone
Clyburn	Jackson Lee	Pascrell
Cohen	Jeffries	Payne
Connolly	Johnson (GA)	Pelosi
Conyers	Johnson, E. B.	Perlmutter
Cooper	Jones	Peters
Costa	Kaptur	Peterson
Courtney	Keating	Pingree
Crowley	Kelly (IL)	Pocan
Cummings	Kennedy	Polis
Davis (CA)	Kildee	Price (NC)
Davis, Danny	Kilmer	Quigley
DeFazio	Kind	Rangel
DeGette	Kuster	Rice (NY)
Delaney	Langevin	Richmond
DeLauro	Larsen (WA)	Roybal-Allard
DelBene	Larson (CT)	Rush
Deutch	Lawrence	Ryan (OH)
Dingell	Lee	Sánchez, Linda T.
Doggett		

Ryan (OH)
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Wilson (FL)
Yarmuth

NOES—246

Abraham
Aderholt
Aguilar
Allen
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Gene
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
Lipinski
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Maloney, Sean
Marchant
Marino
McCarthy
McCaul
McClintock
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Ruiz
Ruppersberger
Russell
Ryan (WI)
Salmon
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—11

Boyle, Brendan F.
Byrne
DeSaulnier
Fattah
Griffith
Kelly (MS)
McHenry
Sanchez, Loretta
Sessions
Sewell (AL)
Welch

□ 1730

Mrs. NOEM, Messrs. POMPEO, WITTMAN, JOYCE, and DESANTIS changed their vote from ''aye'' to ''no.''

Mr. BEYER, Ms. MCCOLLUM, Messrs. COHEN and MASSIE changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

The Acting CHAIR. The question is on the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The Acting CHAIR. Under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. COLLINS of Georgia) having assumed the chair, Mr. POE of Texas, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 2596) to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, and for other purposes, and, pursuant to House Resolution 315, he reported the bill back to the House with an amendment adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

Is a separate vote demanded on any amendment to the amendment reported from the Committee of the Whole?

If not, the question is on the amendment in the nature of a substitute, as amended.

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mrs. DINGELL. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentlewoman opposed to the bill?

Mrs. DINGELL. I am opposed to it in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mrs. Dingell moves to recommit the bill H.R. 2596 to the Select Committee on Intelligence (Permanent Select) with instructions to report the same back to the House forthwith, with the following amendment:

Page 29, after line 11, insert the following:

SEC. 317. PROTECTING UNITED STATES PERSONS WHO TRAVEL.

To maximize the security of United States civilian aviation, the Director of National Intelligence shall identify and share with all appropriate Federal departments and agencies, including the Transportation Security Administration—

(1) all information on new and constantly changing threats used by terrorists to evade airport screening operations; and

(2) updated terrorist watch list information for the purpose of properly vetting employees at commercial airports.

SEC. 318. PROTECTING PRIVATE PERSONAL INFORMATION FROM CYBER ATTACKS BY CHINA, RUSSIA, AND OTHER STATE-SPONSORED COMPUTER HACKERS.

The Director of National Intelligence, in coordination with the heads of each element of the intelligence community, shall prioritize efforts and dedicate sufficient resources to uncover and to foil attempts to steal the private personal information of United States persons, including Social Security numbers, dates of birth, employment information, and health records, insofar as—

(1) up to 4,000,000 records of Federal employees under the control of the Office of Personnel Management were stolen;

(2) the information of 80,000,000 Americans was compromised by the attacks on Anthem Health Insurance and CareFirst BlueCross BlueShield;

(3) the health records of more than 29,000,000 Americans were compromised in data breaches between 2010 and 2013; and

(4) the personnel records of millions of Federal employees were compromised by a series of recently discovered attacks against the Office of Personnel Management, including records related to the background investigations of current, former, and prospective Federal employees.

Mrs. DINGELL (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

The SPEAKER pro tempore. The gentlewoman from Michigan is recognized for 5 minutes.

Mrs. DINGELL. Mr. Speaker, this is the final amendment to the bill, which will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage, as amended.

Mr. Speaker, it is very timely that we are considering the intelligence authorization bill today, as there have been several troubling incidents in the last few weeks that require an immediate response by the Congress.

I know that Members on both sides of the aisle care deeply about airport security and cybersecurity, and we agree that Congress must do everything possible to keep the American people safe.

Last week, we learned that there were 73 people employed at airports across the country that should have been disqualified for employment because they are on a terrorist watch list. The American people deserve the highest level of security at our airports, and, quite frankly, I believe for all of us the status quo is unacceptable.

While it is easy for us to blame the TSA for this lapse in security, it is shocking that the TSA does not have access and that the current policy does not authorize them to have access to the information that they need so that

they can keep us safe, nor do other appropriate agencies.

As much as we agree that reforms are needed at TSA, we should all agree that they should have all the information they need to do their jobs. It is critical that our intelligence and security agencies are sharing information with each other because they have the same mission—keeping the American people safe.

This motion to recommit simply states that the Director of National Intelligence must provide all information on new and changing terrorist threats and the updated terrorist watch list information to TSA and to anybody else in the government that needs to have it.

In addition, to improve information sharing, I think everybody in this Chamber knows that we must address cybersecurity. Cyber attacks are becoming a routine event in the United States today, and it demands an immediate response and investigation. Americans deserve the peace of mind in knowing that their personal information is secure and not vulnerable to hacking by cyber criminals, yet there is a growing list of recent incidents that continues to put the privacy of everyday Americans, our constituents, at risk.

The recent breach of over 4 million records of Federal employees at the Office of Personnel Management and a hack of 80 million records at Anthem Health Insurance and CareFirst BlueCross BlueShield are just a few of the prominent examples of this growing threat. And who is paying the price? Working families.

For each cyber attack that you read about in the newspapers, there are many more that are going unreported or, worse, undetected. In fact, some security experts are concerned that China is now building a massive database with the personal information of many, many American citizens.

Furthermore, American companies are increasingly becoming targets of cyber attacks. With a recent report estimating that this is costing our economy more than $445 billion, we simply cannot wait any longer to protect the privacy of everyday Americans from hackers and cyber criminals in Russia and China.

This motion to recommit simply requires the Director of National Intelligence to prioritize efforts to uncover and foil attempts to steal the private, personal information of Americans. This is the least we can do to respond to the attacks on the privacy of the American people. Let's show the American people that Congress is listening.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. NUNES. Mr. Speaker, I rise to oppose the motion.

The SPEAKER pro tempore. The gentleman from California is recognized for 5 minutes.

Mr. NUNES. Mr. Speaker, this motion to recommit is nothing more than a poison pill designed to destroy the hard work that has gone into crafting this legislation.

This bill already does exactly what the motion to recommit proposes. It helps the Federal Government, including the patriotic men and women of our intelligence community, address the critical national security issues facing this country. As anyone who worked on it in the committee or took the time to come down and read the annex knows, this bill already funds intelligence community personnel who protect our networks.

While we stand here, the intelligence community is wrestling with some of the greatest national security threats in our country's history. I urge my colleagues to vote ''no'' on the motion to recommit and ''yes'' on final passage.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mrs. DINGELL. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 5-minute vote on the motion to recommit will be followed by a 5-minute vote on the passage of the bill, if ordered.

The vote was taken by electronic device, and there were—ayes 183, noes 240, not voting 10, as follows:

[Roll No. 368]

AYES—183

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—240

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg

Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—10

Byrne
Cicilline
Fattah
Gibson
Kelly (MS)
McGovern
McHenry
Reed
Sanchez, Loretta
Sewell (AL)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1746

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. SCHIFF. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 247, noes 178, not voting 8, as follows:

[Roll No. 369]

AYES—247

Abraham
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bera
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clay
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cooper
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Rodney
Delaney
Denham
Dent
DeSantis
Diaz-Balart
Dold
Donovan
Duckworth
Duffy
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gibbs
Goodlatte
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Joyce
Katko
Keating
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
LaMalfa
Lamborn
Lance
Langevin
Latta
Lipinski
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lujan Grisham (NM)
MacArthur
Maloney, Sean
Marchant
Marino
McCarthy
McCaul
McClintock
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mullin
Murphy (FL)
Murphy (PA)
Neugebauer
Newhouse
Noem
Norcross
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Peters
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Ruiz
Ruppersberger
Russell
Ryan (WI)
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Veasey
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—178

Adams
Amash
Bass
Beatty
Becerra
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
DeSaulnier
DesJarlais
Deutch
Dingell
Doggett
Doyle, Michael F.
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibson
Gohmert
Gosar
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Gutiérrez
Hahn
Harris
Hastings
Higgins
Himes
Hinojosa
Honda
Hoyer
Huelskamp
Huffman
Israel
Issa
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Jordan
Kaptur
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Labrador
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lummis
Lynch
Maloney, Carolyn
Massie
Matsui
McCollum
McDermott
McNerney
Meeks
Meng
Mooney (WV)
Moore
Moulton
Mulvaney
Nadler
Napolitano
Neal
Nolan
Nugent
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Perry
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Rush
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Yoho

NOT VOTING—8

Aderholt
Byrne
Fattah
Kelly (MS)
McGovern
McHenry
Sanchez, Loretta
Sewell (AL)

□ 1753

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Ms. SEWELL of Alabama. Madam Speaker, during the votes today I was inescapably detained and away handling important matters related to my District and the State of Alabama.

If I had been present, I would have voted: "no" on H. Res. 315; "no" on the Schiff/Smith (WA) Amendment to H.R. 2596; "yes" on the Democratic Motion to Recommit H.R. 2596; and "no" on final passage of H.R. 2596.

AUTHORIZING THE CLERK TO MAKE CORRECTIONS IN ENGROSSMENT OF H.R. 2596, INTELLIGENCE AUTHORIZATION ACT FOR FISCAL YEAR 2016

Mr. NUNES. Madam Speaker, I ask unanimous consent that the Clerk be authorized to make technical corrections in the engrossment of H.R. 2596, to correct section numbers, punctuation, and cross-references, and to make such other technical and conforming changes as may be necessary to accurately reflect the actions of the House, including changing ''line 17'' to ''line 11'' in the instruction in amendment No. 3 by the gentleman from New York (Mr. CROWLEY).

The SPEAKER pro tempore (Mrs. MIMI WALTERS of California). Is there objection to the request of the gentleman from California?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 1942

Mr. GUINTA. Madam Speaker, I ask unanimous consent that the gentleman from Maryland (Mr. HARRIS) be removed as a cosponsor from H.R. 1942.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Hampshire?

There was no objection.

HONORING TUCSON FIRE DEPARTMENT CAPTAIN DIANA BENSON

(Ms. MCSALLY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MCSALLY. Madam Speaker, I rise today to recognize Tucson Fire Department Captain Diana Benson for her many years of service to the community upon her upcoming retirement.

Captain Benson was one of the first women in the Tucson Fire Department, the first career female firefighter, and the first female lead training officer. During her 25 years in the department, she has been a pioneer and role model.

Captain Benson served on the technical rescue team, a highly specialized crew responsible for conducting swift water, extrication, and rope rescues. She has been a reliable leader in the department who initiated numerous peer fitness programs and also served as a member of the Tucson Fire Honor Guard. She has been highly involved in Camp Fury and the cadet program, serving as a mentor to Tucson youth and opening doors to nontraditional careers, such as firefighting, for girls.

No doubt, Captain Benson's positive impact on the department and legacy of excellence lasting over two decades will be lasting. I wish her all the best in her upcoming retirement.

OFFICE OF PERSONNEL MANAGEMENT DATA BREACH

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Madam Speaker, in the past 2 weeks, we have learned that the data millions of Americans entrusted to the Office of Personnel Management have been taken as a result of a cybersecurity breach.

It did not have to happen this way. Since 2007, OPM's inspector general has documented repeated deficiencies in information security practices. Yet OPM's response has been glacial, and its systems remain antiquated. It was only after a security breach last year that OPM finally, in its 2016 budget request, asked for additional funds for the Office of Chief Information Officer. Well, it is about time.

The question we need to ask, though, is: Why did OPM underinvest in cybersecurity before that breach happened? While I would hope that we find a definitive answer during oversight hearings, there is one thing that certainly contributed to the problem. There was no one in charge of cybersecurity with both policy and budgetary authorities to compel action.

Even as we rely on agencies to be primarily responsible for protecting their networks, we lack a Federal cyber coordinator with budgetary authority to review agency spending and security plans. My Executive Cyberspace Coordination Act would remedy this by providing for a Senate-confirmed independent officer with the power to compel agency action.

Let's get this done.

CONGRATS TO CHANHASSEN HIGH SCHOOL BASEBALL

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Madam Speaker, I rise today to congratulate the Chanhassen High School baseball team on winning the Minnesota State title last week with a 2–0 championship game victory.

The Storm rode the arm of Jack Schnettler in the finals as the senior tossed a complete game shutout to clinch the second State athletic title in the school's short history.

Chanhassen's two runs came courtesy of a Ty Denzer single in the third inning. In addition, fine work with the glove behind the Storm ace helped hold their opponents from Lakeville North at bay.

Madam Speaker, baseball is a game of skill and mental toughness, and it is clear that the players from Chanhassen have both. In addition to the time spent on the practice field, student athletes have to balance their work in the classroom and any family responsibilities they have as well. Their dedication and commitment is commendable.

Congratulations to the Chanhassen baseball team on their State title.

□ 1800

WORLD WAR II HONOR FLIGHT

(Ms. MICHELLE LUJAN GRISHAM of New Mexico asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Madam Speaker, I rise to acknowledge and honor a group of World War II veterans from New Mexico who visited Washington, D.C., last week. They came to visit the memorials, their memorials, that are dedicated to honor their service and sacrifices.

We have about 5,000 World War II veterans in New Mexico, and I appreciate the efforts of the Williamson Foundation in supporting the veterans by organizing this week's Honor Flight.

While I am sure each veteran appreciated the opportunity to visit the memorials, I know many of them were just as impressed with the gratitude expressed by their fellow New Mexicans for their service. Huge crowds greeted them at the airport in Albuquerque. One veteran said he had never received a thank you before this trip.

New Mexicans played pivotal roles and sacrificed a lot during the war in Europe, north Africa, and the Pacific.

We must never forget what these and all veterans have done for our great Nation. I thank them for their service.

ACKNOWLEDGING THIRD ANNIVERSARY OF 2012 DEFERRED ACTION FOR CHILDHOOD ARRIVALS PROGRAM

(Mr. VEASEY asked and was given permission to address the House for 1 minute.)

Mr. VEASEY. Madam Speaker, I rise today to acknowledge the third anniversary of President Obama's 2012 Deferred Action for Childhood Arrivals program, commonly known as DACA.

While the Nation desperately waits for House Republicans to move forward on immigration reform, the DACA program has provided temporary relief for hundreds of thousands of families to continue their studies and contribute to our economy. Since its enactment, more than 750,000 young people, including 88,000 Texans, have successfully applied for DACA.

Although I am disappointed with the recent court actions delaying President Obama's expansion of the DACA program, I remain hopeful that millions more immigrant families will one day be able to fully contribute to the prosperity of our country.

That is why, in my home district in the Dallas-Fort Worth metroplex, I will host a DACA-DAPA informational forum with Congressman LUIS GUTIÉRREZ on July 18 to help TX–33 residents prepare for immigration relief.

While President Obama's efforts to expand DACA and initiate DAPA programs are temporarily stalled in the courts, I am committed to fighting for immigrant families nationwide, so they can come out of the shadows and live the American Dream.

BETTER FUNDING AND SUPPORT FOR ALZHEIMER'S RESEARCH

(Mrs. LAWRENCE asked and was given permission to address the House for 1 minute.)

Mrs. LAWRENCE. Madam Speaker, I stand here today to join my colleagues in a bipartisan call for action for better funding and support for Alzheimer's research. The Alzheimer's Association of Greater Michigan, which is headquartered in my district, the 14th Congressional District of Michigan, supports more than 140,000 people and their families.

According to the Banner Alzheimer Institute, those numbers are going to increase unless treatments or cures are developed. The institute estimates the number of people 65 and older with Alzheimer's will nearly triple to 13.8 million, and the U.S. healthcare costs for Alzheimer's will skyrocket to $1.1 trillion per year, with more than $700 million coming out of Medicare and Medicaid.

It is time to treat Alzheimer's as the healthcare disaster that it has become. It is time to take this epidemic seriously. It is time to guard against the threat it poses to our families, our districts, healthcare system, and our Nation.

CHICAGO BLACKHAWKS STANLEY CUP DYNASTY

(Mr. LIPINSKI asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LIPINSKI. Madam Speaker, last night, I wore my number 35 Tony Esposito Chicago Blackhawks jersey from the 1970s, and I watched what I could never have imagined in those days, a Chicago Blackhawks Stanley

Cup dynasty; but thanks to the leadership of owner, Rocky Wirtz, and an amazing team put together by Stan Bowman and led by Coach Q, the Hawks won their third Stanley Cup in 6 years.

The core of Toews, Keith, Kane, Hossa, Seabrook, Hjalmarsson, and Sharp have been there for all three. This year, Duncan Keith was awarded the Conn Smythe MVP trophy, but this was truly a team effort.

Chicagoland thanks everyone in the organization for once again making us proud and bringing the Stanley Cup back to Chicago.

I can't wait for the parade. I can't wait to see the Stanley Cup again.

CONGRESS AND AMERICA OPPOSE FAST TRACK

(Ms. KAPTUR asked and was given permission to address the House for 1 minute.)

Ms. KAPTUR. Madam Speaker, this afternoon, House Republican leaders used a trick to pass a new rule to revote the job-outsourcing, unfair, fast-track Trans-Pacific Partnership trade deal. They buried the revote in the intelligence authorization.

Well, the Republican leadership wants to buy itself another month to make deals, trading favors and funding pet projects in this district or that district, in exchange for a vote against the best interests of the American people, jobs in America with good wages.

Imagine Congress fast-tracking a bill to repair our roads, bridges, and harbors all across this country. Imagine a bill to be fast-tracked to renew the powers of the Export-Import Bank that actually increases exports and jobs in this country.

Instead, fast track is being rammed through Congress with House Republican leaders bending the rules and breaking regular order. Intelligence authorization bills should not be another name for secret fast-track life support.

No more delays. It is overtime for Congress to move on from fast track to a real fair trade deal that creates jobs and good wages in America for a change.

A TALE OF TWO ECONOMIES

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Colorado (Mr. TIPTON) is recognized for 60 minutes as the designee of the majority leader.

Mr. TIPTON. Madam Speaker, across our country, we are seeing a tale of two economies, to where there are pockets of prosperity, but unfortunately, through many of our rural communities, we continue to see challenges.

For the first time since we have been keeping records, we are seeing more small businesses shut down than there are now business startups. Businesses across this country are suffering under the burden of $2 trillion—$2 trillion—in regulatory costs.

Why is this important? It is because we are seeing now the cost of a loaf of bread, the clothes that we buy for our children to be able to go back to school, and that gallon of milk costs more via taxation by regulation that is impacting our ability to create jobs.

When we move into my district in Colorado, composed of rural communities, 29 counties of Colorado's 64, 54,000 miles of the State of Colorado, many of our counties are still suffering in double-digit unemployment when it comes down to the real number.

Two counties that I would like to be able to address specifically this evening are being specifically challenged, Moffat County and Rio Blanco County, on the west slope of Colorado, one of the most beautiful places that anyone can visit.

Residing there and creating jobs is something called the Colowyo Mine, a coal mine. We encourage people to be able to come and see a coal mine with good technology, providing affordable electricity, providing jobs, and providing also clear blue skies with that technology. Those are currently being challenged.

There was a court ruling recently that came out, one that was in response to a suit that was brought by an extreme environmental group that challenged the 2007 issuance of the Office of Surface Mining permit for the Colowyo Mine to be able to operate.

That is challenging now 200 jobs because the court has ruled that a new NEPA process, a supplemental process, must be performed within 120 days, an extremely short period of time.

Those 200 families, 200 families that are relying on that job to be able to provide for their children, to be able to support that community, are now feeling threatened by policies not only in terms of the NEPA process, but now by the ruling of the Court as well in response to a suit filed by this extreme environmental group.

Here is the real challenge that we face. We need the Secretary of the Interior to respond. These families' jobs cannot wait. Being able to put food on the table for their children cannot wait for this process to be able to play out.

We encourage the Secretary to deploy all necessary resources to be able to respond to that emergency NEPA process, to be able to get it done in that 120-day period of time, or to be able to also look at the propriety of challenging that ruling by going in and filing an appeal.

Are jobs and the economy important? They certainly are in my district. Those families that are relying on good-paying coal jobs, families that love where they live, love their environment, and support their community are now seeing their livelihoods, their future being challenged.

We encourage the Secretary, on behalf of American families, families in my district that are struggling to be able to succeed or to just be able to provide for themselves, to be able to respond in a timely manner, to be able to address this so that we can secure those jobs and secure affordable electricity as well.

Coal is often maligned, but we see that it can be done right—Craig, Colorado, blue skies and a coal-fired power plant. There is an opportunity for us to be able to create a win-win.

If you care about senior citizens that are on fixed incomes, if you care about young families right now that are struggling to be able to pay the bills and to be able to provide for their young children, we are seeing that taxation via regulation coming out of policy.

I think it is very important that we preserve the jobs. Let's work with all of the above. That has been embraced in my district. We have seen the opportunity to be able to create hydroelectric power, wind, solar, geothermal, also to responsibly develop oil, gas, oil shale, and coal.

Right now, the problem for the people in the Third District, specifically in Rio Blanco and Moffat Counties, is urgent. They are families that I have talked to. I have looked in their eyes. They will do it responsibly. They want to be able to do it well, not only for the community, but for their families as well.

It is very important that we are also mindful that those jobs impact others. These are the families that support the local grocery store, the local hardware store; these are the families that provide for the health of that community.

Madam Speaker, we would call upon the Secretary of the Interior to respond to American families whose jobs are currently being threatened, deploy the necessary resources to be able to carry out that supplemental NEPA, get the job done in time to protect those jobs.

If that isn't possible, then go ahead and explore that proprietary notion of filing an appeal, to make sure that we get a stay and keep those jobs moving, because the message that my folks out of Craig, out of Rio Blanco County want to be able to communicate is their bills won't stop. Their children's needs will not be met unless we see a response out of the Department of the Interior to be able to stand up for good-paying coal jobs in western Colorado.

Madam Speaker, I yield back the balance of my time.

ALZHEIMER'S AND BRAIN AWARENESS MONTH

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Madam Speaker, for the next hour, we will be talking about an issue that really confronts every American family, an issue that

has brought devastation, fear, and sadness to virtually every family in this Nation.

We are going to talk about dementia and Alzheimer's. We are going to talk about the way in which it literally tears families apart as their loved one's mind, recollections, and ability to handle their own affairs seems to dissipate.

□ 1815

This is an issue that currently confronts around 5 million Americans and their families. This is an issue that will grow exponentially over the next 25 to 30 years to the point where maybe 16 million American families are going to be affected by it.

It is also an issue that we can deal with. It is an issue that we can see the cost. Let me put up this chart here, and we will talk about the cost of Alzheimer's quickly.

It is a crisis that is growing rapidly, and it is resulting in extraordinary cost increases. If you look at 2015, on Medicare and Medicaid programs, the Federal Government will spend $153 billion on Alzheimer's. In 2020, it will grow to $182 billion. And then it is anticipated—as one of our colleagues spoke during a 1-minute speech—that by 2050, it will grow to over $1 trillion. This is an issue for the Federal Government. It is an issue for every family.

Let me put up another little chart here that really displays what an investment by the American people can do. If you take a look at the reasons why people die most commonly in the United States—breast cancer, prostate cancer, heart disease, stroke, HIV—you will notice that in every one of these, we have seen a decline in the mortality from these illnesses.

Breast cancer declining just marginally. Prostate cancer, a significant decline of around 11 percent. Heart disease declined by 14 percent; stroke by 21; and HIV, while still prevalent and still common, the death rate is down by more than 50 percent.

This one over here is Alzheimer's disease; a 71 percent increase in the number of deaths due to Alzheimer's.

My mother-in-law is in this statistic. She spent the last 2 years of her life living with my wife, Patty, and I in our home. We cared for her at night. We, fortunately, were able to have someone come in to help us during the day. And that is really the story of most Alzheimer's now. You are either in a nursing home or you are cared for in the home.

So among those 5 million out there, there are families, like mine, that are caring as best they can in a very difficult situation. Ours, fortunately, was not so difficult. But, nonetheless, after two-plus years, my mother-in-law did die.

So what can we do about it?

I want to put up one more chart here, and then I want to turn to my colleagues. If you will remember on that chart I just put up, death rates are declining for cancer. There is a reason. And the reason is the annual expenditure for cancer research has been just under $5.5 billion for the last few years. For HIV/AIDS, nearly $3 billion of research annually. Cardiovascular, heart disease, over $2 billion.

Alzheimer's, while the death rate climbs, we are spending just over $566 million—not billion, million. So we shouldn't be surprised when we see this: declines in the cancer rates, deaths from cancer, stroke, heart disease, HIV. And then Alzheimer's.

Mr. Speaker, $1 trillion will be spent in just 25 years on dealing with Alzheimer's, and some 16 million Americans will have that illness.

Now there is good news. The good news just happened today, and I want to commend my Republican colleague TOM COLE from Oklahoma, chairman of the Appropriations Health and Human Services Subcommittee, who moved to increase Alzheimer's research from $566 million to almost $900 million.

Go for it, TOM. You are the chairman of that subcommittee, and you are doing the right thing. You are doing the right thing by 5 million Americans who suffer from Alzheimer's today, and you are doing the right thing for their families.

And I think House has the opportunity also to stand with TOM COLE and to do the right thing by Americans, and that is, increase this research funding.

There are breakthroughs that are coming. If you read the articles, if you read the scientific journals, we are coming to an understanding of this very, very difficult disease for which there is no early detection, for which there is no cure, and for which there is only one exit, and that is death. So we can deal with this.

The 535 of us, the Representatives of those 5 million Americans with Alzheimer's and their families, we can do something. We can increase the funding for research.

Tonight I am joined by several of my colleagues.

I yield to the gentlewoman from California (Ms. MAXINE WATERS) who carried legislation on this for years. She has been the co-chair of the Alzheimer's Caucus. If she will join us and share with us her work and what is happening from her perspective.

Ms. MAXINE WATERS of California. Thank you so very much.

Madam Speaker, I would like to thank my friend and colleague from California, Congressman JOHN GARAMENDI, for yielding, and I commend him for organizing this Special Order on Alzheimer's disease in honor of the month of June, which is Alzheimer's and Brain Awareness Month.

As the co-chair of the Congressional Task Force on Alzheimer's Disease, I know how devastating this disease can be for our patients, families, and caregivers. I am proud to lead the task force along with my co-chairs, Congressman CHRIS SMITH, Congressman MICHAEL BURGESS, and Congressman CHAKA FATTAH.

Alzheimer's is a tragic disease which has no effective treatment, no means of prevention, and no method for slowing progression of the disease. According to the Centers for Disease Control and Prevention, 5 million Americans were living with Alzheimer's disease in 2013. This number is expected to almost triple to 14 million by the year 2050.

The bipartisan supported National Plan to Address Alzheimer's Disease calls for a cure or an effective treatment for Alzheimer's by the year 2025. Reaching this goal will require a significant increase in Federal funding for Alzheimer's research.

I, therefore, introduced H.R. 237, a bipartisan resolution which calls for a significant increase in Alzheimer's research funding and declares that achieving the primary goal of the national plan—to prevent and effectively treat Alzheimer's by 2025—is an urgent national priority. A similar resolution was introduced in the Senate by Senator SUSAN COLLINS of Maine.

I also circulated a letter to the House Appropriations Labor, Health and Human Services, Education, and Related Agencies Subcommittee requesting robust funding for Alzheimer's research at the National Institutes of Health in the coming fiscal year. The letter was signed by a bipartisan group of 63 Members of Congress. I was pleased to learn that the subcommittee recently proposed a $300 million increase for Alzheimer's research.

As we pursue the goals of a cure for Alzheimer's, we must also do everything we can to assist the patients, families, and caregivers who are living with Alzheimer's every day. That is why I am introducing Alzheimer's Action Now, a set of bills that together will help Alzheimer's patients and their families; promote public awareness; and encourage voluntary contributions to research efforts. The various bills in the Alzheimer's Action Now address different challenges presented by Alzheimer's disease.

The Alzheimer's Caregiver Support Act authorizes grants to public and nonprofit organizations to expand training and support services for families and caregivers of Alzheimer's patients. With the majority of Alzheimer's patients living at home, under the care of family and friends, it is important that we ensure these caregivers have access to the training and resources they need to provide effective, compassionate care.

The Missing Alzheimer's Disease Patient Alert Program Reauthorization Act reauthorizes a Department of Justice program. It helps local communities and law enforcement officials quickly identify persons with Alzheimer's disease who wander away from their homes and reunite them with their families. This program saves law enforcement officials valuable time and allows them to focus on other security concerns. It also reduces injuries and deaths among Alzheimer's patients, and it brings peace of mind to their families.

Finally, the Alzheimer's Disease Semipostal Stamp Act requires the U.S. Postal Service to issue and sell a semipostal stamp, with the proceeds helping to fund Alzheimer's research at NIH. This bill will raise public awareness and encourage concerned individuals to get involved and to make voluntary contributions to Alzheimer's research efforts. The bill is modeled on the popular and successful Breast Cancer Research semipostal stamp.

Our Nation is at a crucial and critical crossroads. The situation requires decisive action to search for a cure and protect the millions of Americans currently living with Alzheimer's disease. Together, we must take every possible action to improve treatments for Alzheimer's patients, support caregivers, raise public awareness, and invest in research to find a cure for this dreadful disease.

Once again, I can't say enough to thank JOHN GARAMENDI, my colleague from California, with whom I have worked for many, many years, for, again, organizing yet another night's Special Order to bring attention to Alzheimer's disease.

Mr. GARAMENDI. I thank the gentlewoman from California who has been a leader in this disease and dealing with the problems of it for many, many years. And your work Ms. WATERS is paying off. The work that you have done organizing us, Members of Congress, to petition the subcommittee paid off—a 50 percent increase, a 50 percent increase, and I think it has got a good chance of staying in. This is really really good news and the rest of the legislation piece by piece we are going to get at this.

I would like now to turn the time over to our colleague from New York BRIAN HIGGINS. We have spoken on this issue before. Mr. HIGGINS, thank you so very much. If you will share your thoughts with us on this disease and what we might do to deal with it.

Mr. HIGGINS. I thank the gentleman from California and thank you for your leadership on this and so many issues that are of critical importance to our Nation and our future.

June is Alzheimer's Brain and Awareness month. It is the sixth-leading cause of death in this country. Over 5.3 million Americans are afflicted with Alzheimer's. By 2050, this number is expected to increase to 16 million. In my western New York community alone, 55,000 people have Alzheimer's or related dementia, and 165,000 people in our community are impacted directly or indirectly. Alzheimer's will cost the Nation $226 billion this year. By the year 2050, these costs will rise to as high as $1.1 trillion. Last year, Congress passed a law, the Alzheimer's Accountability Act, which created a bypass budget for Alzheimer's research. This will allow the National Institutes of Health to prepare a budget that will reach the estimated goal of funding effective prevention and treatment for Alzheimer's by 2025.

This year, I introduced with my colleagues ROSA DELAURO and PETER KING the Accelerating Biomedical Research Act. Over the next 6 years, our legislation would provide an additional $50 billion in funding to the National Institutes of Health above what is currently budgeted. We also established the House NIH Caucus to rally Members to develop a plan to increase the purchasing power of NIH.

□ 1830

Mr. Speaker, Congress should also pass the HOPE for Alzheimer's Act, the Advancing Research for Neurological Diseases Act.

Mr. GARAMENDI, again, thank you for your leadership. We obviously, as a Congress, have a long way to go. The origins of Alzheimer's disease are unknown, but its ends are absolutely certain, and it ends in losing your cognitive ability, your dignity, and then it takes your life. It is time that Congress, in a bipartisan effort, provide robust funding to Alzheimer's research to end this terrible, terrible disease for future generations.

Mr. GARAMENDI. Mr. HIGGINS, thank you so very much. Your points are absolutely on target.

This little chart here points out much of what you and Ms. WATERS were talking about, and that is the extraordinary expense. This is 2015. And we expect to spend $153 billion of Federal tax money, Medicare and Medicaid, on treating Alzheimer's. Way over, that little tiny purple spot, is the $566 million of research. It would be a little bigger if we were able to get that 300, but it is still going to pale in comparison to this. This is 261 times more money spent on treatment, which ultimately just enables the passage of time and leads to death because there is no effective treatment today. That is what we are spending on caring for people.

That number down there, and the efforts and the bills that have been introduced and the Alzheimer's Foundation and others that are working on this have an opportunity to change this entire dynamic around because we can find the solution to this.

I would like now to turn to my colleague, as part of what we often do here, we call it the ''East-West Show,'' my colleague from the great State of New York, PAUL TONKO.

Mr. TONKO. Thank you, Representative GARAMENDI, for bringing us together in this very Special Order as we discuss the impact of Alzheimer's upon the quality of life not only of the individual living with the disease, but on family members and loved ones that surround that individual. So much of the work that we do in this House, so much of the work done on the Hill here in Washington, needs to be guided by the moral compass.

Our budget priorities should reflect who we are as a people and the compassion that is required as we see these numbers continually grow—balloon—in terms of an impact on the budget. And that should challenge us to do all that we can to be not only compassionate, but to be effective when it comes to the fiscal impact of what is happening to far too many families across this country.

It is a known fact now that Alzheimer's is the most expensive disease in America. That should strike home. That should call upon our hearts and our minds to respond with dignity and with effectiveness to the given issue at hand. Our efforts for Alzheimer's need to be enhanced. There is no mistaking it. This is the most expensive disease in America. It is impacting the budget here in Washington. Our national numbers are a challenge, and we need to address the budget not only in sound strategy for the present moment, but with preventative elements brought to bear.

So when we look at the most recent data—and those data are very telling—for 2014, the calendar year of 2014, the numbers are there, and it will remind us that $214 billion was the need, the drawdown, for speaking to Alzheimer's, responding to the Alzheimer's situation. That is a large number that is only projected to grow exponentially. As more and more baby boomers ascend the age ladder, climb that ladder, we should only anticipate that doing what we are doing is not going to be enough, that research needs to take hold here.

We have the intellectual capacity as a nation. We have resources at our fingertips, and the priority here for providing the preventative elements of research are important. The President has offered an initiative with the study of the mind, the brain, that can provide several opportunities. It can release the information, the documentation, that is required to move forward to find a cure for this ever-growing disease.

Look at the stats. Representative GARAMENDI, when we look at the research moneys, for every $100 invested in those individuals and families that are impacted by Alzheimer's, 25 cents is spent on research—for every $100, 25 cents. That is a very minute amount of investment, investment that has an anticipated lucrative return, paying dividends for all of us to address a cure, a hope for individuals. This country requires our government to respond in full fashion so that public-private partnerships in research institutes like the NIH, the National Institutes of Health, are funded appropriately. Accordingly, with the data that have been assembled, knowing what needs to be done, we should go forward with those efforts.

Now, I am reminded, Representative GARAMENDI, routinely by families—and many women will draw that perspective for me, that of those who are living with Alzheimer's in this country, two-thirds—two-thirds—of the individuals living with Alzheimer's, or 3.2 million people, are women. This disease is

impacting women in a disproportionate measure.

It is extracting from us all sorts of voluntary efforts that are required. Volunteers are responding as unpaid caregivers. We know the stats. The data are compelling: 15.5 million volunteers, caregivers, providing unpaid services, unpaid care, equaling 17.7 billion hours. These are staggering numbers, 15.5 million providing 17.7 billion. That amasses to $220.2 billion in terms of services provided, unpaid services provided.

So it is not only costing the Federal Government money, projected to balloon heavily, but it is also extracting $220 billion worth of unpaid services that are provided to individuals by loved ones, by those concerned in their community, for the struggles that these individuals and their family members are facing. So this behooves us to do much better than we are doing.

We are a compassionate society. We are unique. We have opportunities galore. I know what can happen. I have talked to our team in my district. Beth and the team from Alzheimer's Association of Northeast New York, they have done a tremendous job. I see what they do for respite care and what they are doing for services with the Alzheimer's Cafe, where people gather and cluster. They are given music therapy. There is an enhanced quality of life. It is with dignity that we respond. But more needs to be done, and there has to be that element that is provided out there that is speaking to prevention, that is speaking to a cure.

So, Representative GARAMENDI, there is much to be done.

I was lead Democrat on the Alzheimer's Accountability Act, which responded to the planning requirements that were earlier set up statutorily in this country. That act, the Alzheimer's Accountability Act, that passed successfully in both Houses and was signed into law by the President, requires that a professional judgment budget be put together. As was stated earlier on the floor, until 2025, there needs to be this commitment made for research for Alzheimer's and related diseases.

But we furthered the quality of that legislation, of that statute, by requiring professionals to project the numbers that are needed. That is a very important element. Clinicians and professionals in the medical community will tell us, they will advise what that number ought to be. That is speaking with integrity, with the veracity that is required, with the dignity, and with the compassion that is so much required for the Alzheimer's community.

So again, I thank you, Representative GARAMENDI, for having that heart, for leading us in this Special Order so as to comprehend what we need to do here, to move that moral compass, to be there for those individuals, to be there for those unpaid caregivers, and to be there for the research community, but most importantly, to be there for the soul that is struggling with Alzheimer's or dementia-related diseases. We are at our best when we connect emotionally so that we can put together the programmatic response and the intellectual response that enable us to provide that light at the end of the tunnel which is so important and so meaningful to the families that endure.

I thank you, Representative GARAMENDI.

Mr. GARAMENDI. Mr. TONKO, for more than 4 years now, you and I have stood on the floor on Special Order hour to talk about Make It In America, about the manufacturing system and about the jobs that we need to build, transportation infrastructure, and your passion for those subjects was so obvious. Your passion and your determination to deal with Alzheimer's and to find a cure, to find an understanding of what it is and how it affects the brain, and then also to reach out to the families that are caring for their loved ones really exceeds and mirrors the passion that you have for the working men and women of this Nation. I thank you.

Mr. Speaker, I also want to thank the Alzheimer's Association. They organized a lobbying group through here very recently. They were wearing their purple ribbons, and they brought to us the stories, the individual stories that were of their families. I know that as I talked to my colleagues here on the floor and over in the Senate, I get the same thing from them: Yes, my mother, my aunt, my sister, my brother, they too have suffered from Alzheimer's, and they recently died, or they are in very serious condition.

So we find this illness touching every family. I have yet to find a family that I have talked to about Alzheimer's that didn't nod their head in understanding: Yes, we know what it is.

What Americans don't know is the information that you and my colleagues, MAXINE WATERS and BRIAN HIGGINS, brought to the floor today, and that is the facts, not only the impact that Alzheimer's has on the Federal budget—Medicare and Medicaid—the impact that it has on family budgets, on insurance, private insurance, but the impact that it has on families. You have made that clear.

I think that the work that has been done by Alzheimer's Association and related organizations—Medicare, Social Security, and support groups all across this Nation—is having an impact. When a budget for any specific program is increased by 50 percent in this era of sequestration, something has had an impact. Mr. COLE, as chairman of that, and Ms. WATERS, as the chairperson or the vice chair, co-chair of the Working Group on Alzheimer's, are having an impact.

We can find a solution here. We can understand. We can do the early diagnosis. It is pretty clear there are some breakthroughs that are occurring.

□ 1845

There are certain drugs out there that seem to work if you can intervene early in the process. What a change that would be. What a change that would be for all families.

This is not just an issue of Alzheimer's, this is an issue of the brain. We have got the U.S. military, the Department of Defense, doing significant research on brain injuries, brain trauma, and illnesses resulting from the wars—from traumatic brain syndrome and related.

So if we pool together and we actually put into the Defense Authorization Act a paragraph that said: Research done by the Department of Defense on the brain, brain injuries, a way in which the brain works or doesn't work, they need to take that research and couple it with research that is taking place on dementia, on other kinds of neurological diseases, including Alzheimer's, and if we can pool all of these various research programs together and get them to share the information to fertilize each other's research, I think we are going to succeed.

That 2025 goal I think is too far out there. I see we are on the cusp of a breakthrough. And if we can push all of the research and focus it and, like a dart, hit the center of the target, I think we are going to be successful.

Mr. TONKO, would you like to join in here?

Mr. TONKO. Absolutely.

Representative GARAMENDI, it only takes one visit, but there have been many visits that I have made to the centers, the day care center operations that are conducted for individuals and families who are living with Alzheimer's, and to witness and hear the hurt, the confusion, the pain that surrounds the individual. It is enough challenge to try and get this done in as quick a fashion as possible.

But if that doesn't move us, the economics on this. You know, we earlier talked about the $214 billion impact in 1 year—some of our most recent data. Well, that is 1 in every 5 Medicare dollars. How much are we willing to have that take over the Medicare expenditures before we come to our senses to say, let's do more in research, let's do a preventive response? Does it need to grow that much more? Does the drain on Medicare, does the reflection of Alzheimer's-related Medicare expenditures need to be that much greater to bring us to a response? The challenges are there, the data are there. We need to move accordingly.

Now, earlier, I had expressed that two-thirds of the people living with Alzheimer's, the 3.2 million people, happen to be women. Well, 60 percent of the unpaid caregivers happen to be women. So there needs to be a response here to enable people to be addressed with a sense of compassion, with dignity brought into the equation. It is absolutely essential.

And when we talk about those caregivers and the $220.2 billion that is the calculation for the volunteerism they offer as caregivers, of that community of caregivers, they have been worn

down physically. So the price tag for them is an additional $9.3 billion in terms of response to their physical health care needs. This is a drain on families, on loved ones. It is an undignified outcome for far too many Alzheimer's patients who require our support, who have earned the respect of this body and Congress moving to provide for research opportunities.

Now, one other effort that I am making now in the aftermath of the Alzheimer's Accountability Act, that victory being behind us now, I have now served as the lead Democrat on the HOPE for Alzheimer's Act, which would authorize Medicare investment in sound planning upon diagnosis of Alzheimer's so that individuals and their families who are so diagnosed can sit down and plan accordingly for their care, for their treatment, for their needs.

That is an important bit of quality that can be introduced for the individual and her or his family so that their life, already severely impacted by this outcome, can be as manageable as possible. And we are hopeful with some 183 cosponsors of a bipartisan nature who have come forward to say, Sign me up for the HOPE for Alzheimer's Act.

So isn't that what we are supposed to be? Aren't we those agents of hope? Do we walk away from this dilemma? Do we walk away from this need? Do we walk away from the struggle, the pain, the hurt, the confusion that people live with every waking hour of every day? Or do we respond in that all-American fashion and say, yeah, we have the intellectual capacity as a Nation; yes, we have the resources.

It is an order of prioritization. And that priority here needs to be a response, a full-fledged response, a compassionate response, a loving response coming from us as individuals and collectively as Congress to say, yes, we support these efforts that are required, that are possible. Do not deny the possibilities. Let us go forward and be those sound decisionmakers who understand that this issue, when addressed accordingly, with human compassion offered, with the humanization of this process, we are then offering a cost-effective outcome. A study of the brain initiative that the President has advanced should be supported.

These resources that are required for planning, for research, for services, for respite need to be funded accordingly. It is within our grasp, and it makes sense to do so.

So, Representative GARAMENDI, I thank you for leading us in this Special Order, which is absolutely key to public information exchange.

For those who may be viewing, I would suggest that you contact those of us who serve you in Washington and let us know that you want this to be a priority. Tell us you believe in the research capacity of this country. Tell us you want to humanize that response, more deeply respond to the individuals and families that are so impacted.

When we hit so many people, when we see the millions who are living with this disease, we can't escape that impact falling upon us. Neighbors, family members, friends who we know are living with this disease require our attention, require our responsiveness.

So I thank you for leading us in what is a very valuable discussion.

Mr. GARAMENDI. Mr. TONKO, thank you for your leadership. Thank you for rounding up 180-plus Members of this House. On any issue that is tough, but then having them sign on to a piece of legislation that would advance the care that individuals receive and the support that families need.

The cure for Alzheimer's, all of those pieces of legislation, which Ms. WATERS talked about, those are all pieces of the puzzle. And they deal with—I am going to end with just two charts, so it is really where I started. This is a different version of one of the charts that deals with the costs that we are talking about. These are the total cost in the system. If you take a look at it, 2015, you are talking about a quarter of a billion dollars, just under $226 billion, of which the great majority is Medicare and Medicaid, and then out-of-pocket and other payers, or the other insurance companies. It will rise each year until we get to 2050, which is not that far away. Thirty-five years out we will be well over $1 trillion, of which we will bust the bank, the Medicare.

There is a lot of discussion around here about the deficit. The real factors in the deficit are this health care issue. That is where we are going to find the budget deficit.

But we have already seen through the Affordable Care Act that the projected increases for Medicare have substantially reduced over the last 4 years as the Affordable Care Act is providing early diagnosis of heart disease, diabetes, other kinds of long-term illnesses that are really where most of the expense in Medicare and Medicaid occur. And if we can get a grip on Alzheimer's, if we can find a way of delaying the onset of it, we are going to save tens and, indeed, hundreds of billions of dollars over the passage of time.

And the next step is the cure. So they think, the researchers, think they can find a way of delaying the onset. As they do that, they will also find a way of dealing with the disease itself. Then this awesome and horrific expense will be reduced.

There is one other chart.

Mr. TONKO. Will the gentleman yield?

Mr. GARAMENDI. I yield to the gentleman from New York.

Mr. TONKO. That chart is very powerful. The trillions—with a T—will really balloon our budget, and really it is undoable. It gets to a level where it will exhaust, it will overwhelm other areas of investment that are required.

But translate that from dollars into human suffering, pain, confusion, reduced quality of life. That is a calculus that needs to be made. If it is going to save us money and at the same time respond with that moral compass, why are we not doing that, why are we not responding?

So, to me, that is where we are at. When you see the unleashing of technology, of research, of the potential for progress to be made, it is there. It is documented from so many perspectives in work that is done by the National Institutes of Health and others. For many, they will say, well, leave it to the private sector. No, there is a track record up there for this country to have stepped up to the plate and made a difference, for vaccines and other sought-for outcomes that affected people in a positive way. They gave them hope.

Our government has a track record of having stepped up and invested in research where perhaps the private sector wouldn't go or where we have shaved some of the risk off of that demand for research in a public-private partnership. So it is there within our potential. We should not deny our loved ones, our constituents, our country the opportunity to advance the cause of research and to respond again with a sense of hope for those who are living with this within this darkness. We can and we must do better.

I am happy to work with individuals like Representative GARAMENDI to push to make a difference and to be there in a responsive manner, and I thank you.

Mr. GARAMENDI. Mr. TONKO, you continually come back to the compassion and caregiving that I think each human being has somewhere in them. For us here in Congress, it is to express that in a meaningful way. That meaningful way is to make sure there is support for those families and individuals who have Alzheimer's, those who are caring for them, to make sure that the medical treatment, such as it is for this illness, is available, and to pursue vigorously the research that could and, I believe, will lead to a complete understanding of the illness. That is our task.

Mr. TONKO.

Mr. TONKO. And as we are concluding here, I was just bringing to mind one of the Alzheimer's town halls that we are required to conduct, and it told me a few things: that this disease is percolating lower and lower into the age demographics.

Mr. GARAMENDI. Yes, it is.

□ 1900

Mr. TONKO. So it may be—I am just guessing here—that it is more than just genetics. It may be environmental in its impact or cause. Whatever it is, let's go for that cause.

At one of these townhalls, a contemporary of mine whom I have known for a long time, as I have known her husband for a long time, said: ''My husband knows my voice, but he doesn't know my name.''

How do we not say ''yes'' to research? How do we not say we want to do all that we can to make a difference?

When we do so, we are going to save our budget. We are going to save our budget a great number of consequences by being that powerful force that will do things academically, soundly, wisely, effectively, efficiently.

That is what this business is about, a thoughtful response, a heartfelt response that, by the way, is the budgetwise thing to do.

Let us respond as a government, as a nation.

Mr. GARAMENDI. Mr. TONKO, thank you so very much.

Mr. Speaker, I think we will end there and simply say that this is not the last time that we will be speaking on this issue on the floor.

I would hope the next time that we speak on this issue that the House of Representatives will have increased the research budget by 50 percent, from $566 million to close to $900 million. That is a big leap. It is not sufficient. It is not what is necessary to really get at this disease, but this is one we can tackle. This is one we have to tackle for the strength of the American Government budget. It is one we have to tackle.

This is where you have been with this entire discussion, Mr. TONKO. This is about families. It is about individuals. It is about the suffering, the angst, and the fear that exists out there with this devastating disease. We can do this. We really can.

My message to the American people is one that you put out a few moments ago, Mr. TONKO. That is, for anybody who is watching out there, for anybody who is interested in the Federal deficit, for anybody who is interested in the quality of life of their families as they age and even before they age, talk to us.

Tell us that you want us to spend your tax money on solving this problem, on the research that will lead to the solution for what is now an unsolvable mystery.

Mr. Speaker, I yield back the balance of my time.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 160, PROTECT MEDICAL INNOVATION ACT OF 2015, AND PROVIDING FOR CONSIDERATION OF H.R. 1190, PROTECTING SENIORS' ACCESS TO MEDICARE ACT OF 2015

Mr. BURGESS (during the Special Order of Mr. GARAMENDI) from the Committee on Rules, submitted a privileged report (Rept. No. 114–157) on the resolution (H. Res. 319) providing for consideration of the bill (H.R. 160) to amend the Internal Revenue Code of 1986 to repeal the excise tax on medical devices, and providing for consideration of the bill (H.R. 1190) to repeal the provisions of the Patient Protection and Affordable Care Act providing for the Independent Payment Advisory Board, which was referred to the House Calendar and ordered to be printed.

OVERRULING THE HOUSE OF GOD

The SPEAKER pro tempore (Mr. WESTERMAN). Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 30 minutes.

Mr. GOHMERT. Mr. Speaker, this week, there will be important decisions made here on the House of Representatives' floor.

We are told, this month, the Supreme Court may well play God and overrule what has been considered to be the house of God, as given by Moses, for the dramatic amount of history, including up through the President's own statement that he believed marriage was just between a man and a woman.

When he was running for office, apparently, according to his campaign manager or whatever he is—whatever he was—he felt he wouldn't get elected if he said what he really believed.

Nonetheless, in 6½ years, we are told things have changed to the point we are now in a position to overrule what Moses said, which is that a man will leave his father and mother and a woman leave her home and the two will come together. That would be marriage—Moses, who is the only full-faced profile above us in the gallery, with the side profiles of all of the great lawgivers, the greatest lawgivers as they were thought to be years ago.

I will also note that, as I sat and listened to the Supreme Court's entertaining arguments on whether or not Texas could keep our monument dedicated to the Ten Commandments on our State campgrounds—and it was joined with a case from Kentucky on whether they could keep their Ten Commandments that were posted inside the door—and as they were arguing about whether or not the Ten Commandments could be attributed in that manner, I looked up on the marble wall to my right in the Supreme Court's chambers, and there was Moses, looking down with both tablets of the Ten Commandments, looking down—interesting, very interesting. It is the kind of mental gymnastics that have been played in the Supreme Court throughout its history.

We know Dred Scott was a dreadful decision, and there have been others that were poor. Sometimes, in being human, they get them right, and sometimes, they get them wrong; but there is one thing that is very, very, very clear, and it is in the United States Code. It is United States law.

It is volume 28 of the United States Code, section 455, and section (a) is very clear: ''Any justice, judge, or magistrate judge of the United States shall''—no room for question—''disqualify himself''—that is generic, meaning mankind; it could be male or female—''in any proceeding in which his impartiality might reasonably be questioned.''

That is the law, and the only way that we can remain a nation that believes in the rule of law is if the courts that decide whether a law can stand or must fall abide by the laws that apply to them. If the highest court in the United States blatantly violates the law and especially blatantly violates the law in deciding a case, then is it really law that they have made if they have violated the law to create it?

In knowing that the law is very clear, a United States Supreme Court Justice ''shall disqualify him or herself in any proceeding in which his impartiality might reasonably be questioned.'' Then we must look next to see if there are any indications of partiality on the part of any of the Supreme Court Justices.

Here is an article that was published by foxnews.com back on September 1, 2013, and it reads the following: ''Two months after the Supreme Court's landmark ruling to expand Federal recognition of same-sex marriages, striking down part of an anti-gay marriage law, Justice Ruth Bader Ginsburg officiated at a same-sex wedding.

''The officiating is believed to be a first for a member of the Nation's highest court.

''Ginsburg officiated Saturday at the marriage of Kennedy Center President Michael Kaiser and John Roberts, a government economist.''

I was just out at the Kennedy Center this weekend—it may be the only weekend; I am here in Washington all year—and was delighted to be there. Apparently, if Michael Kaiser is still the president, he is doing what appears to be an excellent job there.

Further down in the article, it is quoting Justice Ginsburg, and it reads: '' 'I think it will be one more statement that people who love each other and want to live together should be able to enjoy the blessings and the strife in the marriage relationship,' Ginsburg told The Washington Post in an interview.

'' 'It won't be long before there will be another' performed by a Justice. She has another ceremony planned for September.''

The last line—it is not the last of the article—but it reads: ''Justices generally avoid taking stands on political issues.''

The rest of the article goes on: ''While hearing arguments in the case in March, Ginsburg argued for treating marriages equally. The rights associated with marriage are pervasive, she said.''

Anyway, it reads further down: ''Before the Court heard arguments on the Defense of Marriage Act, Ginsburg told The New Yorker magazine in March that she had not performed a same-sex marriage and had not been asked. Justices do officiate at other weddings, though.

'' 'I don't think anybody's asking us, because of these cases,' she told the magazine. 'No one in the gay rights movement wants to risk having any member of the Court be criticized or asked to recuse. So I think that's the reason no one has asked me.'

''Asked whether she would perform such a wedding in the future, she said, 'Why not?' ''

Apparently, the Associated Press also contributed to that report.

It doesn't sound as if it could be any more clear that Justice Ginsburg has a very solid opinion that gay marriage, same-sex marriage, same-sex weddings are constitutional, despite its being something that is reserved to the States and to the people under the 10th Amendment for decisions.

On September 22 of 2014, in The Hill, written by Peter Sullivan, an article reads: ''Supreme Court Justice Elena Kagan officiated a same-sex wedding on Sunday, a court spokeswoman told the Associated Press.

''The ceremony in Maryland for a former law clerk is the first same-sex wedding that Kagan has performed. Justice Ruth Bader Ginsburg and retired Justice Sandra Day O'Connor have both performed same-sex weddings in the past.

''Gay marriage has been a divisive topic at the Supreme Court as it has been elsewhere in the country.''

Further down, the article reads: ''The Court could decide as early as this month whether to take up the issue again in the coming session, this time to consider a more sweeping ruling declaring a right to same-sex marriage across the country.

''Ginsburg said last week that, unless an appeals court allows a gay marriage ban to stand, 'there is no need for us to rush' on a Supreme Court ruling.''

Clearly, Justice Kagan has made her feelings clear on same-sex marriage. There could not be a more clear, unequivocal statement that any just judge or Justice could ever make on the issue of same-sex marriage than to actually perform, officiate, in a same-sex wedding.

Here is a Newsmax article from May 18, 2015, by Greg Richter: ''Supreme Court Justice Ruth Bader Ginsburg sparked speculation on Sunday when she mentioned the Constitution while officiating a same-sex wedding.''

Further down is a quote from Maureen Dowd, a columnist for The New York Times: ''With a sly look and special emphasis on the word 'Constitution,' Justice Ginsburg said that she was pronouncing the two men married by the powers vested in her by the Constitution of the United States, Dowd wrote.''

□ 1915

Then it also says in the article, ''Nevertheless, guests applauded loudly, Dowd said, and Ginsburg 'seemed delighted.' ''

For Justice Ginsburg to state publicly that the Constitution of the United States gives her the power to officiate and unite a same-sex couple in marriage is an unequivocal, clear statement as to what she believes the Supreme Court should do in their decision. If there was ever any doubt—and there wasn't. Once she performed a same-sex wedding, there was no question about her feelings on the matter.

An article from National Review by Edward Whelan, February 19 of this year, the article, just a small part of it here: ''At her Supreme Court confirmation hearing in 1993, Ruth Bader Ginsburg repeatedly explained that the judicial obligation of impartiality required that she give 'no hints, no forecasts, no previews' about how she might 'vote on questions the Supreme Court may be called upon to decide.' ''

As she declared in her opening statement: ''A judge sworn to decide impartially can offer no forecasts, no hints, for that would show not only disregard for the specifics of the particular case, it would display disdain for the entire judicial process.'' That was Ruth Bader Ginsburg in 1993. Apparently, she sees things a great deal differently now.

Further down in the article, Edward Whelan writes: ''Human nature being what it is, it's not easy for a Justice to recuse in a closely divided case that she obviously cares passionately about. This is exactly the situation Justice Scalia faced a dozen years ago in the wake of his public comments criticizing a Ninth Circuit ruling against the Pledge of Allegiance. As Slate's Dahlia Lithwick wrote at the time, Scalia was 'intellectually honest enough to know that he slipped,' and he thus, 'recused himself from what would have been one of the most important church-state cases of his career.' His recusal meant that 'the Court may well split 4–4 on the case, in which case the Ninth Circuit's decision will stand for all the States in its jurisdiction.' ''

We also have a quote from Justice Sonia Sotomayor: ''I suspect even with us giving gay rights to marry, that there's some gay people who will choose not to, just as there's some heterosexual couples who choose not to marry. So we are not taking anybody's liberty away.''

Justice Sotomayor has obviously stated her position very clearly on the issue of same-sex marriage.

This is an article from May 27, 2009, Lisa Keen from the Keen News Service. She says in an article: ''Long-time gay legal activist Paula Ettelbrick said she met Sotomayor in about 1991 when they both served on then-New York Governor Mario Cuomo's Advisory Committee on Fighting Bias. 'Nobody wanted to talk to . . .' '' and uses a slur for a homosexual '' 'person at that time,' said Ettelbrick, who represented Lambda Legal Defense and Education Fund. 'She was the only one on the advisory committee who made a point to come over and introduce herself. She was totally interested in gay civil rights issues and supportive.' ''

Evan Wolfson, head of the national Freedom to Marry organization said: ''From everything I know, Judge Sotomayor is an outstanding choice, fair and aware, open, and judicious. I believe she has demonstrated the commitment to principles of equal protection and inclusion that defines a good nominee to the Supreme Court.'' Wolfson said the President ''has made a strong and appealing nomination that should and will receive the support of those committed to equality for lesbians and gay men.'' The National LGBT Bar Association issued a statement saying it was pleased with the choice, noting that it represents ''more diversity on the bench.''

In view, actually, of her quote, it seems that she has clearly stated her position with regard to same-sex marriage. Anyway, the article further down said Kevin Cathcart, executive director of Lambda Legal Defense and Education Fund, said the organization was pleased that the nominee is a woman of color. ''While women, people of color, and self-identified gay people continue to be woefully underrepresented in the Federal judiciary, Judge Sotomayor's nomination represents a step in the right direction,'' Cathcart said.

So, anyway, if those quotes are accurate, then certainly they would be supporting evidence of her quote that ''I suspect even with us giving gay rights to marry . . .'' she is already stating in this quote that she, not the Creator, not God, not almighty God, not the Constitution—''us giving,'' obviously the Supreme Court.

So, as Jefferson pointed out, you know, he trembles for the country when he realizes that God is just and his justice will not sleep forever. It is not the Supreme Court that gives rights. We get our rights, according to the Declaration of Independence, from our Creator, and they are embodied or supposed to have been embodied in the Constitution. And yes, it took a Civil War to ensure that the Constitution meant what it said, and it took an ordained Christian minister named King to push peacefully until such time as the Constitution was more thoroughly forced to mean what it said.

We are talking about marriage here. For anyone who is a Christian, that means they believe in Jesus Christ, they believe His teachings, they believe He is Savior, and they would have to believe when He quoted Moses, who said he was giving the law from God, and Jesus said: A man shall leave his father and mother, and a woman leave her home, and the two will become one flesh, and what God joined together, let no one put asunder. He put His stamp: this is marriage. It approved what Moses said was marriage, and in this Nation, throughout the Nation, until some said we have become smarter than we have ever been, once again defying Solomon's statement: There is nothing new under the Sun. This is not new. We are not more enlightened than other civilizations have been.

But if the Supreme Court in a majority decision destroys the constitutions of numerous States across this Nation, and the majority opinion has Justices who are violating Federal statute regarding what a judge shall do, then it would appear that their law would be no more valid than if someone here cast the deciding vote on legislation that becomes law, and it is determined

that the deciding vote was cast by someone who was not legally a Member of Congress. There would be reason to say that is not a valid law. It did not pass the House of Representatives. And especially, if it turned out that, say, 20, 30, 40 percent of those casting the majority votes on a bill were disqualified at the time of the vote from casting a vote, that would not be a legitimate law.

I hope, and since I believe in prayer, I pray that those Justices who have made clear by their statements and their actions that they are disqualified, will do the lawful thing and recuse themselves. If they do not do that, they will be casting a ballot, casting a vote, and if that vote is the majority decision, and if that decision overturns massive law on marriage across the country, and by its statement says: We know more than Moses, we know more than Jesus, we are the U.S. Supreme Court, it certainly sounds like they will have produced an unlawful decision of the Supreme Court. I hope they will not put this Nation to such a constitutional crisis by violating the law to push through their legislative agenda, but we will see. Will they start a constitutional crisis by violating the law to push their legislative agenda through the Court? We will see. I hope and pray that they will follow the law and disqualify themselves.

Mr. Speaker, I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. FATTAH (at the request of Ms. PELOSI) for today after 5 p.m.

SENATE BILL REFERRED

A bill of the Senate of the following title was taken from the Speaker's table and, under the rule, referred as follows:

S. 565. An act to reduce the operations and maintenance costs associated with the Federal fleet by encouraging the use of remanufactured parts, and for other purposes; to the Committee on Oversight and Government Reform.

ADJOURNMENT

Mr. GOHMERT. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 28 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, June 17, 2015, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

1842. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting Fiscal Years 2011-2012 Report to Congress on the Family Violence Prevention and Services Program, pursuant to 42 U.S.C. 10404; to the Committee on Education and the Workforce.

1843. A letter from the Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting the Department's final rule — Summary of Benefits and Coverage and Uniform Glossary (RIN: 1210-AB69) received June 15, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

1844. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's final rule — Summary of Benefits and Coverage and Uniform Glossary [CMS-9938-F] (RIN: 0938-AS54) received June 15, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1845. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Update of the Motor Vehicle Emissions Budgets and General Conformity Budgets for the Scranton/Wilkes-Barre 1997 8-Hour Ozone National Ambient Air Quality Standard Maintenance Area [EPA-R03-OAR-2014-0652; FRL-9929-07-Region 3] received June 12, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1846. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Di-n-butyl carbonate; Exemption from the Requirement of a Tolerance [EPA-HQ-OPP-2014-0176; FRL-9928-63-OCSPP] received June 12, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1847. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Revision to the New York State Implementation Plan for Carbon Monoxide [EPA-R02-OAR-2013-0192; FRL-9929-11-Region 2] received June 12, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1848. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval and Promulgation of Implementation Plans; South Carolina; Charlotte-Rock Hill; Base Year Emissions Inventory and Emissions Statements Requirements for the 2008 8-Hour Ozone Standard [EPA-R04-OAR-2014-0915; FRL-9928-88-Region 4] received June 12, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1849. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Sethoxydim; Pesticide Tolerances [EPA-HQ-OPP-2014-0161; FRL-9928-20] received June 12, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1850. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting a six-month periodic report on the national emergency with respect to the proliferation of weapons of mass destruction that was declared in Executive Order 12938 of November 14, 1994, and continued by the President each year, most recently on November 7, 2014, pursuant to 50 U.S.C. 1703(c) and 50 U.S.C. 1641(c); to the Committee on Foreign Affairs.

1851. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting the annual report pursuant to Sec. 2(9) of the Senate's Resolution of Advice and Consent to the Treaty with the United Kingdom Concerning Defense Trade Cooperation (Treaty Doc. 110-07); to the Committee on Foreign Affairs.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. RYAN of Wisconsin: Committee on Ways and Means. H.R. 2580. A bill to provide for a technical change to the Medicare long-term care hospital moratorium exception, and for other purposes; with an amendment (Rept. 114–156). Referred to the Committee of the Whole House on the state of the Union.

Mr. BURGESS: Committee on Rules. House Resolution 319. Resolution providing for consideration of the bill (H.R. 160) to amend the Internal Revenue Code of 1986 to repeal the excise tax on medical devices, and providing for consideration of the bill (H.R. 1190) to repeal the provisions of the Patient Protection and Affordable Care Act providing for the Independent Payment Advisory Board (Rept. 114–157). Referred to the House Calendar.

Mr. RYAN of Wisconsin: Committee on Ways and Means. H.R. 2506. A bill to amend title XVIII of the Social Security Act to delay the authority to terminate Medicare Advantage contracts for MA plans failing to achieve minimum quality ratings with an amendment (Rept. 114–158, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. RYAN of Wisconsin: Committee on Ways and Means. H.R. 2507. A bill to amend title XVIII of the Social Security Act to establish an annual rulemaking schedule for payment rates under Medicare Advantage; with an amendment (Rept. 114–159, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. RYAN of Wisconsin: Committee on Ways and Means. H.R. 2579. A bill to amend title XVIII of the Social Security Act to improve the risk adjustment under the Medicare Advantage program, and for other purposes; with an amendment (Rept. 114–160, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. RYAN of Wisconsin: Committee on Ways and Means. H.R. 2581. A bill to amend title XVIII of the Social Security Act to establish a 3-year demonstration program to test the use of value-based insurance design methodologies under eligible Medicare Advantage plans, to preserve Medicare beneficiary choice under Medicare Advantage, to revise the treatment under the Medicare program of infusion drugs furnished through durable medical equipment, and for other purposes; with an amendment (Rept. 114–161, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on Energy and Commerce discharged from further consideration. H.R. 2506 referred to the Committee of the Whole House on the state of the Union.

Pursuant to clause 2 of rule XIII, the Committee on Energy and Commerce discharged from further consideration. H.R. 2507 referred to the Committee of the Whole House on the state of the Union.

Pursuant to clause 2 of rule XIII, the Committee on Energy and Commerce

discharged from further consideration. H.R. 2579 referred to the Committee of the Whole House on the state of the Union.

Pursuant to clause 2 of rule XIII, the Committee on Energy and Commerce discharged from further consideration. H.R. 2581 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. REICHERT (for himself and Mr. KIND):

H.R. 2788. A bill to amend the Internal Revenue Code of 1986 to provide for S corporation reform, and for other purposes; to the Committee on Ways and Means.

By Mr. MARCHANT (for himself, Mrs. BLACK, and Mr. SMITH of Texas):

H.R. 2789. A bill to amend the Internal Revenue Code of 1986 to modify S corporation shareholder and preferred stock rules with respect to banks; to the Committee on Ways and Means.

By Mr. SMITH of New Jersey:

H.R. 2790. A bill to provide for pay parity for civilian employees serving at joint military installations, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. DEFAZIO (for himself and Mr. WALDEN):

H.R. 2791. A bill to require that certain Federal lands be held in trust by the United States for the benefit of certain Indian tribes in Oregon, and for other purposes; to the Committee on Natural Resources.

By Mr. GROTHMAN:

H.R. 2792. A bill to require that any revision to, or establishment of, a national primary or secondary ambient air quality standard be made by statute, and for other purposes; to the Committee on Energy and Commerce.

By Mr. JODY B. HICE of Georgia:

H.R. 2793. A bill to amend the Sex Offender Registration and Notification Act to require the Secretary of Homeland Security to take appropriate actions to ensure that an alien who is unlawfully present in the United States, is in removal proceedings or has been ordered removed, and is required to register under the Act, is so registered, and for other purposes; to the Committee on the Judiciary.

By Mr. HONDA (for himself, Mr. VARGAS, Ms. BROWN of Florida, Mr. CÁRDENAS, Mr. SABLAN, Mr. JOHNSON of Georgia, Mr. GUTIÉRREZ, Mr. GRIJALVA, Ms. LEE, Mr. ELLISON, Mr. TAKAI, Mr. QUIGLEY, Mr. MCGOVERN, Ms. BORDALLO, Ms. JUDY CHU of California, Ms. LOFGREN, and Mr. TAKANO):

H.R. 2794. A bill to strengthen and unite communities through English literacy and civics education, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE (for herself, Mr. PAYNE, Ms. FUDGE, Ms. KELLY of Illinois, Mrs. BEATTY, Mr. PASCRELL, Ms. DELAURO, Mr. LARSON of Connecticut, Mr. NORCROSS, Mr. CASTRO of Texas, Mr. GENE GREEN of Texas, Ms. BASS, Ms. LEE, Mr. HINOJOSA, and Mr. PALLONE):

H.R. 2795. A bill to require the Secretary of Homeland Security to submit a study on the circumstances which may impact the effectiveness and availability of first responders before, during, or after a terrorist threat or event; to the Committee on Homeland Security.

By Mr. RICHMOND:

H.R. 2796. A bill to amend the Workforce Innovation and Opportunity Act to provide grants to States for summer employment programs for youth; to the Committee on Education and the Workforce.

By Mr. RICHMOND:

H.R. 2797. A bill to amend the Juvenile Justice and Delinquency Prevention Act of 1974 to establish the Office of School Discipline Policy, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. AMASH:

H.J. Res. 57. A joint resolution directing the President to remove United States Armed Forces deployed to Iraq or Syria on or after August 7, 2014, other than Armed Forces required to protect United States diplomatic facilities and personnel, from Iraq and Syria; to the Committee on Foreign Affairs.

By Mr. PASCRELL (for himself, Mr. PALLONE, Mr. NORCROSS, Mr. SIRES, Mr. LANCE, Mr. MACARTHUR, Mr. PAYNE, and Mr. YARMUTH):

H. Res. 317. A resolution congratulating American Pharoah and owner Ahmed Zayat of Teaneck, New Jersey, for winning horse racing's Triple Crown; to the Committee on Oversight and Government Reform.

By Mr. CURBELO of Florida (for himself, Ms. BONAMICI, Ms. STEFANIK, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. LAMBORN, and Mr. HIGGINS):

H. Res. 318. A resolution condemning resolutions or policies calling for or instituting a boycott of Israeli academic institutions or scholars by institutions of higher learning and scholarly associations; to the Committee on Education and the Workforce.

By Ms. HAHN (for herself, Mr. MCGOVERN, Ms. ESTY, and Mr. JONES):

H. Res. 320. A resolution expressing the sense of Congress that a grateful Nation honors and salutes Sons and Daughters in Touch on its 25th anniversary that is being celebrated on Father's Day, 2015, at the Vietnam Veterans Memorial in Washington, the District of Columbia; to the Committee on Veterans' Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

55. The SPEAKER presented a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 68, urging the Congress of the United States to restore trade relations between the United States and Cuba in order to open the market to Louisiana rice; to the Committee on Foreign Affairs.

56. Also, a memorial of the Legislature of the State of Louisiana, relative to Senate Concurrent Resolution No. 66, urging the Congress of the United States to take action against illegal, unreported, and unregulated fishing in Louisiana's sovereign waters by passing H.R. 774, the Illegal, Unreported, and Unregulated Fishing Enforcement Act of 2015; jointly to the Committees on Natural Resources and Transportation and Infrastructure.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. REICHERT:

H.R. 2788.

Congress has the power to enact this legislation pursuant to the following:

Pursuant to Clause 1 of Section 8 of Article I of the United States Constitution and Amendment XVI of the United States Constitution.

By Mr. MARCHANT:

H.R. 2789.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution Art. I Sec. 8 cl. 1, under the ''Power To lay and collect Taxes'';

Amd. 16, under the ''power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the several States, and without regard to any census or enumeration''; and

Art. I Sec. 8 cl. 18, under the power ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. SMITH of New Jersey:

H.R. 2790.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. DEFAZIO:

H.R. 2791.

Congress has the power to enact this legislation pursuant to the following:

Section 1 of Article I of the U.S. Constitution

By Mr. GROTHMAN:

H.R. 2792.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States or in any Department or Officer thereof.

By Mr. JODY B. HICE of Georgia:

H.R. 2793.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4, which states that Congress has the power ''to establish a uniform Rule of Naturalization and uniform Laws on the subject of Bankruptcies throughout the United States.''

Article I, Section 8, Clause 18, which states that Congress has the power to ''make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof . . .''

By Mr. HONDA:

H.R. 2794.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of article I of the Constitution

By Ms. JACKSON LEE:

H.R. 2795.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8, Clause 3 of the United States Constitution.

By Mr. RICHMOND:

H.R. 2796.

Congress has the power to enact this legislation pursuant to the following:

This bill is introduced pursuant to the powers granted to Congress under the General Welfare Clause (Art. 1 Sec. 8 Cl. 1), the Commerce Clause (Art. 1 Sec. 8 Cl. 3), and the Necessary and Proper Clause (Art. 1 Sec. 8 Cl. 18).

Further, this statement of constitutional authority is made for the sole purpose of compliance with clause 7 of Rule XII of the Rules of the House of Representatives and shall have no bearing on judicial review of the accompanying bill.

By Mr. RICHMOND:

H.R. 2797.

Congress has the power to enact this legislation pursuant to the following:

This bill is introduced pursuant to the powers granted to Congress under the General Welfare Clause (Art. 1 Sec. 8 Cl. 1), the Commerce Clause (Art. 1 Sec. 8 CI. 3), and the Necessary and Proper Clause (Art. 1 Sec. 8 Cl. 18).

Further, this statement of constitutional authority is made for the sole purpose of compliance with clause 7 of Rule XII of the Rules of the House of Representatives and shall have no bearing on judicial review of the accompanying bill.

By Mr. AMASH:

H.J. Res. 57.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 14 of the Constitution (authorizing Congress to ''make Rules for the Government and Regulation of the land and naval Forces''). Article I, Section 8, Clause 11 of the Constitution authorizes Congress to ''declare War.'' Congress did not declare war or authorize the use of military force for the current conflict in Iraq and Syria, and this resolution takes corrective action.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 6: Mr. LUETKEMEYER, Mr. ZELDIN, Ms. CLARK of Massachusetts, Mr. BOST, Mrs. LAWRENCE, Ms. VELÁZQUEZ, and Mr. ROGERS of Alabama.

H.R. 24: Mr. HURD of Texas.

H.R. 136: Ms. LINDA T. SÁNCHEZ of California and Ms. MAXINE WATERS of California.

H.R. 197: Mr. O'ROURKE.

H.R. 244: Mrs. MCMORRIS RODGERS.

H.R. 511: Mr. SALMON.

H.R. 532: Mrs. DAVIS of California.

H.R. 540: Ms. JUDY CHU of California and Mr. DESAULNIER.

H.R. 592: Mr. VEASEY.

H.R. 616: Ms. JUDY CHU of California.

H.R. 653: Mr. POLIS.

H.R. 662: Mr. RUPPERSBERGER.

H.R. 699: Mr. CARSON of Indiana and Mr. PERRY.

H.R. 700: Mr. LANGEVIN.

H.R. 702: Mr. MILLER of Florida and Mr. GIBBS.

H.R. 727: Ms. GRAHAM.

H.R. 753: Ms. NORTON and Mr. CONYERS.

H.R. 766: Mr. WILLIAMS.

H.R. 775: Ms. SLAUGHTER, Mr. SIRES, Mr. STIVERS, and Mr. DUNCAN of Tennessee.

H.R. 828: Mr. KING of New York.

H.R. 845: Mr. MCNERNEY, Mr. FORTENBERRY, and Mr. JODY B. HICE of Georgia.

H.R. 846: Ms. DUCKWORTH, Mr. MCGOVERN, and Mrs. DINGELL.

H.R. 868: Mr. POE of Texas and Mr. MULVANEY.

H.R. 885: Mr. GALLEGO.

H.R. 915: Mrs. DINGELL.

H.R. 916: Mr. POSEY.

H.R. 928: Mr. SANFORD and Mr. HURD of Texas.

H.R. 985: Mr. BARR, Mr. ROGERS of Alabama, Ms. VELÁZQUEZ, Ms. BROWN of Florida, Mr. BRADY of Pennsylvania, Mr. VARGAS, Mr. YODER, Mr. THOMPSON of Pennsylvania, and Mr. FITZPATRICK.

H.R. 986: Mr. HARRIS, Mr. DIAZ-BALART, Mr. ROHRABACHER, Mr. MICA, and Mr. GRAVES of Missouri.

H.R. 1054: Mr. DESANTIS.

H.R. 1057: Mrs. NOEM.

H.R. 1062: Mr. JOLLY.

H.R. 1095: Ms. SPEIER.

H.R. 1132: Mr. ISSA.

H.R. 1141: Mr. YOUNG of Iowa.

H.R. 1211: Mr. LARSON of Connecticut.

H.R. 1218: Mr. SCHIFF.

H.R. 1233: Mr. CARTER of Georgia and Mr. BABIN.

H.R. 1283: Mr. SHERMAN.

H.R. 1288: Mr. ZELDIN.

H.R. 1300: Ms. STEFANIK.

H.R. 1301: Mr. SMITH of Texas, Mr. ROYCE, and Mr. YODER.

H.R. 1309: Mr. CHAFFETZ and Mr. CARTER of Texas.

H.R. 1310: Mr. TAKANO.

H.R. 1331: Mr. KNIGHT.

H.R. 1338: Mr. CRAWFORD, Mr. PALAZZO, Mr. DEFAZIO, Mr. COHEN, Mr. GOSAR, and Mrs. DINGELL.

H.R. 1387: Mr. MICA.

H.R. 1424: Mr. DOLD.

H.R. 1462: Mr. JOLLY.

H.R. 1478: Mr. POLIQUIN.

H.R. 1516: Mrs. MCMORRIS RODGERS.

H.R. 1519: Ms. ESHOO.

H.R. 1523: Mr. BARLETTA.

H.R. 1559: Ms. STEFANIK, Mr. AL GREEN of Texas, and Mr. KELLY of Pennsylvania.

H.R. 1571: Ms. SLAUGHTER, Mr. COHEN, Ms. BROWNLEY of California, and Mr. MCGOVERN.

H.R. 1591: Mr. BARLETTA.

H.R. 1607: Mr. KILMER.

H.R. 1610: Mr. GIBBS.

H.R. 1613: Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 1624: Mr. JOYCE, Mr. HURD of Texas, Mr. CRENSHAW, Mr. RATCLIFFE, Mr. QUIGLEY, Mr. LUETKEMEYER, and Mr. BOST.

H.R. 1669: Mr. AMODEI.

H.R. 1686: Mr. RUPPERSBERGER and Mr. RANGEL.

H.R. 1692: Mr. HUFFMAN.

H.R. 1726: Mr. DANNY K. DAVIS of Illinois, Mr. RUSH, Mr. THOMPSON of Mississippi, and Mr. GUTHRIE.

H.R. 1736: Mr. MARINO.

H.R. 1737: Mr. BABIN, Ms. GRAHAM, Mr. WALBERG, Mr. MULVANEY, Mr. KILMER, Mr. LAMBORN, Miss RICE of New York, Mr. JOLLY, and Mr. DUNCAN of Tennessee.

H.R. 1769: Mr. KELLY of Pennsylvania, Mr. COHEN, Mr. RUSH, and Miss RICE of New York.

H.R. 1785: Mr. MULVANEY.

H.R. 1804: Mr. TONKO.

H.R. 1854: Mr. ALLEN and Ms. JUDY CHU of California.

H.R. 1945: Mr. GARAMENDI, Mr. GRIJALVA, and Mr. KEATING.

H.R. 1948: Mr. COHEN.

H.R. 1953: Mr. FARENTHOLD.

H.R. 1956: Mr. TAKAI.

H.R. 1957: Mr. TAKAI.

H.R. 1994: Mr. GOSAR and Mr. WITTMAN.

H.R. 2042: Mr. SMITH of Texas, Mr. CRENSHAW, Mr. LAMBORN, Mrs. LOVE, Mr. LOUDERMILK, and Ms. MCSALLY.

H.R. 2046: Mr. RYAN of Wisconsin.

H.R. 2061: Mr. PETERS.

H.R. 2102: Mr. SENSENBRENNER.

H.R. 2123: Mr. KILMER.

H.R. 2141: Mrs. HARTZLER.

H.R. 2142: Mr. SWALWELL of California.

H.R. 2147: Mr. LEWIS, Ms. JUDY CHU of California, Ms. CLARKE of New York, Mr. HASTINGS, and Mr. RANGEL.

H.R. 2150: Ms. KELLY of Illinois.

H.R. 2156: Mr. PETERS.

H.R. 2191: Ms. WASSERMAN SCHULTZ.

H.R. 2215: Mr. GOODLATTE.

H.R. 2217: Mr. MCGOVERN, Mr. KENNEDY, and Mr. MEEKS.

H.R. 2259: Mr. KING of Iowa and Mr. WITTMAN.

H.R. 2272: Mr. HUFFMAN.

H.R. 2300: Mr. WITTMAN.

H.R. 2302: Mr. BUTTERFIELD.

H.R. 2315: Mr. PEARCE and Mrs. MIMI WALTERS of California.

H.R. 2342: Mr. TAKAI.

H.R. 2371: Mrs. DINGELL.

H.R. 2400: Mr. BRAT and Mr. OLSON.

H.R. 2403: Mr. SCOTT of Virginia.

H.R. 2404: Mr. GRAVES of Missouri.

H.R. 2405: Mr. ISRAEL, Mr. RICHMOND, and Mr. NEAL.

H.R. 2406: Mr. CARTER of Texas, Mr. LUETKEMEYER, and Mr. JODY B. HICE of Georgia.

H.R. 2460: Ms. PINGREE, Mr. JONES, and Mr. GIBSON.

H.R. 2466: Mr. DIAZ-BALART, Mr. CRENSHAW, and Ms. ROS-LEHTINEN.

H.R. 2493: Mr. TAKANO, Mr. POLIS, Mr. ZELDIN, and Ms. JUDY CHU of California.

H.R. 2508: Mr. MOOLENAAR.

H.R. 2513: Mr. GOSAR.

H.R. 2514: Mr. CLAWSON of Florida and Mr. PERRY.

H.R. 2517: Mr. YOUNG of Iowa.

H.R. 2520: Mr. BOUSTANY.

H.R. 2521: Ms. MOORE.

H.R. 2530: Mrs. DINGELL, Ms. SCHAKOWSKY, and Ms. BONAMICI.

H.R. 2531: Mr. WITTMAN.

H.R. 2551: Mrs. NOEM.

H.R. 2576: Mr. MOOLENAAR and Mr. DESJARLAIS.

H.R. 2582: Mr. JOLLY, Mr. DAVID SCOTT of Georgia, and Mr. DIAZ-BALART.

H.R. 2594: Mr. DONOVAN.

H.R. 2607: Mr. DONOVAN and Mr. GIBSON.

H.R. 2610: Mr. GRIJALVA.

H.R. 2615: Ms. CLARKE of New York, Mr. THOMPSON of Mississippi, Ms. JACKSON LEE, and Mr. PIERLUISI.

H.R. 2630: Mr. CLAWSON of Florida.

H.R. 2646: Mr. LANCE, Mr. RANGEL, and Mr. WENSTRUP.

H.R. 2647: Mr. TIPTON and Mr. MCCLINTOCK.

H.R. 2650: Mr. PEARCE.

H.R. 2658: Mr. THOMPSON of Pennsylvania, Mr. HARPER, Mr. LANCE, Mr. DENT, Mr. CONNOLLY, and Mr. JONES.

H.R. 2663: Mr. POCAN and Ms. TSONGAS.

H.R. 2689: Mr. THOMPSON of California.

H.R. 2694: Mr. NEAL, Mr. LOWENTHAL, Mr. HONDA, Mr. THOMPSON of California, Ms. ESHOO, Mr. DOGGETT, Mr. HIGGINS, Mr. QUIGLEY, Mr. GRAYSON, Mr. CONYERS, Mr. BEYER, Mrs. CAROLYN B. MALONEY of New York, and Mr. POLIS.

H.R. 2710: Mr. KNIGHT, Mr. HECK of Nevada, Mr. TIPTON, and Mr. ABRAHAM.

H.R. 2714: Mr. GRIJALVA.

H.R. 2732: Ms. SPEIER.

H.R. 2737: Mr. MCDERMOTT and Ms. BROWN of Florida.

H.R. 2752: Mr. MCGOVERN and Mr. SWALWELL of California.

H.R. 2753: Mr. CRAMER.

H.R. 2760: Mr. COLE.

H.R. 2762: Mr. NOLAN.

H.R. 2763: Mr. SABLAN.

H.R. 2767: Ms. NORTON, Mr. HASTINGS, and Mr. RANGEL.

H.R. 2770: Mr. KEATING.
H.R. 2773: Ms. JUDY CHU of California.
H.R. 2776: Mr. RANGEL and Ms. BORDALLO.
H.J. Res. 22: Mrs. CAROLYN B. MALONEY of New York and Mr. RUIZ.
H.J. Res. 42: Mr. FRANKS of Arizona.
H.J. Res. 45: Ms. MCSALLY.
H.J. Res. 51: Mrs. DINGELL.
H. Con. Res. 18: Mr. KILDEE.
H. Res. 28: Mr. WITTMAN.
H. Res. 54: Mr. WITTMAN.
H. Res. 210: Mr. HECK of Washington.
H. Res. 262: Mrs. DINGELL, Mr. HASTINGS, and Ms. BORDALLO.
H. Res. 263: Mr. COHEN.
H. Res. 294: Mr. TONKO.
H. Res. 307: Mr. RANGEL and Mr. WEBER of Texas.
H. Res. 310: Mr. COHEN, Mr. DONOVAN, and Mr. BLUMENAUER.

DELETION OF SPONSORS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions, as follows:

H.R. 1942: Mr. HARRIS.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, JUNE 16, 2015 *No. 96*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Sovereign Lord, Your Kingdom cannot be shaken. Thank You for inviting us to ask and receive, to seek and find, and to knock for doors to be open. Lord, forgive us when we forfeit our blessings because of our failure to ask. Remind us that we have not because we ask not. Inspire our Senators to harness prayer power continuously. May they follow Your admonition to pray without ceasing. Throughout this day, may they repeatedly ask You for wisdom and guidance. May their fervent prayers make a positive impact on the legislative process.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. SULLIVAN). The majority leader is recognized.

DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2016—MOTION TO PROCEED

Mr. MCCONNELL. Mr. President, I move to proceed to Calendar No. 118, H.R. 2685.

The PRESIDING OFFICER. The clerk will report the motion.

The bill clerk read as follows:

Motion to proceed to Calendar No. 118, H.R. 2685, a bill making appropriations for the Department of Defense for the fiscal year ending September 30, 2016, and for other purposes.

CLOTURE MOTION

Mr. MCCONNELL. I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to H.R. 2685, an act making appropriations for the Department of Defense for the fiscal year ending September 30, 2016, and for other purposes.

Mitch McConnell, John Cornyn, James Lankford, Roger F. Wicker, John Barrasso, Thom Tillis, Steve Daines, Tom Cotton, Kelly Ayotte, Lindsey Graham, John McCain, John Thune, Jerry Moran, Richard C. Shelby, Daniel Coats, Jeff Flake, Rob Portman.

The PRESIDING OFFICER. The majority leader.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. MCCONNELL. Mr. President, later this afternoon, the Senate will decide whether to advance or filibuster the Defense authorization legislation which is before us. Senators will take a vote and Senators will make a choice. One option is for Senators to follow the bipartisan example of the House of Representatives and the Senate Armed Services Committee, both of which passed Defense authorization legislation with bipartisan backing.

It means reaching across the aisle to support the men and women who support us every single day. It means voting to transform bureaucratic waste into crucial investments for brave troops and their families, raises they have earned, quality-of-life programs they deserve, and the kind of medical care and mental health support they should expect when injured on the battlefield or haunted by memories at home.

It means ensuring our military has the tools it needs to help America navigate a treacherous world beset by an ever-growing array of challenges. It means advancing a bill that contains ideas and priorities from both parties and one that gives President Obama the exact level of funding authorization he asked for in his own budget request.

It also means endorsing the Senate's return to considering Defense authorization bills through the regular order, allowing real bipartisan debate and a real bipartisan amendment process as we have done this year, as opposed to the bad old days of ramming it through at the last minute. That is one option: voting for cloture, voting for a bipartisan bill that is good for our troops and our country.

But there is another option too: voting to filibuster, voting to raise the curtain on this truly bizarre filibuster summer, a strategy we hear Democratic leaders boasting about in the press. Democratic leaders are apparently so passionate—passionate—about dumping more cash into gargantuan DC bureaucracies like the IRS that they now seem prepared to block and filibuster the benefits owed to our troops and their families or even—even—shut down the government altogether if they can't get their way.

As one newspaper reported this morning, ''Democrats appear eager to return to shutdown politics.'' The minority leader seemed to put it plainly enough the other day: ''We're headed for another shutdown,'' he said. But that can only happen if commonsense Democrats allow their party leaders to advance the shutdown-seeking filibuster summer gambit.

Today is every commonsense Democrat's chance to say, Enough. This is a bad strategy. Today is every commonsense Democrat's opportunity to help pull their party back from a senseless

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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path of forcing endless filibusters and a shutdown no one wants but the hard left. That is what they want. Because here is what every Senator knows deep down: Voting to filibuster would mean allowing Democratic leaders to take from every soldier, every sailor, every marine, and every man and woman in the Air Force the pay raises they have earned, so Democratic leaders can use it as an ante in the game of shutdown roulette.

Voting to filibuster would mean allowing Democratic leaders to hold our military hostage at a time of unprecedented global threats as part of some partisan ploy to extract—extract—a few more bucks for Washington bureaucrats. I just cannot imagine serious-minded Democrats feeling comfortable going along with their leaders' plan. It is just too callous. It is just too extreme. So I hope they will not. I hope every one of my colleagues, no matter which party they are in, will stand together instead for bipartisanship, for regular order, for the idea that we should support the troops who support us.

I thank Chairman MCCAIN for all of his hard work to get us to this point. He did a marvelous job working across the aisle to craft a serious defense bill, with input and amendments from both sides. The Senate, our military, and our country stand to benefit immensely from his dedication. So I hope every Senator of good will will stand up and vote to advance this bipartisan bill later today.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

GOVERNMENT FUNDING

Mr. REID. Mr. President, I have for many, many years—every Thursday, when we are in session, I have what I call ''Welcome to Washington.'' I look forward to those Thursday mornings at 8:30 visiting with people from Nevada, and there are guests and their friends who come from other places who want to visit with me. So I enjoy those very much.

Last Thursday, I had a young man named Nathaniel visit. He had been an intern for me. His family is from Nevada. His grandfather is a very famous man by the name of John Squire Drendel. John Squire Drendel is now 93 but a wonderful lawyer and just a good person. The reason I recognized Nathaniel—they came back to one of my ''Welcome to Washingtons.'' I called him and I said: Hey, Nathaniel. Come on up here. I said: Let's show these folks some of your magic tricks. So that is what he would do. I would bring him in and he could do magic tricks. He is now going to law school. His magic tricks aren't as good as they used to be. He hasn't practiced very much.

What I have heard my friend the Republican leader talk about today—he is trying to do some magic tricks. It is not only on the Senate but the country. The Defense authorization bill is an important piece of legislation. We Democrats support our troops. No one can dispute that. We are just as patriotic as any Republican. My 46 Democrats are just as patriotic as the 54 Republicans. We support defense just as much as our Republican friends do. But we also support the rest of our country.

We support the Federal Bureau of Investigation, the Justice Department. We support the U.S. marshals who are now out looking for those two killers who escaped from prison in New York. We support the Drug Enforcement Administration. We support the Immigration and Naturalization Service, Social Security, VA. I could go on and on.

To have a sound, secure homeland, we have to make sure we take care not only of the Pentagon's needs but the needs of the American people. My friend the Republican leader, as a little bit of his magic, always throws in the Internal Revenue Service, as if: Boy, we are doing great things. We are cutting the Internal Revenue Service. I am not here to throw bouquets to the Internal Revenue Service, but I am here to say it is an important part of our country.

I met with the head of the IRS maybe a couple of months ago now. He came and said: You know, we made it through tax season and we did a good job. But he said: During the time that people were trying to file their income tax returns, if someone had tried to call the Internal Revenue Service, they would not have gotten an answer. We did not have enough personnel to even answer the phones.

Is that what we want? Do we want people who call the IRS not to be able to have someone answer the phone? And a lot of that is happening now.

The Federal Government is being starved for resources. Why? Because of the Republican determination to try some magic. We know the Republicans are not really serious about the Defense bill. If they were, would they throw on this the Export-Import Bank—an amendment—and move to table their own amendment? Of course not. Some 165,000 people are working today because of the Export-Import Bank. It is an important function of our government.

But a large number of Republicans are trying to kill this program, indicating how unserious they are about doing something about it, by focusing on the Defense bill an amendment that they filed and moved to table their own amendment just so they could check the box: Well, we tried to do something on Export-Import Bank.

Cyber security. We are being hacked on a daily basis. They are not only hacking businesses, they are hacking our government—everything. To show how unserious the Republicans are about this issue, which we have been trying to do something as Democrats for years, the Republicans filed an amendment on this bill knowing the President has already said he is going to veto the bill.

I am so disappointed in how the Republicans are being very ungenuine in trying to move forward on this legislation. The bill is going to be vetoed; the President said so.

The other thing that I think is important for the American public to understand and to make sure all of the Members of the Senate and their staff understand is that this is an authorization.

I can remember that as a boy in Nevada, in high school, I would see these big announcements—Senator Cannon and Senator Bible introduced this legislation. I wondered why nothing ever happened on it. It was because it was only to authorize. The important function of this government—and it has been since the beginning—is to have an Appropriations Committee. After something is authorized, it has to be funded.

So of course this authorization bill is important, and we believe it is important. But my friend the Republican leader is treating it—trying to perform some magic because he is really not serious about it for the reasons I have mentioned.

FOOD SAFETY

Mr. President, I have thought about this little girl for so many years, little Rylee, Rylee Gustafson. What a sweet, sweet spirit. I have thought about her so often. She was 9 years old. She ate a salad that almost killed her. There was spinach in that salad and E. coli in that spinach. She got so sick, she was hospitalized. Her kidneys began to fail. Her pancreas started to dysfunction. Before long, fluid swelled up in her brain, heart, and lungs.

All told, Rylee spent 34 days in the hospital. She was a 9-year-old. I wish that were the only time she was in the hospital, but it was not. I wish that were the only time she needed medical care, but it was not. Eventually, she ''recovered,'' but the lasting effects on this little girl have been horrible. She developed diabetes because of the damage to her pancreas, and she now takes an insulin shot every day. She will need a kidney transplant before she turns 30; that is what the doctors have told her. As horrific as her account is, it is not unique. This little girl is now a teenager and still sick. Her growth was stunted.

Unfortunately for many Americans, falling ill from contaminated foods has become all too regular. According to the Centers for Disease Control, one in every six Americans gets sick from food every year. That is about 48 million Americans who become sick from food in this great country.

More than 3,000 people die every year from foodborne illness, and those who don't die can be forced to deal with a lifetime of health complications, just like Rylee. Yes, she is alive, but what horrible consequences followed her having a salad.

At a recent Senate hearing on this issue, a woman named Lauren Bush

shared her experience with food contamination. Listen to an account that she shared of the ordeal.

During my junior year of college, my life suddenly and irrevocably changed when I almost died after eating a spinach salad.

What the doctors initially thought to be nothing more than a virus quickly escalated to a diagnosis of appendicitis. Through clenched teeth and unbearable pain, I argued with the doctors that something didn't feel right. It was like nothing I had ever felt before. They began to suspect that I was right when I quickly took a turn for the worse. I found myself in class one day and in a hospital bed the next.

I spent the next three weeks in and out of two hospitals, two emergency rooms, and three urgent-treatment facilities before I was well enough to go home and recover.

I had lost nearly 20 pounds, and went from being an otherwise young, healthy student to an emotional and physical disaster—all in less than one month's time.

I spent the next five months in recovery on continuous antibiotics and vitamins from the resulting complications. I almost lost my colon; and I lost my dignity when I was unable to feed and care for myself. I was fortunate enough to return to school the following spring, but it was several months before I could walk to class without stopping to take a breath. And in some ways, my body will never be the same.

Sadly, there are far too many Americans with stories similar to Rylee's and Lauren's. Take, for example, the recent listeria outbreak in two brands of some of the food products millions of Americans enjoy—ice cream and hummus. To date, the outbreak has claimed the lives of three people and sickened hundreds of others. One of the ice cream factories is closed as a result of this.

This is all the more tragic because each of these contaminations could have been prevented. The United States is the most advanced country in the world. We have the technology and the resources to ensure better food quality for people like Rylee.

We have made progress. In 2010, for a lot of reasons but not the least of which was Rylee, Congress passed the most sweeping reform of our Nation's food safety laws since the 1930s. The law shifted the focus of food safety laws from responding to contamination to preventing it. The FDA is working hard to implement this critical law. But the Food Safety Modernization Act cannot work if it doesn't have any money. Current funding levels don't provide the resources necessary to adequately fund programs to stop food contamination and create a system based on prevention.

It is that word again—''sequestration.'' This Agency has never recovered from the hit taken when the government was closed and then because of sequestration. By keeping sequestration in place, Republicans are hampering efforts to stamp out food borne illness.

Nobody should ever have to worry about dying from eating ice cream or being hospitalized after consuming hummus or spinach. Congress must act to strengthen the food safety of our country and the Food Safety Modernization Act, and we must do it now. Let's stop sequestration. Let's go ahead and authorize the bills, but, remember, we cannot fund them with funny money.

I can't imagine my Republican friends—and I have said before, my friend, the chairman of the Armed Services Committee—allowing this bill to go forward with this deficit spending that they call OCO. The Pentagon thinks it is wrong. All people who understand economics think it is wrong. Another $39 billion in deficit spending is just wrong. We need to fund the military, and we need to fund the nonmilitary—that is, nondefense programs—and we need to do it to make our homeland safer.

I hope that programs like this—Rylee has suffered so that we would do something—I hope that we will take care of her and people just like her and do something to fund these programs and prevent illnesses that are caused by food.

We need to act responsibly and raise the level of funding for these vital programs because for far too many Americans, this issue is a matter of life and death. All we need to do is ask Rylee and ask Lauren, and they will tell us.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2016

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of H.R. 1735, which the clerk will report.

The bill clerk read as follows:

A bill (H.R. 1735) to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Pending:

McCain amendment No. 1463, in the nature of a substitute.

McCain amendment No. 1456 (to amendment No. 1463), to require additional information supporting long-range plans for construction of naval vessels.

Cornyn amendment No. 1486 (to amendment No. 1463), to require reporting on energy security issues involving Europe and the Russian Federation, and to express the sense of Congress regarding ways the United States could help vulnerable allies and partners with energy security.

Vitter modified amendment No. 1473 (to amendment No. 1463), to limit the retirement of Army combat units.

Markey amendment No. 1645 (to amendment No. 1463), to express the sense of Congress that exports of crude oil to United States allies and partners should not be determined to be consistent with the national interest if those exports would increase energy prices in the United States for American consumers or businesses or increase the reliance of the United States on imported oil.

Reed (for Blumenthal) modified amendment No. 1564 (to amendment No. 1463), to enhance protections accorded to servicemembers and their spouses.

McCain (for Paul) modified amendment No. 1543 (to amendment No. 1463), to strengthen employee cost savings suggestions programs within the Federal Government.

Reed (for Durbin) modified amendment No. 1559 (to amendment No. 1463), to prohibit the award of Department of Defense contracts to inverted domestic corporations.

Feinstein (for McCain) amendment No. 1889 (to amendment No. 1463), to reaffirm the prohibition on torture.

Fischer/Booker amendment No. 1825 (to amendment No. 1463), to authorize appropriations for national security aspects of the Merchant Marine for fiscal years 2016 and 2017.

Lee amendment No. 1687 (to amendment No. 1473), to provide for the protection and recovery of the greater sage-grouse, the conservation of lesser prairie-chickens, and the removal of endangered species status for the American burying beetle.

McCain (for Ernst/Boxer) amendment No. 1549 (to amendment No. 1463), to provide for a temporary, emergency authorization of defense articles, defense services, and related training directly to the Kurdistan Regional Government.

Reed (for Gillibrand) amendment No. 1578 (to amendment No. 1463), to reform procedures for determinations to proceed to trial by court-martial for certain offenses under the Uniform Code of Military Justice.

The PRESIDING OFFICER. Under the previous order, the time until 11:30 a.m. will be equally divided in the usual form.

The Senator from Rhode Island.

Mr. REED. Mr. President, I yield 5 minutes to the Senator from Minnesota.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I rise today to discuss the Metal Theft Prevention Act, which was filed as an amendment to the National Defense Authorization Act. In a moment, I am going to ask unanimous consent to make this amendment pending, but first I wish to explain why this amendment is so important.

I have been working on this legislation for years. Senator SCHUMER is a cosponsor. In the past, I have had support for this bill as cosponsors in Senator HATCH, Senator LINDSEY GRAHAM, and Senator HOEVEN. Why has there been bipartisan support in the past for this bill? I think we all know that this is a public safety issue. Metal thieves have targeted labs, power stations, and gas lines, causing blackouts, service disruptions, and even dangerous explosions.

In September of 2013, four people were injured in an explosion at a University of California, Berkeley, electrical station. Officials blamed it on copper theft that occurred 2 hours before the explosion.

Georgia Power was having a huge problem with thieves targeting a substation that feeds the entire Hartsfield-Jackson Atlanta International Airport, one of the busiest airports in the world. The airport was getting hit two to three times a week, and surveillance didn't lead to any arrests.

The crime has also hurt the dignity of our veterans. Last year in my home State of Minnesota, the metal thieves robbed dozens of veterans' graves, taking the brass rods that hold their symbol of service. It is a crime that is almost too callous to comprehend, but sadly this wasn't the first time. On Memorial Day in 2012—this is just in Minnesota—thieves stole more than 20 Bronze Star markers from veterans' graves in Isanti County. That is why this bill is supported by the Veterans of Foreign Wars, the Vietnam Veterans of America, the Iraq and Afghanistan Veterans of America, as well as major law enforcement organizations and business groups.

The bill is really quite simple. It will help combat the shameless crime across State lines by putting modest recordkeeping requirements on scrap metal dealers and recyclers in place. It will limit the value of cash transactions to $100 and require sellers in certain cases to prove they actually own the metal.

All we are trying to do is stop scrap metal dealers from taking stolen metal. And the reason we can't just do it State by State is that a lot of States are doing this but a lot of States aren't, and what the thieves are doing is crossing State lines, stealing the metal in one State and selling it in another.

This is an important bill, and it has been heavily lobbied against by the scrap metal dealer association.

The Democratic side of the aisle has cleared this bill. We are ready to go forward with this amendment. There are objections on the Republican side. But I think people better step back and realize, the next time there is a major explosion, the next time something happens like this, which is happening on a weekly basis across the country—that they understand we could have done something to prevent it.

Mr. President, I ask unanimous consent to set aside the pending amendment in order to call up my amendment No. 1555.

The PRESIDING OFFICER. Is there objection?

Mr. MCCAIN. Mr. President, reserving the right to object, and I will object, I object on behalf of the Judiciary Committee. This would criminalize stealing metal. It makes it a Federal offense; therefore, the Judiciary properly has jurisdiction. It would also establish civil penalties enforceable by the Attorney General. It directs review of this crime by the Federal sentencing commission. It has no tie to the national security or the National Defense Authorization Act. So I object.

The PRESIDING OFFICER. Objection is heard.

Ms. KLOBUCHAR. Mr. President, I am disappointed that there is an objection to calling up this commonsense amendment that has so much support from veterans, law enforcement, and businesses. I have stood in front of small businesses all over my State, including with Senator HOEVEN in Fargo, a number of electric companies that have been repeatedly broken into.

I believe this does have national security implications because there is a provision in the bill about critical infrastructure and creating a felony-level crime when they are stealing from that critical infrastructure. And I believe it is very important that we debate and vote on this issue as part of the National Defense Authorization Act.

I will continue to work to get a vote on this amendment during this entire year. I worry that at some point we are going to have major damage to our infrastructure as a result of metal theft, and everyone will look back and wonder why we didn't listen to every major law enforcement group in our country or to every single business that has been affected or to the electric companies that are being broken into all the time or to our veterans groups, that just want their final resting places to be respected. Despite the lobby of the scrap metal dealers, I will not let this rest.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I would point out to the Senator from Minnesota that we started on this legislation in the committee in May. We are now well into June—many weeks. We are 2 weeks into the consideration of this legislation, and the Senator from Minnesota comes to the floor with a compelling amendment.

I suggest the next time around the Senator from Minnesota raise the issue with the authorization committee and with others when the bill first comes to the floor rather than waiting 2 weeks before having a compelling interest in this very serious issue.

Ms. KLOBUCHAR. Mr. President——

Mr. MCCAIN. I still have the floor, I would say to the Senator from Minnesota. The rules of the Senate are that we usually don't like to be interrupted.

Mr. President, we are going to embark on the McCain-Feinstein amendment, which I understand is going to be voted on at 11:30; is that correct?

The PRESIDING OFFICER. The Senator is correct.

Mr. MCCAIN. I thank the Chair.

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I would like to note that I have been attempting to pass this legislation now for 3 years. Senator HATCH was my first cosponsor, then Senator GRAHAM, and then Senator HOEVEN. Every step of the way I have been stymied by the scrap metal dealer lobby.

I believe this is an important bill. It is a simple bill. It will greatly help because these thieves are crossing State lines with the stolen copper. I appreciate, obviously, Senator MCCAIN's viewpoint, being the manager of this bill on the floor, but I think the record should reflect that I have tried many times to get this amendment up on other bills and to work with the committee, but every single time I get stopped in my tracks by this lobby. At some point I would like to have a vote on this so that people can vote their heart and vote with their law enforcement or vote with the scrap metal dealers. They can decide.

For now, our side has cleared this amendment, and the Republicans are objecting to this.

I yield the floor.

Mr. MCCAIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the time spent be equally divided while in a quorum call.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

CHICAGO BLACKHAWKS WIN STANLEY CUP

Mr. DURBIN. Mr. President, there are serious matters on the floor of the Senate involving the Defense authorization bill, and I just asked the chairman of the Committee on Armed Services for 5 minutes to speak on an issue totally unrelated to it but one which is critically important to the future of America and critically important today to the city of Chicago, IL.

Last night, I stayed up late to watch the Chicago Blackhawks win the Stanley Cup. They were playing the Tampa Bay Lightning—an extraordinarily good team—and in the sixth game they won 2 to zip. That is three Stanley Cups in 6 years.

I can tell you that you can't visit Chicago, go to any street corner or anyplace without seeing evidence of loyalty to the Chicago Blackhawks. It is an incredible story of a storied franchise in the National Hockey League that has become a premier sports story in the great sports city of Chicago. And last night was so much fun for all of us to watch that victory.

Any child who has ever laced up an old pair of skates or put tape on a stick has thought about what happened last

night. From Springfield, IL, to Saskatoon, from Moose Jaw to Miami, if you have spent any time at all around the game of hockey, you wonder what it must feel like to stand at the end of a very long season, after three long periods of total effort white-knuckled moments, before tens of thousands of elated fans, and hoist up the most storied trophy in all of sports—Lord Stanley's Cup. The goal of every team in the National Hockey League is to hoist up that cup at the end of the season.

I rise today to pay tribute to the players, coaches, staff, and fans of the Chicago Blackhawks, the 2015 Stanley Cup champions, whose season-long mantra of ''One Goal'' was realized last night at the United Center in Chicago.

Last night, the Blackhawks won their sixth Stanley Cup in franchise history and the third in the last 6 years, with the 2-to-0 victory over the Tampa Bay Lightning, a formidable team as well.

Fans at the Madhouse on Madison, as we call the United Center, witnessed Duncan Keith and Patrick Kane score show-stopping goals while goaltender Corey Crawford seemed incredible in his defense, stopping all of the 25 shots that he faced.

I congratulate especially owner Rocky Wirtz, head coach Joe Quenneville, who is known as Coach Q, ''Captain Serious,'' Jonathan Toews, the Blackhawks front office, the players, and, most of all, the legions of Blackhawks fans as they celebrate another Stanley Cup Championship.

Those who know the history of this team, and those who have followed them for decades know that in the past 7 years there has been a transformation in the Blackhawks. With Rocky Wirtz taking over as the owner, this team went on television just at the moment when they were reaching this level of perfection, and they started winning over thousands of fans—not just across Chicago but across Illinois and the Midwest.

Blackhawks fans, I think, are the best fans in hockey, and you can understand if a lot of them are a little tired this morning. The Blackhawks began the playoffs with a remarkable double-overtime victory against the Nashville Predators, another excellent team. They were down 3 to 0 after the first period. The Hawks stormed back to tie the game and won on a Duncan Keith goal. That victory set the tone for a great run through the playoffs. A goal by Brent Seabrook in triple overtime in game 4 helped the Hawks defeat Nashville in six games.

A sweep of the Minnesota Wild followed, setting up a showdown with the Anaheim Ducks in the Western Conference Finals. The Hawks were behind in the series one game to none, 2 to 1, and 3 to 2, but they earned double- and triple-overtime victories on their way to winning in seven games, clinching a berth in the Stanley Cup Final.

The Hawks followed a familiar pattern in dropping games 1 and 3 of the final, but they took a 3-to-2 series lead into Monday night's Game 6 on home ice. It was another close contest as Kane's one-timer with 5:14 remaining marked the first time either team led by more than one goal in the entire series.

The time slowly ticked down until 22,424 fans at the United Center were finally able to erupt in celebration. It was a great night for Blackhawks fans and the culmination of a tremendous team effort.

Antoine Vermette, acquired at the trade deadline, scored two game-winning goals in the Stanley Cup Final. Goaltender Scott Darling stood tall in the net when his team needed him the most, in relief of Corey Crawford when called upon against Nashville. Duncan Keith was an iron man, earning the Conn Smythe Trophy for playoff MVP, while logging more than 700 minutes of ice time in 23 games. Nicklas Hjalmarsson blocked shots left and right and seemed to be in the right place all the time.

I can't tell you how happy I am for those Blackhawks and for all of their amazing fans on their Stanley Cup championship. It has been a thrill to watch this team throughout the years, and I look forward to seeing President Obama host the Stanley Cup champion Blackhawks yet another time at the White House.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, I have serious concerns with the language that was tacked on to the House FISA reform bill that passed the Senate, and at the end of my remarks I am going to offer a unanimous consent request. I say that because maybe other Members of the Senate would like to be heard or would like to maybe reject my unanimous consent request, and I want to give them the privilege of knowing I am doing this.

The language in the FISA bill made changes to the Federal criminal code to implement four important multilateral treaties relating to nuclear terrorism and the proliferation of weapons of mass destruction. It is good that these treaties are finally being implemented. The Senate gave its advice and consent to these treaties back in 2008. In the years since then, however, the Senate leadership repeatedly failed to bring bills to the floor that would implement them.

The language which is now law omits a number of key provisions that were requested by both the Obama administration and the Bush administration. So I want my colleagues to know this has had support from both Republican and Democrat Presidents, in the present and in the past.

My amendment No. 1786 restores these provisions, which are important tools to combat the gravest of threats to our national security. I am happy to note that Senator WHITEHOUSE, the ranking member of the Judiciary Committee's Subcommittee on Crime and Terrorism, has joined me in offering this amendment.

First, the amendment adds the authority for prosecutors to seek the death penalty for these newly created crimes in appropriate cases. Under the criminal code, similar crimes already carry the possibility of the death penalty. Singling out these new offenses under this treaty, which is intended to stop terrorists from threatening us with the world's most dangerous weapons, for lesser punishment simply makes no sense.

For example, section 2280 and 2281 of the code, which criminalizes various acts of violence on the high seas, already provide for the possibility of the death penalty. So it is only logical that new sections 2280a and 2281a, which criminalize acts of terrorism on the high seas related to weapons of mass destruction, should as well. The newly created offenses of nuclear terrorism, now codified in section 2332i, should as well. In fact, I am hard pressed to think of an offense for which the death penalty might be more appropriate than nuclear terrorism.

Terrorists who kill Americans—especially nuclear terrorists—should be eligible for the death penalty. This shouldn't at all be controversial, and I think the support of both former President Bush and President Obama speaks to that point. Terrorists who kill Americans—especially nuclear terrorists—should be eligible for the death penalty. I can't repeat too often that this shouldn't be controversial.

Second, the amendment makes these newly created criminal offenses material support predicates. In other words, the amendment would provide the government the ability to prosecute those who finance or otherwise provide material support to these terrorists. Naturally, these are complex crimes that aren't committed by just one person. They involve entire networks that need to be stopped in their tracks. This provision will help do that by making sure that those who provide materiel support to terrorists don't escape justice.

Third, the amendment would add these offenses to the list of those crimes that are predicates for wiretap applications. As the law now stands, prosecutors can't request a traditional criminal wiretap against a terrorist suspected of breaking these new laws, but at the same time, they can get a wiretap to investigate a long list of less serious offenses. Again, this doesn't make sense. In fact, this is a dangerous omission. Our government needs the ability to listen in on calls of suspected nuclear terrorists. So this provision would permit prosecutors to request the authority to do so from a Federal judge.

Once again, I use the term ''common sense.'' These are commonsense fixes, supported by both Republican and Democratic Presidents, fixing and harmonizing these recently created crimes with the rest of the criminal code, fixing and harmonizing these recently

created crimes with the rest of the Criminal Code. They were requested by both the Obama and Bush administrations because they will help protect us from the catastrophe that could result from terrorists seeking to use the ultimate weapons against us. So I urge my colleagues to support Grassley-Whitehouse amendment No. 1786.

At this time, I ask unanimous consent to set aside the pending amendment and call up and make pending Grassley-Whitehouse amendment No. 1786.

The PRESIDING OFFICER. Is there objection?

Mr. REED. Mr. President, reserving the right to object.

First, the Senator is chairman of the committee which has jurisdiction for this particular amendment, so he has complete—in fact, more than complete—authority to bring it up in regular order and bring it forward to the floor. In addition, we have been advised by the Department of Justice that these provisions are not necessary, given the scope of existing law with respect to terrorists and with respect to anyone who conducts a terrorist act. Perhaps an example of that is the Boston bombing, where there is now someone condemned to death for terrorist activities—not involving a nuclear device, but I hardly think he would get any less of a sentence regardless of the device he used.

So for all these reasons, I object.

The PRESIDING OFFICER. Objection is heard.

Mr. GRASSLEY. Mr. President, I accept the good-faith effort to listen to my point of view, even though there is a rejection, but I would like 1 minute to react to the objection.

This amendment only does what both the Bush and Obama administrations asked Congress to do, to make clear that the death penalty could apply to any active nuclear terrorism. It is not enough that other criminal statutes might also apply to nuclear terrorists and might also carry the death penalty. It is quite the opposite; that terrorists who use guns and explosives to kill can face the death penalty means that nuclear terrorists certainly should as well. It does not take too much imagination to come up with a situation which, under current law, the death penalty might not clearly apply.

We are all aware of the threat of cyber terrorism. If a terrorist used a computer to take over a nuclear powerplant and caused a deadly nuclear meltdown, it is not clear that his crime would be eligible for the death penalty under any other Federal Criminal Code. We simply shouldn't accept this potential gap in the law which my amendment fixes.

So, once again, I am sorry there was an objection. I am not done with this. We will continue it in some other environment. I respect my colleagues, however, for objecting.

I yield the floor.

AMENDMENT NO. 1889

Mr. LEAHY. Mr. President, Congress has some unfinished business before it. When the President took office, he issued an Executive order banning torture. It is regrettable that such a step was even necessary for a country that has been a signatory to the Convention Against Torture since 1988, more than 25 years ago. But it was the right thing for the President to do and consistent with our values as Americans. In particular, the President ordered that all U.S. Government personnel and contractors must comply with the interrogation standards in the Army Field Manual and that the International Committee of the Red Cross should have notice of and access to detainees held by the U.S. Government.

Now it is time for Congress to adopt these same requirements—to enshrine them in law and ensure that America never again employs torture, no matter what the threat.

Senators MCCAIN and FEINSTEIN have offered an amendment that mirrors these requirements of the Executive order. It would require all government personnel and contractors, across all agencies and departments, to abide by the rules and regulations contained in the Army Field Manual. It also would ensure that the International Committee of the Red Cross, or ICRC, is provided access to all individuals detained by the United States.

These requirements have already been in place for 6 years, and this amendment is consistent with current practice. The Army Field Manual provides clear guidelines on acceptable and effective interrogation practices. It reinforces explicit prohibitions in existing law against torture and other cruel and inhumane treatment. It is relied upon by our military personnel when they conduct high-risk interrogations on the battlefield. There is no reason why these rules should not apply to all government personnel and contractors, in all places, and at all times.

This is a critically important amendment. We know from the historic report of the Senate Intelligence Committee that the CIA engaged in horrific acts of torture during the Bush administration. We must be unequivocal to the world and to ourselves that torture is wrong and that it is never permitted.

An Executive order is not enough. Congress must act. We must codify these safeguards into law. When it comes to our core values—the things that make our country great and that define America's place in the world—they do not change depending on the circumstances. The Convention Against Torture does not make exceptions. We must be clear that there are no instances when torture is acceptable.

I urge Senators to support the anti-torture amendment, and I commend Senators MCCAIN and FEINSTEIN for their enduring leadership on this issue. We must ensure that America never allows this to happen again.

The PRESIDING OFFICER. The President pro tempore.

Mr. HATCH. Mr. President, I rise to speak out at a time when our world is on fire: Putin's Russia is on the march, invading a sovereign neighbor in a bid to rebuild the Soviet empire; China asserts its growing strength in aggressive and provocative ways in the Pacific; Iran presses ahead in its efforts to develop nuclear weapons capability, a development that threatens to put the deadliest weapons known to man in the hands of a maniacal rogue state; the Islamic State continues to expand its barbaric reign of terror and endanger everything our brave men and women in uniform fought and died for long ago in Iraq; terrorist groups, including Al Qaeda in the Arabian Peninsula and Al-Shabab, use the refuge of failed states to plot attacks on our homeland; and, across the globe, our allies look to the United States to provide the leadership necessary to confront these threats to peace.

One of the foundational purposes of our Constitution was to establish a Federal Government to—in the words of the preamble—provide for the common defense. In facilitating this purpose, the Congress is charged with two particularly crucial duties: establishing the legal authority for our military to operate and funding our military's activities. For 53 years in a row, Congress has fulfilled these responsibilities with an annual National Defense Authorization Act and accompanying funding through the appropriations process. Despite the gridlock that has so often beset the legislative process in recent years, Congress has consistently risen to the call of its constitutional duty every year to authorize and appropriate on behalf of our brave men and women in uniform.

This year, our colleagues on the Armed Services Committee have lived up to the finest traditions of this body in crafting the National Defense Authorization Act for Fiscal Year 2016. This bill provides for our national security needs across a wide variety of fronts, including programs to aid allies such as Ukraine and Iraq that face aggression, compensation for the men and women who put their lives on the line to defend our freedom, restructuring to improve readiness, authority to procure a wide range of new weapons systems such as the F–35 Joint Strike Fighter that are crucial to maintaining our defense capabilities, and acquisition reform to restore accountability to defense contracting and make the money we spend go further.

These aren't Republican or Democratic priorities, they are American priorities. They are concrete steps we need to take in order to ensure our safety and security for years to come, and they should earn the support of every single Senator.

The bill before us authorizes $604 billion in spending for the Defense Department in the coming year. That is essentially the very same amount requested by President Obama himself.

President Obama and our colleagues on the Armed Services Committee did not come up with that number out of thin air. In testimony before the Senate Armed Services Committee this year, all four of the military service chiefs testified that American lives are being put at risk if we cap defense spending at the sequester levels. The amount proposed by President Obama and embraced by the Armed Services Committee is the amount that both Republican and Democratic, as well as nonpartisan, experts believe is crucial to the Defense Department's ability to preserve our national security. Surely, such an approach on such a critical measure should win broad support from both parties.

Nevertheless, many of our colleagues on the other side of the aisle are threatening a filibuster of the bill over the amount of funding it authorizes. They are considering the prospect of defeating the National Defense Authorization Act for the first time in 53 years unless we agree to their demands to increase spending on domestic programs. Put another way, they are aiming to condition the ability of our soldiers, sailors, airmen, and marines to defend our Nation on their demand for more funding for the wasteful Federal bureaucracy that already costs too much.

Let me be absolutely clear. To roll back what progress we have made in restoring fiscal discipline after years of profligate spending is seriously misguided, to do so by hijacking the Defense bill at a time of serious danger—when we face so many crises around the world—represents the height of irresponsibility, and to make such a ''my way or the highway'' demand as a condition of fulfilling one of the Senate's basic duties is unworthy of the great traditions of this body.

Many of us have worked toward various solutions to replace the sequester going forward. Republicans and Democrats alike have their preferred alternatives to the current funding arrangements. Nevertheless, we simply cannot shirk our duty to provide for the common defense in the present. Political reality demands that we reject partisan grandstanding in favor of working together on this must-pass bill.

Over the past 2 weeks, the majority leader and the chairman of the Armed Services Committee have led a debate on this bill that represents the Senate at its finest. We have considered the bill on time—a needed change from recent years that restores the Senate's proper voice in our national defense. We have held hours upon hours of debate on the floor, and we have held a fair and open amendment process for Members on both sides of the aisle.

As part of that open amendment process, the Senate considered an amendment from the ranking member of the Armed Services Committee that would condition the funding level on the domestic spending increases sought by our Democratic colleagues.

Despite my disagreements on the substance, I want to commend the ranking member for his sincere advocacy and for his determination to put his plan before this body for an up-or-down vote. But as that vote result showed, a majority of this body strongly disagrees with the minority's preferred alternative. Having fully aired this issue and voted on it, it is time for the Senate to wrap up our debate and pass this bill. To exploit the supermajority threshold to demand a concession rejected by a majority of Senators on a bill of such vital importance to our national defense would represent a gross dereliction of duty and a tragically irresponsible choice.

I urge my friends in the minority: do not give in to the temptation of partisan grandstanding, do not let this become another exercise in political brinksmanship, do not place a desire to fight the majority over our shared duty to keep this country safe, and do not jeopardize our men and women in uniform to win concessions for yet more domestic spending.

Work with us. Embrace the funding levels the Obama administration believes are necessary to keep us safe and keep alive our proud tradition of placing national security ahead of partisan politics.

I yield the floor.

The PRESIDING OFFICER. The Democratic leader.

Mr. REID. Mr. President, I know there is important debate, but I wish to take a few minutes and talk about America losing one of its finest entrepreneurs and citizens.

REMEMBERING KIRK KERKORIAN

Mr. President, last night, at 10:30, my friend Kirk Kerkorian died. What a wonderful man. He was 98 years old, and when history books are written, they will say a lot about this good man.

I had the good fortune as a young lawyer to meet him. I didn't do any of his mergers and acquisitions and all the stock stuff. I didn't do any of that. But when we first met, he was a businessman with an airline called Trans International Airlines. I will talk about that in a minute, but it started out as one airplane.

I knew that Kirk was failing because he and I were supposed to go watch the Mayweather-Pacquiao fight, and he said he couldn't go. I knew then that his days were numbered, for lack of a better description.

I had kept in touch with him all these many years. As I said, I am not one to boast about all the great legal work I did for Kirk. I didn't do much. But I did do a lot of work for his brother, a man by the name of Nish Kerkorian, and Kirk never forgot all the work I did for his brother.

Kirk had two siblings: One woman who was a sweet, sweet lady, vibrant, named Rose, his sister Rose. She died not long ago. I called Kirk. It was really hard on him; he cried, and we shed a tear together.

He was born in 1917 in Fresno, CA. His parents were Armenian immigrants. He grew up at a very difficult time. He didn't graduate from the eighth grade. He became a prize fighter, became the Pacific amateur welterweight champion, and his name was ''Rifle Right'' Kerkorian.

His brother Nish, whom I talked about, was also a fighter and a boxer, and he fought a lot. Kirk didn't fight too much.

On the floor is one of ours—if not the hero we have in the Senate for military endeavors—the senior Senator from Arizona.

It is important to talk about Kirk Kerkorian for just a minute and about what he did for our country in the military, using that term broadly—''in the military.'' He had learned to fly, while milking cows and looking after a woman's cattle, at an air strip near now what is Edwards Air Force Base. That is where he learned to fly, at a place called Happy Bottom Riding Club. That is where he learned to fly. He loved to fly. He got his pilot's license in just a few months, and he wanted to go into the military, but he couldn't at the time because we weren't in the war yet.

The British Royal Air Force was ferrying Canadian-built de Havilland Mosquitoes over the North Atlantic because England was desperate for help. The Nazis were after them, Hitler was sweeping Europe, and the submarines were sinking the ships trying to take supplies to England. So out of desperation, Canada, which was part of Great Britain at the time, decided they would help. The problem was that to fly those airplanes over the North Atlantic was really very, very difficult. They had two routes. One was 1,400 miles. The other was shorter but extremely more dangerous. Kirk Kerkorian agreed to take the one more dangerous. It was dangerous because the North Atlantic is very brutal. The wings would ice. But he got a lot of money for each flight—almost $1,000 for each flight. He delivered 33 planes to England. Every one of those flights was a nightmare, but he did it.

He was truly an American patriot. There is a documentary on what he did—flying across the North Atlantic with some other gallant men who did that and helped preserve freedom in the world and take on the Nazis.

After the war, he had saved a lot of his money, and he bought a Cessna. It was expensive at the time—$5,000. He worked in general aviation. He first visited Las Vegas in 1944. In 1947 he paid $60,000 for the airline where I first met him. He was dealing with Trans International Airlines, which was a small air charter service that basically flew gamblers between L.A. and Las Vegas. He, of course, was a very frugal man. He operated the airline until 1968, when he sold it for $104 million. He paid $60,000 for it and sold it for $104 million. That was him. He was an entrepreneur.

He moved into Las Vegas quickly. He bought a piece of land across from the Flamingo Hotel for $960,000. It was 80 acres. That is now where Caesars Palace is. He was originally the landlord for that property. He made $9 million on that deal.

He then, shortly thereafter, paid $5 million cash for an off-Strip property—the first one that had ever been done. That is something I was involved with. It was quite interesting. That transaction showed to me his absolute honesty. I have said publicly—I am not going into detail here—but I will end by saying that the lawyer with whom I worked, Bill Singleton, said: No, Kirk doesn't do business that way, and he walked out of the room. He wound up buying the property. That was where the International Hotel was built, and it was a very, very expensive property at the time. It was off-Strip. The first two people to appear in the showroom were Barbra Streisand and Elvis Presley, and that was the beginning of Kirk Kerkorian's ascension to power broker, to say the least, in Las Vegas.

He bought and sold MGM movies two different times. In the process, of course, he built the MGM hotel in Las Vegas. He was really an interesting, wonderful man. He is one of the personalities I will never forget, and my relationship with him is one of the special things in my life. I feel so fortunate to be able to talk on a personal basis about this man. He was one of a kind.

I am so disappointed. His No. 1 person, Tony Mandekik, called me and told me that Kirk had died. To be honest with you, the tears on the other side of the phone connection from Tony ended the conversation because he couldn't talk anymore. Now he is responsible, among others—but principally him—for disposing of this man's wealth.

He did not make all of his money in movies or hotels and casinos. He branched out. He made a number of fortunes. People would say: How does he know anything about the automobile industry? He wound up owning large chunks of General Motors. He was one of the chief players in Chrysler. He no longer made in those propositions millions of dollars but billions. He made about $5 billion on this Chrysler Corporation deal, where people said: What a fool—why would he do that?

You know that deal.

Not too long ago, about 3 years ago, I met him for lunch in Los Angeles. I said: I have to get going. He pulled out of his pocket his watch.

Kirk, what is that?

He says: It is my watch.

It was a Timex with no band on it.

He said: It keeps perfect time.

He came to the Beverly Wilshire Hotel. He drove himself in a little jeep—a jeep with the top partially down. That was him. He was a very private man. He rarely gave interviews. I mean, he rarely gave interviews. Even though he was one of the richest men in Los Angeles, he was probably one of the most private. He simply did not do things in public.

With all of the hotels that he owned—for those people who have a little bit of knowledge of Las Vegas, a lot of stuff is done with complimentary privileges. If you are a hotel owner, you get a lot of stuff for nothing—not Kirk Kerkorian. He would not take a comp for anything. Everything he paid for.

One of the last times we went to a fight, he also would not sit ringside. He always wanted to be up away from everybody.

In 2008 he was worth $16 billion. I am not sure how much he was worth when he died. But he has given huge amounts of his wealth away. His job for Tony Mandekik and others was to give away the rest of his money.

It is a sad day for me and for the people who knew Kirk Kerkorian. He lived a good, full life. He has two daughters. He always went out of his way and paid his help well.

I wish I had the ability to articulate what a wonderful human being Kirk Kerkorian was. I will always remember him. When I talk to people who know something about business, I will always interject the name Kirk Kerkorian.

The PRESIDING OFFICER. The Senator from Arizona.

AMENDMENT NO. 1889

Mr. MCCAIN. Mr. President, I ask unanimous consent that the Senator from California have 15 minutes and I have 10 minutes and that the vote be delayed until completion of the 15 minutes and the 10 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mrs. FEINSTEIN. Thank you very much, Mr. President.

I thank the distinguished chairman for this time. I do not think I will take 15 minutes. We have worked it down.

I join Senator MCCAIN and Ranking Member REED—as well as Senator COLLINS and the other cosponsors, Senators LEAHY, PAUL, KING, FLAKE, HEINRICH, WHITEHOUSE, MIKULSKI, WYDEN, MURPHY, HIRONO, WARNER, BALDWIN, BROWN and MARKEY—in offering an amendment that will help ensure the United States never again carries out coercive and abusive interrogation techniques or indefinite secret detentions.

I am very pleased that the Senate will consider this amendment, and I urge an aye vote.

The amendment we are offering today is really very simple. It applies the authorizations and restrictions for interrogations in the Army Field Manual to the entire U.S. Government.

It extends what Congress did in 2005, by a vote of 90 to 9, with the Detainee Treatment Act—which I believe Senator MCCAIN authored—which banned the Department of Defense from using techniques not authorized by the Army Field Manual and also banned the government from using cruel, inhuman, and degrading treatment or punishment.

The amendment also requires prompt access by the International Committee of the Red Cross to any detainee held by the U.S. Government.

Both of these provisions are consistent with United States policy for the past several years, but this amendment would codify these requirements into law.

President Obama banned the use of coercive and abusive interrogation techniques by Executive order in his first few days in office, actually on January 22, 2009.

That Executive order formally prohibits—as a matter of policy—the use of interrogation techniques not specifically authorized by the Army Field Manual on Human Intelligence Collector Operations.

This amendment places that restriction in law. It is long overdue.

The amendment also codifies another section of President Obama's January 2009 Executive order, requiring access by the International Committee of the Red Cross to all U.S. detainees in U.S. Government custody—access which has been historically granted by the United States and other law-abiding nations and is needed to fulfill our obligations under international law, such as the Geneva Conventions.

It is also important to understand that the policies in the 2009 Executive order are only guaranteed for as long as a future President agrees to leave them in place. This amendment would codify these two provisions into law.

Current law already bans torture, as well as cruel, inhuman, or degrading treatment or punishment.

However, this amendment is still necessary because interrogation techniques were able to be used, which were based on a deeply flawed legal theory, and those techniques, it was said, did not constitute ''torture'' or ''cruel, inhuman, or degrading treatment.''

These legal opinions could be written again.

In 2009, President Obama's Executive Order settled the issue as formal policy, and this amendment will codify a prohibition on a program that was already defunct at the end of the Bush administration.

CIA Director John Brennan has clearly stated that he agrees with the ban on interrogation techniques that are not in the Army Field Manual. Director Brennan wrote the following to the Intelligence Committee in 2013 about the President's 2009 Executive order:

> I want to reaffirm what I said during my confirmation hearing: I agree with the president's decision, and, while I am the Director of the CIA, this program will not under any circumstances be reinitiated. I personally remain firm in my belief that enhanced interrogation techniques are not an appropriate method to obtain intelligence and that their use impairs our ability to continue to play a leadership role in the world.

Furthermore, it is important to point out that the Senate and the House both

required the use of the Army Field Manual across the government in the fiscal year 2008 Intelligence authorization bill. Unfortunately, President Bush vetoed that legislation.

Whatever one may think about the CIA's former detention and interrogation program, we should all agree that there can be no turning back to the era of torture.

Interrogation techniques that would together constitute torture do not work. They corrode our moral standing, and ultimately they undermine any counterterrorism policies they are intended to support.

So before I close, I ask unanimous consent to have printed in the RECORD a series of letters and statements in support of this amendment.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

JUNE 9, 2015.

DEAR SENATOR: As retired generals and admirals who believe that American ideals are a national security asset, we urge you to support the amendment to the 2016 National Defense Authorization Act that solidifies the ban against torture and cruel treatment of detainees in U.S. custody.

While international and domestic law, including the 2005 Detainee Treatment Act, prohibit such cruelty, high-level officials in the Executive Branch still managed to evade congressional intent by using loophole lawyering to authorize torture and cruel treatment. We need to make sure this never happens again. The United States should have one standard for interrogating detainees that is effective, lawful, and humane.

The McCain-Feinstein amendment would ensure lawful, effective, and humane interrogations of individuals taken into custody by requiring all agencies and departments to comply with the time-tested requirements of the Army Field Manual (''Human Intelligence Collector Operations''). It would also codify existing Department of Defense (DOD) practice of guaranteeing timely notification and access to the International Committee of the Red Cross (ICRC) for detainees taken into custody—an important bulwark against abuse.

We strongly urge you to support this legislation to help move our country towards decisively rejecting the use of torture or cruel treatment against detainees held in our custody.

Thank you for your commitment to upholding our national security and American values.

Sincerely,

General Joseph Hoar, USMC (Ret.); General Charles Krulak, USMC (Ret.); General David M. Maddox, USA (Ret.); Lieutenant General John Castellaw, USMC (Ret.); Lieutenant General Robert G. Gard, Jr., USA (Ret.); Vice Admiral Lee F. Gunn, USN (Ret.); Lieutenant General Claudia J. Kennedy, USA (Ret.); Lieutenant General Charles Otstott, USA (Ret.); Lieutenant General Norman R. Seip, USAF (Ret.); Vice Admiral Joe Sestak, USN (Ret.); Lieutenant General Harry E. Soyster, USA (Ret.); Lieutenant General Keith J. Stalder, USMC (Ret.); Rear Admiral Don Guter, JAGC, USN (Ret.); Rear Admiral John D. Hutson, JAGC, USN (Ret.); Major General J. Michael Myatt, USMC (Ret.); Major General William L. Nash, USA (Ret.).

Major General Eric T. Olson, USA (Ret.); Major General Thomas J. Romig, USA (Ret.); Major General Walter L. Stewart, Jr., USA (Ret.); Major General Antonio M. Taguba, USA (Ret.); Brigadier General John Adams, USA (Ret.); Brigadier General Stephen A. Cheney, USMC (Ret.); Brigadier General James P. Cullen, USA (Ret.); Brigadier General Evelyn P. Foote, USA (Ret.); Brigadier General Gerald E. Galloway, USA (Ret.); Brigadier General Leif H. Hendrickson, USMC (Ret.); Brigadier General David R. Irvine, USA (Ret.); Brigadier General John H. Johns, USA (Ret.); Brigadier General Murray G. Sagsveen, USA (Ret.); Brigadier General Stephen N. Xenakis, USA (Ret.).

[From Peaceful Tomorrows, June 10, 2015]

SEPTEMBER 11TH FAMILIES SUPPORT THE REINFORCEMENT OF BAN ON TORTURE

(Posted by Katharina)

As family members of those killed on September 11th we have strong opinions regarding torture. The use of enhanced interrogation techniques, or torture by another name, was wrongly justified by some as means to prevent another terrorist attack. Torture is never justified. September 11th Families for Peaceful Tomorrows applauds the legislation being offered by Senators McCain and Feinstein to reinforce the ban on torture. Any assertion of torture as effective must be repudiated. Any loophole suggesting torture as a justifiable means to security must be closed. Any ethical principle that finds torture morally permissible must be challenged.

American legislators must clearly and forcefully codify policy that rejects and criminalizes torture in all its forms. Only then will trust in the rule of law be restored, and the people of this nation truly safe.

JUNE 9, 2015.

DEAR SENATOR: As intelligence and interrogation professionals who have offered our collective voice opposing torture and other forms of cruel, inhuman or degrading treatment, we strongly encourage you to support the amendment to the 2016 National Defense Authorization Act that solidifies the ban against torture and cruel treatment of detainees in U.S. custody.

While international and domestic law, including the 2005 Detainee Treatment Act, prohibit such cruelty, sadly high-level officials in the Executive Branch exploited loopholes and still authorized torture and cruel treatment. The interrogation methods that have kept America safe for generations are sophisticated, humane, lawful, and produce reliable, actionable intelligence in any interrogation scenario. To promote a return to that respected level of professionalism, there must be a single well-defined standard of conduct—consistent with our values as a nation—across all U.S. agencies to govern the detention and interrogation of people anywhere in U.S. custody.

The amendment would ensure lawful, effective, and humane interrogations of individuals taken into custody by requiring all agencies and departments to comply with the time-tested requirements of the Army Field Manual (''Human Intelligence Collector Operations''). It would also require a review of the Army Field Manual to ensure that best practices and the most recent evidenced-based research on humane interrogation are incorporated. It would also codify existing Department of Defense (DOD) practice of guaranteeing timely notification and access to the International Committee of the Red Cross (ICRC) for detainees taken into custody—an important bulwark against abuse.

We strongly urge you to support this legislation to help move our country forward and reaffirm that there is no conflict between adhering to one of our nation's essential and founding values—respect for inherent human dignity—and our ability to obtain the intelligence we need to protect the nation.

Sincerely,

Frank Anderson, CIA (Ret.); Donald Canestraro, DEA (Ret.); Glenn Carle, CIA (Ret.); Jack Cloonan, CIA (Ret.); Barry Eisler, Formerly CIA; Eric Fair, Formerly U.S. Army; Mark Fallon, NCIS (Ret.); Charlton Howard, NCIS (Ret.); David Irvine, Brigadier General, U.S. Army (Ret.); Timothy James, NCIS (Ret.); Steve Kleinman, Colonel, USAFR (Ret.); Marcus Lewis, Formerly U.S. Army; Brittain Mallow, Colonel, USA (Ret.); Mike Marks, NCIS (Ret.);

Robert McFadden, NCIS (Ret.); Charles Mink, Formerly U.S. Army; Joe Navarro, FBI (Ret.); Torin Nelson, Formerly U.S. Army; Carissa Pastuch, Formerly U.S. Army; William Quinn, Formerly U.S. Army; Ken Robinson, U.S. Army (Ret.); Rolince, Mike, FBI (Ret.); Ed Soyster, Lieutenant General, U.S. Army (Ret.).

COMMITTEE ON INTERNATIONAL JUSTICE AND PEACE,
Washington, DC, June 10, 2015.

U.S. SENATE,
Washington, DC.

DEAR SENATOR, As deliberations over the FY 2016 National Defense Authorization Act continue, I write to express support for an amendment offered by Senators John McCain and Dianne Feinstein that would prohibit all U.S. government agencies and their agents from using torture as an interrogation technique.

The amendment would:

Require all U.S. government agencies (including the CIA) to limit interrogation techniques to those set out in the Army Field Manual;

Require the Army Field Manual be updated regularly and remain available to the public to reflect best interrogation techniques designed to elicit statements without the use or threat of force; and

Require the International Committee of the Red Cross be given access to all detainees.

These provisions are ones that the Committee on International Justice and Peace of the United States Conference of Catholic Bishops have long supported in trying to ban the practice of torture by the U.S. government.

The Army Field Manual 2–22.3 prescribes uniform standards for interrogating persons detained by the Department of Defense. A guiding principle of the Field Manual echoes the Golden Rule: ''In attempting to determine if a contemplated approach or technique should be considered prohibited, and therefore should not be included in an interrogation plan, consider . . . if the proposed approach technique were used by the enemy against one of your fellow soldiers, would you believe the soldier had been abused?'' (5–76)

The McCain-Feinstein amendment seeks to ensure that Army Field Manual's standard is also the same standard used by other governmental agencies, including the CIA. Adhering to these standards and ensuring access by the International Committee of the Red Cross to visit detainees in international armed conflicts would make a substantial contribution to our nation's efforts to uphold our international obligations under the Geneva Conventions and the Convention Against Torture. The amendment would help restore the moral credibility of the United States.

In Catholic teaching, torture is an intrinsic evil that cannot be justified under any

circumstances as it violates the dignity of the human person, both victim and perpetrator, and degrades any society that tolerates it. We urge all Senators to support the McCain-Feinstein amendment that would help to ensure that laws are enacted so that our government does not engage in torture ever again.

Sincerely yours,

MOST REVEREND OSCAR CANTÚ,
Bishop of Las Cruces, Chair, Committee on International Justice and Peace.

PROTECTING U.S. SECURITY UPHOLDING AMERICAN VALUES

The United States detainee interrogation policy can live up to American values and, at the same time, protect our national security. This policy, supported by overwhelmingly bipartisan legislation in 2005, states: ''No individual in the custody or under the physical control of the U.S. Government, regardless of nationality or physical location, shall be subject to cruel, inhuman, or degrading treatment or punishment.'' Such principles can be attained by following the U.S. Army Field Manual on Human Intelligence Collector Operations. We believe these lawful, humane, and effective techniques will produce actionable intelligence while adhering to our founding principles.

To ensure the integrity of this critical process, Congress should conduct effective, real-time oversight on America's intelligence communities. Failure to live up to these internal safeguards adversely affects the nation's security and damages America's reputation in the world.

Richard Armitage, Deputy Secretary of State, 2001–2005; Howard Berman, U.S. Congressman (D–CA), 1983–2013; David Boren, U.S. Senator (D–OK), 1979–1994, Governor of Oklahoma, 1975–1979; Harold Brown, Secretary of Defense, 1977–1981; David Durenberger, U.S. Senator (R–MN), 1978–1995; Lee Hamilton, U.S. Congressman (D–IN), 1965–1999; Gary Hart, U.S. Senator (D–CO), 1975–1987; Rita Hauser, Chair, International Peace Institute, 1992–Present; Carla Hills, U.S. Trade Representative, 1989–1993; Thomas Kean, Governor of New Jersey, 1982–1990, 9/11 Commission Chairman.

Richard C. Leone, Senior Fellow and former President of the Century Foundation; Carl Levin, U.S. Senator (D–MI), 1979–2015; Richard Lugar, U.S. Senator (R–IN), 1977–2013; Robert C. McFarlane, National Security Advisor, 1983–1985; Donald McHenry, Ambassador to the United Nations, 1979–1981; William Perry, Secretary of Defense, 1994–1997; Charles Robb, U.S. Senator (D–VA); 1989–2001; Governor of Virginia, 1982–1986; Ken Salazar, Secretary of the Interior, 2009–2013, U.S. Senator (D–CO), 2005–2009; George Shultz, Secretary of State, 1982–1989; William H. Taft IV, Deputy Secretary of Defense, 1984–1989.

NATIONAL ASSOCIATION OF EVANGELICALS,
Washington, DC, June 8, 2015.

DEAR SENATOR: As you authorize FY16 appropriations for the Department of Defense, please approve language in an amendment to be offered by Senators McCain and Feinstein that would strengthen the prohibition of torture in U.S. law and apply the Army Field Manual interrogation policies and standards to all personnel and facilities operated or controlled by our government.

The National Association of Evangelicals (NAE) opposes the use of torture as a violation of basic human dignity that is incompatible with our beliefs in the sanctity of human life. The use of torture is also inconsistent with American values, undermines our moral standing in the world and may contribute to an environment in which captured U.S. personnel are subjected to torture.

The NAE's position is set forth in ''An Evangelical Declaration Against Torture,'' available at http://nae.net/an-evangelical-declaration-against-torture/, and reaffirmed in a recent NAE statement (http://nae.net/nae-affirms-u-s-army-prohibition-of-torture/).

While the use of torture is currently prohibited across all government agencies by executive order, this fundamental principle must be enshrined in law, to ensure that no future President may authorize the use of torture.

We are grateful for your leadership and pray that God will guide you as you consider how best to defend our nation.

Sincerely,

LEITH ANDERSON,
President.

NATIONAL COUNCIL OF CHURCHES,
June 11, 2015.

U.S. SENATE,
Washington, DC.

DEAR SENATORS: As you consider amendments to the National Defense Authorization Act, please support the McCain-Feinstein amendment on torture. The amendment would prohibit torture by requiring the CIA and other agencies to follow the guidelines in the Army Field Manual when conducting interrogations, and by ensuring that the International Committee of the Red Cross is given access to all detainees. The amendment also provides a means to update the Field Manual to reflect the best legal, humane, and effective interrogation techniques.

As Christians we believe that all people are created in the image of God, endowed by our Creator with an inalienable dignity and worth. Torture is a deeply degrading violation of that image and to us it is never morally acceptable. As the most powerful country on earth, we should set an example for humane treatment of prisoners; we should never allow our nation's practices to be used to justify torture.

Passing the McCain-Feinstein amendment would strengthen the legal prohibition against torture and thereby prevent the CIA from ever resuming its torture program. Please support McCain-Feinstein and help begin to put the CIA's brutal and degrading use of torture behind us.

Sincerely,

JIM WINKLER,
President and General Secretary.

AMERICAN CIVIL LIBERTIES UNION; HUMAN RIGHTS; NATIONAL RELIGIOUS CAMPAIGN AGAINST TORTURE; THE CONSTITUTION PROJECT; PHYSICANS FOR HUMAN RIGHTS; OPEN SOCIETY POLICY CENTER; THE CENTER FOR VICTIMS OF TORTURE

(For Immediate Release: June 9, 2015)

HUMAN RIGHTS GROUPS APPLAUD LEGISLATION REAFFIRMING U.S. PROHIBITION ON TORTURE

On Tuesday, June 9, 2015, Senators McCain, Feinstein, Reed, and Collins introduced legislation to make the U.S. Army Field Manual on Interrogations the standard for all U.S. government interrogations to make sure that the United States never uses torture again. Seven human rights and civil liberties organizations, including the ACLU, the Center for Victims of Torture, The Constitution Project, Human Rights First, the National Religious Campaign Against Torture, the Open Society Policy Center, and Physicians for Human Rights, announced their strong support for the legislation via the joint statement below.

WASHINGTON, DC.—We applaud Senators McCain, Feinstein, Reed and Collins for offering bipartisan legislation to ensure that the United States never uses torture again. Senator McCain's prior legislation (the Detainee Treatment Act) was approved by the Senate in 2005 with strong bipartisan support and was a positive game-changer by mandating among other things that interrogations conducted by all Department of Defense personnel had to follow the U.S. Army Field Manual on Interrogation (the Interrogation Manual). The McCain-Feinstein amendment extends and improves the Detainee Treatment Act by making the Interrogation Manual the standard for all U.S. government interrogations, and by mandating that the Manual be reviewed and updated regularly to insure that it reflects the very best evidence-based interrogation practices and complies with all U.S. legal obligations. The McCain-Feinstein amendment also requires that the International Committee of the Red Cross have access to every prisoner in U.S. custody no matter where or by whom they are held.

We believe that the CIA's ''enhanced interrogation'' techniques and ''black sites'' were clearly illegal under the law that existed on 9/11, under the 2005 Detainee Treatment Act and also under the relevant provisions of the 2006 Military Commissions Act. But the overwhelming evidence that has emerged of shocking brutality employed by the CIA notwithstanding these laws—including waterboarding, nudity, stress positions, sleep deprivation, forced rectal feeding, beatings and other abuses—demonstrates that additional protections are still essential. Had the McCain-Feinstein amendment been in place following the 9/11 attacks we believe it would have significantly bolstered other prohibitions on torture and made it far more difficult, if not impossible, for the CIA to establish and operate their torture program. Among other things, the Interrogation Manual explicitly prohibits waterboarding, forced nudity and other forms of torture employed by the CIA and it specifies that only interrogation methods that are expressly described in the Interrogation Manual are permitted. In addition, under the McCain-Feinstein legislation no prisoner could have been hidden away at CIA ''black sites'' without access to the Red Cross.

More can and should be done to pursue accountability for past brutal and illegal interrogations and to improve the Interrogation Manual. But the McCain-Feinstein Amendment is a vital and welcome step toward ensuring that the United States never again uses torture.

Mrs. FEINSTEIN. I ask my colleagues to support this amendment, and by doing so, we can recommit ourselves to the fundamental precept that the United States does not torture—without exception and without equivocation—and ensure that the mistakes of our past are never again repeated in the future.

I ask for a ''yes'' vote, and I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. FLAKE). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I ask my colleagues to, if they wish, disregard my statement with the exception of the statement by GEN David Petraeus. I don't know of a military leader who is more respected in America and throughout the world than GEN David Petraeus. I don't have to remind my colleagues that he was the commander of U.S. forces in Iraq and Afghanistan and Director of the CIA. He arguably has more experience dealing with foreign detainee issues across the U.S. Government than any other American. These are the words of GEN David Petraeus:

I strongly support the extension of the provisions of the U.S. Army Field Manual that currently govern the actions of the U.S. military to all U.S. Government personnel and contractors. Our Nation has paid a high price in recent decades for the information gained by the use of techniques beyond those in the field manual, and in my view, that price far outweighed the value of the information gained through the use of techniques beyond those in the manual.

I urge my colleagues to listen to the words of David Petraeus.

Here is a letter I received this month from former intelligence interrogation professionals, the U.S. military, the CIA, and the FBI. Here is an excerpt from the letter they sent to me this month:

As intelligence and interrogation professionals who have offered our collective voice opposing torture and other forms of cruel, inhuman or degrading treatment, we strongly encourage you to support the amendment. . . . The interrogation methods that have kept America safe for generations are sophisticated, humane, lawful and produce reliable, actionable intelligence in any interrogation scenario. To promote a return to that respected level of professionalism, there must be a single well-defined standard of conduct—consistent with our values as a nation—across all U.S. agencies to govern the detention and interrogation of people anywhere in U.S. custody.

This is supported by some of our most experienced military leaders. They expressed their views in a letter I received this month, 30 of whom are retired, including a former Commandant of the Marine Corps, former commander of Centcom, former commander and chief of U.S. Army Europe—they wrote the following:

This amendment not only solidifies America's stance against torture and other forms of cruel, inhuman or degrading treatment. It also ensures that interrogation methods used by all U.S. personnel are professional and reflect the government's best practices. In that way, we not only ensure that these interrogations are humane and lawful, but also that they produce reliable intelligence on which we depend if we are to fight and win against the current terrorist threat.

Mr. President, I ask unanimous consent to have printed in the RECORD the letter from those individuals dated June 9, 2015.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

JUNE 9, 2015.

DEAR SENATOR: As intelligence and interrogation professionals who have offered our collective voice opposing torture and other forms of cruel, inhuman or degrading treatment, we strongly encourage you to support the amendment to the 2016 National Defense Authorization Act that solidifies the ban against torture and cruel treatment of detainees in U.S. custody.

While international and domestic law, including the 2005 Detainee Treatment Act, prohibit such cruelty, sadly high-level officials in the Executive Branch exploited loopholes and still authorized torture and cruel treatment. The interrogation methods that have kept America safe for generations are sophisticated, humane, lawful, and produce reliable, actionable intelligence in any interrogation scenario. To promote a return to that respected level of professionalism, there must be a single well-defined standard of conduct—consistent with our values as a nation—across all U.S. agencies to govern the detention and interrogation of people anywhere in U.S. custody.

The amendment would ensure lawful, effective, and humane interrogations of individuals taken into custody by requiring all agencies and departments to comply with the time-tested requirements of the Army Field Manual (''Human Intelligence Collector Operations''). It would also require a review of the Army Field Manual to ensure that best practices and the most recent evidenced-based research on humane interrogation are incorporated. It would also codify existing Department of Defense (DOD) practice of guaranteeing timely notification and access to the International Committee of the Red Cross (ICRC) for detainees taken into custody—an important bulwark against abuse.

We strongly urge you to support this legislation to help move our country forward and reaffirm that there is no conflict between adhering to one of our nation's essential and founding values—respect for inherent human dignity—and our ability to obtain the intelligence we need to protect the nation.

Sincerely,

Frank Anderson, CIA (Ret.); Donald Canestraro, DEA (Ret.); Glenn Carle, CIA (Ret.); Jack Cloonan, CIA (Ret.); Barry Eisler, Formerly CIA; Eric Fair, Formerly U.S. Army; Mark Fallon, NCIS (Ret.); Charlton Howard, NCIS (Ret.); David Irvine, Brigadier General, U.S. Army (Ret.); Timothy James, NCIS (Ret.); Steve Kleinman, Colonel, USAFR (Ret.); Marcus Lewis, Formerly U.S. Army; Brittain Mallow, Colonel, USA (Ret.); Mike Marks, NCIS (Ret.); Robert McFadden, NCIS (Ret.); Charles Mink, Formerly U.S. Army; Joe Navarro, FBI (Ret.); Torin Nelson, Formerly U.S. Army; Carissa Pastuch, Formerly U.S. Army; William Quinn, Formerly U.S. Army; Ken Robinson, U.S. Army (Ret.); Rolince, Mike, FBI (Ret.); Ed Soyster, Lieutenant General, U.S. Army (Ret.).

Mr. MCCAIN. In a letter this month, the National Association of Evangelicals wrote the following in support of this amendment:

While the use of torture is currently prohibited across all government agencies by executive order, this fundamental principle must be enshrined in law to ensure that no future President may authorize the use of torture.

Again, that is from the National Association of Evangelicals.

The Committee on International Justice and Peace at the United States Conference of the Catholic Bishops wrote the following in support of the amendment:

In Catholic teaching, torture is an intrinsic evil that cannot be justified under any circumstances as it violates the dignity of the human person, both victim and perpetrator, and degrades any society that tolerates it. We urge all Senators to support the McCain-Feinstein amendment that would help to ensure that laws are enacted so that our government does not engage in torture ever again.

I respect the dedication and services of those charged with protecting this country. For 14 years, America's security professionals in the military, intelligence community, and beyond have lived every day with a dogged determination to protect their fellow Americans. But at the same time, we must continue to insist that the methods we employ in this fight for peace and freedom must always be as right and honorable as the goals and ideals we fight for.

I believe past interrogation policies compromised our values, stained our national honor, and did little practical good. I don't believe we should have employed such practices in the past, and we should never permit them in the future. This amendment provides greater assurances that never again will the United States follow that dark path of sacrificing our values for our short-term security needs.

I also know that such practices don't work. I know from personal experience that the abuse of prisoners does not produce good, reliable intelligence. Victims of torture will offer intentionally misleading information if they think their captors will believe it.

I firmly believe that all people, even captured enemies, possess basic human rights which are protected by international standards often set by America's past leaders. Our enemies act without conscience. We must not. Let's reassert the contrary proposition that it is essential to our success in this war that we ask those who fight it for us to remember at all times that they are defending a sacred ideal of how nations should be governed and should remember this when they conduct their relations with others, even our enemies.

Those of us who give them this duty are obliged by history, by our Nation's highest ideals and the many terrible sacrifices made to protect them, and by our respect for human dignity to make clear that we need not risk our national honor to prevail in this or any war. We need only remember in the worst of times, through the chaos and terror of war, when facing cruelty, suffering, and loss, that we are always Americans and different, stronger, and better than those who would destroy us.

I yield the remainder of my time.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. REED. Mr. President, I stand as a very proud cosponsor, along with Senator MCCAIN and Senator FEINSTEIN, on this amendment. I particularly wish to commend both Senator FEINSTEIN and Senator MCCAIN because they have really been the leaders in this Senate and in this country in expressing our fundamental values when

it comes to the techniques we employ for those we detain in combat zones. Both their words and personal example have set an extraordinary standard for us to respond to, and this amendment is typical of what they have done. It would codify the terms of President Obama's Executive order 13491 that applies to the Army Field Manual on interrogations not only for the U.S. military but also for the interrogation of detainees by other U.S. Government agencies.

What I think is so critical to this debate, this amendment, and the service of these two Senators is that the humane treatment standard we set for those who are in our custody also serves to protect our men and women if they fall into the hands of our opponents. We then can say with complete sincerity and complete fidelity that we demand our troops receive humane treatment when in the custody of hostile forces because that is what we do. When we deviate from that standard, we imperil the safety and lives of our men and women in uniform who may fall into hostile hands.

As we adhere to these standards, we are not only setting a very high bar for the treatment of those whom we may hold, but we are innately protecting the safety, health, welfare, and well-being of those who serve in the uniform of the United States, and for that reason in particular, I commend the sponsors of this amendment and urge all of my colleagues to support it.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. FEINSTEIN. Mr. President, I thank both Senator MCCAIN and Senator REED for their remarks. I particularly wish to thank Senator MCCAIN, whose life experience, for me, has been a guidepost. I don't know anyone in this body who is more standup—and can sometimes be more stubborn, but this all comes into play as an important thing—and stands for the real, true, major issues this country faces.

I will never forget a conversation I had with him on the plane back from Guantanamo. When he spoke in the Kennedy Caucus Room and used the tap language he learned as a prisoner of war in Vietnam and to see this man, so many years since that time, tap out messages that were meant for prison mates in other cells with such speed and alacrity certainly indicated that this was a very deep impression which was made on his life. I think the fact that he has shared that with others, including me, is very important.

I want Senator MCCAIN to know how much I appreciate his work on this and how grateful we are for his service to this country. He has unique courage and unique stamina, and maybe that is just all-American. Again, I thank the Senator from Arizona very much for his work, and the same for Senator REED, the ranking member on this committee. Senator REED is military-American through and through. Having his support has been terrific.

Again, I thank both of them very much. It was a pleasure to work with both of my colleagues, and I hope this passes.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I thank Senator FEINSTEIN for her very kind words and her friendship and leadership. I hope that in return for all of this, she will send back all the water to Arizona that California has stolen from our State. My beloved former colleague, Senator Barry Goldwater, used to say that in Arizona, we had so little water that the trees chased the dogs, so we would like to get the water back from California, and I hope that can be part of the wonderful friendship we have enjoyed now for many years.

I thank the Senator from California.

I yield the floor.

Mr. President, I yield back all time.

The PRESIDING OFFICER. Without objection, all time is yielded back.

Under the previous order, the question is on agreeing to amendment No. 1889, offered by the Senator from California, Mrs. FEINSTEIN.

Mr. MCCAIN. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Florida (Mr. RUBIO).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 78, nays 21, as follows:

[Rollcall Vote No. 209 Leg.]

YEAS—78

Alexander	Franken	Murray
Ayotte	Gardner	Nelson
Baldwin	Gillibrand	Paul
Bennet	Grassley	Perdue
Blumenthal	Heinrich	Peters
Booker	Heitkamp	Portman
Boozman	Heller	Reed
Boxer	Hirono	Reid
Brown	Hoeven	Rounds
Burr	Isakson	Sanders
Cantwell	Johnson	Schatz
Capito	Kaine	Schumer
Cardin	King	Shaheen
Carper	Kirk	Shelby
Casey	Klobuchar	Stabenow
Cassidy	Leahy	Sullivan
Collins	Manchin	Tester
Coons	Markey	Thune
Corker	McCain	Tillis
Cruz	McCaskill	Toomey
Daines	Menendez	Udall
Donnelly	Merkley	Warner
Durbin	Mikulski	Warren
Enzi	Moran	Whitehouse
Feinstein	Murkowski	Wicker
Flake	Murphy	Wyden

NAYS—21

Barrasso	Ernst	McConnell
Blunt	Fischer	Risch
Coats	Graham	Roberts
Cochran	Hatch	Sasse
Cornyn	Inhofe	Scott
Cotton	Lankford	Sessions
Crapo	Lee	Vitter

NOT VOTING—1

Rubio

The amendment (No. 1889) was agreed to.

The PRESIDING OFFICER (Mr. CRUZ). The Senator from Oklahoma.

Mr. INHOFE. Mr. President, I rise for a special request. I just returned from a military trip overseas with four other Members just a matter of minutes ago to find out that the two amendments that I was trying to get pending—and I would really settle for just one of those two. I was not here when all of these UCs were made and the arrangements were put together between the parties.

So I ask the leader on the other side—or the handler on the other side, Senator JACK REED—if he would consider a waiver of his commitment to allow me to bring up one of these to get in the queue.

I yield to the Senator.

Mr. REED. To the Senator from Oklahoma, we have been trying to move forward on an equal basis in terms of pending amendments. At this juncture, I am not able to agree to make another amendment pending.

There is a possibility that we spoke about, briefly, of including these amendments in the manager's package or, since it is germane, of trying to arrange for consideration after cloture, along with another germane amendment. So at this point I would not be prepared to—

Mr. INHOFE. Regaining the floor, I would only say to my good friend that as the second ranking member on the Armed Services Committee, I have talked about these for a long time. I tried to do them before I left for 4 days on business. Also, Senator MIKULSKI is my cosponsor on amendment No. 1728.

So I have to make a motion to lay the pending amendment aside for the purpose of consideration of amendment No. 1728.

Mr. REED. Have you made the motion?

Mr. INHOFE. I just did.

Mr. REED. I would object.

Mr. INHOFE. Mr. President, I ask unanimous consent to lay the pending business aside for the purpose of considering the Inhofe-Mikulski commissary amendment No. 1728.

The PRESIDING OFFICER. Is there objection?

Mr. REED. Mr. President, at this time, I object.

The PRESIDING OFFICER. Objection is heard.

Mr. INHOFE. Mr. President, I wish to make a comment, because first, this is something beyond anyone's control. No one could have controlled this. We had four Members who were gone. It couldn't be helped. We were on business.

I have 41 amendments, almost equally divided, Democrat and Republican, on an issue that is probably the most significant issue to the spouses of our kids who are over there, overseas. What it does is that it lets us do an assessment before we close any of the commissaries—not close them but privatize them, instead of privatizing them and then seeing how it works. I think we have a vast majority of people who do support that.

It is something that is offered on a bipartisan basis, and it is something that a lot of people—over 100 organizations are sponsoring this amendment—spoke very strongly in support of and consider this amendment to be the most significant amendment in the everyday lives of our troops. Anyone who travels overseas and travels to these various areas knows that when they go through a commissary, they see—particularly in areas where there are no other opportunities out there—that there is almost no competition. It is something like a club. It is something that the wives, the husbands, the families, and the kids do. They go to the commissary. Taking that away would be taking away a tradition.

Again, the bill doesn't state that it goes away, but it does temporarily privatize five major commissaries. Now, when that happens, you have started the ball rolling. And the bill also states—and we discussed this in committee—that this gives us time to look and evaluate to see whether we want to privatize them.

So everyone who is on here as a cosponsor has made the statement: Why don't we find out first.

So that is all we want to do—instead of closing or transferring five and then finding out whether we did the right thing, go ahead and have the study and then go ahead and proceed however we think is in the best interest.

So it is a very serious amendment.

I ask unanimous consent to set aside the pending business.

The PRESIDING OFFICER. Is there objection?

Mr. REED. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from New York.

AMENDMENT NO. 1578

Mrs. GILLIBRAND. Mr. President, I rise to urge my colleagues to support my amendment No. 1578, the Military Justice Improvement Act, to ensure that survivors of military sexual assault have access to an unbiased, trained, military judicial system.

Last year, despite the support of 55 Senators, a coalition spanning the entire ideological spectrum, including both the majority and minority leader, our bill to create an independent military justice system free of inherent biases and conflicts of interest within the chain of command was filibustered by this body.

But as we said then: We will not walk away. The brave men and women in uniform who are defending this Nation deserve a vote. That is our duty. It is our oversight role. It is Congress's responsibility to act as if the brave survivors of sexual assault are our sons, our daughters, our husbands, our wives, who are being betrayed by the greatest military on Earth. We owe them that at the very least.

Over the last few years, Congress has forced the military to make many incremental changes to address this crisis. And after two decades of complete failure and lip service to zero tolerance, the military now says, essentially: Trust us this time; we have it.

They misrepresent data to claim that their mission is accomplished, but when you dig below the service of their top lines, you will find that the assault rate is exactly where it was in 2010—an average of 52 cases every single day—and 3 out of 4 servicemember survivors still don't think it is worth the risk of coming forward to report crimes committed against them.

Seventy-five percent don't trust the current system. One in seven victims was assaulted by someone in their chain of command. And in 60 percent of the cases, a supervisor or unit leader is responsible for either sexual harassment or sexual discrimination. This is not the climate our military deserves. It is no surprise, then, that one in three survivors believes that reporting would hurt their career.

For those who do report, they are more likely than not to experience retaliation. Despite a much touted reform that made retaliation a crime, the DOD made zero progress on improving the 62-percent retaliation rate that we had in 2012.

According to a Human Rights Watch report, the DOD cannot provide a single example of serious disciplinary action taken against those who retaliated against a victim of sexual assault. A sexual assault survivor is 12 times more likely to suffer retaliation than to see their offender get convicted of a sex offense.

In my close review of 107 cases—from the largest domestic military bases and one from each service—in 2013, I found that nearly half of those who did move forward and report ended up dropping out of their cases. Survivors still have little faith in this system. Under any metric the system remains plagued with distrust and does not provide the fair and just process that our men and women in the military deserve.

Simply put, the military has not held up to the standard posed by General Dempsey 1 year ago when he said:

> We are on the clock, if you will . . . the President said to us in December, you've got about a year to review this thing . . . and if we haven't been able to demonstrate we are making a difference, you know, then we deserve to be held to the scrutiny and standard.

I urge my colleagues to hold the military to that higher standard. Enough is enough with the spin, with the excuses, and the false promises.

Just yesterday I received a letter from a survivor of military sexual assault who is serving Active Duty. She says:

> The reason I am writing on her behalf is because I fear she will be retaliated against for speaking out.
>
> While the military is on the Hill lobbying Senators not to support the Military Justice Improvement Act (MJIA), I am asking you to take a stand with survivors and their families.
>
> These military lobbyists have good intentions; however, I am doubtful any of them will represent my perspective.
>
> I have experienced the anguish of a child who has been raped by another servicemember, a fellow brother-in-arms whom she should have been able to trust.
>
> Please support the Military Justice Improvement Act, a commonsense law that significantly improves the military justice system. Our military sons and daughters who survive these heinous crimes carry high rates of post-traumatic stress disorder and suicide. I believe that if the MJIA is passed, it could save lives and will positively affect the lives of survivors, both victims and their families.
>
> No one should have to worry about retaliation from their chain of command when they report these crimes. Retaliation happens so often that a majority of these assaults go unreported. Every military victim of sexual assault deserves due process, professional treatment by a trained military individual, and equal opportunity to seek and receive justice.
>
> Our military has promised improvement and has had adequate time in which to improve, but the numbers show that the military has failed to live up to its promise.
>
> The Department of Defense has admitted that it made no progress since 2012. It is time for the chain of command to be removed from decision-making in sexual assault cases and replaced by those trained, non-biased military personnel, educated in the law and experienced in handling sexual assault cases.
>
> Further, MJIA specifically carves out sexual assault and other serious crimes, with the remainder of military crimes being left in the chain of command.
>
> Please hold the military to a higher standard by voting yes to an unbiased military system, promoted in MJIA.

We have to listen to our victims, our survivors, the men and women who give their lives to this country, who will sacrifice anything for this country. America's military, if they do these reforms, will have fewer dangerous criminals and far more heroes. The brave men and women we send to war to keep us safe deserve nothing less than a justice system equal to their sacrifice. By listening to the victims, we can deliver that.

I urge everyone here to listen to our brave survivors, support our bill, and do the right thing.

I would now like to yield the floor to one of the authors of the Military Justice Improvement Act, the Senator from Iowa.

Mr. GRASSLEY. Mr. President, I thank Senator GILLIBRAND for her leadership in this area over a long period of time, and I add my voice to the support of her amendment. She has been a great leader on the issue. As you can see, she has a lot of passion in her dogged pursuit of justice.

Last year, when I spoke in favor of this measure, I made the point this was not a new issue that required further study or incremental reforms. We had been hearing promises for years and years that there would be zero tolerance and a real crackdown on military sexual assault. Last year, the National Defense Authorization Act included a lot of commonsense reforms, but it did not include any fundamental reform of the military justice system. We were told to give these new adjustments to the current system a chance to work and come back next year.

At the time, I made the point that we had already tried working within the current system to no avail. I am not one to advocate for major sweeping reform if less will address the problem, but what we have been doing has not worked.

Last year, after Congress passed the package of more modest reforms but not our Military Justice Improvement Act amendment, the Chairman of the Joint Chiefs of Staff, General Dempsey, said: ''We have been given about a year to demonstrate both that we will treat this with the urgency it deserves and that we can turn the trend lines in a more positive direction.'' He made clear that if we didn't see real progress, he wouldn't stand in the way of more major reforms. Well, we have not seen significant movement.

In terms of the number of sexual assault cases and the shocking rate of retaliation against those who report, we simply don't see progress. That is probably because the current system is part of the problem. The fact that victims of sexual assault cannot turn to an independent system to get justice, combined with the very real fear of retaliation, acts as a terrible deterrent to reporting sexual assault. If sexual assault cases are not reported, they then cannot be prosecuted. If sexual assault isn't prosecuted, it leads to predators remaining in the military and a perception that this sort of activity is going to be tolerated.

By allowing this situation to continue, we are putting at risk the men and women who have volunteered to place their lives on the line. We are also seriously damaging military morale and readiness.

Taking prosecutions out of the hands of commanders and giving them to professional prosecutors who are independent of the chain of command will help ensure impartial justice for the men and women of our Armed Forces. This would in no way take away the ability of commanders to punish troops under their command for military infractions. Commanders also can and should be held accountable for the climate under their command, but the point here is the sexual assault is a law enforcement matter, not a military one.

This isn't some reform that came out of the blue either. We have an advisory committee appointed by the Secretary of Defense himself which came out in support of reforms. On September 27, 2013, the Defense Advisory Committee on Women in the Services—which goes by the acronym DACOWITS—voted overwhelmingly in support of each of the components of the Military Justice Improvement Act amendment.

DACOWITS was created way back in 1951 by then-Secretary of Defense George C. Marshall. The committee is composed of civilian and retired military men and women who are appointed by the Secretary of Defense to provide advice and recommendations on matters and policies relating to the recruitment and retention, treatment, employment, integration, and well-being of highly qualified professional women in the Armed Forces. Historically, this committee's recommendations have been very instrumental in effecting changes to laws and policies pertaining to military women.

The bottom line is, this isn't some advocacy group or fly-by-night panel. It is a longstanding advisory committee handpicked by the Secretary of Defense and it supports the substance of our amendment to a tee.

We have tried reforming the current system and it didn't work. When we are talking about something as serious and life-altering as sexual assault, we cannot afford to wait any longer. So I urge my colleagues to join us in supporting this amendment.

As we approach this from the outside, it gives me an opportunity to reiterate what I see so wrong in so many bureaucracies. We are always promised change, but as I have looked back over a couple or three decades of this problem of the culture of the various bureaucracies, nothing really happens from within. It has to happen from without. In this particular case of national defense being the No. 1 responsibility of the Federal Government, this change has to happen from without because it hasn't happened from within, regardless of the promises.

I yield the floor.

The PRESIDING OFFICER. The Senator from Missouri.

Mrs. MCCASKILL. Mr. President, last year we gathered here to debate this issue, and I think it is really important to point out that everyone in this body has the same heart when it comes to this issue; that is, that we want to make sure victims who are assaulted in our military are protected and supported, that the system is highly trained and professional, and that perpetrators have due process but also are put in prison if the system finds them guilty. This difference is an honest policy difference over which system would better accomplish those goals.

Now, we have agreed on so much, I think it is important to point out the work the Congress has done reforming sexual assault in the military. Last year, we had over 26 different provisions that were enacted into law. This year, we haven't stopped. We have 13 more provisions in this piece of legislation. There is simply a disagreement over which system would protect victims better.

There have been historic reforms, such as commanders having been stripped from their ability to overturn convictions. They are being held accountable under rigorous new standards and oversight. Every victim who reports now gets their own independent lawyer to protect their rights and fight for their interests. It is now a crime for any member to retaliate against a victim who reports a sexual assault. The ''good soldier'' defense has been removed, along with dozens and dozens more.

Yes, there were panels that looked at this issue, as the one just referenced by my colleague from Iowa—DACOWITS. They heard no testimony from expert witnesses. They heard a brief presentation by myself and Senator GILLIBRAND, but they didn't spend days on it; whereas, the system's response panel, put in place by this Congress, spent weeks and weeks examining this and heard from dozens and dozens of witnesses from every side of the issue. By the way, this panel was made up of a majority of civilians—the majority of them women—and it voted overwhelmingly to reject an approach that removes commanders from their responsibility and their duties and, therefore, their accountability.

One of the members of this Commission, the woman who runs the victims center at the Department of Justice for the entire country, said: ''I went into this thinking Senator GILLIBRAND's legislation made sense . . . but when you hear the facts, it doesn't hold up.''

She was joined by the liberal icon—a feminist icon—Elizabeth Holtzman, who was the author of the rape shield statute in the Congress when she served as a Representative. She, too, spoke out, saying that once she understood the system and understood the facts, she agreed that keeping commanders accountable was crucial.

Now, have we seen progress? It is one thing to have anecdotal information, it is another to have a statistically valid survey. The same survey that shows retaliation is still a stubborn problem that we can't give up on also shows some very important data. So if you are going to argue retaliation is a continuing problem, you are relying on the very same survey that tells us the following: incidents are down—that is meaningful progress—dropping 29 percent just in the last 2 years. Reporting continues to go up, which was our stated goal as we began these reforms. Reports are up 70 percent from 2012. Back in 2012, only 1 in 10 victims were reporting. We have that down to one in four. That is not spin, that is fact. These victims are coming forward because they have renewed confidence they will have support, they will get good information, and that the system is not stacked against them.

Increased reporting occurred in all categories. The number of unrestricted reports are up, restricted reports are up, and, importantly, the number of reports that victims converted from restricted to unrestricted.

Furthermore, they went around the country and did focus groups with victims. This was RAND. This wasn't the military, this wasn't the Department of Justice, this was the RAND Corporation—well known for its ability to do statistical information—that went around the country and did focus groups—11 different focus groups—on different bases with just victims and asked victims to come forward and participate in the survey.

In that survey—and this is really important—82 percent agreed their unit

commander supported them, 73 percent were satisfied with their unit commander's response, and 73 percent said they would recommend others report if they were a victim of sexual assault.

And this is really important: The Gillibrand amendment does nothing to combat retaliation. The recent RAND survey found that the majority of reported retaliation does not come from commanders; it comes from peers. This is a cultural problem we have to get after, and certainly I would stand ready to work with Senator GILLIBRAND, Senator GRASSLEY, and all of my colleagues to look to see what we have to do to get at this peer-to-peer retaliation, which is the vast majority of what was reported.

Finally, the Gillibrand amendment actually weakens punishment for the crime of retaliation. By moving retaliation from article 92 to article 93 of the UCMJ, it would actually reduce the maximum punishment for this crime, and it, finally, prohibits the resources necessary to get at this problem. The amendment says we cannot add any additional resources to get after this.

Historic reforms have been made. They are working, based on data. Talking to dozens and dozens of prosecutors and untold victims, as a former sex crimes prosecutor who cares about nothing more than taking care of victims and making sure they have due process and are respected and deferred to, I must urge this body to reject the Gillibrand approach, which removes commanders from being held accountable where they must be held accountable.

Mr. President, I urge a ''no'' vote on the Gillibrand amendment.

The PRESIDING OFFICER. The Senator from New York.

Mrs. GILLIBRAND. Mr. President, I wish to respond to the last point and the first point that my colleague made that somehow this reform makes commanders less responsible.

The PRESIDING OFFICER. The Senator is advised that all time for debate has expired.

Mrs. GILLIBRAND. I ask unanimous consent to continue the debate for 5 minutes.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mrs. GILLIBRAND. Mr. President, this statement that somehow commanders are removed from responsibility and that we are not keeping commanders responsible, that couldn't be further from the truth. Today, commanders are the only ones responsible for good order and discipline at every level. The unit commander is responsible for order and discipline. Every aspect of the chain of command is responsible. It is their jobs to train troops, to maintain good order and discipline, to prevent rapes and crimes from being committed under their command, and to punish retaliation. They have failed in that duty.

In this chain of command, 97 percent of commanders are responsible and do not have the convening authority we would like to give to prosecutors—97 percent, their job doesn't change one iota.

So to say you are making commanders less responsible is a false statement that has no bearing. In fact, they are 100 percent responsible for good order and discipline, for training their troops, to prevent these rapes, and to prosecute retaliation. In 1 year—they have been on notice for years about this, 25 years, and we have this zero tolerance. They are super on notice now—in 1 year, not one prosecution of retaliation.

This guy can prosecute retaliation under article 15. This guy can do something about retaliation. This guy, this guy, this guy. Only 3 percent have the right to convening authority, and that 3 percent needs to be moved to someone who is actually a lawyer, who is trained, who knows how to weigh evidence and can make the right decision, and that is not what is happening today.

So right now this supervisor and unit leader—in 60 percent of the cases where there is alleged gender discrimination or sexual harassment, it is the unit leader. One in seven of the alleged rapists is one of these commanders—chain of command.

There is a perspective by a survivor that this chain of command ''does not have my back.'' So I would like to give it to another chain of command—senior military prosecutors—to make this decision, so her perspective can be: Someone has my back. This chain of command may well be tainted for her if her unit commander is harassing her and her rapist is in the chain of command. We need to professionalize the system.

We are trying to make the military the best prosecutorial system in the world, and they can do this mission. We need to give them the tools, and having this current status quo—the status quo that has been in charge of no retaliation and no rape for 25 years—is failing. To have the same rate of retaliation we had 2 years ago when the commanders said: You must trust us to do this—every one of these commanders does not have convening authority, but every one of these commanders could have stopped retaliation.

When you say it is just peer-to-peer, it is dishonest. Thirty percent of the cases of retaliation are administrative, 30 percent of the cases are professional. Only a commander can administer administrative or professional retaliation.

This culture must change, and if Congress doesn't take their responsibility to hold the Department of Defense accountable, no one will.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, the fiscal year 2015 NDAA passed last year included 34 new provisions dealing with sexual assault. Commanders have barely had time to implement these provisions, let alone assess their effectiveness.

The fiscal year 2014 NDAA included more than 50 individual provisions, the most comprehensive set of changes to the Uniform Code of Military Justice since 1968.

Cumulative, the last three NDAAs included 71 sections of law containing more than 100 unique requirements, including 16 congressional reporting requirements. This year's bill builds on that progress with 12 military justice provisions, including every proposal that was offered by Senator GILLIBRAND during the committee's markup of this legislation.

It is true that sexual assaults have been reduced. That is a fact. That is a fact. So to somehow allege that nothing has been done—her proposal is rejected by literally every member of the military whom I know who has years of experience.

We cannot remove the commanding officer from the chain of command, and that is what Senator GILLIBRAND's amendment and effort has been—to remove the commanding officer from responsibility—and I will steadfastly oppose it.

I hope that at some point the Senator from New York would acknowledge that we took in this bill every provision that she offered during the markup of the legislation.

So with respect and appreciation for Senator GILLIBRAND's passion and for her dedication on this issue, I respectfully disagree and urge my colleagues to reject this amendment.

Mr. President, I yield the floor.

UNANIMOUS CONSENT AGREEMENT—ORDER OF PROCEDURE

Mr. MCCAIN. Mr. President, I ask unanimous consent that the mandatory quorum call with respect to the cloture vote on the substitute amendment No. 1463 be waived; further, that there be 2 minutes of debate, equally divided, prior to each vote in the 2:15 p.m. series.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:37 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

NATIONAL DEFENSE AUTHORIZATION ACT FOR FISCAL YEAR 2016—Continued

AMENDMENT NO. 1549

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided prior to a vote on amendment No. 1549, offered

by the Senator from Arizona, Mr. MCCAIN, for the Senator from Iowa, Mrs. ERNST.

The Senator from Iowa.

Mrs. ERNST. Will the Chair notify me after 30 seconds?

The PRESIDING OFFICER. The Senator will be so notified.

Mrs. ERNST. I thank the Presiding Officer.

Colleagues, just a few brief points on this amendment.

We are just providing the administration the option to get arms directly to the Kurds. The Kurds currently are providing refuge to over 1.6 million refugees from Iraq and Syria. Many of them are ethnic and religious minorities, such as Christians.

The Peshmerga have shown the ability to be effective on the battlefield against ISIS. This Ernst-Boxer amendment is a companion bill to the one presented by Representatives ROYCE and ENGEL in the House.

I urge my colleague to support this amendment.

The PRESIDING OFFICER. The Senator has used 30 seconds.

Mrs. ERNST. I yield to Senator BOXER.

The PRESIDING OFFICER. The Senator from California is recognized.

Mrs. BOXER. I thank the Presiding Officer.

Mr. President, I am very proud to team up with the good Senator because this is a very modest amendment that just puts us in line with our colleagues: the United Kingdom, Germany, Turkey, Canada, France, Australia, and others who already are directly arming the Kurds.

Now, the President's policy that I absolutely support is we are going to take this fight to ISIS, but we are not going to have combat boots on the ground; we are going to help strategically with airstrikes.

These are the people who are taking it day after day—deaths and blood and wounds. The least we can do is support this amendment.

The PRESIDING OFFICER. The Senator's time has expired.

The Senator from Rhode Island.

Mr. REED. Mr. President, I oppose the Ernst amendment. It would undermine what has been the fundamental policy of the United States going back into the last administration: a unified, sovereign Iraq. This amendment would send a signal to the Iraqis that we are supporting the Kurds directly, not supporting a unified, sovereign Iraq. That would complicate our efforts against ISIL. It would complicate our efforts in the region.

Also, it is the situation now where the effort is shifting into Anbar Province in the Sunni areas. We are supporting the Kurds. In fact, Prime Minister Barzani was here a few weeks ago and indicated that he was at least accepting of the arrangements, which I think were appropriate.

If this amendment passes, the perception will be that the United States is now not trying to unify or help the Iraqis unify but put a degree of separation between an autonomy, and that would be a mistake.

The PRESIDING OFFICER. The question occurs on agreeing to the amendment.

Mrs. ERNST. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Florida (Mr. RUBIO).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 54, nays 45, as follows:

[Rollcall Vote No. 210 Leg.]

YEAS—54

Ayotte	Fischer	Murkowski
Barrasso	Gardner	Paul
Blunt	Graham	Peters
Booker	Grassley	Portman
Boozman	Hatch	Risch
Boxer	Heinrich	Roberts
Burr	Heller	Rounds
Capito	Hoeven	Sasse
Cassidy	Inhofe	Schatz
Coats	Isakson	Scott
Collins	Johnson	Shelby
Cornyn	Kirk	Stabenow
Cotton	Lankford	Sullivan
Crapo	Lee	Thune
Cruz	Manchin	Tillis
Daines	McCain	Toomey
Enzi	McConnell	Vitter
Ernst	Moran	Wyden

NAYS—45

Alexander	Flake	Murray
Baldwin	Franken	Nelson
Bennet	Gillibrand	Perdue
Blumenthal	Heitkamp	Reed
Brown	Hirono	Reid
Cantwell	Kaine	Sanders
Cardin	King	Schumer
Carper	Klobuchar	Sessions
Casey	Leahy	Shaheen
Cochran	Markey	Tester
Coons	McCaskill	Udall
Corker	Menendez	Warner
Donnelly	Merkley	Warren
Durbin	Mikulski	Whitehouse
Feinstein	Murphy	Wicker

NOT VOTING—1

Rubio

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

AMENDMENT NO. 1578

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided prior to a vote on amendment No. 1578, offered by the Senator from Rhode Island, Mr. REED, for the Senator from New York, Mrs. GILLIBRAND.

The Senator from New York.

Mrs. GILLIBRAND. Mr. President, I rise to urge my colleagues to vote yes on this strongly bipartisan amendment. The central question is simple—whether this Congress is doing everything we can to protect members of our military. The metric of success is not how many reforms we have passed; it is whether we have passed all of the reforms that are necessary to make the difference. If you think the assault rate that is exactly where it was in 2010 is unacceptable, then vote yes. Some 20,000 sexual assaults, rapes, and unwanted sexual contact in 1 year alone is unacceptable. If you think an average of 52 cases every single day is unacceptable, then vote yes. If you think it is unacceptable that three out of four servicemembers still don't feel it is worth the risk of reporting, then vote yes. If you think that zero progress on retaliation isn't good enough, then vote yes. If you think a sexual assault survivor being 12 times more likely to suffer retaliation than see their offender get convicted for a sex offense, then vote yes.

Let's do the right thing. Let's take action and stop the assaults, stop the retaliation, and build trust and professionalize our military justice system.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. GRAHAM. Mr. President, I strongly oppose this effort. If you care about our military commanders, listen to them. Every one of them opposes this. If my colleagues believe that the military legal community knows what they are talking about, listen to them. Every JAG of every service opposes this. A 29-percent decrease in sexual assault incidents, a 70-percent increase in reporting. Senator MCCASKILL, Senator AYOTTE, Senator FISCHER, and many others, along with Senator REED—we have reformed the military justice system in an appropriate manner. But here is what we should never allow to happen:

Commander, last night there was an alleged rape in the barracks.

Oh, I don't care about that anymore; send that over to the lawyers.

Let's never let that happen. Never let a commander avoid responsibility for what happens in their unit. It is their job to make sure we have good order and discipline. Don't let them off the hook. Reinforce good commanders and fire bad ones. Do not disenfranchise the best military leadership in the history of the world. And that is exactly what this does. We will solve the sexual assault problem. We are not going to dismantle the infrastructure that has given us the finest military in the history of mankind. That is why everybody who knows what they are talking about opposes this.

Mr. WICKER. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Florida (Mr. RUBIO).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 50, nays 49, as follows:

[Rollcall Vote No. 211 Leg.]

YEAS—50

Baldwin	Franken	Murkowski
Bennet	Gardner	Murphy
Blumenthal	Gillibrand	Murray
Booker	Grassley	Paul
Boxer	Heinrich	Peters
Brown	Heitkamp	Reid
Cantwell	Heller	Sanders
Cardin	Hirono	Schatz
Casey	Kirk	Schumer
Collins	Klobuchar	Shaheen
Coons	Leahy	Stabenow
Cruz	Markey	Thune
Daines	McConnell	Udall
Donnelly	Menendez	Vitter
Durbin	Merkley	Warren
Enzi	Mikulski	Wyden
Feinstein	Moran	

NAYS—49

Alexander	Flake	Reed
Ayotte	Graham	Risch
Barrasso	Hatch	Roberts
Blunt	Hoeven	Rounds
Boozman	Inhofe	Sasse
Burr	Isakson	Scott
Capito	Johnson	Sessions
Carper	Kaine	Shelby
Cassidy	King	Sullivan
Coats	Lankford	Tester
Cochran	Lee	Tillis
Corker	Manchin	Toomey
Cornyn	McCain	Warner
Cotton	McCaskill	Whitehouse
Crapo	Nelson	Wicker
Ernst	Perdue	
Fischer	Portman	

NOT VOTING—1

Rubio

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

CLOTURE MOTION

Under the previous order, there will now be 2 minutes of debate equally divided prior to a vote on the motion to invoke cloture on amendment No. 1463, offered by the Senator from Arizona, Mr. MCCAIN.

Mr. LEAHY. Mr. President, today, the Senate will vote on whether we will accept the budget gimmicks used by the Senate majority to pay for defense spending priorities, or reject those efforts in favor of a meaningful budget deal that protects both defense and discretionary spending. After more than 2 weeks of consideration, and votes on fewer than a dozen of the over 550 amendments that have been filed, I am disappointed by the majority leader's decision to vote to cut off debate on the pending Defense authorization bill. This bill deserves thorough consideration. It has not received that.

Even worse, little progress has been made in approving amendments through managers' packages. Less than two dozen amendments have been approved by unanimous consent. Even in years when this bill has been most troubled, we have been able to clear noncontroversial amendments on both sides in significantly greater numbers, to improve the underlying authorization. But this year, that has not happened. So when asked if we should cut off debate, my answer is a clear ''no.'' Debate over what should or should not be in this bill is not yet close to over.

It is too bad, because this bill includes many provisions that I support to promote our national interests, provide support to our military personnel, and reaffirm our commitment to partners abroad. As the bill's managers have both noted time and again, this Defense authorization bill increases readiness, keeps faith with servicemembers and their families, and invests in game-changing technology.

As in past years, however, I am concerned that this year's Defense authorization bill includes several ill-advised provisions that would make it even harder to close the detention facility at Guantanamo Bay. It imposes unnecessary new restrictions on transferring detainees to foreign countries—despite the steep cost of holding detainees at Guantanamo. And even though military commission proceedings still have barely gotten off the ground—14 years after September 11—it provides no realistic path for transferring detainees to the United States for trial in Article III courts. As long as the detention facility at Guantanamo remains open, it will continue to serve as a recruitment tool for terrorists and tarnish America's role as a champion of human rights. Closing Guantanamo is the morally and fiscally responsible thing to do, and I strongly oppose the provisions in this bill that needlessly restrict detainee transfers out of that facility.

But perhaps the biggest flaw of this bill is that it yet again relies on and expands the Overseas Contingency Operations fund to avoid sequestration caps. The intention of this fund, which I have repeatedly stated should be done away with, has been severely distorted since its inception. We cannot continue to put our national defense on a credit card while asking working families to take responsibility for these costs. I support eliminating sequestration and believe it never should have been put in place, but simply ignoring its cap for defense spending by putting it in this off-books account doesn't get us any closer to that reality. We need a real solution to rid ourselves of sequestration, not one that relies on gimmicks while leaving military families, and low- and middle-class families, as well as our veterans, behind.

The Senate needs to fully consider this bill. The annual Defense authorization is an important bill. It is also a comprehensive bill that authorizes over $½ trillion in defense spending, including pay and benefits, acquisition programs, and initiatives to protect our national security. It should be fully vetted before debate is ended. We owe it to the American people. I will oppose cloture on this substitute amendment.

Mr. MCCAIN. Mr. President, I yield back the time.

Mr. REED. Mr. President, I yield back the time.

The PRESIDING OFFICER. All time is yielded back.

Under the previous order, pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the McCain amendment No. 1463 to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

Mitch McConnell, John McCain, Richard C. Shelby, Jeff Flake, John Barrasso, John Cornyn, Mike Rounds, Jeff Sessions, Shelley Moore Capito, Lamar Alexander, Lindsey Graham, Joni Ernst, John Hoeven, Roger F. Wicker, Kelly Ayotte, Richard Burr, Thom Tillis.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on amendment No. 1463, offered by the Senator from Arizona, Mr. MCCAIN, to H.R. 1735, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Maryland (Ms. MIKULSKI) is necessarily absent.

The PRESIDING OFFICER (Mr. LANKFORD). Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 83, nays 15, as follows:

[Rollcall Vote No. 212 Leg.]

YEAS—83

Alexander	Feinstein	Murray
Ayotte	Fischer	Nelson
Barrasso	Flake	Perdue
Bennet	Gardner	Peters
Blumenthal	Graham	Portman
Blunt	Grassley	Reed
Booker	Hatch	Risch
Boozman	Heinrich	Roberts
Boxer	Heitkamp	Rounds
Burr	Heller	Sasse
Cantwell	Hirono	Schatz
Capito	Hoeven	Schumer
Cardin	Inhofe	Scott
Carper	Isakson	Sessions
Cassidy	Johnson	Shaheen
Coats	Kaine	Shelby
Cochran	King	Stabenow
Collins	Kirk	Sullivan
Coons	Klobuchar	Tester
Corker	Lankford	Thune
Cornyn	Lee	Tillis
Cotton	McCain	Toomey
Crapo	McCaskill	Udall
Daines	McConnell	Vitter
Donnelly	Menendez	Warner
Durbin	Moran	Whitehouse
Enzi	Murkowski	Wicker
Ernst	Murphy	

NAYS—15

Baldwin	Gillibrand	Paul
Brown	Leahy	Reid
Casey	Manchin	Sanders
Cruz	Markey	Warren
Franken	Merkley	Wyden

NOT VOTING—2

Mikulski Rubio

The PRESIDING OFFICER. On this vote, the yeas are 83, the nays are 15.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

The Senator from Arizona.

AMENDMENT NO. 1456

Mr. MCCAIN. Mr. President, I call for the regular order with respect to the McCain amendment No. 1456.

The PRESIDING OFFICER. The amendment is now pending.

Mr. MCCAIN. I ask for the yeas and nays on the amendment.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

AMENDMENT NO. 1911 TO AMENDMENT NO. 1456

Mr. MCCAIN. Mr. President, I call up the Hatch amendment No. 1911, which is at the desk.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Arizona [Mr. MCCAIN], for Mr. HATCH, proposes an amendment numbered 1911 to amendment No. 1456.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To require a report on the Department of Defense definition of and policy regarding software sustainment)

At the appropriate place, insert the following:

SEC. _____. REPORT ON DEPARTMENT OF DEFENSE DEFINITION OF AND POLICY REGARDING SOFTWARE SUSTAINMENT.

(a) REPORT ON ASSESSMENT OF DEFINITION AND POLICY.—Not later than March 15, 2016, the Secretary of Defense shall submit to the congressional defense committees and the President pro tempore of the Senate a report setting forth an assessment, obtained by the Secretary for purposes of the report, on the definition used by the Department of Defense for and the policy of the Department regarding software maintenance, particularly with respect to the totality of the term ''software sustainment'' in the definition of ''depot-level maintenance and repair'' under section 2460 of title 10, United States Code.

(b) INDEPENDENT ASSESSMENT.—The assessment obtained for purposes of subsection (a) shall be conducted by a federally funded research and development center (FFRDC), or another appropriate independent entity with expertise in matters described in subsection (a), selected by the Secretary for purposes of the assessment.

(c) ELEMENTS.—

(1) IN GENERAL.—The assessment obtained for purposes of subsection (a) shall address, with respect to software and weapon systems of the Department of Defense (including space systems), each of the following:

(A) Fiscal ramifications of current programs with regard to the size, scope, and cost of software to the program's overall budget, including embedded and support software, percentage of weapon systems' functionality controlled by software, and reliance on proprietary data, processes, and components.

(B) Legal status of the Department in regards to adhering to section 2464(a)(1) of such title with respect to ensuring a ready and controlled source of maintenance and sustainment on software for its weapon systems.

(C) Operational risks and reduction to materiel readiness of current Department weapon systems related to software costs, delays, re-work, integration and functional testing, defects, and documentation errors.

(D) Other matters as identified by the Secretary.

(2) ADDITIONAL MATTERS.—For each of subparagraphs (A) through (C) of paragraph (1), the assessment obtained for purposes of subsection (a) shall include review and analysis regarding sole-source contracts, range of competition, rights in technical data, public and private capabilities, integration lab initial costs and sustaining operations, and total obligation authority costs of software, disaggregated by armed service, for the Department.

(d) DEPARTMENT OF DEFENSE SUPPORT.—The Secretary of Defense shall provide the independent entity described in subsection (b)with timely access to appropriate information, data, resources, and analysis so that the entity may conduct a thorough and independent assessment as required under such subsection.

AMENDMENT NO. 1473, AS FURTHER MODIFIED

Mr. MCCAIN. Mr. President, I ask unanimous consent that the Vitter amendment No. 1473 be further modified with the changes at the desk.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The amendment, as further modified, is as follows:

(Purpose: To limit the retirement of Army combat units, and to provide an offset)

On page 38, line 12, insert after ''**FIGHTER AIRCRAFT**'' the following: ''**AND ARMY COMBAT UNITS**''.

On page 43, between lines 3 and 4, insert the following:

(e) MINIMUM NUMBER OF ARMY BRIGADE COMBAT TEAMS.—Section 3062 of title 10, United States Code, is amended by adding at the end the following new subsection:

''(e)(1) Effective October 1, 2015, the Secretary of the Army shall maintain the following:

''(A) A total number of brigade combat teams for the regular and reserve components of the Army of not fewer than 32 brigade combat teams.

''(B) A total number of brigade combat teams for the Army National Guard of not fewer than 28 brigade combat teams.

''(2) In this subsection, the term 'brigade combat team' means any unit that consists of—

''(A) an arms branch maneuver brigade;

''(B) its assigned support units; and

''(C) its assigned fire teams''.

(f) REDUCTION OF ARMY BRIGADE COMBAT TEAMS.—

(1) PRESERVATION OF TEAMS.—The Secretary of the Army shall give priority to maintaining 32 brigade combat teams for the Army as required by subsection (e)(1) of section 3062 of title 10 United States Code (as amended by subsection (e) of this section), and shall carry out such priority as funding or appropriations become available to maintain such war fighting capability.

(2) REDUCTION.—Notwithstanding subsection (e)(1) of section 3062 of title 10 United States Code (as so amended), or paragraph (1) of this subsection, the Secretary may, after October 1, 2015, reduce the number of brigade combat teams of the Army to fewer than 32 brigade combat teams, or reduce the number of brigade combat teams of the National Guard to fewer than 28 brigade combat teams, upon the latest of the following:

(A) The date that is 30 days after the date on which the Secretary submits the report required by paragraph (3).

(B) The date that is 30 days after the date on which the Secretary certifies to the congressional defense committees that the reduction of Army brigade combat teams will not increase the operational risk of meeting the National Defense Strategy.

(C) The date that is 30 days after the date on which the Secretary certifies to the congressional defense committees that—

(i) in the case of a reduction in the number of brigade combat teams of the Army to fewer than 32 brigade combat teams, funding or appropriations are not adequate to sustain 32 brigade combat teams for the regular Army; or

(ii) in the case of a reduction in the number of brigade combat teams of the Army National Guard to fewer than 28 brigade combat teams, funding or appropriations are not adequate to sustain 28 brigade combat teams for the National Guard.

(3) REPORT.—The Secretary shall submit to the congressional defense committees a report setting forth the following:

(A) The rationale for any proposed reduction of the total strength of the Army, including the National Guard and Reserves, below the strength provided in subsection (e) of section 3062 of title 10, United States Code (as so amended), and an operational analysis of the total strength of the Army that demonstrates performance of the designated mission at an equal or greater level of effectiveness as the personnel of the Army so reduced.

(B) An assessment of the implications for the Army, the Army National Guard of the United States, and the Army Reserve of the force mix ratio of Army troop strengths and combat units after such reduction.

(C) Such other matters relating to the reduction of the total strength of the Army as the Secretary considers appropriate.

(g) ADDITIONAL REPORTS.—

(1) IN GENERAL.—At least 90 days before the date on which the total strength of the Army, including the National Guard and Reserves, is reduced below the strength provided in subsection (e) of section 3062 of title 10, United States Code (as amended by subsection (e) of this section), the Secretary of the Army, in consultation with (where applicable) the Director of the Army National Guard or Chief of the Army Reserve, shall submit to the congressional defense committees a report on the reduction.

(2) ELEMENTS.—Each report submitted under paragraph (1) shall include the following:

(A) A list of each major combat unit of the Army that will remain after the reduction, organized by division and enumerated down to the brigade combat team-level or its equivalent, including for each such brigade combat team—

(i) the mission it is assigned to; and

(ii) the assigned unit and military installation where it is based.

(B) A list of each brigade combat team proposed for disestablishment, including for each such unit—

(i) the mission it is assigned to; and

(ii) the assigned unit and military installation where it is based.

(C) A list of each unit affected by a proposed disestablishment listed under subparagraph (B) and a description of how such unit is affected.

(D) For each military installation and unit listed under subparagraph (B)(ii), a description of changes, if any, to the designed operational capability (DOC) statement of the

unit as a result of a proposed disestablishment.

(E) A description of any anticipated changes in manpower authorizations as a result of a proposed disestablishment listed under subparagraph (B).

(h) REPORT MANNING OF BRIGADE COMBAT TEAMS AT ACHIEVEMENT OF ARMY ACTIVE END-STRENGTH.—Upon the achievement of the end strength for active duty personnel of the Army specified in section 401(1), the Secretary of the Army shall submit to the congressional defense committees a report on the current manning of each brigade combat team of the Army.

(i) CONSTRUCTION.—Nothing in this section should be construed to supersede Army manning of brigade combat teams at designated levels.

(j) ANNUAL PAY INCREASES.—

(1) SENSE OF CONGRESS ON PAY INCREASES.—It is the sense of Congress that, if the President exercises the authority under section 1009(e) of title 37, United States Code, with respect to the rates of basic pay for members of the uniformed services—

(A) the adjustment in the rates of basic pay for each statutory pay system under section 5303 of title 5, United States Code, should be 0.5 percentage points less than the percentage adjustment in the rates of basic pay for members of the uniformed services; and

(B) the President should not adjust, under the authority under section 5303(b) of title 5, United States Code, the rates of basic pay for a statutory pay system by a percentage that is greater than the percentage described in subparagraph (A).

(2) ADJUSTMENT TO RATES OF PAY FOR FISCAL YEAR 2016.—

(A) STATUTORY PAY SYSTEMS.—The adjustment in rates of basic pay for employees under the statutory pay systems (as defined in section 5302 of title 5, United States Code) that takes effect in 2016 under section 5303 of title 5, United States Code, shall be a decrease of 1.0 percent, and such adjustments shall be effective as of the first day of the first applicable pay period beginning on or after January 1, 2016.

(B) PREVAILING RATE EMPLOYEES.—The adjustment in rates of basic pay for the statutory pay systems that take place in 2016 under sections 5344 and 5348 of title 5, United States Code, shall be equal to the percentage decrease received by employees in the same location whose rates of basic pay are adjusted pursuant to the statutory pay systems under subparagraph (A) of this paragraph and 5304 of title 5, United States Code. Prevailing rate employees at locations where there are no employees whose pay is decreased pursuant to sections 5303 and 5304 of title 5, United States Code, and prevailing rate employees described in section 5343(a)(5) of title 5, United States Code, shall be considered to be located in the pay locality designated as ''Rest of US'' pursuant to section 5304 of title 5, United States Code, for purposes of this subparagraph.

(3) ADJUSTMENT TO RATES OF PAY FOR FISCAL YEAR 2017.—

(A) STATUTORY PAY SYSTEMS.—The adjustment in rates of basic pay for employees under the statutory pay systems (as defined in section 5302 of title 5, United States Code) that takes effect in 2017 under section 5303 of title 5, United States Code, shall be a decrease of 1.0 percent, and such adjustments shall be effective as of the first day of the first applicable pay period beginning on or after January 1, 2017.

(B) PREVAILING RATE EMPLOYEES.—The adjustment in rates of basic pay for the statutory pay systems that take place in 2017 under sections 5344 and 5348 of title 5, United States Code, shall be equal to the percentage decrease received by employees in the same location whose rates of basic pay are adjusted pursuant to the statutory pay systems under subparagraph (A) of this paragraph and 5304 of title 5, United States Code. Prevailing rate employees at locations where there are no employees whose pay is decreased pursuant to sections 5303 and 5304 of title 5, United States Code, and prevailing rate employees described in section 5343(a)(5) of title 5, United States Code, shall be considered to be located in the pay locality designated as ''Rest of US'' pursuant to section 5304 of title 5, United States Code, for purposes of this subparagraph.

(4) SENSE OF CONGRESS ON USE OF FUNDS AVAILABLE.—It is the sense of Congress that amounts available to the Government by reason of the reductions in adjustments to rates of pay for fiscal years 2016 and 2017 by reason of paragraphs (2) and (3) should be used to sustain a total number of brigade combat teams for the regular and reserve components of the Army of not fewer than 32 brigade combat teams, anda total number of brigade combat teams for the Army National Guard of not fewer than 28 brigade combat teams, during fiscal years 2016 and 2017 as required by subsection (e) of section 3062 of title 10, United States Code (as amended by subsection (e) of this section).

Mr. MCCAIN. Mr. President, I ask unanimous consent that the Senate vote in relation to the Vitter amendment at 5 p.m., with the time equally divided in the usual form and no second-degrees prior to the vote. I further ask that Senator LEE or his designee be recognized to withdraw his amendment No. 1687 prior to the vote on the Vitter amendment.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 1687

Mr. MCCAIN. Mr. President, I ask unanimous consent that the Lee amendment No. 1687 be withdrawn.

The PRESIDING OFFICER. Without objection, the amendment is withdrawn.

Mr. MCCAIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORNYN. Mr. President, I ask unanimous consent to speak for up to 10 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 1889

Mr. CORNYN. Mr. President, this morning I voted against the Feinstein-McCain amendment No. 1889 because I believe it represents shortsighted national security policy.

The central provision of this amendment would limit the interrogation of detainees by any U.S. Government employee or agent to techniques that are listed in the publicly available Army Field Manual on human intelligence collection (FM 2–22.3), essentially codifying a portion of Executive Order No. 13491, issued by President Obama on January 22, 2009. Due to the wide public availability of this manual, this policy enables our enemies to study and dissect the methods we use to try to elicit sensitive information from them, giving them the opportunity to train against these techniques and prepare for them.

Quite simply, the effect of this policy is to hand our entire interrogation playbook to groups such as the self-declared Islamic State of Iraq and the Levant, ''ISIL,'' Al Qaeda, and the Taliban, which is a profound mistake. Moreover, this limitation is unnecessary, because Congress has already taken action to prohibit interrogation or other treatment of detainees that is ''cruel, inhuman, or degrading treatment or punishment'' by enacting the Detainee Treatment Act of 2005.

In the past, other interrogation techniques that were not publicly disclosed to our enemies, known as enhanced interrogation techniques, proved their worth in numerous instances. In the wake of the terrorist attacks of September 11, 2001, these enhanced techniques were deemed necessary for use with certain hardened Al Qaeda leaders and operatives who possessed valuable intelligence that could save American lives, including knowledge of planned attacks against our Nation. There is strong evidence to believe that EITs, in desperate situations, helped protect our country from terrorist attacks. In addition, intelligence obtained through these interrogations helped locate Osama bin Laden and enabled the operation to kill or capture him in Abbottabad, Pakistan, on May 2, 2011. The Obama administration cannot deny that intelligence gleaned through the use of enhanced techniques played a role in tracking down bin Laden.

In recent months, the threat of terrorism has been increasing in both intensity and complexity. The rise of the terrorist army of ISIL makes this a challenging time in the fight against terrorism. While it is clear that President Obama has no intention of authorizing the use of enhanced interrogation techniques while he is President, this amendment would unwisely and tightly restrict the tools available to future Presidents to protect this country. I cannot support such a policy.

WORKING ACROSS THE AISLE

Mr. President, for the past several weeks we have been debating the National Defense Authorization Act, which performs one of our most important and significant functions, which is to make sure the people who fight our

Nation's wars have the resources they need in order to do the job and to keep the American people safe.

This bill that started in the Armed Services Committee passed out overwhelmingly, and that is because this is not or should not be a partisan issue. Our duty to protect our troops so they can protect us should be a no-brainer. You would think partisan politics would be the furthest thing from this debate.

I am glad the Senate has now taken a big step forward to help move this legislation along, but I have to admit there are some ominous signs on the horizon. Initially, Senate Democrats on the Armed Services Committee threatened to block this bill in the committee unless there was some deal cut on spending. That is troubling, although I am grateful that only four Democrats voted against this bill in the committee. Then there is some suggestion from the President of the United States that he might consider vetoing this legislation. Why? Because he disagrees with some of the content of this legislation? Well, no. The reason he threatened to veto it is because he said we haven't agreed to his demands to increase spending—by the way, spending money we don't have, adding to our national debt.

It concerns me a great deal when something that should enjoy broad bipartisan support, such as our national defense, somehow becomes a potential hostage to take in the spending wars here in Washington, DC.

Now we have learned that the strategy among our Democratic friends is not to block this bill. Candidly, I think that is because they realized they didn't have the votes to do it, and it would have been a momentous decision if they had blocked it for some extraneous reason. But now we are told that the next bill we turn to, which will probably be the Defense appropriations bill—that our friends across the aisle are threatening to block that in another continuing effort to do what they call prepare for their filibuster summer.

The great thing about our friends across the aisle is that you don't have to wonder necessarily what they are planning to do; all you have to do is read the newspapers because they will tell you. There, Senator SCHUMER, one of the senior Democrats in leadership, said they plan to block every appropriations bill until they get a negotiated deal to raise spending limits that have been in effect since 2011.

Well, I have to think this is why the minority leader, the Senator from Nevada, initially when we were starting debate on this bill, suggested it would be a waste of time. I can't think of any other reason why he would say debating and voting on and passing the Defense authorization bill would be a waste of time unless there was some implicit threat there that it would never actually see the light of day.

But there has been a casualty along the way. You will remember that last Thursday we had a vote on a bill that would effect commonsense improvements in our cyber security at a time when more and more Americans are undergoing cyber attacks. Of course, these take different forms, but many nation states have active cyber attack efforts against our intellectual property—let's say the people who have labored long and hard and make big investments in weapons systems and airplanes and the like. Well, our adversaries are actively trying to steal the design information so they can copy that, of course at a much cheaper cost, and they can learn what the capabilities are of our weapons systems and our airplanes.

But other cyber attacks are more straightforward. It is just crime. It is stealing people's identity. It is stealing their money. It is stealing their resources. There are criminal networks all around the world that are actively engaged in trying to steal from the American people online.

So you would have thought that this amendment, dealing as it did with cyber security—that a good place to park this would have been on the Defense authorization bill, as important a role as cyber security plays in our national security. Of course, the purpose was to help the government and private businesses work together to protect Americans' personal information and their privacy, which is a pretty straightforward goal. Protecting the personal information of the American people is very important. And it was noncontroversial. This particular bill that was offered as an amendment to the Defense authorization bill passed out of the Senate Intelligence Committee 14 to 1. But since this is filibuster summer, the minority leader, Senator REID, decided the Democrats were going to vote as a group to block that amendment.

Not even 24 hours later, though—their timing could not have been worse—the need for this critical legislation became even more urgent. On Friday—1 day after the Democratic leader urged his colleagues to block this important cyber security measure—media reports began confirming that hackers had accessed government networks and obtained incredibly sensitive background information used for security clearances in a second breach to the personnel management systems. This information, which one former NSA official described as the crown jewels and a gold mine for foreign intelligence services, was reportedly stolen en masse and includes many personal details of job applicants. As a matter of fact, the people who actually applied for a security clearance, which is processed by the Office of Personnel Management, the people who fill out these forms fill out extensive background information, including birth dates, names, telephone numbers, and the like, but it also includes things such as passport information, Social Security numbers, private identification and background details, extensive information about background places of residence and addresses, and the names and contact information of close friends and family members. So you can see why there would be concern when state actors penetrate the network at the Office of Personnel Management to steal information about that background and security clearance process. This stolen information could be used not only against our intelligence officers and military officials but also their family and friends who may well now be exposed.

That same day, last Friday, it was reported that the first Office of Personnel Management data breach—a breach that was initially reported 2 weeks ago—actually compromised the records of as many as 14 million current and former government officials. That is more than three times the original estimate.

While our Nation's public servants were having their sensitive personal information stolen, the Democratic leader led nearly all of his colleagues to block sensible, bipartisan legislation which was focused on that specific threat and which would provide for greater information sharing between the private sector and government in order to address this very problem.

I am pleased to say that the minority leader was not able to convince all Democrats to block this legislation. In fact, seven Democratic members voted to promote security over partisanship. Good for them for joining us in doing that.

As I said before, but it is worth noting again, the American people have rejected this idea that the Senate and the Congress should do nothing. They did that last November during the election. They made crystal clear that they wanted their elected representatives, whether the House or the Senate, to come here to Washington on their behalf and to actually take steps to make their lives better and to work on their behalf, not to use this Chamber for partisan political games.

We have heard the accusations in the past. The Democratic leader has loudly and routinely criticized this side of the aisle for obstruction. But threatening to block all funding bills unless you get 100 percent of what you want, after spending money we don't have and while looking at an escalating debt in the tens of trillions of dollars, is, to me, the height of hypocrisy.

By pledging to filibuster upcoming appropriations bills, including the Defense appropriations bill, he and his Democratic colleagues have made their priorities very clear. They are willing to jeopardize the paychecks and the security of our men and women in uniform so they can give more taxpayer dollars to sprawling bureaucracies such as the IRS and the EPA. Unfortunately, the leadership on the other side of the aisle is using these very same troops who put their lives on the line every day to score a few partisan

points and to leverage their insatiable appetite for tax dollars. There is never enough. There is never enough.

I don't know that everyone on that side of the aisle is comfortable with this strategy. I am somewhat encouraged in a strange sense of the word by the fact that seven Democrats refused to follow the Democratic leader down this path to blocking the cyber security legislation. To their credit, they voted on the merits of the legislation. But, unfortunately, not enough did in order for us to get it considered and voted on.

In light of this almost contemporaneous occurrence at the Office of Personnel Management and the recurring daily stories about how cyber attacks are stealing personal property, represent an intelligence threat, and are stealing the money of the American people, I hope our colleagues will work with us to do what the American people elected us to do, which is to work together to move forward sensible, bipartisan legislation that is important to the country.

I hope our friends across the aisle will listen to the American people instead of their misguided leadership. Over the past few months under Republican majorities, this Chamber has demonstrated that we are willing to work across the aisle to get the Senate functioning again for the American people.

Do you know what? The irony is that our friends who are now in the minority who used to be in the majority—I think they kind of like it because they actually can offer amendments, they can get votes on amendments, and they can represent their constituents in this body, which they came here to do.

I hope we can keep the Senate working and avoid this filibuster summer that was touted in one of the newspapers just last week. I know the people of my State expect me to come up here and represent their interests, and I know all of our constituents expect us to do better by them.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. AYOTTE. Mr. President, I come to the floor to talk about an amendment I have to the Defense authorization legislation.

Americans who volunteer to defend our country deserve our utmost support and great credit for their uniquely honorable, difficult, and important service. We are a safe and free Nation because of their bravery and sacrifice. However, as we honor our troops and veterans, we have to remember they don't serve alone. Military families serve too. They make serious career and personal sacrifices on behalf of their loved ones so their loved ones can serve our country.

Anyone who has served in the military or has been married to a servicemember or even attended a military retirement ceremony—I actually come from a military family—understands that a successful military career depends on the support and sacrifice of those you love and those who are in your family. A career in the military frequently involves frequent moves and long separations for your spouse, which present unique challenges for military families.

The service and sacrifice of military families not only deserves recognition and respect, but military families are also a critical component of our military readiness. It is difficult for a mother, father, husband or wife serving in the military to focus on defending our Nation if they are worried about the well-being of their family at home. Perhaps that is why, in March of this year, the Commandant of the Marine Corps, Gen. Joseph Dunford, who has now been nominated to serve as the Chairman of the Joint Chiefs of Staff, testified that ''a key element in our overall readiness is family readiness. The family members of our Marines are very much a part of the Marine Corps family. Their sacrifices and support are not taken for granted.''

However, it has come to our attention that the current laws and regulations fail to fully reflect the sacrifices of our military families or the importance of this issue to military readiness.

I wish to talk about a specific problem; that is, when a member of our military actually gets into criminal trouble. Yet their spouse and children have to suffer as a result of it.

Current law forces military juries to sometimes confront the undesirable dilemma of either supporting justice or supporting the military family—but not both. In these rare and tragic cases, a jury must choose either to impose a just sentence on a member of our military—which of course these cases are rare—who commits a crime, but if the jury imposes a just sentence, this could cause the retirement benefits that the family of the military member is counting on to be taken away, and so it leads to this choice of either giving a just or strong sentence and also punish the family who is an innocent bystander in all of this or give a weak and unjust sentence to spare the innocent family—but not both.

When a jury chooses a just sentence, an innocent family can be left with nothing, and that is wrong. Knowing this, some family members choose not to report a crime out of fear that coming forward will risk loss of benefits that a family member helped earn.

For these reasons, I am proud that the National Defense Authorization Act, as passed by the committee, does include an amendment that I introduced with Senator GILLIBRAND which could make transitional benefits available to innocent military family members when their retirement-eligible servicemember forfeits those benefits due to a court-martial.

I am also pleased that the Defense authorization legislation contains sense-of-Congress language that recognizes the valuable service of military families and emphasizes the view of the committee that military juries should not have to choose between a fair sentence and protecting military families. However, this doesn't go far enough. Our work isn't finished. We must do more to recognize the service of military families and to ensure a strong and fair military justice system.

I will briefly talk about the case of Rebecca Sinclair. Rebecca was married to a career Army officer who served with distinction. She married him early in his career and supported him as he rose through the ranks to become General. She served alongside him for 27 years. He was at home for a total of 5 years between 2001 and 2012. She had been a single mother during those five combat deployments when he was serving our country.

She moved 17 times in 27 years. Her oldest son went to six schools by the time he was in sixth grade. Despite earning a bachelor's and master's degree, Rebecca's career had been severely limited by the constant moves.

She thought this sacrifice was worthy because she was doing it on behalf of her Nation and her family. Because she wasn't able to achieve her full earning potential, she was counting on the pay benefits and retirement plan she helped her husband earn over 27 years. But then, in 2012, she watched helplessly as all of this sacrifice, all of this effort, and all of this work hung in the balance. Unlike the vast majority of servicemembers who serve their whole career with honor, her husband was charged with 25 counts of misconduct, including: forcible sodomy, sexual assault, indecent conduct, making fraudulent claims against the government, and obstruction of justice.

Rebecca was totally innocent of this conduct. Her sons, who were 10 and 12 years old, were totally innocent. Yet her husband's actions threatened to leave her with no benefits and no security after 27 years of sacrifice, and if he were to be dismissed from the Army, Rebecca and her sons would be left with nothing.

During his sentencing hearing, Rebecca's husband begged the court to allow him to retire at a reduced rank so his family could collect the benefits which, in his words, ''they have earned serving alongside me all these years.''

Rebecca also made a plea to the court for a sentence that would spare her family from being punished for her husband's actions. I think Rebecca sums it up well in the piece she wrote for the Washington Post in 2012:

> For military wives, the options are bad and worse. Stay with an unfaithful husband and keep your family intact; or lose your husband, your family and the financial security that comes with a military salary, pension, health care and housing. Because we move so often, spouses lose years of career advancement. Some of us spend every other year as single parents. We are vulnerable emotionally and financially. Many stay silent out of necessity, not natural passivity.

It is time to fix these problems. Saying thank you to the military families is not enough. We must ensure that our laws and regulations reflect our gratitude to military families and the importance of what they do. They serve our country, too, and they have earned the benefits as well. It is not right for a military member to rely on his family to help earn retirement benefits and then have that individual commit misconduct and the family is punished too.

My amendment will fix this problem by recognizing that military families serve, too, remove disincentives to report misconduct, and put the sentencing process back in balance. Juries can choose a punishment to fit the crime without worry that an innocent family member will suffer as a result. My amendment has been endorsed by 10 veterans service organizations.

I urge my colleagues to support this important amendment that allows the military justice system to function properly and also makes sure that innocent family members do not suffer and that their service is recognized as well.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

PROTECTING INTERNET ACCESS FROM TAXATION

Mr. WYDEN. Mr. President, I wish to address events from the last several days, both of which have the potential to reshape the way the American people use the Internet for communication and commerce.

The first came last week when the other body voted on a bipartisan basis to permanently extend the Internet Tax Freedom Act. I wrote that law, which is commonly known as ITFA, along with former Congressman Chris Cox, in 1998. The Internet Tax Freedom Act is one of the most popular tax policies in the country, and I believe it is past time for the Senate to follow the House's lead and send a permanent extension to the President's desk.

The second important matter came up yesterday, when a bill called the Remote Transaction Parity Act was introduced in the other body. What this proposal offers is a brand-new national sales tax managed by a privatizing, tax-collecting bureaucracy that not a single voter in America has approved. I see this online tax hike as a major threat to the Internet that has flourished under the bipartisan Internet Tax Freedom Act.

I want to address both of these issues briefly today, beginning with the importance of the permanent Internet Tax Freedom law. Ever since Congress passed it, it has been an essential tool in helping the Internet grow unencumbered by discriminatory taxation. It prohibits the kind of discriminatory taxes that some in Congress are too fond of; the kind of taxes that I believe will hurt innovation and punish the millions of citizens and businesses that use and depend on the Internet each day.

The Internet Tax Freedom Act has saved families in Oregon and across America hundreds of dollars a year. That is because without the law, access to the Internet would likely be subject to the same level of punishing taxation that is currently imposed on cigarettes and alcohol. We already see that with wireless services not protected by the Internet Tax Freedom Act, and this area does involve onerous taxes. Inflicting those taxes on Internet access is a burden the Senate absolutely should not heap on the American people.

Unfortunately, Congress has become too reliant on stop-and-go governing, so the Internet Tax Freedom Act has been extended several times on a temporary basis. Some Members in the Senate and House want to tie the Internet Tax Freedom Act, which saves people money, to a controversial proposal that will drive up the cost of using the Internet the way Americans do today, and that is where the second issue I would like to address comes in.

The House proposal, called the Remote Transaction Parity Act, has taken a variety of different forms over the years. An older version that died in Congress was called the Marketplace Fairness Act. The idea used to be to turn every business that operated online—big or small—into a tax collector for the thousands of tax jurisdictions across the country. With every new version of this online tax hike bill, we would see a new set of problems crop up. Now the proposal has become even bigger and more unwieldy. The new proposal coming from the other body would build an enormous, privatized, tax-collecting bureaucracy, and that new bureaucracy would take a big cut of every online sale before a single dime of sales tax gets distributed back to the States or local communities.

I will take a minute and talk about how this hurts my home State. My home State has no sales tax, but under this proposal, this murky tax-collecting middle man is going to get involved anytime somebody in Virginia, Michigan or California makes a purchase online from an Oregon company. This proposal would unfairly siphon money away from Oregon. Yet Oregonians will get nothing in return from these newly empowered national tax collectors. In effect, there would be a new national sales tax overseen by a privatized middle man, and that raises serious questions about whether taxpayer dollars should be going to a for-profit tax collector. It could put sensitive data about businesses and their customers into the crosshairs of hackers and criminals. That would be just about the biggest Federal intrusion into State commerce in a long time.

The online tax bill also creates a major new hurdle for small businesses that want to find consumers online. That would be a particularly harsh blow to companies in rural America, rural Oregon, and elsewhere. It would suddenly be a whole lot harder to compete with a retailer in a crowded city when the cost of doing business online takes a jump.

Finally, it takes a fundamentally tilted playing field against U.S. employers, and, in effect, makes those employers pay a national sales tax. It creates a fundamentally tilted playing field. The Internet spans national borders, but sellers from China, Canada, and Europe will not and cannot be subject to this tax, and under this approach, they will profit at the expense of the American consumer and American worker.

In my view, we have at hand now two radically different pieces of legislation. The first has been on the books now for well over a decade and has been hugely valuable in terms of innovation, choice, and consumers. That is the permanent Internet Tax Freedom Act, in effect taking what we have had for over a decade and making it permanent. With the permanent approach, we lower costs for consumers and protect the Internet as a bulwark for free speech and commerce, promoting American companies and American ideals. So that is approach No. 1—making permanent legislation that has worked since 1998.

The second approach is the Remote Transaction Parity Act, which would raise costs for Americans, hurt small and rural businesses, and punish States such as Oregon that have kept taxes low.

In my view, it would be legislative malpractice to tie these two approaches together. The path forward for the U.S. Senate should be very clear; that is, to take the permanent Internet Tax Freedom Act that has sailed through the House and, with the ball in our court, pass it here. I believe that a permanent law protecting Internet access from taxation is long overdue, and the proposal for an online tax hike should not get in the way.

So I urge my colleagues to join me now in working for a bipartisan, permanent Internet Tax Freedom Act, unencumbered by the kind of approach which has been introduced in the House and which creates a national sales tax. Let's reject that and move to pass a permanent Internet Tax Freedom Act as soon as possible.

With that, I yield the floor.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Rhode Island.

AMENDMENT NO. 1473, AS FURTHER MODIFIED

Mr. REED. Madam President, at 5 p.m. we will be voting on an amendment proposed by the Senator from Louisiana, Mr. VITTER. The amendment would require the Secretary of the Army to maintain at least 32 brigade combat teams in the Regular and Reserve components of the Army and 28 brigade combat teams in the Army National Guard.

Effectively and deliberately, this amendment would prevent the Army from managing its own force structure, determining how many brigades it needs, how they are disposed in terms of Active, Reserve, and Regular forces. In addition, the way the amendment is

paid for, to maintain these additional brigades would be to mandate a 1-percent pay cut for all Federal civilian employees for 2016 and 2017—not a pay freeze, a pay cut.

The Army does not support this amendment. They need the flexibility to manage their forces to respond to the threats as they perceive them in the world, to determine where the forces are mechanized, whether they are located in the National Guard or whether they are located in the Regular force. As such, as the Army draws down—and it is on that trajectory because of many issues, some of them budgetary—they would have to totally reexamine their existing force structure and they would indeed have to, I think, sacrifice what they think is the most optimal force for a legislative mandate of an arbitrary number of brigades in place. This will create readiness problems because it is one thing to have brigades on paper; it is another to have brigades that are ready to deploy, fully trained, fully equipped, fully manned. That would complicate this process for the Army.

So for these reasons, when the amendment is presented at 5 p.m., I will be opposing the amendment, and I urge my colleagues to join me in that opposition. I think the Army is the most capable to determine its force structure and not by legislative fiat.

With that, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCAIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. Madam President, the Vitter amendment tries to enforce a minimum number of Army brigade combat teams. It seeks to direct the U.S. Army to maintain not fewer than 32 brigade combat teams in the Regular Army and 28 in the Army National Guard. The Secretary of the Army could not reduce these until he reports to Congress and certifies impacts on operational risk to the national defense strategy and insufficient funds or appropriations. The Secretary of the Army must also report rationale for any proposed reduction of total strength in the Regular Army, National Guard, and Army Reserves. This includes an operational analysis that shows continued mission performance given a reduction and an assessment of force-mix ratio among all of those organizations.

Additionally, the Secretary, with the Director of the Army, National Guard, or Chief of Army Reserve, must report to Congress at least 90 days before any possible reductions. The report must list remaining major combat units, missions, unit assignments by installation, and proposed BCTs for disestablishment—on and on and on and on.

I say to the Senator from Louisiana, we don't do this. We don't tell the Army or the National Guard that they can only have a minimum of this or that and that they can't do certain things. The amendment requires the Army to report manning levels. In principle, I agree with the Senator from Louisiana. The world is less secure. We are facing many threats. We need an Army capable of securing our interests around the world. In fact, last week, decisions were made to deploy more forces to Iraq.

The amendment is bad policy. The Congress shouldn't attempt to manage forces. That is the job of the Secretary of the Army and the Chief of Staff. Our job is to authorize and fund. The key is giving Army leadership the flexibility to manage the total Army force given the planned drawdown. In fiscal year 2016, the Army end strength is being reduced and funding is planned to be adjusted accordingly.

The cost to maintain the total Army at 490,000 for 1 year is about $2.4 billion. Of course, the Senator's amendment does not have any indication where that $2.4 billion would come from.

If enacted, the amendment could result in a Regular Army of ''tiered readiness.'' The Army would have a force of 490,000 with a budget for 475,000. We don't want a ''hollow Army'' as we had in the 1970s.

So I urge my colleague from Louisiana, the sponsor of this amendment, to devote his energies and efforts to the repeal of sequestration. That is what is forcing these decisions to be made by the Army, which, in my view and the view of our military leaders, is putting the lives of the men and women at greater risk.

Mr. VITTER. Will the Senator yield for a question?

Mr. MCCAIN. I wish to finish my statement first, and I appreciate that.

So I oppose the amendment on the fact that we do not have the funding here to maintain the Army at the level that both he and I would prefer. If we do repeal sequestration, then there will be sufficient funding for maintaining the Army, the National Guard, and the Army Reserves at the level the Senator from Louisiana strongly advocates and I also advocate.

I will be glad to respond to a question from the Senator from Louisiana.

Mr. VITTER. I thank the Senator for yielding. I would just ask whether the underlying bill doesn't do exactly the same sort of thing in other categories, such as minimum numbers of aircraft carriers in the Navy, such as minimum numbers of certain key equipment in the Air Force, which I agree with. But I don't see any difference between those provisions of the underlying bill and what this provision would constitute with regard to a key element of Army brigade combat teams. That is the first question.

The second question is, Did the Senator know that in the resubmitted version of the amendment, there is a noncontroversial sense-of-the-Senate regarding an offset for this to be put forward?

Finally, I would certainly agree with the Senator about trying to fix the top-line numbers and the top-line situation with regard to sequestration, and, as I am sure he knows, I support that.

Mr. MCCAIN. Madam President, I respond to my friend to say that what we have authorized, as the Senator from Louisiana clearly described, is what the services have said they need to do their mission—and based on their requirements, not the view of what my requirements are. So I think the Senator's proposal is very different from what he described.

Again, there is sufficient funding for everything we have authorized in the bill. What this amendment is authorizing in the bill would require an additional $2.4 billion to be authorized out of the budget that was set by the Budget Committee, which would then mean reductions in other areas, as I am sure the Senator appreciates, that we authorized to the budget numbers as a result of the Budget Committee's allocation for defense.

So I thank the Senator from Louisiana for his continued support of the men and women in the military, especially the bases in Louisiana as well as around the world. He is an advocate for the men and women who are serving, and I appreciate his continued dedication to their welfare and benefit. We just have an honest disagreement on whether this amendment is appropriate in our management of the armed services.

I thank the Senator. We have a disagreement on the amendment. We will vote on it, as he requested. He requested not having a tabling motion. He asked if we could consider his amendment, if we could have it not be a tabling motion, and I am glad to accommodate the Senator.

With that, I yield the floor, and I ask unanimous consent to start the vote now.

The PRESIDING OFFICER. Without objection, all time is yielded back.

Under the previous order, the question is on agreeing to amendment No. 1473, as further modified, offered by the Senator from Louisiana, Mr. VITTER.

Mr. VITTER. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Florida (Mr. RUBIO).

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 26, nays 73, as follows:

[Rollcall Vote No. 213 Leg.]

YEAS—26

Alexander	Ernst	Paul
Blunt	Gardner	Perdue
Capito	Grassley	Risch
Cassidy	Heller	Scott
Corker	Hoeven	Sullivan
Cornyn	Isakson	Tillis
Crapo	Lankford	Toomey
Cruz	Lee	Vitter
Daines	Moran	

NAYS—73

Ayotte	Franken	Nelson
Baldwin	Gillibrand	Peters
Barrasso	Graham	Portman
Bennet	Hatch	Reed
Blumenthal	Heinrich	Reid
Booker	Heitkamp	Roberts
Boozman	Hirono	Rounds
Boxer	Inhofe	Sanders
Brown	Johnson	Sasse
Burr	Kaine	Schatz
Cantwell	King	Schumer
Cardin	Kirk	Sessions
Carper	Klobuchar	Shaheen
Casey	Leahy	Shelby
Coats	Manchin	Stabenow
Cochran	Markey	Tester
Collins	McCain	Thune
Coons	McCaskill	Udall
Cotton	McConnell	Warner
Donnelly	Menendez	Warren
Durbin	Merkley	Whitehouse
Enzi	Mikulski	Wicker
Feinstein	Murkowski	Wyden
Fischer	Murphy	
Flake	Murray	

NOT VOTING—1

Rubio

The amendment (No. 1473), as further modified, was rejected.

The PRESIDING OFFICER. The Senator from Massachusetts.

Mr. MARKEY. Madam President, I seek recognition to speak for up to—I ask unanimous consent to withhold my motion at this time.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Oklahoma.

MORNING BUSINESS

Mr. LANKFORD. Madam President, I ask unanimous consent that the Senate proceed to a period of morning business, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Massachusetts.

PAPAL ENCYCLICAL ON THE ENVIRONMENT

Mr. MARKEY. Madam President, on Thursday, Pope Francis will officially release a historic encyclical on the environment. An encyclical is a personal message from the Pope to Catholic bishops and the 1.2 billion Catholics around the world on a topic that he feels requires urgent attention. It is an opportunity for the Pope to bring together accumulated teachings in a comprehensive way. This will be only Pope Francis's second papal missive, and it has garnered enough attention that the conservative Heartland Institute traveled to the Vatican this spring to respectfully inform the Pope that there is no global warming crisis.

Earlier this week, my colleague Senator INHOFE agreed with the Heartland Institute and told them that Pope Francis should ''stay with his job and we'll stay with ours.'' Well, I disagree with Senator INHOFE. Pope Francis is doing his job, but it is Republicans in this Chamber who are not doing theirs.

To those critics who say that Pope Francis shouldn't be speaking out on this, I will give them a very simple history lesson. Pope Francis is not the first to speak out on climate change and environmental protection. He will join a chorus of previous pontiffs who drew attention to the crisis of climate change and its impact on people, especially the poor and the children of our planet.

In 1971, Pope Paul VI warned that human actions that harm nature may make the future intolerable. Pope John Paul II first raised the greenhouse effect as a moral issue in his landmark 1990 World Day of Peace message. Two decades later, Pope Benedict XVI shined a light on environmental refugees in his World Day of Peace message and committed the Vatican to going carbon neutral, including installing a massive solar panel energy system on one of the largest buildings in the Vatican.

As the leader of more than 1 billion Catholics around the world, many of whom are suffering from the worst consequences of global warming—disease, displacement, poverty—it is the Pope's responsibility to speak out on behalf of the people he leads. And that is exactly what he will be calling all of us to do.

The same people who want to deny Pope Francis's right to speak out on climate change are the same people who deny the science of it. But our understanding of human influence on climate change rests on 150 years of wide-ranging scientific observations and research, and it is informed by what we see today with our own eyes and measured by our own hands.

Here is the reality. Global temperatures are warming, glaciers are melting, sea levels are rising, extreme downpours and weather events are increasing, the ocean is becoming more acidic, and last year was the warmest year on record. Increasing temperatures increase the risk of bad air days, in turn increasing the risk of asthma attacks and worse for people with lung disease. We have a public health crisis.

We are already feeling the cost of climate disruption. The Government Accountability Office added climate change to its 2013 high-risk list and found that climate change ''presents a significant financial risk to the Federal Government.'' GAO could just have easily said it presents a significant financial risk for all of America. But the United States is not tackling this climate change alone. Efforts are underway in countries all around the world. We are seeing academies of science in country after country all coming to the same conclusion.

What can we do here in the United States to answer the call of the Pope? Here is what we can do. We can make sure the wind and the solar tax credits do not expire. That is what is happening in this Congress. We can continue this incredible revolution in wind and solar and other renewable sources. That is going to die in this Congress unless we renew them.

We can ensure there is a dramatic increase that continues in the fuel economy standards of the vehicles we drive—the cars, the SUVs, the trucks—that dramatically reduces greenhouse gases. We can ensure when President Obama propounds his clean powerplant rules, which will reduce by 30 percent the amount of greenhouse gases going up into the atmosphere by the year 2030, that they are not repealed on the Senate Floor.

We are the greatest innovation country in the history of the world. Science and technology are the answer to our prayers. They are going to give our country the ability to give the leadership and hope to the rest of the world when we answer the prayer of Pope Francis. The poorest in the world are going to be those who are most adversely affected by the richest countries in the world.

We can, in fact, save all of creation by engaging in massive job creation—the new vehicles we drive, the new energy technologies we create, the new technologies that will reduce the amount of greenhouse gases going up from powerplants. We did it once with the Clean Air Act of 1990, and we can do it again.

So while Pope Francis preaches to the world, the world turns to us for leadership. We cannot preach temperance from a barstool. We cannot tell the rest of the world they should change their habits unless we take the leadership in creating the new technologies that we deploy here and then see deployed around the rest of the world.

We can transform the way energy is in fact produced across this entire planet within the 21st century. That is what the Pope is asking us to do—not to sacrifice but to innovate, not to give up but to invest in those technologies that will transform this planet.

President Kennedy called upon us in 1961 to put a man on the moon by investing in new metals and new propulsion technologies, so that we could ensure that the Soviet Union did not impose its communistic regime across the entire planet. We invented the new technologies for peaceful purposes. And when our astronauts stepped foot on the moon, that American flag that flew was the return on investment of that generation. This generation of Americans is now being asked to make the same kind of commitment to a new generation of energy technologies that can reduce greenhouse gases dramatically, give leadership for the rest of the world, and answer the call from Pope Francis.

Those who say it is not Pope Francis's business to speak out on

something that is obviously created by human beings and that can be solved by human beings are wrong. It is his place. He challenges us to put on the books of the laws of this country the kinds of standards that unleash the green energy revolution, that create jobs by the millions, while ensuring that we reduce the greenhouse gases going up and endangering the planet.

I thank the Chair for the opportunity to be recognized, and I say in conclusion that it is just an incredible moment when the Pope speaks on an issue of this importance. I am not saying action will be easy, but if we harness the ambition of the Moon landing, the scope of the Clean Air Act, and the moral imperative of Pope Francis's encyclical, we can leave the world a better place than we found it. We have the tools to do it. Now we need to forge the political will.

I yield the floor.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from South Dakota.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. THUNE. Mr. President, this week the Senate will complete its work on the National Defense Authorization Act by holding a final vote. The National Defense Authorization Act is one of the most important bills Congress considers each and every year. I think this will mark the 54th consecutive year in which Congress has passed a Defense authorization bill, recognizing its importance to America's national security interests.

The bill authorizes funding for our Nation's military and our national defense, ensuring that our soldiers get paid, their equipment and training is funded, and that our commanders have the resources they need to confront the threats that are facing our Nation.

In particular, this bill ensures our air men and women maintain readiness levels and receive the training they need to safely return home after protecting our national security abroad.

In my State of South Dakota, we are proud to host the 28th Bomb Wing at Ellsworth Air Force Base, one of our Nation's two B–1 bomber bases. The B–1s are a critical part of the U.S. bomber fleet, providing our military with critical long-range strike capabilities. These bombers have the highest payload capacity, the fastest maximum speed, and the lowest cost per flying hour of any bomber in our fleet.

Bombers from the 28th Bomb Wing have played a key role in the armed conflicts the United States has engaged in over the past 20 years. Whatever the mission, from supporting NATO operations in Kosovo to conducting operations in Afghanistan, B–1s from Ellsworth have been in the thick of the action.

During Operation Odyssey Dawn, B–1s from Ellsworth launched from South Dakota flew halfway around the world to Libya, dropped their bombs, and returned home all in a single mission. This marked the first time in history that B–1s launched combat missions from the United States to strike targets overseas.

After 8 years of review, the Air Force and the Federal Aviation Administration recently finalized the expansion of the Powder River Training Complex, an airspace training range that serves as the primary training space for Ellsworth B–1s, as well as the B–52 bombers based at Minot Air Force Base in North Dakota.

The expanded training range will be the largest training airspace over the continental United States. It will save Ellsworth up to $23 million a year by reducing the need for the B–1 bombers to commute for training to other States, such as Nevada and Utah. In an era of tighter budgets, measures such as this, which increase readiness while saving costs, are essential.

I was pleased to work with the Air Force and the FAA on this critical expansion, and I am hopeful our air men and women will be able to start using this range for large-force training exercises in the near future.

In addition to ensuring our military has the resources necessary to maintain our B–1 bombers, the bill authorizes full funding for one of the Air Force's top acquisition priorities—the Long Range Strike Bomber, which represents the future of our bomber fleet. This aircraft is scheduled to come on line by the mid-2020s and is just one of many acquisition priorities necessary to defend our Nation against future threats.

Our Nation's defense budget must consider not only the enemies we face today but also those we will face tomorrow.

In addition to the critical funding this bill authorizes, this year's bill is particularly important because it contains a number of reforms that will expand the resources available to our military men and women and strengthen our national security.

For starters, this bill tackles waste and inefficiency at the Department of Defense. It targets $10 billion in unnecessary spending and redirects those funds to military priorities such as funding for aircraft and weapons systems and modernization of Navy vessels.

The bill also implements sweeping reforms to the military's outdated acquisitions process by removing bureaucracy and expediting decisionmaking, which will significantly improve the military's ability to access the technology and the equipment it needs.

The act also implements a number of reforms to the Pentagon's administrative functions. Over the past decade, Army Headquarters staff has increased by 60 percent. Yet, in recent years, the Army has been cutting brigade combat teams. From 2001 to 2012, the Department of Defense's civilian workforce grew at five times the rate of our Active-Duty military personnel. There is something wrong with that picture. Prioritizing bureaucracy at the expense of our preparedness and our Active-Duty personnel is not an acceptable use of resources.

The Defense authorization bill we are considering changes the emphasis at the Department of Defense from administration to operations, which will help ensure that our military personnel receive the training they need and that they are ready to meet any threats that arise.

The bill also overhauls our military retirement system. The current military retirement system limits retirement benefits to soldiers who serve for 20 years or more—which doesn't apply, by the way, to 83 percent of those who have served, including many veterans of the wars in Iraq and Afghanistan. The Defense bill replaces this system with a modern retirement system that would extend retirement benefits to 75 percent of our servicemembers.

This bill is the product of a bipartisan process, and it received bipartisan support in committee. I believe it came out of the Armed Services Committee by a vote of 20 to 6. This makes it particularly disappointing that the President is attempting to hijack this bill for political purposes.

Despite the fact that this legislation authorizes spending at the President's budget request—his budget request—of $612 billion, the President is threatening to veto this legislation if Republicans don't agree to provide more funding for agencies such as the IRS and EPA, and he has tried to convince Democrats here in the Senate to abandon bipartisan efforts on this bill and back up a Presidential veto.

Holding up funding authorization for our troops is reckless, and it is irresponsible. And it is flat wrong for the President of the United States to attempt to hijack this bill not because he disagrees with the bill itself but because he wants to make sure his pet projects receive the funding he wants.

At this very moment, threats are multiplying around the world. Russian aggression is on the rise. ISIS fighters are carving a trail of slaughter across the Middle East. Iran is working to acquire a nuclear weapon. Now more than ever, we cannot afford to be holding up funding for our military, especially for partisan political purposes.

Democrats and Republicans have had a chance to make their voices heard on this bill, and our joint efforts have resulted in strong, bipartisan legislation that will ensure that our military is prepared to meet the threats of the 21st century. The Senate should pass this bill this week and the President should sign it to make sure our troops have the equipment and the resources they need to do the most important thing we can do as a nation, and that is defend our country.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

ORDER OF PROCEDURE

Mr. SANDERS. Mr. President, I ask unanimous consent that I be permitted to speak for up to 15 minutes and that Senator DURBIN be recognized following my remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

SENIOR HUNGER AND GAO REPORT

Mr. SANDERS. Mr. President, I want to touch on an issue that I think does not get the attention it deserves. My view is that a nation is judged not by how many billionaires and millionaires it has but by how it treats the most vulnerable people among us. If we look at the greatness of a nation in that respect, the sad truth is that the United States today does not get particularly high marks. That is true not only in the way we treat our children, but it is also true in the way we treat our seniors.

Yesterday, at my request, the Government Accountability Office—the GAO—released a new report that found that nearly 4 million seniors in our country are what they call food insecure. That means these seniors do not know where their next meal is coming from. What that means is that nearly 4 million American seniors may skip dinner tonight because they do not have enough money to buy food today.

Every day in my State of Vermont and around this country, millions of seniors have to juggle with their limited budgets their ability to buy food, their ability to buy medicine, or, in the wintertime, their ability to keep themselves warm in their homes. Those are not the choices seniors in this country should be forced to make.

There is a myth out there pushed by corporate and moneyed interests suggesting that seniors in this country are doing just great, that all seniors are comfortably middle class. But those people who hold those views have not looked at the reality of life for many seniors in this country. The truth is—and this is really a shocking truth—that 20 percent of seniors in America live on an average income of $7,600 a year. Between us, I don't know how anybody can live on $7,600 a year, let alone older people who need more medicine and more health care.

The GAO recently found that more than half of all older American households have absolutely no retirement savings. So we are looking at families where people 55 or 60 have zero saved for retirement because for many years they have been working for wages that have been totally inadequate, preventing them from putting money into the bank.

Many seniors obviously have worked their whole lives. They have raised kids. But, sadly, many of them do not have the resources they need to live a secure retirement.

As I mentioned a moment ago, we have seniors in this country who are going hungry. The GAO report found that fewer than 10 percent of low-income seniors who needed a home-delivered meal in 2013 received one. In other words, what we have created here in Congress over the years are good and effective programs, such as the Meals on Wheels program, that provide nutritious food to the most vulnerable people in this country—seniors who cannot leave their homes; yet, what the GAO report discovered is that fewer than 10 percent of low-income seniors who needed a home-delivered meal in 2013 received one.

I have gone to many senior citizen locations around this country, and I know that many senior citizens enjoy coming out and getting a congregate meal. They go to senior centers, and they are able to socialize with their friends. They get a good and nutritious meal at a reasonable price. Unfortunately, fewer than 10 percent of low-income seniors who need a congregate meal receive one.

The need, in fact, is growing amongst seniors. GAO found that a higher percentage of low-income seniors are food insecure now—24 percent in 2013—than were in 2008, when the number was 19 percent. So the problem is becoming more acute. One in three low-income seniors aged 60 to 69 is food insecure; yet, fewer than 5 percent receive a meal at home and fewer than 5 percent receive a congregate meal in a senior center.

GAO found that seniors with a disability, minorities, and older adults living on less than $10,000 a year were even more likely to be hungry. Overwhelmingly, those seniors are not getting the help they need.

The report also found that 16 million older adults from all income levels report difficulties with one or more daily activity, such as shopping, bathing, or getting dressed. More than two-thirds of these seniors do not get the help they need.

Many of the programs designed to provide support to seniors—in terms of Meals on Wheels, in terms of the Congregate Meal Program, and in terms of a variety of other programs—are funded by the Older Americans Act. The Older Americans Act was first passed by Congress in 1965, which is the same year Medicare and Medicaid were passed. This year, all three programs are celebrating their 50th anniversary.

I requested this study to see how seniors have been faring in recent years. GAO reported that while the number of older adults in America has increased from 56 to 63 million Americans, the Older Americans Act funding provided to States has gone down since 2009. In other words, the need has gone up, but the funding has gone down. At current funding levels, less than two-tenths percent of Federal discretionary spending is going to achieve its original purpose.

Common sense tells us that putting money into prevention and keeping seniors healthy in the end run not only prevents human suffering, but it also saves us money. If a senior is malnourished, that senior is more likely to fall, break a hip, end up in the hospital, at huge expense for Medicaid and Medicare. It makes sense to me, it seems, that if we fund adequately this important program which keeps seniors healthy, independent, and out of hospitals and nursing homes—that is what we should be doing. That is why I sent a letter to my colleagues on the Senate Appropriations Committee calling for a 12-percent increase in funding for the Older Americans Act programs, such as the nutrition programs. Thirty-two colleagues joined me on that letter. I hope that when we receive the funding level for the Older Americans Act this year, we will see an increase on these important programs. We should not be giving more tax breaks to those who don't need them. Instead, we should be expanding nutrition programs and other services for seniors.

I also encourage my colleagues to support the bill reauthorizing the Older Americans Act, S. 192, and I look forward to working with the Presiding Officer to reauthorize and expand these critical programs for seniors.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNIZING THE 100TH ANNIVERSARY OF HOLY GHOST UKRAINIAN CATHOLIC CHURCH

Mr. PORTMAN. Mr. President, I wish to recognize Holy Ghost Ukrainian Catholic Church as it celebrates its 100th anniversary. Holy Ghost Ukrainian Church was founded in Akron, OH by a small group of faithful and passionate Ukrainian Christians.

In 1915, the Holy Ghost Ukrainian Catholic Church began when two organizations came together to create a place where Ukrainian immigrants could practice the beliefs and traditions they cherished in the new country they called home. The parish has grown and prospered over the years, and continues to flourish at its original location at 1866 Brown Street, offering a center for spiritual and cultural life to Akron and surrounding northeast Ohio communities.

On June 21, 2015, Father Vsevolod Schevchuk, ''Father Sal'', and parishioners will welcome honored guests His Beatitude Sviatoslav Sherchuk, Patriarch, and The Most Reverend Bohdan J. Danylo, Bishop, of the Ukrainian Catholic Church to their Hierarchical Divine Liturgy and celebration dinner. The congregation will join together on this day to celebrate the anniversary of the church, their Ukrainian cultural

traditions, and all that this parish has meant to the community throughout the years.

With more than 50,000 Ukrainian Americans in Ohio, cultural and religious ties remain strong within the community and between Ohio and Ukraine. As cochair of the U.S. Senate Ukrainian Caucus, I have had the privilege of working with the Ukrainian community and know how strongly connected they remain with family and friends overseas. I am certain the continued engagement of Ukrainians in the United States is making a difference in the efforts for the independence of Ukraine. I join the members of the Holy Ghost parish and Ukrainians throughout the United States who continue to pray and work toward a peaceful resolution to the situation in Ukraine. I am proud to stand with Ukrainian Americans and the Ukrainian people as they further their resolve and commitment to maintaining a free and independent Ukraine.

Mr. President, I would like to personally extend my congratulations to Holy Ghost Ukrainian Catholic Church on 100 years of faith, service, and worship.

TRIBUTE TO PETER BLAIR

Mr. LEE. Mr. President, Peter Blair has been a highly valued and trusted member of my staff from the time I took office in 2011. He was part of the team that did the heavy lifting of getting the Senate office off the ground and was instrumental in establishing the systems, structure, and disciplines necessary to support the Senate office and serve the people of Utah.

Peter has filled a wide range of roles and responsibilities in our office, from administrative duties to correspondence and constituent services, from strategic relationships and outreach to the vital role of handling our veterans' affairs. He has approached each of these with a firm commitment to excellence, an eye toward challenging the status quo, and a determination to deliver an experience that is meaningful and memorable.

Assigning something to Peter is not only to consider it done but to know that it will be done right. His commitment to serve the office at anytime, day or night, and in whatever way is needed is extraordinary. He has been vital to the office running on all cylinders. Late night votes, townhalls, serving constituents and veterans, and coordinating with the hardworking people who really make the Senate function, were all part of a day's work for Peter.

Peter has a unique and innovative way of looking at tasks, projects and long-term opportunities—one I wish more people in Washington would embrace. Peter is a servant leader—a street-smart and savvy servant, who understands strategy, structure, and discipline and is simply determined to deliver regardless of circumstances or setbacks.

Peter is a forever learner. His quest to find a better way to do things and his inner drive to make a difference has had an impact on every aspect of my office. He is a trusted colleague who is more concerned about getting things done and done right than he is about who gets credit. Ronald Reagan often made the comment, ''There is no limit to what a man can do or where he can go if he doesn't mind who gets the credit.'' I would add that there is no limit to Peter's impact and where he can go in the future, because he doesn't care who gets the credit.

It has been a blessing for me, my family, and my staff to have Peter as a member of our team. Having Peter around, from the early days of my service in the Senate, has given me great confidence and peace of mind. Nothing has been better than knowing that the moment an assignment was given to Peter it had begun, would soon be done, and above all, be done right.

TRIBUTE TO RYAN McKEON

Mr. LEE. Mr. President, Ryan McKeon has served as my chief advisor on economic policy for the past several years and has been an indispensable member of my staff. The old saying, ''still water runs deep,'' is a good metaphor for Ryan. Many on Capitol Hill race about trying to call attention to themselves or create a torrent of activity to prove how smart or important they are. Ryan, on the other hand, has a style that is indicative of the depth of his substance. He is concerned with properly informing, not impressing, and is less interested in entertaining than he is in engaging in deeper dialogue on issues that matter.

I have trusted Ryan's wisdom and keen insight on a wide range of policy issues and have always had complete confidence in his thorough briefings and recommendations. He has been the driving force behind an expanding and more meaningful economic policy reach from my office.

Ryan is very perceptive. His understanding of core disciplines, principles, and policies, as well as the nuances and subtleties of his issue areas, has been priceless. Ryan is aware of not only the principle and policy ramifications of congressional business but the likely results and down-stream effect of the decisions made. Ryan's stillness allows him to present information in a concise, clear manner that informs me of vital data and impact points while filtering out the noise and chatter typical of Washington, DC, debate.

Everyone in my office knows they can approach Ryan to have him run the numbers on any piece of legislation. He understands the big picture and regularly worked in tandem with our communications team to ensure our messaging was congruent with what we had introduced legislatively. Ryan has worked well with other offices, as well as with academics and highly specialized policy experts outside of my office. While so much of Ryan's work is centered in serious issues and tough topics, he also knows the value of some well placed humor, a wry comment, and a little levity.

Ryan is committed to adding value and making a difference. I greatly appreciate what he has done for me, for the people of Utah, and for our nation. There is a confidence that comes of stillness, a strength that comes from serenity, and quiet determination that comes from depth. Ryan McKeon runs deep, and I am confident his influence will continue to ripple and roll on in the years ahead.

ADDITIONAL STATEMENTS

CELEBRATING THE 60TH ANNIVERSARY OF HOXIE SCHOOL INTEGRATION

● Mr. BOOZMAN. Mr. President, today I wish to honor the resilience, determination, and courage of the community of Hoxie, AR for its leadership in school desegregation and the foundation it laid for integration across the country.

This year, the community is celebrating the 60th anniversary of the first day of school for the African-American students who became known as the Hoxie 21.

This small northeast Arkansas community voluntarily integrated its schools in the summer of 1955 in response to the Supreme Court case Brown v. Board of Education. The reasoning for the school board and Superintendent Kunkel Edward Vance's decision was simple; integration was ''morally right in the sight of God.''

On July 11, 1955, African-American students made history in Hoxie and helped build the momentum for integration.

This unprecedented move began with a smooth transition, and the students were welcomed into the school. The news of a small town in the South desegregating peacefully caught the attention of Life magazine, and in its July 1955 issue the story captured the attention of the world. Unfortunately, the media attention brought with it an avalanche of negativity despite the positive and peaceful progression.

This action was unpopular in the South and while segregationists flooded the community in protest, families of the Hoxie 21 and school leaders stood their ground and with great faith persevered against the inequality.

The Hoxie School Board fought back by filing suit on the segregationists, charging the segregationists with trespassing on school property, threatening picket lines, organizing boycotts and intimidating school officials. Citizens of Hoxie of all races peacefully waited for a resolution, and with encouragement from the NAACP were able to stand up against the verbal and physical threats from the segregationists. Their patience and fortitude was

soon rewarded. In September, the FBI became involved in the investigation. Two months later, Federal District Judge Thomas C. Trimble ruled that segregationists prevented integration in Hoxie, and issued a temporary restraining order against them. In December, a permanent ban against the segregationists was issued and later upheld by the Supreme Court, freeing the school of their influence. It was the first mediation in support of a school district trying to comply with Brown v. Board of Education—a momentous moment for the country and a victory for integration.

This decision was instrumental in desegregating the entire country and was a major victory for the 14th Amendment. This demonstrates that change only comes when people stand up for what is morally right.

I congratulate the town of Hoxie and the Hoxie 21 on this milestone. I am encouraged by your dedication to share this history and positive message. I thank the Hoxie 21 and the community for their bravery in the face of adversity. It is an honor to tell your story and educate people about your struggle.●

REMEMBERING HAROLD E. WARD

● Mrs. SHAHEEN. Mr. President, when author Tom Brokaw called Americans who came of age during World War II the ''greatest generation,'' he had in mind remarkable people like Harold E. Ward, who passed away last week. Mr. Ward lived nearly six decades in Lee, NH, where neighbors knew him for his kindness and warm smile. But few knew that during his 94 years he bore witness to some of the most profound events and transformations of 20th and 21st century America.

In his teens, during the Great Depression, he experienced dire poverty and frequent hunger, enduring what he called ''missed meal cramps.'' As an African American, he endured the slights and segregation of Jim Crow, including when he joined the Navy 2 years before the United States entered World War II. Mr. Ward had graduated from trade school as a skilled electrician, but the few African Americans serving in the Navy were routinely assigned to menial positions such as stewards for ship officers. It was only later, after desegregation of the military, that he became a cook.

On Sunday morning, December 7, 1941, he was on duty aboard the USS *San Francisco* at Pearl Harbor. From his battle station, he witnessed the most devastating foreign attack ever carried out against our military on U.S. soil.

That was Harold Ward's first taste of combat but far from the last. Eleven months later, serving in the Pacific during the Battle of Guadalcanal, he survived numerous wounds from shell fragments and watched a close friend die next to him. He was awarded the Purple Heart. But, referring to shrapnel permanently embedded in his legs, he later said, ''I wear my medals on my body.'' Recalling the prejudice he faced as a Black sailor, he told a local newspaper: ''You look back on it, and despite the fact there was such a separation of people, all the blood ran red.''

Harold Ward served two decades in the Navy, retiring as first class petty officer commissary steward. He went on to use his culinary skills at restaurants in Exeter and Durham, NH, including his own restaurant, Harold's Place, and also worked as a part-time police officer in Lee.

Mr. Ward was a 55-year member, past commander, and chaplain of American Legion Post 67 in Newmarket, NH, and a founding member and past commander of Veterans of Foreign Wars Post 10676 in Lee. He lived to witness the end of legal segregation, the triumphs of the civil rights movement, and the election and reelection of an African-American President.

Across the decades, Mr. Ward was a gifted mentor to countless young people who crossed his path. Harold and his wife Virginia treated these young men and women as members of the Ward family, giving them love, counsel, and a place to call home.

Dr. Martin Luther King, Jr., said, ''Life's most urgent and persistent question is: What are you doing for others?'' Across his eventful life, Harold Ward answered that question in powerful ways, including service to his country, to his community, and to anyone he encountered who needed a helping hand or a wise word.

Harold was predeceased by his beloved wife Virginia and two sons, Bruce and Theodore. He is remembered with much love by daughters Linda and Harriet and son Michael. The Lee community is mourning his passing, as are countless people whose lives he touched. On behalf of the United States Senate and a grateful nation, I thank Harold Ward for his many years of dedicated service. May he rest in peace.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mrs. Neiman, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

PRESIDENTIAL MESSAGE

PROPOSED AGREEMENT FOR COOPERATION BETWEEN THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND THE GOVERNMENT OF THE REPUBLIC OF KOREA CONCERNING PEACEFUL USES OF NUCLEAR ENERGY—PM 20

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with accompanying papers; which was referred to the Committee on Foreign Relations:

To the Congress of the United States:

I am pleased to transmit to the Congress, pursuant to sections 123 b. and 123 d. of the Atomic Energy Act of 1954, as amended (42 U.S.C. 2153(b), (d)) (the ''Act''), the text of a proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Republic of Korea Concerning Peaceful Uses of Nuclear Energy (the ''Agreement''). I am also pleased to transmit my written approval, authorization, and determination concerning the proposed Agreement, and an unclassified Nuclear Proliferation Assessment Statement (NPAS) concerning the proposed Agreement. (In accordance with section 123 of the Act, as amended by Title XII of the Foreign Affairs Reform and Restructuring Act of 1998 (Public Law 105–277), two classified annexes to the NPAS, prepared by the Secretary of State, in consultation with the Director of National Intelligence, summarizing relevant classified information, will be submitted to the Congress separately.) The joint memorandum submitted to me by the Secretaries of State and Energy and a letter from the Chairman of the Nuclear Regulatory Commission stating the views of the Commission are also enclosed. An addendum to the NPAS containing a comprehensive analysis of the export control system of the Republic of Korea (ROK) with respect to nuclear-related matters, including interactions with other countries of proliferation concern and the actual or suspected nuclear, dual-use, or missile-related transfers to such countries, pursuant to section 102A(w) of the National Security Act of 1947 (50 U.S.C. 3024(w)), is being submitted separately by the Director of National Intelligence.

The proposed Agreement has been negotiated in accordance with the Act and other applicable law. In my judgment, it meets all applicable statutory requirements and will advance the nonproliferation and other foreign policy interests of the United States.

The proposed Agreement contains all of the requirements established by section 123 a. of the Act. It provides a comprehensive framework for peaceful nuclear cooperation with the ROK based on a mutual commitment to nuclear nonproliferation. It would permit

the transfer of material, equipment (including reactors), components, information, and technology for nuclear research and nuclear power production. It would not permit the transfer of Restricted Data, and sensitive nuclear technology or technology or information that is not in the public domain concerning fabrication of nuclear fuel containing plutonium could only be transferred if specifically provided by an amendment to the proposed Agreement or a separate agreement. Any special fissionable material transferred could only be in the form of low enriched uranium, with two exceptions: small quantities of material for use as samples; or for other specified applications such as use in loading and operation of fast reactors or the conduct of fast reactor experiments. The proposed Agreement would also obligate the United States to endeavor to take such actions as may be necessary and feasible to ensure a reliable supply of low enriched uranium fuel to the ROK, similar to terms contained in other recent civil nuclear cooperation agreements.

The proposed Agreement would also establish a new standing High-Level Bilateral Commission (HLBC) to be led by the Deputy Secretary of Energy for the Government of the United States of America and the Vice Minister of Foreign Affairs for the Government of the ROK. The purpose of the HLBC is to facilitate peaceful nuclear and strategic cooperation between the parties and ongoing dialogue regarding areas of mutual interest in civil nuclear energy, including the civil nuclear fuel cycle.

The proposed Agreement will have an initial term of 20 years and would renew for one additional period of 5 years unless either party gives written notice at least 2 years prior to its expiration that it does not want to renew the proposed Agreement. The proposed Agreement also requires the parties to consult as soon as possible after the seventeenth anniversary of its entry into force to decide whether to pursue an extension of the proposed Agreement. In the event of termination of the proposed Agreement, key nonproliferation conditions and controls will continue in effect as long as any nuclear material, moderator material, byproduct material, equipment, or component subject to the proposed Agreement remains in the territory of the party concerned or under its jurisdiction or control anywhere, or until such time as the parties agree that, in the case of nuclear material or moderator material, such items are no longer usable for any nuclear activity relevant from the point of view of international safeguards or have become practically irrecoverable, or in the case of equipment, components, or byproduct material, such items are no longer usable for nuclear purposes.

The ROK has a strong track record on nonproliferation and its government has consistently reiterated its commitment to nonproliferation. The ROK is a party to the Treaty on the Non-proliferation of Nuclear Weapons, has an International Atomic Energy Agency safeguards agreement and Additional Protocol in force, is a member of the four multilateral nonproliferation export control regimes (Missile Technology Control Regime, Wassenaar Arrangement, Australia Group, and Nuclear Suppliers Group, for which it served as Chair in 2003–2004 and is scheduled to do so again in 2015–2016), and is an active participant in the Proliferation Security Initiative. A more detailed discussion of the ROK's civil nuclear program and its nuclear nonproliferation policies and practices, including its nuclear export policies and practices, is provided in the NPAS and in two classified annexes to the NPAS submitted to you separately. As noted above, the Director of National Intelligence will provide an addendum to the NPAS containing a comprehensive analysis of the export control system of the ROK with respect to nuclear-related matters.

I have considered the views and recommendations of the interested departments and agencies in reviewing the proposed Agreement and have determined that its performance will promote, and will not constitute an unreasonable risk to, the common defense and security. Accordingly, I have approved the proposed Agreement and authorized its execution and urge that the Congress give it favorable consideration.

This transmission shall constitute a submittal for purposes of both sections 123 b. and 123 d. of the Act. My Administration is prepared to begin immediately the consultations with the Senate Foreign Relations Committee and the House Foreign Affairs Committee as provided in section 123 b. Upon completion of the 30 days of continuous session review provided for in section 123 b., the 60 days of continuous session review provided for in section 123 d. shall commence.

BARACK OBAMA.
THE WHITE HOUSE, *June 16, 2015.*

MESSAGE FROM THE HOUSE

At 11:09 a.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 728. An act to designate the facility of the United States Postal Service located at 7050 Highway BB in Cedar Hill, Missouri, as the ''Sergeant First Class William B. Woods, Jr. Post Office''.

H.R. 891. An act to designate the facility of the United States Postal Service located at 141 Paloma Drive in Floresville, Texas, as the ''Floresville Veterans Post Office Building''.

H.R. 1326. An act to designate the facility of the United States Postal Service located at 2000 Mulford Road in Mulberry, Florida, as the ''Sergeant First Class Daniel M. Ferguson Post Office''.

H.R. 1350. An act to designate the facility of the United States Postal Service located at 442 East 167th Street in Bronx, New York, as the ''Herman Badillo Post Office Building''.

H.R. 2131. An act to designate the Federal building and United States courthouse located at 83 Meeting Street in Charleston, South Carolina, as the ''J. Waties Waring Judicial Center''.

H.R. 2559. An act to designate the ''PFC Milton A. Lee Medal of Honor Memorial Highway'' in the State of Texas.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 728. An act to designate the facility of the United States Postal Service located at 7050 Highway BB in Cedar Hill, Missouri, as the ''Sergeant First Class William B. Woods, Jr. Post Office''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 891. An act to designate the facility of the United States Postal Service located at 141 Paloma Drive in Floresville, Texas, as the ''Floresville Veterans Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 1326. An act to designate the facility of the United States Postal Service located at 2000 Mulford Road in Mulberry, Florida, as the ''Sergeant First Class Daniel M. Ferguson Post Office''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 1350. An act to designate the facility of the United States Postal Service located at 442 East 167th Street in Bronx, New York, as the ''Herman Badillo Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 2131. An act to designate the Federal building and United States courthouse located at 83 Meeting Street in Charleston, South Carolina, as the ''J. Waties Waring Judicial Center''; to the Committee on Environment and Public Works.

H.R. 2559. An act to designate the ''PFC Milton A. Lee Medal of Honor Memorial Highway'' in the State of Texas; to the Committee on Environment and Public Works.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1952. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report entitled ''Iran-Related Multilateral Sanctions Regime Efforts'' covering the period August 7, 2014 to February 6, 2015; to the Committees on Foreign Relations; Banking, Housing, and Urban Affairs; and Finance.

EC–1953. A communication from the Secretary of the Commodity Futures Trading Commission, transmitting, pursuant to law, the report of a rule entitled ''Proceedings Before the Commodity Futures Trading Commission; Rules Relating to Suspension or Disbarment from Appearance and Practice'' (RIN3038–AE21) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–1954. A communication from the Secretary of Defense, transmitting a report on the approved retirement of Vice Admiral Bruce E. Grooms, United States Navy, and his advancement to the grade of vice admiral

on the retired list; to the Committee on Armed Services.

EC–1955. A communication from the Secretary of Defense, transmitting, pursuant to law, the Annual Report of the Reserve Forces Policy Board for fiscal year 2014; to the Committee on Armed Services.

EC–1956. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to sections 36(c) and 36(d) of the Arms Export Control Act (DDTC 15–001); to the Committee on Foreign Relations.

EC–1957. A communication from the Regulatory Specialist of the Legislative and Regulatory Activities Division, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Minimum Requirements for Appraisal Management Companies'' (RIN1557–AD64) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–1958. A communication from the Assistant Director for Regulatory Affairs, Office of Foreign Assets Control, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Cuban Assets Control Regulations; Terrorism List Governments Sanctions Regulations'' (31 CFR Parts 515 and 596) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–1959. A communication from the President and Chief Executive Officer, Federal Home Loan Bank of Cincinnati, transmitting, pursuant to law, Bank's 2014 Management Report and statement on system of internal controls; to the Committee on Banking, Housing, and Urban Affairs.

EC–1960. A communication from the President and Chief Executive Officer, Federal Home Loan Bank of Seattle, transmitting, pursuant to law, the Bank's 2014 management report and statement on the system of internal controls; to the Committee on Banking, Housing, and Urban Affairs.

EC–1961. A communication from the Executive Vice President and Chief Financial Officer of the Federal Home Loan Bank of Atlanta, transmitting, pursuant to law, the Bank's 2014 management report and statement on system of internal controls; to the Committee on Banking, Housing, and Urban Affairs.

EC–1962. A communication from the Assistant to the Board of Governors of the Federal Reserve System, transmitting, pursuant to law, the report of a rule entitled ''Small Bank Holding Company Policy Statement; Capital Adequacy of Board-Regulated Institutions; Bank Holding Companies; Savings and Loan Holding Companies.'' (RIN1700–AE30) (FRB Docket No. R–1509)) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–1963. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Substantial Business Activities'' ((RIN1545–BM85) (TD 9720)) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Finance.

EC–1964. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Update of Pre-Approved Plan Revenue Procedure'' (Rev. Proc. 2015–36) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Finance.

EC–1965. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Segregation Rule Effective Date'' ((RIN1545–BM17) (TD 9721)) received in the Office of the President of the Senate on June 11, 2015; to the Committee on Finance.

EC–1966. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report relative to the Family Violence Prevention and Services Program for fiscal years 2011–2012; to the Committee on Health, Education, Labor, and Pensions.

EC–1967. A communication from the Chairwoman of the Federal Trade Commission, transmitting, pursuant to law, the Semiannual Report of the Inspector General for the period from October 1, 2014 through March 31, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–1968. A communication from the Acting Chairman of the Consumer Product Safety Commission, transmitting, pursuant to law, the Semiannual Report of the Inspector General for the period from October 1, 2014 through March 31, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–1969. A communication from the Deputy Secretary of Defense, transmitting, pursuant to law, the Department of Defense Semiannual Report of the Inspector General for the period from October 1, 2014 through March 31, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–1970. A communication from the Federal Liaison Officer, Patent and Trademark Office, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Changes in Requirements for Collective Trademarks and Service Marks, Collective Membership Marks, and Certification Marks'' (RIN0651–AC89) received in the Office of the President of the Senate on June 11, 2015; to the Committee on the Judiciary.

EC–1971. A communication from the Attorney-Advisor, Office of the General Counsel, Department of Transportation, transmitting, pursuant to law, a report relative to a vacancy in the position of Administrator, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, received in the Office of the President of the Senate on June 11, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1972. A communication from the Attorney-Advisor, Office of the General Counsel, Department of Transportation, transmitting, pursuant to law, a report relative to a vacancy in the position of Administrator, Federal Railroad Administration, Department of Transportation, received in the Office of the President of the Senate on June 11, 2015; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petition or memorial was laid before the Senate and was referred or ordered to lie on the table as indicated:

POM–37. A joint resolution adopted by the Legislature of the State of Maine memorializing the President of the United States and Congress of the United States to require expansion of fish hatchery operations; to the Committee on Commerce, Science, and Transportation.

HOUSE PAPER 933

Whereas, the Atlantic salmon, Salmo salar, is a salmon found in the north Atlantic Ocean and in rivers that flow into the north Atlantic Ocean, and the fish has historically been an important economic asset to the State of Maine; and

Whereas, the major rivers of the State once ran thick with salmon traveling upstream to spawn; and

Whereas, salmon populations have been reduced to nearly undetectable numbers in most rivers in Maine; and

Whereas, the Federal Government has designated the Atlantic salmon as an endangered species; and

Whereas, the Federal Government spends millions of dollars annually to restore the species with no significant success; and

Whereas, there are specific hatchery operations that can improve upon the current results; and

Whereas, a significant number of salmon originating in Maine are being harvested in a commercial fishery off the west coast of Greenland; and

Whereas, this fishery is a major obstacle to the restoration of salmon in Maine rivers: Now, therefore, be it

Resolved, That We, your Memorialists, on behalf of the people we represent, take this opportunity to respectfully request that the President and the United States Congress direct the United States Fish and Wildlife Service and the National Marine Fisheries Service to expand hatchery operations to rivers in Maine by partnering with the State and with the many non-government organizations that are focused on restoring Atlantic salmon to their historic natal rivers; and be it further

Resolved, That We, your Memorialists, urge that additional resources be made available to the United States State Department that would assist its efforts through the North Atlantic Salmon Conservation Organization convention to help with the curtailment or suspension of the wild Atlantic salmon fishery off the west coast of Greenland; and be it further

Resolved, that suitable copies of this resolution, duly authenticated by the Secretary of State, be transmitted to the Honorable Barack H. Obama, President of the United States, to the President of the United States Senate, to the Speaker of the United States House of Representatives and to each Member of the Maine Congressional Delegation.

POM–38. A resolution adopted by the Senate of the State of Michigan calling on the President of the United States and the Congress of the United States to direct the Army Corps of Engineers to fully support efforts to determine the best long-term solution for preventing Asian carp from entering the Great Lakes and to move decisively to implement a solution; to the Committee on Environment and Public Works.

SENATE RESOLUTION NO. 23

Whereas, The Great Lakes are one of our nation's great natural wonders. Bordering Michigan and seven other states, these inland seas contain nearly one-fifth of the world's surface fresh water. They support jobs in manufacturing, tourism, recreation, shipping, agriculture, science, engineering, energy, and mining throughout the region. The protection of the Great Lakes is essential to Michigan's state identity and economy as well as national economic growth; and

Whereas, Asian carp pose an imminent threat to the Great Lakes ecosystem and economy. Asian carp have successfully invaded the Mississippi River basin and now stand only 50 miles downstream from the Great Lakes. Asian carp can reproduce rapidly, consume large quantities of food, disrupt local ecosystems, out-compete native

fish, and devastate recreational fishing and boating opportunities. There is general scientific consensus that Asian carp will be able to establish populations and thrive in areas of the Great Lakes. Once established, they will be difficult, if not impossible, to control or eradicate. Thus, the federal government has recognized Asian carp as ''the most acute [aquatic invasive species] threat facing the Great Lakes today''; and

Whereas, A permanent, long-term solution must be identified and implemented to keep Asian carp out of the Great Lakes. While the U.S. Army Corps of Engineers' Great Lakes and Mississippi River Interbasin Study identified a number of solutions, it stopped short of determining the best option. Regional efforts to reach consensus on a solution, such as those of the Chicago Area Waterway System Advisory Committee, must be supported and recommendations seriously considered; and

Whereas, The best long-term solution will prevent Asian carp from entering the Great Lakes while preserving as much as possible the current uses of the Chicago area waterways. Although effective Asian carp prevention is paramount and should not be compromised, the value, impacts, and costs to the barge industry must also be taken into account; and

Whereas, Regardless of the means, immediate and decisive action is required to protect the Great Lakes. The status quo will not prevent irreparable harm. Asian carp could cause billions of dollars in lost revenues and thousands of lost jobs in the $7 billion sports and commercial fishing industry and the $9 billion recreational boating industry. In addition, damage done to the Great Lakes, rivers, and inland lakes by Asian carp would greatly harm our state's viability as an attractive vacation destination, thereby leading to decreased tourism revenue and jobs: Now, therefore, be it

Resolved by the Senate, That we call on the Obama Administration and the Congress of the United States to direct the U.S. Army Corps of Engineers to fully support efforts to determine the best long-term solution for preventing Asian carp from entering the Great Lakes; and be it further

Resolved, That we urge the Obama Administration and Congress to provide sufficient funding that will ensure the U.S. Army Corps of Engineers moves decisively to implement a solution; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States, the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–39. A resolution adopted by the Senate of the State of Michigan memorializing the Congress of the United States to pass legislation that authorizes the Army Corps of Engineers to implement measures at the Brandon Road lock and dam to prevent Asian carp from entering the Great Lakes; to the Committee on Environment and Public Works.

SENATE RESOLUTION NO. 25

Whereas, Asian carp are an imminent and serious threat to the health and economy of Michigan and the entire Great Lakes region. Only 50 miles downstream from Lake Michigan, this aquatic invasive species' voracious appetite would disrupt food webs, leaving inadequate food for more desirable species within the Great Lakes, and threatening the $7-billion Great Lakes recreational and commercial fishing industry; and

Whereas, Current controls in the Chicago area are inadequate to prevent the movement of Asian carp and potential future aquatic invasive species (AIS) between the Great Lakes system and the Mississippi River system. A U.S. Army Corps of Engineer and U.S. Fish and Wildlife Service study has demonstrated that the electrical barriers that provide the front line of protection against carp do not prevent the movement of all fish; and

Whereas, Control measures implemented at the Brandon Road lock and dam in Joliet, Illinois, would reduce the risk of an Asian carp invasion while maintaining efficient navigation. Composed of representatives from government, industry, business, anglers, and conservation groups, the Chicago Area Waterway System Advisory Committee has recommended the deployment of innovative technologies and the reconfiguration of the locks in a newly-engineered channel at this key location. The U.S. Army Corps of Engineers has begun the scoping process for this project; and

Whereas, Moving forward with design, engineering, and construction of these measures would be a worthwhile short-term and longterm investment in the Great Lakes region. While negotiations continue on a permanent long-term solution, these measures would provide additional protection and be consistent with an eventual long-term solution. In addition, this project would serve as a valuable demonstration for technologies that could be implemented in other areas of the country; and

Whereas, There is a window of opportunity now to protect the Great Lakes, avoid irreparable harm to the system, and prevent decade upon decade of future management costs. Once established, Asian carp would be nearly impossible to eradicate and would join zebra mussels, sea lamprey, and other AIS that Great Lakes governments and businesses spend millions of dollars per year to control. The Brandon Road lock and dam project would be a solid first step in creating greater structural protections for the Great Lakes: Now, therefore, be it

Resolved by the Senate, That we memorialize the Congress of the United States to pass legislation that authorizes the U.S. Army Corps of Engineers to implement measures at the Brandon Road lock and dam to prevent Asian carp from entering the Great Lakes; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–40. A resolution adopted by the House of Representatives of the State of Michigan urging the United States Congress to pass legislation that establishes a national, uniform, and scientifically-based label program for genetically modified food; to the Committee on Health, Education, Labor, and Pensions.

HOUSE RESOLUTION NO. 89

Whereas, Genetically modified organisms, or GMOs, have become increasingly prominent in today's grocery marketplace. In recent years, scientists have used genetic engineering techniques to modify the DNA of plants to make them resistant to certain pests, diseases, environmental conditions, and chemical treatments. GMOs help increase crop yields, constrain food prices, and vitally support Michigan's agriculture, food processing, and other industries. Commonly found in crops like corn, soybeans, cotton, and canola, 70 to 80 percent of the foods Americans eat today contain GMOs. In 2014, 100 percent of all sugar, 93 percent of all corn, and 91 percent of all soybeans grown in Michigan were produced using GMOs; and

Whereas, Despite the widespread use of GMOs, there is no federal GMO labeling standard. Absent these rules, some states and localities have developed their own proposals, leading to a patchwork of regulation that can be confusing and possibly misleading to consumers. Moreover, a maze of GMO labeling regulations increases agriculture and food production costs, requiring food companies operating in Michigan to create separate supply chains in each state. Ultimately, this could significantly increase the average price consumers spend at grocery stores, which could average an extra $500 per year according to a Cornell University study; and

Whereas, Federal legislation must be passed to avoid this patchwork of regulations and the costly ramifications it creates. Legislation like the Safe and Accurate Food Labeling Act H.R. 1599, sponsored by congressmen Pompeo and Butterfield, is a bipartisan solution needed to allow consumers to have access to accurate and consistent information on the products that contain GMOs. A USDA-administered certification and labeling program modeled after the USDA organic labeling program for non-GMO foods would ensure that labeling is nationwide, uniform, and scientifically-based: Now, therefore, be it

Resolved by the House of Representatives, That we urge the Congress of the United States to pass legislation that establishes a national, uniform, and scientifically-based label program for genetically modified food; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Michigan congressional delegation.

POM–41. A resolution adopted by the Senate of the Commonwealth of Pennsylvania recognizing the month of May 2015 as ''Amyotrophic Lateral Sclerosis Awareness Month''; to the Committee on the Judiciary.

SENATE RESOLUTION NO. 101

Whereas, Amyotrophic Lateral Sclerosis (ALS) is better known as Lou Gehrig's Disease; and

Whereas, ALS is a fatal neurodegenerative disease characterized by degeneration of cell bodies of the upper and lower motor neurons in the gray matter of the anterior horn of the spinal cord; and

Whereas, The initial symptom of ALS is weakness of the skeletal muscles, especially those of the extremities; and

Whereas, As ALS progresses, the patient experiences difficulty in swallowing, talking and breathing; and

Whereas, ALS eventually causes muscles to atrophy and the patient becomes a functional quadriplegic; and

Whereas, Patients with ALS typically remain alert and aware of their loss of motor functions and the inevitable outcome of continued deterioration and death; and

Whereas, ALS affects military veterans at twice the rate of the general population; and

Whereas, ALS occurs in adulthood, most commonly between 40 and 70 years of age, peaking at about 55 years of age, and affects both men and women without bias; and

Whereas, Annually, more than 5,000 new ALS patients are diagnosed throughout the nation; and

Whereas, In Pennsylvania, there are currently more than 1,000 individuals who have been formally diagnosed with ALS; and

Whereas, The $350,000 in State funding the General Assembly appropriated for ALS support services in the General Appropriation Act of 2014 provided services to more than 900 constituents and substantial savings to the State budget and taxpayers; and

Whereas, The ALS Association reports that on average, patients diagnosed with ALS only survive two to five years from the time of diagnosis; and

Whereas, ALS has no known cause, prevention or cure; and

Whereas, ''Amyotrophic Lateral Sclerosis Awareness Month'' increases the public's awareness of ALS patients' circumstances and acknowledges the terrible impact this disease has not only on patients but on their families as well and recognizes the research being done to eradicate this horrible disease: Now therefore, be it

Resolved, That the Senate of Pennsylvania designate the month of May 2015 as ''Amyotrophic Lateral Sclerosis Awareness Month'' in Pennsylvania; and be it further

Resolved, That copies of this resolution be transmitted to the President of the United States, to the presiding officers of each house of Congress and to each member of Congress from Pennsylvania.

POM–42. A communication from a citizen of the State of Florida memorializing a resolution adopted by the City Council of Tampa supporting the re-establishment of a secure Cuban consulate being located in the City of Tampa, Florida, when relations between the United States and Cuba are appropriately normalized; to the Committee on Foreign Relations.

POM–43. A communication from a citizen of the State of Florida memorializing a resolution adopted by the City Council of Tampa supporting the President of the United States's actions to normalize cultural, humanitarian, economic, and diplomatic relations with Cuba; and urging that when relations between the United States and Cuba are appropriately normalized, the City of Tampa serve as the location for formalizing the re-establishment of diplomatic ties, which may then be referred to as ''The Tampa Accord'' between the United States and Cuba; to the Committee on Foreign Relations.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. SHELBY, from the Committee on Appropriations, with an amendment in the nature of a substitute:

H.R. 2578. An act making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes (Rept. No. 114–66).

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. GRASSLEY (for himself and Mr. THUNE):

S. 1578. A bill to amend the Internal Revenue Code of 1986 to enhance taxpayer rights, and for other purposes; to the Committee on Finance.

By Mr. SCHATZ (for himself, Mr. THUNE, Mr. UDALL, Mr. HELLER, Mr. TESTER, Mr. FRANKEN, Ms. MURKOWSKI, and Mr. ROUNDS):

S. 1579. A bill to enhance and integrate Native American tourism, empower Native American communities, increase coordination and collaboration between Federal tourism assets, and expand heritage and cultural tourism opportunities in the United States; to the Committee on Indian Affairs.

By Mr. TESTER (for himself, Mr. PORTMAN, Mr. CARDIN, Mr. MORAN, and Ms. HEITKAMP):

S. 1580. A bill to allow additional appointing authorities to select individuals from competitive service certificates; to the Committee on Homeland Security and Governmental Affairs.

By Mr. CASEY:

S. 1581. A bill to foster market development of clean energy fueling facilities by steering infrastructure installation toward designated Clean Vehicle Corridors; to the Committee on Environment and Public Works.

By Mr. MENENDEZ (for himself and Ms. WARREN):

S. 1582. A bill to establish pilot programs to encourage the use of shared equity mortgage modifications, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. MURKOWSKI:

S. 1583. A bill to authorize the expansion of an existing hydroelectric project; to the Committee on Energy and Natural Resources.

By Mr. CASSIDY:

S. 1584. A bill to repeal the renewable fuel standard; to the Committee on Environment and Public Works.

By Ms. MURKOWSKI:

S. 1585. A bill to authorize the Federal Energy Regulatory Commission to issue an order continuing a stay of a hydroelectric license for the Mahoney Lake hydroelectric project in the State of Alaska, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. KIRK:

S. 1586. A bill to amend the Federal Water Pollution Control Act to prohibit sewage dumping into the Great Lakes, and for other purposes; to the Committee on Environment and Public Works.

By Mr. KAINE (for himself and Mr. FLAKE):

S. 1587. A bill to authorize the use of the United States Armed Forces against the Islamic State of Iraq and the Levant; to the Committee on Foreign Relations.

By Mr. FRANKEN (for himself, Mr. COONS, Mr. HEINRICH, Mr. MURPHY, Mr. SCHATZ, Mr. DURBIN, Mr. CARDIN, and Ms. WARREN):

S. 1588. A bill to amend the Public Health Service Act to revise and extend projects relating to children and violence to provide access to school-based comprehensive mental health programs; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WARNER (for himself, Mr. BLUNT, Mr. GRAHAM, Mrs. GILLIBRAND, Mr. COONS, Ms. KLOBUCHAR, Mr. WICKER, Mrs. MCCASKILL, Mr. KIRK, Mr. BLUMENTHAL, and Mr. TILLIS):

S. 1589. A bill to facilitate efficient investments and financing of infrastructure projects and new, long-term job creation through the establishment of an Infrastructure Financing Authority, and for other purposes; to the Committee on Finance.

ADDITIONAL COSPONSORS

S. 298

At the request of Mr. BENNET, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 298, a bill to amend titles XIX and XXI of the Social Security Act to provide States with the option of providing services to children with medically complex conditions under the Medicaid program and Children's Health Insurance Program through a care coordination program focused on improving health outcomes for children with medically complex conditions and lowering costs, and for other purposes.

S. 313

At the request of Mr. GRASSLEY, the name of the Senator from North Carolina (Mr. BURR) was added as a cosponsor of S. 313, a bill to amend title XVIII of the Social Security Act to add physical therapists to the list of providers allowed to utilize locum tenens arrangements under Medicare.

S. 366

At the request of Mr. TESTER, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 366, a bill to require Senate candidates to file designations, statements, and reports in electronic form.

S. 491

At the request of Ms. KLOBUCHAR, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. 491, a bill to lift the trade embargo on Cuba.

S. 578

At the request of Mr. SCHUMER, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 578, a bill to amend title XVIII of the Social Security Act to ensure more timely access to home health services for Medicare beneficiaries under the Medicare program.

S. 622

At the request of Mr. REED, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 622, a bill to strengthen families' engagement in the education of their children.

S. 637

At the request of Mr. CRAPO, the names of the Senator from West Virginia (Mr. MANCHIN) and the Senator from Delaware (Mr. COONS) were added as cosponsors of S. 637, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 740

At the request of Mr. HATCH, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 740, a bill to improve the coordination and use of geospatial data.

S. 769

At the request of Mr. BLUNT, the name of the Senator from Nevada (Mr. HELLER) was added as a cosponsor of S. 769, a bill to streamline the permit process for rail and transit infrastructure.

S. 776

At the request of Mr. ROBERTS, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 776, a bill to amend title XVIII of the Social Security Act to improve access to medication therapy management under part D of the Medicare program.

S. 786

At the request of Mrs. GILLIBRAND, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. 786, a bill to provide paid and family medical leave benefits to certain individuals, and for other purposes.

S. 827

At the request of Ms. KLOBUCHAR, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 827, a bill to amend the Communications Act of 1934 to ensure the integrity of voice communications and to prevent unjust or unreasonable discrimination among areas of the United States in the delivery of such communications.

S. 877

At the request of Mr. SCHATZ, the names of the Senator from Ohio (Mr. BROWN) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of S. 877, a bill to establish a pilot grant program to assist State and local law enforcement agencies in purchasing body-worn cameras for law enforcement officers.

S. 993

At the request of Mr. FRANKEN, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 993, a bill to increase public safety by facilitating collaboration among the criminal justice, juvenile justice, veterans treatment services, mental health treatment, and substance abuse systems.

S. 1020

At the request of Mr. VITTER, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 1020, a bill to amend title XVIII of the Social Security Act to ensure the continued access of Medicare beneficiaries to diagnostic imaging services, and for other purposes.

S. 1040

At the request of Mr. HELLER, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 1040, a bill to direct the Consumer Product Safety Commission and the National Academy of Sciences to study the vehicle handling requirements proposed by the Commission for recreational off-highway vehicles and to prohibit the adoption of any such requirements until the completion of the study, and for other purposes.

S. 1046

At the request of Ms. CANTWELL, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 1046, a bill to accelerate the adoption of smart building technologies in the private sector and key Federal agencies.

S. 1099

At the request of Mrs. SHAHEEN, the names of the Senator from Delaware (Mr. COONS) and the Senator from Kansas (Mr. ROBERTS) were added as cosponsors of S. 1099, a bill to amend the Patient Protection and Affordable Care Act to provide States with flexibility in determining the size of employers in the small group market.

S. 1135

At the request of Mrs. MCCASKILL, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 1135, a bill to amend title XVIII of the Social Security Act to provide for fairness in hospital payments under the Medicare program.

S. 1190

At the request of Mrs. CAPITO, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 1190, a bill to amend title XVIII of the Social Security Act to ensure equal access of Medicare beneficiaries to community pharmacies in underserved areas as network pharmacies under Medicare prescription drug coverage, and for other purposes.

S. 1239

At the request of Mr. DONNELLY, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 1239, a bill to amend the Clean Air Act with respect to the ethanol waiver for the Reid vapor pressure limitations under that Act.

S. 1438

At the request of Ms. AYOTTE, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. 1438, a bill to allow women greater access to safe and effective contraception.

S. 1443

At the request of Ms. MURKOWSKI, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 1443, a bill to amend the Indian Employment, Training and Related Services Demonstration Act of 1992 to facilitate the ability of Indian tribes to integrate the employment, training, and related services from diverse Federal sources, and for other purposes.

S. 1444

At the request of Mr. PETERS, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 1444, a bill to amend the Internal Revenue Code of 1986 to reduce the rate of tax regarding the taxation of distilled spirits.

S. 1458

At the request of Mr. COATS, the name of the Senator from Kansas (Mr. ROBERTS) was added as a cosponsor of S. 1458, a bill to amend the Surface Mining Control and Reclamation Act of 1977 to ensure scientific transparency in the development of environmental regulations and for other purposes.

S. 1476

At the request of Mrs. BOXER, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from Minnesota (Mr. FRANKEN) were added as cosponsors of S. 1476, a bill to require States to report to the Attorney General certain information regarding shooting incidents involving law enforcement officers, and for other purposes.

S. 1513

At the request of Mr. LEAHY, the names of the Senator from Oregon (Mr. WYDEN), the Senator from Delaware (Mr. COONS), the Senator from Minnesota (Mr. FRANKEN), the Senator from Illinois (Mr. DURBIN) and the Senator from Virginia (Mr. KAINE) were added as cosponsors of S. 1513, a bill to reauthorize the Second Chance Act of 2007.

S. 1536

At the request of Mr. VITTER, the name of the Senator from Nebraska (Mrs. FISCHER) was added as a cosponsor of S. 1536, a bill to amend chapter 6 of title 5, United States Code (commonly known as the Regulatory Flexibility Act), to ensure complete analysis of potential impacts on small entities of rules, and for other purposes.

S. 1546

At the request of Mr. VITTER, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of S. 1546, a bill to establish an export credit insurance program in the Small Business Administration.

S. 1551

At the request of Mr. THUNE, the names of the Senator from New Hampshire (Ms. AYOTTE) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of S. 1551, a bill to provide for certain requirements relating to the Internet Assigned Numbers Authority stewardship transition.

S. 1557

At the request of Mr. DURBIN, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 1557, a bill to amend the Servicemembers Civil Relief Act to extend the interest rate limitation on debt entered into during military service to debt incurred during military service to consolidate or refinance student loans incurred before military service, and for other purposes.

S. RES. 200

At the request of Mrs. FEINSTEIN, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. Res. 200, a resolution wishing His Holiness the 14th Dalai Lama a happy 80th birthday on July 6, 2015, and recognizing the outstanding contributions His Holiness has made to the promotion of nonviolence, human rights, interfaith dialogue, environmental awareness, and democracy.

S. RES. 201

At the request of Mr. CORNYN, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. Res. 201, a resolution designating June 19, 2015, as ''Juneteenth Independence Day'' in recognition of June 19, 1865, the date on which slavery legally came to an end in the United States.

AMENDMENT NO. 1473

At the request of Mr. VITTER, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of amendment No. 1473 proposed to H.R.

1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1549

At the request of Mrs. ERNST, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of amendment No. 1549 proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1703

At the request of Mr. DURBIN, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of amendment No. 1703 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1704

At the request of Mr. DURBIN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of amendment No. 1704 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1847

At the request of Mr. JOHNSON, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of amendment No. 1847 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1883

At the request of Mr. KAINE, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of amendment No. 1883 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1889

At the request of Mr. LEAHY, his name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

At the request of Ms. HIRONO, her name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, supra.

At the request of Mr. MARKEY, his name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, supra.

At the request of Ms. BALDWIN, her name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, supra.

At the request of Mr. WARNER, his name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, supra.

At the request of Mr. BROWN, his name was added as a cosponsor of amendment No. 1889 proposed to H.R. 1735, supra.

AMENDMENT NO. 1908

At the request of Mr. ENZI, the names of the Senator from Delaware (Mr. CARPER) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of amendment No. 1908 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1948

At the request of Mr. WHITEHOUSE, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of amendment No. 1948 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1961

At the request of Ms. AYOTTE, the names of the Senator from North Carolina (Mr. BURR) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of amendment No. 1961 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 1962

At the request of Ms. AYOTTE, the names of the Senator from North Carolina (Mr. BURR) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of amendment No. 1962 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

AMENDMENT NO. 2039

At the request of Mr. HEINRICH, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of amendment No. 2039 intended to be proposed to H.R. 1735, an act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Ms. MURKOWSKI:

S. 1583. A bill to authorize the expansion of an existing hydroelectric project; to the Committee on Energy and Natural Resources.

Ms. MURKOWSKI. Mr. President, I rise today to introduce legislation that will speed the next phase of a renewable energy project in my home State of Alaska, that Congress effectively authorized 35 years ago.

Back in 1980, Congress in Section 1325 of the Alaska National Interest Lands Conservation Act, noted that the Kodiak Electric Association Inc., KEA, then wished to build a lake-tap hydroelectric project by taking water from Terror Lake, a high alpine lake, whiph was placed just inside the boundary line of Kodiak National Wildlife Refuge by the act. At the time KEA had wanted to build a 20 megawatt hydroelectric project inside the refuge to power the namesake community on Kodiak Island. Under the law, the Secretary of the Interior was to approve the project and its expansion on a ''case-by-case'' basis—the law simply saying that nothing in the 1980 Act ''shall be construed as necessarily prohibiting or mandating the construction'' of the project. The Secretary the next year approved the power project, which started generation in the mid 1980's. A third 10-megawatt turbine since was added to the project in 2012–13.

Kodiak Electric Association, a rural electric cooperative, is a leader in Alaska in promoting renewable energy. In 2014, 99.7 percent of its total electricity came from hydroelectric generation and from a Pillar Mountain wind turbine farm—the first community in Alaska to be nearly 100 percent supplied by renewable energy sources. But that designation will disappear if the next phase of the originally planned Terror Lake project is not constructed, since the utility will need to

resume burning more diesel fuel to produce power if additional hydroelectric generation from the lake is not permitted. That will result in the burning of 2 million gallons of diesel fuel—in a typical year given current electricity load forecasts—that will emit 26,000 tons of carbon dioxide into the atmosphere annually.

The new expansion involves diverting five small streams located on Alaska State lands in the adjacent Upper Hidden Basin—streams branching off the East and West Upper Hidden Creeks—and allowing the water to flow into Terror Lake through an underground tunnel that will be drilled through the ridge line marking the boundary between State and refuge lands. The project, which will impact about 13 acres of refuge lands, 3 acres being made up by the tunnel itself, will have a single visible impact, some grading for a construction laydown area on the rocky slopes above the upper end of the lake, and the ''natural'' waterfall that will result from water entering the lake from the tunnel. The entire extent of the project involves drilling a 1.22 mile-long tunnel, about 2,150 feet by current estimates being on refuge lands, plus the diversion structure on the State's creeks, a water pipeline to carry water from the East Creek over to the main diversion structure located on the West Creek, and a related access road.

The project should have no impact on the environment or wildlife, since the amount of water being diverted from the 4 square mile basin is so slight as to have no impact on fisheries at the mouth of the Kizhuyak River on the east side of Kodiak Island at Ugak Bay, into which the Hidden Basin Creeks flow. The project should not affect the wildlife along the shore of the steep, rocky lake. The project will not involve adding turbines or equipment to the existing Terror Lake powerhouse, as the project will not increase the maximum amount of megawatt production, but simply increase the annual total production of electricity from the power project. Terror Lake in 2014, a normal water year, produced 134 gigawatt-hours of electricity. By the addition it should produce about 30 additional gigawatt-hours annually, about a 25 percent increase.

The project, besides allowing KEA to utilize clean, renewable energy, should also enhance the utility's innovative wind-hydro integration system and further its micro-grid energy storage technology.

While this project should be able to proceed by seeking administrative approvals either because of its ANILCA inclusion or because of Title 11 of ANILCA, which governs future rights-of-way requests, I am introducing legislation seeking Congressional approval to speed up the start of construction on the power project. Without Congressional approval, the utility will need to fund two environmental impact statements, EIS's, instead of one, covering the exact same issues, delaying the start of construction by years. With congressional approval, the project will still face the delay of the Federal Energy Regulatory Commission conducting a single EIS as part of its hydro licensing amendment process. The project still will be subject to any conditions to protect fisheries or wildlife placed on the project by the USF&WS under Section 4(e) of the Federal Power Act. But it will have to clear only one such EIS process, sparing rate payers on Kodiak Island a doubling of the permitting expense.

This authorization will simply allow another phase of the Terror Lake project to be constructed, as it was envisioned nearly 40 years ago. In the 1978 feasibility plan, two years before passage of the Alaska National Interest Lands Conservation Act, the Hidden Basin Creek diversion was clearly outlined. ''This scheme is the most economical means of increasing the output of the development . . . and it can be built whenever the growth in power demand in Kodiak justifies it. Therefore, the scheme is included in the present report as a recommended future development,'' said the Terror Lake hydro report in December 1978.

The project will permit additional clean, renewable energy to be generated for the inhabitants of Kodiak Island, but without any environmental or negative fishery or wildlife consequences. This bill, if approved by Congress this year, will produce that power more quickly and at less cost than will be involved should a lengthy, multiple administrative review take place. It is unfortunate, but in the past 35 years since passage of the Alaska lands act, no entity has ever completed the lengthy process and received a right-of-way permit under the bureaucratic process set up by Title 11 of ANILCA. I hope that this project will not have to attempt to be the first to actually navigate the Title 11 right-of-way process in order to proceed.

I hope Congress will quickly approve this authorization so that more renewable electricity can flow to the citizens of Kodiak in the near future.

By Ms. MURKOWSKI:

S. 1585. A bill to authorize the Federal Energy Regulatory Commission to issue an order continuing a stay of a hydroelectric license for the Mahoney Lake hydroelectric project in the State of Alaska, and for other purposes; to the Committee on Energy and Natural Resources.

Ms. MURKOWSKI. Mr. President, I rise today to introduce legislation needed to provide additional options for how Ketchikan and parts of Southeast Alaska can receive additional clean, renewable electricity in the future. Today I am introducing legislation being requested by Cape Fox Native Corp. of Ketchikan, Alaska Power & Telephone Co., and the City of Saxman to extend a 2002 stay on the hydroelectric construction license for the Mahoney Lake project. This bill will effectively require the Federal Energy Regulatory Commission to grant another 10-year extension of the construction license for the project proposed northeast of downtown Ketchikan, in hopes that greater clarity will be obtained within the next decade on how to supply power to the region in the future.

Mahoney Lake was first proposed as a 9.6-megawatt, MW, lake-tap hydroelectric project in the early 1990s. By 2002 the sponsors had not received a power purchase agreement, PPA, and had exhausted the then allowed FERC extensions of their construction license. In June 2002 they asked former Alaska Senator Ted Stevens to win legislative approval of a stay so they wouldn't lose the license. Effectively, they wanted the license expiration to be stayed until after completion of the then proposed Swan-Tyee electrical transmission intertie—in hopes that such completion would clarify future electrical needs in the community. That project has since been finished, triggering the potential end of the 2002 license stay.

The entities backing Mahoney Lake's construction have spent more than $4 million on engineering and environmental studies—money in jeopardy of being wasted, if the stay and a continuation of the construction license is not approved by Congress. For that and a host of other reasons, I am introducing this legislation to extend the construction license and normal additional license periods under FERC rules for this project.

Ketchikan, which recently received more clean, renewable energy with the completion of the Whitman Lake hydroelectricity project, likely will need additional power within the next decade. Currently the Southeast Alaska Power Authority, SEAPA, is conducting a review of all potential power sources. As part of that study the authority is studying the merits of a host of projects, including construction of Mahoney Lake. The authority, for example, is considering whether to raise the height of the existing spillway of the Swan Lake project to hold more water and generate more power. The authority is considering whether to purchase power from two potential Metlakatla hydro projects: the 4MW Triangle Lake or the 4.6 MW Lower Todd Lake projects on Annette Island. And the authority is also checking the potential economics and costs, including transmission lines, of new projects throughout the area.

By this legislation I am simply trying to keep Mahoney Lake, which may be able to produce 41.6 gigawatts of additional power annually for the Ketchikan area, viable as a potential renewable energy project until that comprehensive review is finished in 2016 or perhaps in 2017.

The three entities that currently hold the license for Mahoney Lake have certainly spent more than enough

on construction to meet FERC requirements that licensees show they are serious about progressing a project and aren't simply ''stockpiling'' hydroelectric permits/licenses. Cape Fox Native Corporation, especially, is deserving of an extension given its unique position under terms of the 1971 Alaska Native Claims Settlement Act, ANCSA, Cape Fox was ''distinctly disadvantaged'' in its land selections under ANCSA because of Ketchikan land protections, the location of the Annette Island Indian reservation, and the then long-term timber contracts in the area owned at the time by the Ketchikan Pulp Corporation. All three issues prevented Cape Fox from selecting most of its lands inside its core selection areas. Arguably the Mahoney Lake hydro project site is the only valuable land that the corporation was allowed to select inside its core selection area, under the bill that settled aboriginal land claims in Alaska.

This legislation will not advantage Mahoney Lake over any other project that may be considered to provide low-cost hydroelectric power to the region. But its timely passage will level the playing field so that Mahoney Lake can be considered on the same economic grounds as all other future power projects in southern Southeast Alaska. I hope for the bill's swift passage in this Congress.

By Mr. KAINE (for himself and Mr. FLAKE):

S. 1587. A bill to authorize the use of the United States Armed Forces against the Islamic State of Iraq and the Levant; to the Committee on Foreign Relations.

Mr. KAINE. Mr. President, I am pleased today to introduce in the Senate, with my colleague Senator FLAKE, the first bipartisan Authorization for Use of Military Force, AUMF, against ISIL. The United States launched military action against ISIL over 10 months ago on August 8, 2014. It is far past time for Congress to fulfill its duty by debating and determining whether or not it is in the nation's best interest to order United States troops to risk their lives in this mission and vote on an ISIL AUMF.

This bill authorizes the U.S. mission against ISIL for the purpose of protecting the lives of U.S. citizens and providing military support to regional partners in their battle to defeat ISIL. As stated by the authorization, the use of significant U.S. ground troops in combat against ISIL is not consistent with this purpose, except to protect lives of U.S. citizens from imminent threat. Other key provisions include a sunset after three years unless reauthorized; a repeal of the 2002 Iraq AUMF; and a clause that defines this authorization as the sole statutory authority for the war on ISIL, as opposed to the 2001 AUMF.

Thousands of members of the United States Armed Forces have been deployed to support military operations against ISIL in Iraq and Syria. As of June 2015, the United States has conducted over 3,500 airstrikes against ISIL and spent more than $2,600,000,000 American taxpayer dollars on this war—a number that continues to rise by approximately $9,000,000 per day. Tragically, members of the Armed Forces have been killed in Operation Inherent Resolve, and United States hostages have been killed by ISIL in barbaric ways.

However, while Congress has authorized appropriations for Operation Inherent Resolve and the training of anti-ISIL forces in Syria, it has yet to take formal action to approve this mission. Doing so is critical for reinforcing the leadership of the United States with our coalition partners and sending a strong message to our adversaries that the United States is united in the fight against ISIL and speaks with one voice in confronting ISIL.

President Obama submitted an authorization for use of military force against ISIL in February 2015. And still Congress has not undertaken its most solemn duty and responsibility under Article 1. The American public deserves this congressional debate to educate them about the national security interests at stake and the advisability of this war and Congress should do its job by formally voicing its support or disapproval of the mission against ISIL.

I am proud to join Senator FLAKE in introducing a bill to start this necessary debate. As we saw with the Iran Nuclear Agreement Review Act, it is possible to find bipartisan compromise on even the toughest of foreign policy issues and I challenge my colleagues to finally come together to do what is right for our troops and our nation.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2047. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 1974 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 2048. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2049. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2050. Mr. MENENDEZ submitted an amendment intended to be proposed to amendment SA 1859 submitted by Mr. MENENDEZ and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2051. Mr. CASEY (for himself and Mr. INHOFE) submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2052. Mr. BOOZMAN submitted an amendment intended to be proposed to amendment SA 1669 submitted by Mr. BOOZMAN (for himself, Mr. DONNELLY, and Mr. TOOMEY) and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2053. Mr. BARRASSO (for himself and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 2044 submitted by Mr. BARRASSO (for himself and Mr. ENZI) and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2054. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2055. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 2042 submitted by Ms. BALDWIN and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2056. Mr. CARDIN (for himself and Mr. CORKER) submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

SA 2057. Mr. SANDERS submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 2047. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 1974 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

On page 3, strike lines 13 through 20 and insert the following:

(5) implement a strategy to provide for the safe, secure, and permanent relocation of Camp Liberty residents that includes a relocation plan, including a detailed outline of the steps that would need to be taken by recipient countries, the United States, the United Nations High Commissioner for Refugees (UNHCR), and Camp residents to relocate the residents to other countries;

SA 2048. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. SPECIAL INSPECTOR GENERAL FOR AFGHANISTAN RECONSTRUCTION.

It is the sense of Congress that the appointment of a Lead Inspector General for

Operation Freedom's Sentinel by the Chair of the Council of Inspectors General on Integrity and Efficiency pursuant to section 8L of the Inspector General Act of 1978 (5 U.S.C. App.) is not intended to limit or otherwise affect the authority and responsibilities of the Office of the Special Inspector General for Afghanistan Reconstruction (commonly known as ''SIGAR'') as established by section 1229 of the National Defense Authorization Act for Fiscal Year 2008 (Public Law 110–81; 122 Stat. 378).

SA 2049. Mr. JOHNSON submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle G of title X, add the following:

SEC. 1085. SENSE OF CONGRESS REGARDING NOMINATING A PERMANENT INSPECTOR GENERAL OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) FINDINGS.—Congress finds the following:

(1) There are 4 Presidentially-appointed Inspector General vacancies for which a nomination is not pending before the Senate.

(2) It is vital that Offices of Inspectors General remain independent.

(3) In the absence of a permanent Inspector General, an Office of Inspector General is run by an acting Inspector General who, no matter how qualified or well-intentioned, is not granted the same protections afforded to an Inspector General who is confirmed by the Senate, as the acting Inspector General—

(A) is not truly independent;

(B) may be removed by the head of the agency at any time;

(C) only serves temporarily and does not drive the policy of the Office; and

(D) is at a greater risk of compromising the work of the Office to appease the agency or the President.

(4) One of the current Presidentially-appointed Inspector General vacancies is the Inspector General of the Department of Veterans Affairs, which has been vacant since December 31, 2013.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the President should nominate a permanent Inspector General of the Department of Veterans Affairs not later than 30 days after the date of enactment of this Act.

SA 2050. Mr. MENENDEZ submitted an amendment intended to be proposed to amendment SA 1859 submitted by Mr. MENENDEZ and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

Beginning of page 1 of the amendment, strike line 3 and all that follows through page 2, line 21, and insert the following:

SEC. 1274. REPORT ON THE SECURITY RELATIONSHIP BETWEEN THE UNITED STATES AND THE REPUBLIC OF CYPRUS.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Defense and the Secretary of State shall jointly submit to the appropriate congressional committees a report on the security relationship between the United States and the Republic of Cyprus.

(b) ELEMENTS.—The report required under subsection (a) shall include the following elements:

(1) A description of ongoing military and security cooperation between the United States and the Republic of Cyprus.

(2) A discussion of potential steps for enhancing the bilateral security relationship between the United States and Cyprus, including steps to enhance the military and security capabilities of the Republic of Cyprus.

(3) An analysis of the effect on the bilateral security relationship of the United States policy to deny applications for licenses and other approvals for the export of defense articles and defense services to the armed forces of Cyprus.

(4) An analysis of the extent to which such United States policy is consistent with overall United States security and policy objectives in the region.

(5) An assessment of the potential impact of lifting such United States policy.

(c) DEFINITION.—In this section, the term ''appropriate congressional committees'' means—

(1) the congressional defense committees; and

(2) the Committee on Foreign Relations of the Senate and the Committee on Foreign Affairs of the House of Representatives.

SA 2051. Mr. CASEY (for himself and Mr. INHOFE) submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of section 1533, add the following:

(f) SENSE OF CONGRESS.—It is the sense of Congress that the Department of Defense should increase efforts to combat the use by the terrorist group the Islamic State of Iraq and the Levant (ISIL) of improvised explosive devices and the illicit smuggling of improvised explosive device precursor materials.

SA 2052. Mr. BOOZMAN submitted an amendment intended to be proposed to amendment SA 1669 submitted by Mr. BOOZMAN (for himself, Mr. DONNELLY, and Mr. TOOMEY) and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 1, strike line 2 and all that follows through page 2, line 13, and insert the following:

SEC. 1085. PROVISION OF STATUS UNDER LAW BY HONORING CERTAIN MEMBERS OF THE RESERVE COMPONENTS OF THE ARMED FORCES AS VETERANS.

Any person who is entitled under chapter 1223 of title 10, United States Code, to retired pay for nonregular service or, but for age, would be entitled under such chapter to retired pay for nonregular service shall be honored as a veteran but shall not be entitled to any benefit by reason of this section.

SA 2053. Mr. BARRASSO (for himself and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 2044 submitted by Mr. BARRASSO (for himself and Mr. ENZI) and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle E of title X, add the following:

SEC. 1049. USE OF THE NATIONAL GUARD FOR SUPPORT OF CIVILIAN FIREFIGHTING ACTIVITIES.

The Secretary of Defense may authorize members and units of the National Guard performing duty under section 328(b), 502(f), or 709(a) of title 32, United States Code, or on active duty under title 10, United States Code, to support firefighting operations, missions, and activities, including aerial firefighting employment of the Mobile Airborne Firefighting System (MAFFS), undertaken in support of a request from the National Interagency Fire Center or another Federal agency.

SA 2054. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place insert the following:

REPORT AND ASSESSMENT OF POTENTIAL COSTS AND BENEFITS OF PRIVATIZING DEPARTMENT OF DEFENSE COMMISSARIES.

(a) IN GENERAL.—Not later than February 1, 2016, the Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report assessing the viability of privatizing, in whole or in part, the Department of Defense commissary system. The report shall be so submitted to Congress before the development of any plans or pilot program to privatize defense commissaries or the defense commissary system.

(b) ELEMENTS.—The assessment required by subsection (a) shall include, at a minimum, the following:

(1) A methodology for defining the total number and locations of commissaries.

(2) An evaluation of commissary use by location in the following beneficiary categories:

(A) Pay grades E–1 through E–4.

(B) Pay grades E–5 through E–7.
(C) Pay grades E–8 and E–9.
(D) Pay grades O–1 through O–3.
(E) Pay grades O–4 through O–6.
(F) Pay grades O–7 through O–10.
(G) Military retirees.

(3) An evaluation of commissary use in locations outside the continental United States and in remote and isolated locations in the continental United States when compared with other locations.

(4) An evaluation of the cost of commissary operations during fiscal years 2009 through 2014.

(5) An assessment of potential savings and efficiencies to be achieved through implementation of some or all of recommendations of the Military Compensation and Retirement Modernization Commission.

(6) A description and evaluation of the strategy of the Defense Commissary Agency for pricing products sold at commissaries.

(7) A description and evaluation of the transportation strategy of the Defense Commissary Agency for products sold at commissaries.

(8) A description and evaluation of the formula of the Defense Commissary Agency for calculating savings for its customers as a result of its pricing strategy.

(9) An evaluation of the average savings per household garnered by commissary use.

(10) A description and evaluation of the use of private contractors and vendors as part of the defense commissary system.

(11) An assessment of costs or savings, and potential impacts to patrons and the Government, of privatizing the defense commissary system, including potential increased use of Government assistance programs.

(12) A description and assessment of potential barriers to privatization of the defense commissary system.

(13) An assessment of the extent to which patron savings would remain after the privatization of the defense commissary system.

(14) An assessment of the impact of any recommended changes to the operation of the defense commissary system on commissary patrons, including morale and retention.

(15) An assessment of the actual interest of major grocery retailers in the management and operations of all, or part, of the existing defense commissary system.

(16) An assessment of the impact of privatization of the defense commissary system on off-installation prices of similar products available in the system.

(17) An assessment of the impact of privatization of the defense commissary system, and conversion of the Defense Commissary Agency workforce to non-appropriated fund status, on employment of military family members, particularly with respect to pay, benefits, and job security.

(18) An assessment of the impact of privatization of the defense commissary system on Exchanges and Morale, Welfare and Recreation (MWR) quality-of-life programs.

(c) USE OF PREVIOUS STUDIES.—The Secretary shall consult previous studies and surveys on matters appropriate to the report required by subsection (a), including, but not limited to, the following:

(1) The January 2015 Final Report of the Military Compensation and Retirement Modernization Commission.

(2) The 2014 Military Family Lifestyle Survey Comprehensive Report.

(3) The 2013 Living Patterns Survey.

(4) The report required by section 634 of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113-291) on the management, food, and pricing options for the defense commissary system.

(d) COMPTROLLER GENERAL ASSESSMENT OF REPORT.—Not later than May 1, 2016, the Comptroller General of the United States shall submit to the Committees on Armed Services of the Senate and the House of Representatives a report setting forth an assessment by the Comptroller General of the report required by subsection (a).

Section 652 of this act is null and void.

SA 2055. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 2042 submitted by Ms. BALDWIN and intended to be proposed to the amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

On page 2, line 15, insert ''and makes a recommendation or otherwise suggests corrective action'' after ''General''.

SA 2056. Mr. CARDIN (for himself and Mr. CORKER) submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title XII, add the following:

Subtitle H—Asia-Pacific Maritime Security

SEC. 1291. MARITIME SECURITY CAPACITY BUILDING PROGRAM.

(a) PROGRAM AUTHORIZED.—

(1) IN GENERAL.—The Secretary of State is authorized, using funds transferred pursuant to subsection (b), to provide assistance for the purpose of increasing maritime security and domain awareness for countries in the Asia-Pacific region.

(2) DESIGNATION OF ASSISTANCE.—Assistance provided by the Secretary under this section shall be known as the ''Maritime Security Capacity Building Program'' (in this section referred to as the ''Program'').

(3) CONSTRUCTION OF LIMITATIONS.—The Secretary may provide assistance under this section without regard to any other provision of law, other than section 620J of the Foreign Assistance Act of 1961 (22 U.S.C. 2378d)).

(b) TRANSFER AUTHORITY.—The Secretary of Defense may transfer, from amounts authorized to be appropriated for the Department of Defense by this Act, $50,000,000 to the Secretary of State for the Program. Any amount so transferred shall be deposited in the ''Foreign Military Finance'' account for purposes of the Program.

(c) ELIGIBLE COUNTRIES.—In selecting countries in the Asia-Pacific region to which assistance is to be provided under the Program, the Secretary of State shall prioritize the provision of assistance to countries that will contribute to the achievement of following objectives:

(1) Retaining unhindered access to and use of international waterways in the Asia-Pacific region that are critical to ensuring the security and free flow of commerce and achieving United States national security objectives.

(2) Improving maritime domain awareness in the Asia-Pacific region.

(3) Countering piracy in the Asia-Pacific region.

(4) Disrupting illicit maritime trafficking activities and other forms of maritime trafficking activity in the Asia-Pacific that directly benefit organizations that have been determined to be a security threat to the United States.

(5) Enhancing the maritime capabilities of a country or regional organization to respond to emerging threats to maritime security in the Asia-Pacific region.

(d) PRIORITIES FOR ASSISTANCE.—In carrying out the purpose of the Program, the Secretary of State—

(1) shall place priority on assistance to enhance the maritime security capabilities of the military or security forces of countries in the Asia-Pacific region that have maritime missions and the government agencies responsible for such forces; and

(2) may provide assistance to a country in the Asia-Pacific region to enhance the capabilities of that country, or of a regional organization that includes that country, to conduct one or more of the following:

(A) Maritime intelligence, surveillance, and reconnaissance.
(B) Littoral and port security.
(C) Coast guard operations.
(D) Command and control.
(E) Management and oversight of maritime activities.

(e) ANNUAL REPORT.—The Secretary of State shall submit to the appropriate committees of Congress each year a report on the status of the provision of equipment, training, supplies or other services provided pursuant to the Program during the preceding year.

(f) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee of Foreign Relations, the Committee on Armed Services, and the Committee on Appropriations of the Senate; and

(2) the Committee of Foreign Affairs, the Committee on Armed Services, and the Committee on Appropriations of the House of Representatives.

SEC. 1292. REPORT ON PLANS FOR THE MAINTENANCE OF FREEDOM OF OPERATIONS IN INTERNATIONAL WATERS AND AIRSPACE IN THE ASIA-PACIFIC MARITIME DOMAINS.

(a) REPORT REQUIRED.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Defense shall, with the concurrence with the Secretary of State, submit to the appropriate committees of Congress a report (in classified form) setting forth a plan, for each of the six-month, one-year, and three-year periods beginning on the date of such report, for Freedom of Navigation Assertions, Shows of Force, bilateral and multilateral military exercises, Port Calls, Training, and assistance intended to enhance the maritime capabilities, respond to emerging threats, and maintain freedom of operations in international waters and airspace in the Asia-Pacific maritime domains.

(b) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee of Foreign Relations, the Committee on Armed Services, and the Committee on Appropriations of the Senate; and

(2) the Committee of Foreign Affairs, the Committee on Armed Services, and the Committee on Appropriations of the House of Representatives.

SEC. 1293. SOUTH CHINA SEA INITIATIVE.

Notwithstanding any provision of section 1261, any assistance provided pursuant to subparagraph (A) of subsection (a)(1) of that section, or training provided pursuant to subparagraph (B) of that subsection, shall be provided in manner consistent with current law.

SA 2057. Mr. SANDERS submitted an amendment intended to be proposed to amendment SA 1463 proposed by Mr. MCCAIN to the bill H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title X, add the following:

SEC. 1005. INDEPENDENT ASSESSMENT OF DEPARTMENT OF DEFENSE AUDIT AND FINANCIAL MANAGEMENT PROCESSES.

(a) INDEPENDENT ASSESSMENT.—

(1) ASSESSMENT REQUIRED.—The Secretary of Defense shall obtain from an entity independent of the Department of Defense selected by the Secretary for purposes of this section an assessment of the audit and financial management processes of the Department.

(2) COMPOSITION OF ASSESSMENT TEAM.—The assessment team used by the entity selected by the Secretary pursuant to paragraph (1) to conduct the assessment required pursuant to that paragraph shall be composed of individuals with extensive experience in audit and financial management of private sector and Federal agencies who are not currently participating in Financial Improvement and Audit Readiness (FIAR) activities for the Department or affiliated with organizations who are supporting such activities.

(3) ELEMENTS.—The assessment required pursuant to paragraph (1) shall include the following:

(A) A comparison of the audit and financial management processes of the Department with the audit and financial management processes of other appropriate Federal agencies, and appropriate private sector entities, including the qualifications of officials responsible for audit oversight and compliance, for purposes of identifying best practices to be adopted by the Department for its audit and financial management processes.

(B) An analysis of the progress and investments made by the Department under its Financial Improvement and Audit Readiness Plan, and a comparison of such progress and investment with the progress and investments made by other Federal agencies and appropriate private sector entities in audit and financial management processes, for purposes of determining the extent to which Department progress on financial management and audit readiness is consistent with results achieved by other appropriate Federal agencies and appropriate private sector entities.

(C) An identification of recommendations on policies and management and other activities that could be undertaken by the Department to enhance its audit and financial management processes in order to obtain and maintain clean audit opinions of its financial statement as effectively and efficiently as possible.

(4) ACCESS TO INFORMATION.—The Secretary shall ensure that the entity conducting the assessment required by paragraph (1) has access to all the information, data, and resources necessary to conduct the assessment in a timely manner.

(5) REPORT.—The Secretary shall require the entity conducting the assessment required by paragraph (1) to submit to the Secretary and the congressional defense committees a report on the assessment by not later than one year after the date of the enactment of this Act.

(b) TRANSMITTAL.—Not later than 60 days after receiving the report described in subsection (a)(5), the Secretary shall transmit the report to Congress, together with the following:

(1) An analysis by the Secretary of the findings and recommendations of the report.

(2) A description of the response of the Department to such finding and recommendations.

(3) Such other matters with respect to the audit and financial management processes of the Department as the Secretary considers appropriate.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on June 16, 2015, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate, on June 16, 2015, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building to conduct a hearing entitled ''Achieving the Promise of Health Information Technology: What Can Providers and the U.S. Department of Health and Human Services Do To Improve the Electronic Health Record User Experience?''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on June 16, 2015, at 10 a.m., to conduct a hearing entitled ''Federal Real Property Reform: How Cutting Red Tape and Better Management Could Achieve Billions in Savings.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on June 16, 2015, at 2:45 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON EAST ASIA, THE PACIFIC, AND INTERNATIONAL CYBER SECURITY

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations Subcommittee on East Asia, the Pacific, and International Cyber Security be authorized to meet during the session of the Senate on June 16, 2015, at 2:30 p.m., to conduct a hearing entitled ''Strategic Implications of Trade Promotion and Capacity-Building in the Asia-Pacific Region.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mrs. MCCASKILL. Mr. President, I ask unanimous consent that MAJ Rick Trimble, an Army fellow in my office, be granted the privilege of the floor for the remainder of the year.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR WEDNESDAY, JUNE 17, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, June 17; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein, and that the time be equally divided, with the Democrats controlling the first half and the majority controlling the final half; lastly, that all time during morning business and the adjournment of the Senate count postcloture on the substitute amendment No. 1463.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of Senator DURBIN.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Illinois.

KING V. BURWELL DECISION

Mr. DURBIN. Mr. President, there is a case pending before the U.S. Supreme Court that is being followed very closely. It is the case of King v. Burwell. It is a case that really is challenging one of the fundamental premises of the Affordable Care Act.

The Affordable Care Act was passed 4 or 5 years ago here in the Senate and in the House and signed by President Obama. Because of it, over 11 million

Americans have chosen or reenrolled in a health insurance plan, most with a tax subsidy that makes their coverage affordable. The subsidy is based on their income. In the private market, millions more now have access to expanded coverage for preventive health services, such as mammograms or flu shots, without any cost sharing.

Because of the Affordable Care Act, a person no longer needs to stay in a job simply to carry health insurance or be denied coverage because of a preexisting condition. Because of this law, prescription drugs for seniors cost a lot less. There was a time not that long ago that if a member of your family—for instance, one of your children—had a history of diabetes or mental illness, they might find themselves in a position where the family couldn't afford to buy health insurance. But the new Affordable Care Act said: You cannot discriminate against a person or family because there is a preexisting health condition.

The reason that works, the reason why insurance companies can still get by covering people who are sick is that there is also a requirement that people carry health insurance. That means healthy people need to buy health insurance as well as those who are sick and worried about coverage in the future. That enlarges the pool and diminishes the cost to the applicant for health insurance who is suffering from a preexisting condition.

This month, the Supreme Court will make a decision in the case of King v. Burwell. The plaintiffs in this case have made an unusual argument. They claim that Congress intended to provide tax credits to help people buy health insurance only in insurance marketplaces established by each State but not in the Federal marketplace.

I was here during the debate. I was here when we passed the Affordable Care Act. I can tell you that absolutely no one made that argument that I heard on the floor of the Senate. Overwhelmingly, those who were in exchanges—in either State or Federal exchanges—were treated the same way when we calculated the cost and savings of the Affordable Care Act.

If Republicans get their way—and some of them are rooting for the Supreme Court to eliminate the subsidy—6.5 million people will lose their Federal tax subsidy for health insurance. According to the Urban Institute, premiums for people able to purchase insurance would increase by 35 percent. Now, $12 billion in uncompensated care would be shifted to hospitals and Americans with employer-based insurance, making a ruling in favor of King in the Supreme Court a tax increase on everyone.

Here is how it works: If you have people—millions across the country—who have health insurance because of the Affordable Care Act and they lose their health insurance, they are still going to get sick. When they get sick, they will show up at a hospital. Nine times out of ten—maybe more—the hospital will treat them even if they can't pay. Their expenses and costs will be passed on to someone else who comes to that hospital, someone with health insurance.

Ultimately, everyone who has health insurance is going to subsidize those who don't. I don't think that is a very fair or wise system. If the King v. Burwell decision goes the wrong way, it may move us toward that.

There are some in the other party who say they have an alternative plan to the Affordable Care Act. The House and the Senate Republicans have already voted to repeal subsidies for working families by voting to repeal the law. I lost track in the House; I think it is 57 times, 58 times they have voted to repeal the Affordable Care Act. They have come out with a plan that they say would restore the subsidies, but it eliminates the requirement that people carry insurance. It eliminates what is known as the individual mandate.

There were some who argued—and I am one of them—that the individual mandate is a question of personal responsibility. If you want to drive a car in my State of Illinois, you need automobile insurance. It isn't a question of you making a decision. The State requires it because if you are going to be in that automobile and if you get in an accident, the victim in the other car shouldn't have to bear the expense of damage to their car or personal injury, the person responsible for the accident should, and the only way that works is if everybody carries automobile insurance.

If you want to buy a home in my State and I think in almost every State, the mortgage company requires fire insurance. If a fire destroys that home, the mortgage company will get paid the proceeds and will not end up with an empty bag.

Similarly, when it comes to health insurance, the individual mandate says: We think everyone should buy health insurance. We will help those in low-income categories with subsidies because we think everyone should have health insurance. That is what is behind the individual mandate.

If you eliminate the individual mandate, you will be back in the situation where people seeking health insurance will be those who are the most vulnerable and sick, those with preexisting conditions. That makes it tough to create an insurance pool that makes sense when it comes to risk.

According to the American Academy of Actuaries, putting out a plan that eliminates the individual mandate will really be of no help. That bill would only delay the onset of higher insurance premiums and loss of coverage for millions of Americans. The Affordable Care Act puts families in charge of their care instead of insurance companies. It expands health care coverage, lowers health care cost, makes Medicare stronger, and lowers the deficit. I don't know why there is opposition to any of those elements.

Before the enactment of the Affordable Care Act, 50 million Americans didn't have health insurance, while health care costs for working families and small businesses were increasing out of sight. The Affordable Care Act changed that, and 11 million people of the 50 million now have private health insurance. Millions more are now covered by Medicaid. And for the first time ever, insurance companies have to live up to their promise of being there when you really need them.

Many in the other party have argued that this is not the way to do it and that there should be a viable alternative. I would like them to meet a couple of people from my home State.

The Supreme Court could put in jeopardy health insurance coverage for Ariana Jimenez. Ariana lives in Chicago and works part time as a nursing assistant at a community health center. Ariana pays $52 a month for her basic health insurance premium—$52 a month. When asked what would happen to her coverage if the Supreme Court took away her tax credit, Ariana simply said: I wouldn't be able to afford it.

In Illinois, over 800,000 people—in my State of about 12.5 million, 13.5 million—800,000 people in Illinois now have health insurance through the marketplace created by the Affordable Care Act or through Medicaid, and 240,000 people purchased a plan through the Illinois marketplace with a subsidy. I might say that the only marketplace is a Federal marketplace. If the Supreme Court decides in favor of the plaintiffs, a quarter-million people in my home State will not be able to afford their health insurance.

What happens to everyone else? If the Court rules for King, the plaintiff in this lawsuit, consumers in the individual market in States such as Illinois who use the Federal marketplace would face premium increases of 47 percent—$1,600 a year more that people would have to pay for health insurance.

A few years ago, Domingo Carino found out he had a health condition that required medication and he could not afford it. Thanks to the Affordable Care Act and help from the staff at the Asian Human Services Family Health Center in Chicago, Domingo found good health insurance. He pays $11 a month. Domingo's plan not only allows him to afford his medication, but it also keeps him in a position where he has access to a primary care physician. According to Domingo, he can now live without worrying about how to afford his medication.

For Domingo and millions like him, tax credits provided by the Affordable Care Act are literally a lifesaver.

Over 54 million people benefit from Medicaid. Before the Affordable Care Act, two out of three people on Medicaid were pregnant women and children. That is 36 million of our most vulnerable Americans. Medicaid also

provides for people with disabilities. Before the Affordable Care Act, almost 3 million people were covered by Medicaid in Illinois, and more than half of the children born in our State were covered by Medicaid. Since the Affordable Care Act, another 530,000 people have signed up for Medicaid. That means that finally these people can get better from a condition they couldn't afford to treat. I call that a success.

It is interesting, too, that now that people on Medicaid can shop at different hospitals, traditional hospitals that serve the poor—there is one, Stroger Hospital, which used to be Cook County Hospital, in Chicago—have to change the way they do business. They are competitive now. They realize that Medicaid patients can go shopping at another hospital. The administrator at Stroger Hospital told the doctors and staff: Be on your toes. Provide better care. We are competing for business now. These Medicaid recipients can go to every hospital.

According to a recent Gallup poll, the uninsured rate has dropped 3½ percentage points from 2013 to 2014. In Illinois, the uninsured rate dropped 4½ percent during that same period.

The Affordable Care Act includes several changes meant to help slow the growth in health care costs. The CBO this week forecast lower private health insurance premiums. Health care spending per enrollee has slowed in the private insurance market and also in Medicare and Medicaid.

Instead of paying hospitals for the services they provide, because of the ACA, hospitals are paid to make people well. If their patients have to go back to the hospital, many of the hospitals are penalized for that. Despite climbing readmission rates since 2007, those rates started to fall with the Affordable Care Act. Hospitals are responding to the incentives in the Affordable Care Act and more of their patients are getting better and staying better.

The solvency of the Medicare Part A trust fund is now 13 years longer than it was prior to the passage of the Affordable Care Act—which means it will be solvent for 13 more years—which the trustees in 2010 said had ''substantially improved'' the financial status of the trust fund.

The law also helps seniors with the cost of prescription drugs by closing the doughnut hole. There was that moment in time when seniors weren't covered by Medicare Part D and had to reach into their savings account. Since the passage of the Affordable Care Act, people with Medicare in Illinois have saved over $554 million on prescription drugs. We closed the doughnut hole with the Affordable Care Act. That is an average savings for each senior in Illinois of $925. Those who want to abolish the Affordable Care Act have some explaining to do to seniors who are pretty happy that they have a helping hand when it comes to paying for drugs.

It is my hope that the Supreme Court does the right thing and realizes Congress never intended to have tax subsidies go to only some Americans and not others. I have always said the Affordable Care Act is not a perfect law. As I have said several times on the floor of the Senate, the only perfect law was carried down a mountain by Senator Moses on clay tablets. Ever since, we have tried our best to put a law together that serves the purposes of our Nation. We do our best, but we can always improve it. The same thing is true for the Affordable Care Act.

I hope the time comes—and I hope the Supreme Court doesn't force this sooner rather than later—when we can have a constructive, bipartisan conversation about the Affordable Care Act. It is not a perfect law. It can be improved. There are parts of it on which I would gladly work with Republicans to change.

I have told my friends in the restaurant business that I know they are concerned about the number of hours employees have to work to be covered and how many employees work at the restaurant and so forth. All of those things can be and should be addressed. If they are addressed in a positive and constructive way, we can improve this law and make it serve the American people better. I think that is why we were elected.

I yield the floor.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate stands adjourned until 9:30 a.m. tomorrow.

Thereupon, the Senate, at 6:15 p.m., adjourned until Wednesday, June 17, 2015, at 9:30 a.m.

NOMINATIONS

Executive nominations received by the Senate:

AFRICAN DEVELOPMENT FOUNDATION

LINDA THOMAS–GREENFIELD, AN ASSISTANT SECRETARY OF STATE (AFRICAN AFFAIRS), TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE AFRICAN DEVELOPMENT FOUNDATION FOR THE REMAINDER OF THE TERM EXPIRING SEPTEMBER 27, 2015, VICE JOHNNIE CARSON.

LINDA THOMAS–GREENFIELD, AN ASSISTANT SECRETARY OF STATE (AFRICAN AFFAIRS), TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE AFRICAN DEVELOPMENT FOUNDATION FOR A TERM EXPIRING SEPTEMBER 27, 2021. (REAPPOINTMENT)

OVERSEAS PRIVATE INVESTMENT CORPORATION

JOHN MORTON, OF MASSACHUSETTS, TO BE EXECUTIVE VICE PRESIDENT OF THE OVERSEAS PRIVATE INVESTMENT CORPORATION, VICE MIMI E. ALEMAYEHOU.

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

ENRIQUE J. GWIN

EXTENSIONS OF REMARKS

CONGRATULATING THE FATIMA COMETS BASEBALL TEAM

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating the Fatima Comets Baseball team for their first place win in the 2015 Class 3 State Baseball Championship.

This team and their coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you to join me in recognizing the Fatima Comets for a job well done.

IN HONOR OF THE 30TH ANNIVERSARY OF WAYNE BROTHERS INCORPORATED

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. HUDSON. Mr. Speaker, I rise today to commend Wayne Brothers Incorporated for thirty years of providing premiere site and concrete contracting to the Southeastern United States.

From their humble beginnings in 1985 to their regional footprint today, Wayne Brothers Incorporated has stood as a pillar of business excellence and community service in North Carolina's 8th Congressional District. Under the leadership of Keith Wayne, Bob Phillips, John Ashworth, Chad Hensley, Isaiah Wayne, and Daniel Wayne, Wayne Brothers Incorporated operates with a mission to provide their clients and shareholders the most specialized quality and value in the field of construction.

Most recently Wayne Brothers Incorporated won the 2015 Cabarrus County Small Business of the Year Award, the 2015 National Association of Women in Construction's Steel Toe Boot Award for Subcontractor of the Year of the Charlotte Chapter, and the 2015 Associated Builders in Construction's Excellence in Construction Eagle Award for National Excellence in Construction.

Even in the midst of such accolades, Wayne Brothers Incorporated remains consistent in its commitment to serve the community.

Mr. Speaker, I am proud to honor Wayne Brothers Incorporated for their pioneering spirit and demonstration of core American values. It is my pleasure to congratulate them for thirty years of excellence as a business and key figure in our community.

PERSONAL EXPLANATION

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mrs. BUSTOS. Mr. Speaker, on the legislative day of June 15, 2015, a series of votes was held. Had I been present for these roll call votes, I would have cast the following votes:

Roll Call 364—I vote ''YEA.''

Roll Call 365—I vote ''YEA.''

RECOGNIZING MR. RISHI PRASAD

HON. PATRICK MEEHAN

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. MEEHAN. Mr. Speaker, I rise to recognize Mr. Rishi Prasad, of Bryn Mawr, Pennsylvania, for earning The Congressional Award Gold Medal.

Mr. Prasad has put in the necessary time and commitment to rightfully earn this award. Over the course of two years, he dedicated himself to his community by volunteering at a local hospital and refurbishing computers to be donated to others. He set personal development and physical fitness challenges for himself to become a more well-rounded individual. I commend his initiative and service to his community. It is an honor to represent this young man in the House of Representatives.

Mr. Speaker, on behalf of the 7th district of Pennsylvania, I want to congratulate Mr. Rishi Prasad on his achievement and wish him the best of luck in the future.

PERSONAL EXPLANATION

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. WITTMAN. Mr. Speaker, I missed a series of recorded votes on June 15. Had I been present, I would have voted ''YEA'' on roll call vote No. 364 and roll call vote No. 365.

IN RECOGNITION OF DR. GLENN D. STEELE, JR. ON THE OCCASION OF HIS RETIREMENT FROM GEISINGER HEALTH SYSTEM

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BARLETTA. Mr. Speaker, I am honored to recognize Dr. Glenn D. Steele, Jr. on the occasion of his retirement. Dr. Steele is the President and Chief Executive Officer of Geisinger Health System, an integrated health services organization within my congressional district that is widely admired for its development of innovative care models and its advances in the use of electronic health records and telemedicine.

After receiving his bachelor's degree in history and literature from Harvard University, Dr. Steele went on to graduate with his medical degree from New York University School of Medicine and his PhD in microbiology from Lund University in Sweden. He has served as the Chairman of the American Board of Surgery, as well as the President and Chief Executive Officer of Deaconess Professional Practice Group.

An influential academic, Dr. Steele has contributed immensely to advances in the areas of gastrointestinal cancer, pre-cancer, and, most recently, healthcare delivery and financing. In fact, he is the author or co-author of more than 483 scientific and professional articles, an impressive feat in and of itself.

In 2001, Dr. Steele assumed his role as Chief Executive Officer of Geisinger Health System. Under his direction, the organization has grown from 7,000 employees to 23,500; all of whom provide valuable healthcare services to citizens both in my congressional district, the Commonwealth, and across the nation. Dr. Steele has also overseen Geisinger's growth and development into nine hospital campuses, two research centers, and a 467,000-member health plan. Combined, these entities leverage an estimated $7.7 billion, revenue that has strongly impacted Pennsylvania's economy for the better.

Furthermore, national accolades have repeatedly been bestowed upon Geisinger for its work in integration, quality, and service—accomplishments that Dr. Steele has played an integral role in facilitating. Geisinger's patient care mission is second to none, and Dr. Steele has taken the organization one step further in developing a commitment to medical education, research, and community service.

Mr. Speaker, I am pleased to congratulate Dr. Steele as he celebrates the culmination of an impressive, impactful career. Though his daily influence within Geisinger will be missed, his legacy will inevitably carry on. I hope that he finds this new chapter of his life to be as exciting as the last, and that he enjoys this occasion in the company of family and friends.

RECOGNIZING THE BUFFALO CHORAL ARTS SOCIETY FOR ITS OUTSTANDING COMMITMENT TO THE BUFFALO COMMUNITY

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to recognize and honor the Buffalo Choral Arts Society for its work in the Buffalo

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

community. The Society has immeasurably enriched the lives of many in the Western New York area through its song and commitment to the arts.

Founded 50 years ago in 1966 by Robert F. Schulz, the Society has expanded to include a diverse group of over 100 singers drawn from within the Buffalo community. Led by conductor Marcia A. Giambrone who enters her 27th season with the choir, the Buffalo Choral Arts Society sings a full schedule of concerts throughout the year breathing life into music as diverse as Bach, pop and Broadway for the enjoyment of its audience.

As ambassadors of Buffalo and Western New York as well as the United States of America as a whole, the Buffalo Choral Arts Society has travelled widely throughout both the nation and the world. Domestically they have performed in such esteemed venues as Carnegie Hall, the National Cathedral and the John F. Kennedy Center for the Performing Arts as well as in local Buffalo treasures such as the Historic Riviera Theatre.

Whilst abroad, the Society has had the honor of performing as part of the 50th Anniversary of the D–Day Invasion at the American Cemetery and Memorial in Normandy, as well as having toured throughout Europe and Canada, participating in important cultural exchange while showcasing the American choral tradition to a wide international audience.

Voted ''Best Vocal Ensemble'' in each of the last four years in the Artvoice Best of Buffalo contest, the Buffalo Choral Arts Society continues to strive for excellence and to bring its sound to a wider audience. It will travel to New York City in early July to perform a series of concerts over the Independence Day weekend there.

Mr. Speaker, thank you for allowing me a few moments to honor and recognize the Buffalo Choral Arts Society. I ask that my colleagues join me in congratulating the Buffalo Choral Arts Society on an accomplished history of choral music, and to commend it for the exemplary work it has done to enrich the communities of Western New York.

HONORING MR. WILLIAM HYBL

HON. DOUG LAMBORN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. LAMBORN. Mr. Speaker, I rise today to honor one of the most distinguished citizens in the history of Colorado Springs, Mr. William Hybl.

Bill has not only served Colorado Springs with his successful business and non-profit careers, he has served our nation and globally represented us as well. From his service in the United States Air Force, to his term as the President of the United States Olympic Committee, to his time representing us in the United Nations, and, particularly, to his distinguished tenure as the Chairman of the U.S. Commission on Public Diplomacy, Bill exemplifies the notion of selfless service for the betterment of our nation.

That's why I am delighted that Bill is being honored by the Japanese Government with the Imperial Decoration of the Order of the Rising Sun, Gold Rays with Neck Ribbon. This distinguished award is one of the highest honors that can be bestowed by the Japanese government and Bill has earned this distinction by cultivating a deep and meaningful bond with the Japanese people.

During his time as USOC President, Bill led Team USA in the 1998 Winter Olympics in Nagano, Japan. He also nurtures many diplomatic and cultural exchanges between Japan and Colorado. Among the greatest of these is the thriving Sister City relationship between Colorado Springs and Fujiyoshida.

For these reasons, among many others, I am honored to recognize Bill Hybl and join my fellow citizens in Colorado's Fifth Congressional District in congratulating him on this tremendous honor.

CONGRATULATING SARA RHINE OF THE ELDON HIGH SCHOOL LADY MUSTANGS

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Sara Rhine of the Eldon High School Lady Mustangs for her first place win in the 2015 Class 3 State High Jump Championship, giving her a total of ten state medals.

Sara won her fourth consecutive first place high jump title and finished third in the 100-meter hurdles and long jump. Sara and her coach should be commended for all of their hard work throughout this past year and for bringing home the state championship to their school and community.

I ask you to join me in recognizing Sara Rhine of the Eldon High Lady Mustangs for a job well done.

THE COMMENCEMENT OF DIRECT FLIGHTS BETWEEN HOUSTON'S GEORGE BUSH INTERNATIONAL AIRPORT AND TAIWAN'S TAOYUAN INTERNATIONAL AIRPORT

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. JACKSON LEE. Mr. Speaker, I rise today to celebrate a significant milestone achievement, the commencement of direct flights between Houston's George Bush International Airport (IAH) and Taiwan's Taoyuan International Airport.

The arrival of EVA Airways Flight #52, which is scheduled to arrive at George Bush International Airport from Taipei on June 19, 2015, at 4:30 p.m., will mark the first direct flight from Taipei.

Houston and Taipei are sister cities, having begun a friendship in 1961 that has for more than 50 years provided mutual benefits in the areas of business, culture and education, as has brought significant direct foreign investment to Houston and Texas.

Taiwan is the United States' 10th largest trading partner and the United States is Taiwan's largest foreign investor.

Our people-to-people exchanges are flourishing, with over 20,000 Taiwanese students studying in the United States each year.

In 2012, the first year that Taiwan was eligible to participate in the Visa Waiver Program, travel from Taiwan to the United States increased 35 percent.

EVA Airway's direct flight between Houston and Taipei will facilitate continuous prosperity and cooperation between the U.S. and Taiwan.

As the airline also connects major cities in East and Southeast Asia, the direct flight service is expected to facilitate more business, tourism and leisure travel between not only Houston and Taipei but Houston and the entire region as well.

Mr. Speaker, it is an honor to recognize and congratulate Houston's George Bush International Airport and EVA Airways on their bold, exciting, and mutually beneficial new venture of direct air travel between Houston and Taipei.

PERSONAL EXPLANATION

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BLUM. Mr. Speaker, on roll call no. 365 severe weather unavoidably detained my flight in Chicago, Illinois and I was unable to make the vote series.

Had I been present, I would have voted ''yes''.

IN RECOGNITION OF THE JEWISH FAMILY SERVICE OF NORTHEASTERN PENNSYLVANIA'S 100TH ANNIVERSARY

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. CARTWRIGHT. Mr. Speaker, I rise today to honor the Jewish Family Service of Northeastern Pennsylvania, which is celebrating 100 years of service to both the Jewish and broader community. Jewish Family Service is a human service organization which reflects the Jewish tradition of caring and compassion for all people in need. Through professional counseling, advocacy, and educational programming, their services enhance and strengthen the quality of individual, family, and community life in Northeast Pennsylvania.

Established in August of 1915 as the Jewish Federation of Scranton, the organization sought to coordinate relief activities of all service organizations in the Jewish community. These efforts included philanthropic and charitable family services, fundraising, and coordination of medical and dental clinics.

Today, the Jewish Family Service provides a host of services to Northeast Pennsylvania, including mental health counseling, Holocaust survivors assistance, Kosher Meals on Wheels, older adult services, and the Mae S. Gelb Kosher Food Pantry. Additionally, the Jewish Family Service administers the Non-Sectarian DentalCare Center, an ongoing collaborative effort between JFS, the Scranton

District Dental Society, and Fortis Institute Dental Hygiene Program to provide free dental care for eligible Lackawanna County residents.

It is a privilege to honor such a service-oriented institution. I hope that Jewish Family Service of Northeastern Pennsylvania will continue their good work as long as it is needed.

CONGRATULATING THE D.C. CHAPTER OF THE BLACK DATA PROCESSING ASSOCIATES (BDPA) ON ITS 37TH ANNIVERSARY

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. NORTON. Mr. Speaker, I rise today to ask the House of Representatives to join me in congratulating the District of Columbia chapter of the Black Data Processing Associates (BDPA) on its 37th anniversary of service to the residents of the District of Columbia and the national capital region.

Founded in May 1978 by Norman Mays, the D.C. chapter is the second chapter of BDPA formed, preceded only by the Philadelphia, Pennsylvania chapter, 1977. In 1979, BDPA was restructured as a national organization, and has 45 active chapters across the United States.

As the oldest and largest African American information technology (IT) organization, comprised of over 2,000 African-American IT professionals, as well as science, technology, engineering and math (STEM) college students, BDPA's vision is to be a powerful advocate for their interests within the global technology industry. Its mission is to be a global, member-focused technology organization that delivers programs and services for the professional well-being of its members.

BDPA continues to promote professional growth and technical development for young people and those entering into information and communication technology (ICT) in academia and corporate America. We also appreciate BDPA and its 45 chapters for continuing to provide ICT opportunities for STEM students and professionals.

Mr. Speaker, I ask the House of Representatives to join me in celebrating the 37th anniversary of the D.C. chapter of the Black Data Processing Associates, in congratulating BDPA for its outstanding accomplishments and commitment to the residents of the District of Columbia and around the country, and in welcoming those attending the BDPA Annual National Technology Conference and Career Fair, titled ''Evolution of IT—Embracing the Digital Future,'' on August 18–22, 2015, at the Washington Hilton Hotel.

PERSONAL EXPLANATION

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. ROSKAM. Mr. Speaker, on roll call no. 365, my flight was delayed due to weather.

Had I been present, I would have voted ''aye.''

CONGRESSIONAL BLACK CAUCUS: THE MISSING BLACK MALE

SPEECH OF

HON. ROBIN L. KELLY

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Monday, June 15, 2015

Ms. KELLY of Illinois. Mr. Speaker, I thank my colleague for yielding as we continue our conversation about the challenges facing black males today.

As Chairwoman of the CBC Health Braintrust, I want to discuss the health challenges and health outcomes for black men.

There are a wide range of dangers and health threats that disproportionately affect black men. Some of these, we've known about for decades, and can be mitigated with the right treatments. While others are emerging issues that require more research, more debate, and more innovation. The end result is that black men have the lowest life expectancy, highest death rate, and have some of the worst health outcomes across demographics.

Black men suffer disproportionately from chronic illnesses, such as cancer and heart disease. In fact, according to the Centers for Disease Control and prevention, heart disease and cancer are the two leading causes of death for African American men.

Heart disease is the number one killer for all American men. But today, African American men remain disproportionately at risk for heart disease. 42.6 percent of black men suffer from high blood pressure, compared to 33.4 percent of white men. And nearly 44 percent of African American men suffer from some form of cardiovascular disease that can lead to strokes and heart attacks.

As for cancer, black men are more than twice as likely to die from prostate cancer as white men and have a higher incidence and death rate from colorectal cancer.

A study published this April in the Journal of the American Medical Association found that African Americans were 58 percent more likely than white people to develop prostate cancer. The same study also found that obese black men had a 103 percent increased prostate cancer risk compared to obese white men.

Obesity has also been connected with heart disease and other chronic illnesses. And today almost 40 percent of African American men are obese, 69 percent are obese or overweight.

These are serious issues that pose serious health dangers to black men. We may not know exactly why black men are so much more at risk for these ailments. But we DO know what we can do to reduce the health risks and take action to prevent disease.

That's why as we celebrate National Men's Health Week this week, I want to encourage all men to take action—exercise, eat right, and get a check up. As Chairwoman of the CBC Health Braintrust, I'll be pushing the conversation forward and working to pass legislation to fund more research and promote health education so that all Americans can continue living healthy lives.

Mr. Speaker, I want to take a moment to discuss two issues that are plaguing the next generation of black Americans. These being issues related to violence—gun violence and suicide.

Starting with gun violence. In underserved communities around America, children are growing up in fear. Kids are playing tag indoors, instead of out on their front lawn. Mothers worry about their child walking home from school.

Gun violence in America disproportionately affects African Americans and more specifically African American males. Today, 50 percent of all deaths for black males aged 15–24 are homicides, usually involving a gun. And this year, we are on track for gun violence to become the leading cause of death for young black males.

In the first six months of this year, the Redeye Chicago, a local publication, tracked 157 gun related homicides in the city. Nearly 130 of them involved black males. This isn't an isolated problem. An analysis of the FBI's national database of supplementary homicide reports revealed that across the country 17,422 black males ages 13 to 30 have been killed by firearms since 2008.

It's time we change this. Through commonsense legislation, we can ensure that fear of gun violence is no longer the status quo in our communities. That's one of the reasons I released the Kelly Report on Gun Violence last summer. This was the first comprehensive Congressional report on the gun violence problem in America, and included effective policy strategies to reduce gun violence in America. I ask that my colleagues consider some of the ideas in that report online.

And continuing to speak of violence, I want to bring attention to the alarming increase in suicide among young black boys.

In 1982, the New York Times wrote an article entitled, ''Why Are Blacks Less Suicide Prone than Whites?'' I stand here now asking ''Why are black boys becoming more suicide prone?''

According to a recently published study in the Journal of the American Medical Association, while the overall suicide rate has remained stagnant over the past 20 years, tragically the suicide rate among black boys as young as ten years old has nearly doubled. Almost 20 percent of these suicides are attributed to gun-related wounds.

This shocking and tragic issue is receiving very little attention in our national media and it's being overlooked in our national discussion on mental health. Just last month, our colleague, Congressman EMANUEL CLEAVER wrote President Barack Obama calling for a task force to examine this issue. In his letter, Congressman CLEAVER noted that this was the first time that any national survey found a higher suicide rate for blacks than for individuals of other ethnicities.

Whether you're black, white, Latino, or a veteran, Congress can do more to take necessary health care measures to address suicides. This Congress must work to end the horrific epidemic that is preventing young black boys from growing up and reaching their full potential.

COUNTRY OF ORIGIN LABELING AMENDMENTS ACT OF 2015

SPEECH OF

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Wednesday, June 10, 2015

Mr. VAN HOLLEN. Mr. Speaker, I rise in opposition to H.R. 2393, the Country of Origin Labeling Amendments Act of 2015. This bill represents a hasty response to a recent WTO ruling on Country of Origin Labeling (COOL) and fails to take into account the wide-ranging views of multiple stakeholders, including consumer, labor, farm, environmental and faith-based groups.

The WTO Appellate Body ruled against United States COOL regulations only a few weeks ago and two days after, H.R. 2393 was pushed through the House Agriculture Committee. While the WTO ruled that COOL discriminated against imported livestock, it also determined that COOL is a ''legitimate objective'' to provide consumers information on food origin. COOL has been successfully implemented for various nuts, fruits, vegetables, seafood and other food products. Congress must support this progress and take its time to develop a COOL policy that is WTO compliant and reflects the views of consumers and other stakeholders.

While critics have pointed to the retaliatory threats issued by Canada as a reason to expedite this legislation, it is too soon to know whether these threats have merit. Canada and Mexico still must seek WTO authority to impose retaliatory tariffs. The WTO must determine whether this amount equals the damages incurred by Canada and Mexico under COOL. The U.S. can appeal these claims and request that the WTO appoint an arbitrator to determine the proper level of damages. Arbitration cases generally last several months. There is still ample time for the U.S., Canada and Mexico to come to an agreement before retaliation can take effect. The Congress should let this process play out before taking action.

I also have concerns about the level of damages Canada is seeking in response to COOL. Its claims cite data that is not publically available, while studies from the U.S. supported by data from USDA show that COOL has not had a negative impact on Canadian and Mexican livestock imports.

Consumers have a right to know where their food comes from and studies show that Americans strongly support country of origin labeling. Congress should support the desires of consumers and wait for the WTO process to run its course before taking action. I urge a no vote.

PERSONAL EXPLANATION

HON. TAMMY DUCKWORTH

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. DUCKWORTH. Mr. Speaker, on June 15, 2015 on Roll Call #364 on H. Res. 233—Expressing the sense of the House of Representatives that Iran should immediately release the three United States citizens that it holds, as well as provide all known information on any United States citizens that have disappeared within its borders—I am not recorded because a weather-related flight cancellation prevented me from being present for the vote. I am a cosponsor of this important resolution and believe it sends a critical message that if Iran truly wants to engage in constructive interaction with the world, it must release American prisoners. Had I been present, I would have voted AYE.

On June 15, 2015 on Roll Call #365 on H.R. 2559—to designate the ''PFC Milton A. Lee Medal of Honor Memorial Highway'' in the State of Texas—I am not recorded because a weather-related flight cancellation prevented me from being present for the vote. Had I been present, I would have voted AYE.

TRIBUTE TO KYLE TESTERMAN

HON. JOHN J. DUNCAN, JR.

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. DUNCAN of Tennessee. Mr. Speaker, I wish to honor a man whose service and personal fortitude brought great distinction to Tennessee and this Nation.

Kyle Testerman, a former two-term mayor and the youngest person ever elected to that office in my hometown of Knoxville, Tennessee, died recently after a long life filled with family, faith and service.

Mayor Testerman is one of the finest public servants I have ever known, and he was a longtime friend of my father and family.

As a young man, Mayor Testerman played basketball and tennis at the University of Tennessee. As most people know, University of Tennessee athletics is one of the highest levels of sports in this Country.

In recognition of his love of tennis and accomplishments in public service, the City of Knoxville named the tennis complex in Tyson's Park in honor of Mayor Testerman.

Following college, lie rose to Mayor after serving on the city council.

More people are moving to East Tennessee to live than almost any other part of the Country in large part because of the contributions Mayor Testerman made towards making the region one of the best places to live.

From rescuing the city's zoo from closure, establishing a cultural exchange center, and funding the first Mobile Meals program, to starting the Knoxville-hosted 1982 World's Fair and constructing TVA's headquarters, Kyle Testerman's legacy remains in every corner of the town he loved.

Mr. Speaker, Mayor Kyle Testerman devoted his entire life to East Tennessee. I call to the attention of my colleagues and other readers his inspirational service and offer my deepest condolences to his family.

PERSONAL EXPLANATION

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. WILSON of South Carolina. Mr. Speaker, I submit the following remarks regarding my absence from votes which occurred on June 15, 2015. I was delayed in arriving in Washington due to a flight cancelation from Columbia, South Carolina.

(1) H.R. 891—To designate the facility of the United States Postal Service located at 141 Paloma Drive in Floresville, Texas, as the ''Floresville Veterans Post Office Building''—''aye''.

(2) H.R. 1326—To designate the facility of the United States Postal Service located at 2000 Mulford Road in Mulberry, Florida, as the ''Sergeant First Class Daniel M. Ferguson Post Office''—''aye''.

(3) H.R. 1350—To designate the facility of the United States Postal Service located at 442 East 167th Street in Bronx, New York, as the ''Herman Badillo Post Office Building''—''aye''.

(4) H.R. 728—To designate the facility of the United States Postal Service located at 7050 Highway BB in Cedar Hill, Missouri, as the ''Sergeant First Class William B. Woods, Jr. Post Office''—''aye''.

(5) H.R. 2131—To designate the Federal building and United States courthouse located at 83 Meeting Street in Charleston, South Carolina, as the ''J. Waties Waring Judicial Center''—''aye''.

(6) H.R. 2559—To designate the ''PFC Milton A. Lee Medal of Honor Memorial Highway'' in the State of Texas—''aye''.

(7) H. Res. 233—Expressing the sense of the House of Representatives that Iran should immediately release the three United States citizens that it holds, as well as provide all known information on any United States citizens that have disappeared within its borders—''aye''.

SERGEANT FIRST CLASS WILLIAM B. WOODS, JR. POST OFFICE

SPEECH OF

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Monday, June 15, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today in support of my legislation, H.R. 728, which would designate the facility of the United States Postal Service located at 7050 Highway BB in Cedar Hill, Missouri as the ''Sergeant First Class William B. Woods, Jr. Post Office.''

SFC Woods was a decorated constituent of the Third district of Missouri who dedicated his life to protecting our country. After graduation from Northwest High School in Cedar Hill, Missouri, he first enlisted with the United States Marine Corps in 1996 as a rifleman, and later enlisted in the United States Army where he attended the Special Forces Qualification Course in 2003 and earned the Green Beret. While in the U.S. Army, SFC Woods was assigned to the 2nd Battalion, 20th Special Forces Group (Airborne) and deployed to Afghanistan in 2009 during Operation Enduring Freedom.

On August 16, 2009, SFC Woods died in Germany from wounds sustained while conducting a mounted patrol in the Ghazni Province, Afghanistan on August 14, 2009. He is survived by his loving wife, Elizabeth, and two daughters.

SFC Woods' many awards and decorations include the Bronze Star Medal, Purple Heart

Medal, Combat Infantryman Badge, Navy and Marine Corps Achievement Medal, National Defense Medal, and Afghanistan Campaign Medal with Bronze Service Star, among many others.

I am honored to name this post office after SFC Woods. His dedication and sacrifices for our country should not go unnoticed, and it is the least I can do to honor such a courageous soldier.

I want to thank the entire Missouri Delegation for coming together to cosponsor this legislation, and Chairman CHAFFETZ for promptly considering this legislation in the House Oversight and Government Reform Committee. It would be an honor to name the Cedar Hill post office in my district after this courageous soldier, and I urge my colleagues to support this legislation.

HONORING WORLD WAR II VETERAN MR. CHARLES ROBERT ''BOB'' PROVINE, JR. ON THE OCCASION OF HIS 90TH BIRTHDAY

HON. JERRY McNERNEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. MCNERNEY. Mr. Speaker, I rise today to honor Charles Robert ''Bob'' Provine, Jr., upon the joyous occasion of his 90th birthday, which will be celebrated with his family, friends, and church family on June 25th in Antioch, California.

Born on June 25, 1925 in Redwood City, CA, Bob is a decorated World War II veteran with a remarkable life of service, both to his community and to our country. He moved to Antioch, CA as a toddler, where he remains to this day. Shortly before graduating from Antioch High School in 1943, Bob enlisted in the Army Air Corps. After receiving his Army training, he was sent to Camp Shanks. It was here that he boarded the RMS *Queen Elizabeth* for transport to the Port of Southampton, England. Upon arrival, he immediately boarded an Army Landing Ship, Tank to cross the English Channel to the LeHarve Replacement Depot, France. He left LeHarve on one of the famous ''40's and 8's,'' the same French boxcars that a generation of American Soldiers had ridden in while in France during World War I. Upon arrival in Metz, France, he was assigned as a replacement to General George Patton's Third Army, and served in the 94th Infantry, 376th Infantry Regiment. During the war, Bob saw combat action in Germany and served in the occupation of Czechoslovakia and Germany. In recognition of his service to our nation Bob was awarded the Combat Infantry Badge and the Bronze Star.

Bob returned home to Antioch and married Alice ''Corky'' Christ. They were married for more than 30 years before Corky passed away in 1984. Bob and Corky adopted two daughters, Cathy Kolb and Linda Ward, who blessed them with four grandchildren: John C. Kolb, Alicia A. Kolb, Brandon J. Merenda, and Breanna M. Meierdiercks; and three great grandchildren: John C. Kolb, Jr., Autumn Kolb, and Brandon M. Merenda. A fourth great grandson from Breanna and Brian Meierdiercks is expected in October.

During his 90 years, Bob always worked to help others and to build his community. He watched Antioch grow from a small town of a few thousand residents to a city of more than 100,000. He has served his community well as a former volunteer firefighter, and for many years at the Antioch Historical Society where he enjoys telling stories about the ''old days'' in Antioch.

Mr. Speaker and distinguished colleagues, I ask you to join me in honoring Bob Provine for his service to his community and our great nation, and in wishing him a happy birthday and best wishes for continued health and happiness.

RECOGNIZING STUDENTS ENTERING OUR ARMED FORCES

HON. RICHARD L. HANNA

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. HANNA. Mr. Speaker, I proudly rise today to honor high school graduates from the Broome-Tioga Board of Cooperative Educational Services area who are entering the United States Armed Forces. These young men and women have made an admirable decision to defend our country. I join the Conklin Kiwanis Club in honoring them.

The Conklin Kiwanis Club will hold a special celebration to honor these graduating high school seniors. ''The First to Say Thank You'' event will take place on Wednesday, June 17, 2015 at Susquehanna Valley High School in Conklin.

Mr. Speaker, I would ask you to join me in honoring the following students entering the Army National Guard: Jason Kilts, Lansing; Tyler Miles, Union-Endicott; Jordan Abbott, Windsor; Devin Seeley, Windsor; Matthew Vroman, Windsor.

Honoring the students entering the United States Air Force: Mario Nacinovich, Allynwood Academy; Jonah Sterling, Chenango Forks; Jack Wandersee, Chittenango; Devon Santamaria, Deposit; Samuel Rigney, Jamesville-Dewitt; Tristan Richard, Newark Valley; Matthew Bowers, Newfield.

Honoring the students entering the United States Army: Kaylee Scott, Binghamton; Owen Garlough, Candor; Sara Clark, Chenango Forks; Bronx Gibson, Chenango Forks; Logan McDonald, Chenango Valley; Connor Plue, Deposit; Evaughn Stevens, Deposit; Kevin Desha, Hamilton; Peter Mutz, Harpursville; Timothy Himko, Johnson City; Johnathan Carlsson, Maine-Endwell; Crystal Tripp, Maine-Endwell; Jasmine Rosenberger, Newark Valley; Trevor Zandt, O'Neill; Dylan Hunt, Vestal; Jacob Love, Vestal; Sean Patterson, Vestal.

Honoring the students entering the United States Marines: Colin C. Button, Binghamton; Heather R. Roberts, Binghamton; Tyler Denny, Chenango Forks; Zachariah T. Jeavons, Chenango Forks; Noah E. Birdsall, Cortland; Thomas L. Foster, Cortland; Samuel L. Park, Dryden; Kristopher K. Card, Newark Valley; Damion M. Wilcox, Newark Valley; Elizabeth M. Wiggins, Susquehanna Valley; Michael C. Torres, Union-Endicott; Sheldan M. Clute, Whitney Point; Joseph M. Damico, Whitney Point; Maria E. Dewey, Whitney Point; Zachary T. Shearer, Whitney Point; Elijah R. Decker, Windsor; Tyler J. Frear, Windsor; Tyreik J. Pryor; Windsor.

Honoring the students entering the United States Navy: Nikolmi Tubbs, Cortland; Matthew Pettigrew, Lansing; Dane Saunders, Maine-Endwell; Jonathan Bullock, Windsor.

PERSONAL EXPLANATION

HON. MIMI WALTERS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mrs. MIMI WALTERS of California. Mr. Speaker, on roll call no. 364 I was unavoidably detained.

Had I been present, I would have voted ''aye''.

RECOGNIZING THE LEADERSHIP OF DR. WILLIAM S. BARNES

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. GRAYSON. Mr. Speaker, I rise today to recognize Dr. William S. Barnes, better known as Pastor Bill, for a lifetime of service and leadership. A graduate of Emory University with degrees in both business administration and theology, Pastor Bill has been an ordained minister in the Florida Conference of The United Methodist Church since 1974. Bill also received a Doctor of Divinity from Florida Southern College in 1995.

Bill was appointed Lead Pastor of St. Luke's United Methodist Church in Orlando in June of 1992. He held that position until July of 2014 when he was appointed Co-Lead Pastor as part of St. Luke's strategic leadership transition plan. Since 1992 St. Luke's has grown to be one of the largest and most influential congregations in the United Methodist denomination under Pastor Bill's leadership.

Throughout his career, Bill has served in rural, urban, and suburban churches, as well as Chaplain of Florida Southern College in Lakeland, Florida. Bill doesn't just preach, he leads by example. During his tenure in Orlando Bill has helped many communities by initiating dialogues on issues of race and bringing hope to economically disadvantaged areas through vocational training, housing assistance, and organizing food and shelter for the homeless. Bill was also one of the first ministers in Orlando to support non-discrimination ordinances offering protections to the LGBT community.

Bill is well known in Orlando for founding Shepherd's Hope a faith-based volunteer health care organization for the uninsured. It has expanded to five locations throughout Central Florida.

Pastor Bill was the recipient of the 2002 Social Entrepreneurship Award for his work with Shepherds Hope, the Jefferson Award for American Public Service, the Manhattan Institute's Award for Social Entrepreneurship, and the Society of John Wesley's United Methodist Men Fellow. Bill Served on Bethune Cookman University's Board of Trustees from 2002 to 2011.

Bill is married to Kim, who teaches three-year-olds at St. Luke's Child Development Center and also designs her own line of custom jewelry. They have two children, Kristin

and Meredith, a terrific son-in-law, Sean, and two grandsons, Brady and Mason.

I am honored to recognize Pastor Bill Barnes for his leadership and service to his community.

URGING IRAN TO RELEASE ALL DETAINED UNITED STATES CITIZENS AND PROVIDE ANY INFORMATION REGARDING UNITED STATES CITIZENS THAT HAVE DISAPPEARED WITHIN ITS BORDERS

SPEECH OF

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Monday, June 15, 2015

Mr. VAN HOLLEN. Mr. Speaker, as a cosponsor of H. Res. 233, I rise to encourage my colleagues to join me in supporting this resolution urging Iran to release all American citizens currently being illegally held in that country. This resolution also urges the immediate release of information about any other American citizens who have disappeared within Iran's borders. Iranian President Hassan Rouhani has stated publically that his government wishes to engage in a constructive interaction with the world. This resolution challenges President Rouhani to back up his words with action. If the Iranian people want to earn the trust of the American people, they must honor their commitments and keep their word. Americans Amir Hekmati, Saeed Abedini, Jason Rezaian and Robert Levinson have been unjustly held against their will in Iran for years. This resolution urges Iran to do the right thing and release them so that they can come home and rejoin their families.

HONORING SONS AND DAUGHTERS IN TOUCH

HON. JANICE HAHN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. HAHN. Mr. Speaker, I rise today to honor Sons and Daughters in Touch (SDIT) on its 25th anniversary. The sons and daughters of servicemen and women who have died or gone missing in action while serving in the United States military are known as Gold Star children. Nearly 40 years after the end of the Vietnam War, many of their fathers and mothers are still unaccounted.

SDIT was founded by Tony Cordero, whose father died during the Vietnam War. Tony wanted to find others like him who had lost a parent in battle, and since its founding, SDIT has been dedicated to locating, uniting, and providing support to Gold Star children as well as other family members whose relatives have died or remain missing as a result of the Vietnam War. Prior to the founding of Sons and Daughters in Touch, in 1990, there was no organization to support those who lost their parents during the war. This organization currently represents an estimated 20,000 sons and daughters in the United States.

SDIT will be celebrating its 25th anniversary on Father's Day, Sunday June 21, at the Vietnam Veterans Memorial in Washington, DC. The United States of America Vietnam War Commemoration will recognize Gold Star sons and daughters and their families who lost their loved ones during the war for their service and sacrifice. Representatives from all Gold Star families, including those from Korea, WWII and recent conflicts, will participate in the event.

As a nation, we must pay tribute to the generations of children whose parents suffered the ultimate sacrifice defending our nation. I ask my colleagues to stand here with me in upholding our shared responsibility to comfort and care for the loved ones and communities these servicemen and women left behind. I ask that my colleagues join me in honoring our nation's sons and daughters and the many contributions their parents have made for our country by supporting this resolution.

TRIBUTE TO CHERYL JOHNSON

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to congratulate and recognize Cheryl Johnson of Bedford, Iowa, on her retirement from the Bedford School. Ms. Johnson has been a dedicated public servant helping to educate the future of Iowa—its students.

Ms. Johnson has worked at the Bedford School for 15 years, spending three of those years in the elementary school and 12 with the Secondary School. During her tenure at Bedford she has worked diligently to support her community. She performed many different roles and enjoyed being able to watch her four older grandchildren graduate from Bedford.

Mr. Speaker, it is an honor to represent dedicated public servants like Cheryl Johnson from the great state of Iowa in the United States Congress. I invite my colleagues in the House to join me in congratulating her on reaching this important milestone, and wishing her continued success for years to come.

PERSONAL EXPLANATION

HON. MIKE BOST

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BOST. Mr. Speaker, on roll call no. 364 and 365. I was unavoidably detained. Had I been present, I would have voted yea on roll call 364 and yea on roll call 365.

PERSONAL EXPLANATION

HON. ROBERT J. DOLD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. DOLD. Mr. Speaker, on roll call nos. 364 and 365 I was unavoidably detained due to weather and flight delays. Had I been present, I would have voted aye and aye.

HONORING THE SERVICE OF MR. COLEMAN HATTON

HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BARR. Mr. Speaker, I rise today to recognize an outstanding individual, Mr. Coleman Hatton, of Clark County, Kentucky, for his distinguished military service during World War II. Mr. Hatton, a part of the greatest generation, served our nation in the United States Army.

Mr. Hatton left the comforts of home and family on December 26th, 1942 when he was twenty years old. He served as a Tech-4 in Company D, 23rd Battalion for twenty nine months. His service was in Central Europe, primarily in France, England, and Germany.

Mr. Hatton served as a light tank crewman and was a driver. The light tank crew's job was to find the enemy and then draw fire for the big tanks. Mr. Hatton drove the lead tank directly behind the unit commander. He and his fellow crewmen took turns sleeping in the tanks while on guard duty. They went without hot meals for days at a time, ate C-rations, and sometimes visited nearby farms for eggs when they felt safe from enemy fire. Like many of his fellow soldiers, Hatton witnessed the horrors of war. He saw tanks get hit resulting in fires that killed all inside. He recovered bodies of dead American soldiers and some of these bodies had been desecrated by wild animals. He saw a Colonel's head get blown off. Hatton served our country admirably and bravely.

Mr. Hatton survived his service and returned home February 14, 1946. He and his late wife were married for sixty six years. He has six children, fourteen grandchildren, twenty great grandchildren, and three great great grandchildren.

The bravery of Mr. Hatton and his fellow men and women of the United States Army is heroic. Because of the courage of individuals from Clark County and from all across our great nation, our freedoms have been saved for our generation and for future generations. He is truly an outstanding American, a patriot, and a hero to us all.

IN RECOGNITION OF THE STATE CHAMPIONS IN BOYS' SOCCER FROM IOWA'S FIRST DISTRICT

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BLUM. Mr. Speaker, I rise today to congratulate the Iowa state championship boys' soccer teams from my district. The champions from each of Iowa's three soccer classes claimed their titles over the weekend on ''Championship Saturday'' at James W. Cownie Soccer Park in Des Moines, Iowa, and all of these schools are located in my district.

The Dyersville Beckman Blazers capped an undefeated 18–0 season with a 1–0 victory over Gilbert High School in the class 1A final. Senior Billy Hoffman scored the game winning goal in double overtime to secure the school's first boys' soccer state title in Beckman's history.

The Cedar Rapids Xavier Saints bested Central DeWitt 1–0 in double overtime to capture the school's seventh class 2A title and fourth boys' soccer title in five seasons. Luke Dunball netted the game winner to cap a 17–2 season for the Saints.

Lastly, the Marion Linn-Mar Lions shut out Ankeny Centennial High School 2–0. An ''own goal'' off a free kick by junior Alexy Boehm and goal by sophomore Leroy Enzugusi proved enough to secure the school's first state championship in boys' soccer. The Lions finished the season 20–3.

I congratulate all the players and coaches including head coaches Mirek Laskowski of Beckman High School, Amir Hadzic of Xavier High School, and Corey Brinkmeyer of Linn-Mar High School. I look forward to seeing continued success both on and off the field from these student athletes next season.

PERSONAL EXPLANATION

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. THOMPSON of California. Mr. Speaker, on June 11 and 12, 2015, I was absent from Congress to attend a family event in California and was unable to cast my votes on Roll Call votes #345 through 363. Had I been present:

Roll Call #345—Concurring in the Senate Amendments with an Amendment to H.R. 1295—Trade Preferences Extension Act, I would have voted AYE.

Roll Call #346 Schiff Amendment—Prohibits the use of funds after March 31, 2016 for Operation Inherent Resolve in the absence of a law enacted by Congress that specifically authorizes the use of military force against the Islamic State of Iraq and the Levant I would have voted AYE.

Roll Call #347 Lee Amendment #1—Prohibits the use of funds pursuant to the 2001 Authorization for Use of Military Force (AUMF) after December 31, 2015 I would have voted AYE.

Roll Call #348 Lee Amendment #2—Prohibits the use of funds pursuant to the 2002 Authorization for Use of Military Force (AUMF) against Iraq I would have voted AYE.

Roll Call #349 Sablan Amendment—Prohibits the use of funds to establish any live-fire range, training course, or maneuver area within the Commonwealth of the Northern Mariana Islands, in contravention of certain law and United States Code I would have voted AYE.

Roll Call #350 Gosar Amendment #1—Prohibits the use of funds to be expended by the Department of the Navy to divest or transfer, or prepare to divest or transfer, any search or rescue units from the Marine Corps I would have voted NO.

Roll Call #351 Johnson (GA) Amendment #1—Prohibits the use of funds to transfer a flash-bang grenade to federal and state law enforcement agencies under section 2576a of title 10, United States Code I would have voted NO.

Roll Call #352 Gosar Amendment #2—Prohibits the use of funds to procure any Army Aircrew Combat Uniforms I would have voted NO.

Roll Call #353 Johnson (GA) Amendment #2—Prohibits the use of funds to transfer a mine-resistant ambush protected vehicle to federal and state law enforcement agencies under section 2576a of title 10, United States Code I would have voted NO.

Roll Call #354 Ellison Amendment—Prohibits the use of funds for contractors who have violated certain wage requirements of the Fair Labor Standards Act I would have voted AYE.

Roll Call #355 Smith (MO) Amendment—Prohibits the use of funds to provide legal defense counsel for any foreign detainee held at the U.S. Naval Station, Guantanamo Bay, Cuba I would have voted NO.

Roll Call #356 Massie Amendment—Prohibits the use of funds to query certain communications collected under Sec. 702 of the Foreign Intelligence Surveillance Act of 1978. It also prohibits funds from being used by the National Security Agency (NSA) and the Central Intelligence Agency (CIA) to mandate or request that a person alter its product or service to permit electronic surveillance of any user of that product of service I would have voted AYE.

Roll Call #357 Democratic Motion to Recommit H.R. 2685 I would have voted AYE.

Roll Call #358 Final Passage of H.R. 2685—Department of Defense Appropriations Act I would have voted NO.

Roll Call #359 Adoption of the Rule I would have voted NO.

Roll Call #360 On Approving the Journal I would have voted NO.

Roll Call #361 Concurring in portion of Senate Amdt comprising title II (except section 212) I would have voted NO.

Roll Call #362 Concurring in portion of senate amendment preceding title II I would have voted NO.

Roll Call #363 Concurring in Senate amendments with amendment I would have voted NO.

HONORING MS. ALICE ADRIENNE SPEARMAN

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. LEE. Mr. Speaker, I rise today to honor the extraordinary life of Ms. Alice Adrienne Spearman, former School Board Member for the Oakland Unified School District, OUSD. Known throughout the Bay Area as a passionate advocate for children, Ms. Spearman has left an undeniable mark in our community. With her passing on May 26, 2015, we look to honor her extraordinary life work and the lives she touched throughout her career.

Ms. Spearman, a proud Oakland native, was born on November 7, 1951. She graduated from Castlemont High School in 1969 and later attended California State University, CSU, East Bay and CSU San Jose where she earned an Associate's Degree. While attending CSU San Jose, Ms. Spearman followed in her mother's footsteps and became a proud member of Delta Sigma Theta, Sorority Incorporated.

Upon receiving her Associates Degree, Ms. Spearman decided to pursue a career in health services and obtained her Registered Nursing, RN, License. She worked as an RN with the Department of Veterans Affairs for a decade before retiring in 1980.

Ms. Spearman's love for education grew from her mother, who worked as a teacher and school principal. When Spearman's daughters attended her alma mater, Castlemont, she founded a parental patrol group to offer student behavioral assistance. She also hosted a television talk show on Soul Beat Television Network where she frequently discussed issues affecting students attending Oakland public schools.

In 2004, Ms. Spearman was elected to serve the East Oakland community as a School Board Member for the Oakland Unified School District, where she served tirelessly until 2012 and in a variety of positions; including Board President and Vice President. It was here that she continued her work advocating for quality education while always championing the need for resources for Oakland students. Ms. Spearman also worked to ensure Oakland residents were given priority for construction jobs within the Oakland Unified School District.

Ms. Spearman was the mother of two daughters: Kiisha Jackson and Leilani Spearman; and, a proud grandmother of four: Tanisha Barker, Jocelyn Barker, Kii'era Smith, and Jahkari Clyde Lee Smith.

I will always remember Alice's determination, her optimism, and love for children. Her larger than life spirit will live forever and will continue to give us hope for the future. I will be forever grateful for her wise counsel and friendship.

Today, California's 13th Congressional District salutes the legacy of Ms. Alice Adrienne Spearman. Ms. Spearman's contributions have truly impacted countless lives throughout the Bay Area. I join all of Ms. Spearman's loved ones in celebrating her incredible life and offer my most sincere condolences.

NATIONAL MEN'S HEALTH MONTH

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. JACKSON LEE. Mr. Speaker, I rise today to commemorate National Men's Health Month a time to focus attention and heighten awareness of preventable health problems affecting men and boys and encourage early detection and treatment.

Men's Health Month is celebrated across the country with screenings, health fairs, media appearances, and other health education and outreach activities.

The National Men's Health Network has encouraged the development of thousands of health awareness activities as corporations, hospital systems, clinics, faith-based communities, the public sector, and others use the month of June to highlight their services and reach out to men and their families.

In my district of Houston, Texas, this information has led to the increase in men being conscious about their risk factors for prostate cancer and other diseases.

The University of Houston has an entire clinic specializing in men's health for the Houston community to collect information and receive treatment; this clinic provides educational and specialized services that encourage men of all ages and ethnicities to implement positive lifestyle changes.

I encourage all men, young and older, and their families, to develop positive and proactive attitudes toward health and wellness, engage in preventive behaviors, lead healthy lifestyles, and seek timely medical advice and care.

Prostate cancer is the most common cancer in men, afflicting 1 out of every 11 American men and killing 34,000 men every year.

In the past 6 years, the death rate for prostate cancer has grown at almost twice the death rate of breast cancer.

The American Cancer Society estimates for 2015 the number of new cases for prostate cancer to be 220,800, and the number of deaths to be 27,540 from prostate cancer.

For African-American men, the rate of affliction is even worse; African-American men have the highest incidence of prostate cancer in the world.

These are not just statistics, each of these numbers represent a father, brother, son, uncle, or cousin who has been affected and passed away from this treatable disease.

Mr. Speaker, much progress has been made in the past 21 years with improvements in the health and well-being of men and boys, with a dramatic improvement in life expectancy and surprising drops in key mortality indicators.

There has been a steep drop among males in overall mortality, and corresponding improvements in the mortality rates for cancer and cardiovascular diseases.

Our goal this month should be to raise awareness about men's health in our communities and to rededicate ourselves to providing support for our men by further educating ourselves and our communities on men's health and effects.

Recognizing and preventing men's health problems is not just an issue of concern to me because it impacts wives, mothers, daughters, and sisters.

Mr. Speaker, as a Congresswoman, wife, mother and now grandmother, I can personally attest to the importance of heightening the awareness of preventable health problems as well as encouraging the early detection of disease that affect our young men's lives.

Men's health is truly a family issue.

SUPPORTING THE ECONOMIC DEVELOPMENT OF SUB-SAHARAN AFRICA

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. SMITH of Washington. Mr. Speaker, last week, the House considered legislation that reauthorizes the United States' efforts to engage and assist the economies of sub-Saharan Africa. I stand in support of these objectives, as well as the efforts and programs that encourage development and improve economic relations between our nation and that region.

Because trade preferences programs between the U.S. and other economies can promote economic development and foster investment, I am pleased that many African countries already join in these initiatives. It is important that long-term certainty is provided for the businesses and workers that have taken advantage of U.S. trade programs and development efforts. In addition, the United States should also be prepared to engage with and support the sustainable growth of those economics that are currently ineligible for and not participating in current preferences programs.

Although the Democratic Republic of Congo, DRC, is among those sub-Saharan African nations that are not at the moment eligible for trade preferences, I understand that after a long-fought civil war, the Congolese are working hard to revive their economy. While the challenges facing the DRC are considerable, there are many ways that the U.S. can work with the government of the Democratic Republic of the Congo to reduce poverty, increase stability, strengthen the rule of law, improve workers' rights, and support the establishment of a market-based economy that will allow the Congolese people to grow their economy. These important steps can help nations promote exports and investments that foster economic development elopment in partnership with the United States.

I look forward to working with my colleagues in the House to maintain engagement and support for the growth of the economies of sub-Saharan Africa. It is my hope that African countries continue their involvement, and that those currently outside of the program take steps to initiate participation, such as meeting eligibility standards. I am pleased that the U.S. will continue to partner with the people and countries of sub-Saharan Africa to grow economies, reduce poverty, and share prosperity.

PERSONAL EXPLANATION

HON. RODNEY DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, on Monday, June 15, 2015, I was absent from the House due to a flight cancellation and a delay to my secondary flight plans. Due to my absence, I did not record any votes for the day. I would like to reflect how I would have voted had I been present for legislative business.

Had I been present, I would have voted "aye" on Roll Call 364 and Roll Call 365.

IN HONOR OF THE FAIRFAX CHAMBER OF COMMERCE ON THEIR 90TH ANNIVERSARY

HON. BARBARA COMSTOCK

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mrs. COMSTOCK. Mr. Speaker, I rise to congratulate the Fairfax Chamber of Commerce on 90 years of successfully promoting business throughout the entire Northern Virginia region. By clearly and effectively voicing the priorities and concerns of the business community to our local, state, and national leaders, the Chamber has helped make Fairfax a great place to have a business and thrive. Led by President and CEO Jim Corcoran and his dedicated staff, as well as a very engaging board of directors, the Fairfax Chamber of Commerce is the gold standard for what a local Chamber of Commerce should be, encouraging business leaders and advocates to come together to promote and share ideas that will inevitably help foster a healthy economy. TIME magazine has called Fairfax County "one of the great economic success stories of our time." A George Mason University Center for Regional Analysis study estimated the gross county product, or market value of the goods and services produced in Fairfax County—at nearly $91 billion. The Fairfax Chamber of Commerce has served the community with great distinction and achievement over the last 90 years. I am honored to represent the Fairfax Chamber of Commerce in Congress, and hope that their next 90 years may be even more successful and prosperous.

RECOGNIZING THE 75TH BIRTHDAY OF DR. JEAN G. CHAMPOMMIER

HON. LUCILLE ROYBAL-ALLARD

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise today to congratulate Dr. Jean G. Champommier on the celebration of his 75th birthday, and on his distinguished career of making our communities healthier and our children safer. As a Public Health Commissioner for Los Angeles County, as a community leader and a businessman, as an educator, as a social worker, and as a family therapist, Dr. Champommier has been a prominent part of the continuing fight to make Southern California a better place to live and raise a family.

Since 1983, Dr. Champommier has been the President and CEO of Alma Family Services in East Los Angeles. He oversees a diverse and multidisciplinary staff of 170 people, spread out across 13 locations, 22 schools, and seven health facilities. Alma offers multilingual and multigenerational community-based services for families. These services include behavioral health support, substance abuse services, help for individuals with intellectual and developmental special needs, preschool services, and clinical support for at-risk youth.

Dr. Champommier's work at Alma is in keeping with his life's work. For more than fifty years, he has worked to advance behavioral health and child welfare through community-based efforts. In the 1960s, with the help of funds from the Office of Equal Opportunity, he played a key role in developing family counseling services in low-income parts of Ventura County. These services were an early local version of efforts to prevent child abuse and neglect. In the 1970s, he served as Chief of Social Services for a behavioral health clinic in Lincoln Heights, which set up new behavioral health services at local schools.

Dr. Champommier has also been a leader on our campuses and in our classrooms. He has taught about child welfare and community organization at UC Santa Barbara, Cal State Northridge, and Cal State L.A. He has served as a social work field instructor at USC and UCLA. And he has coordinated conferences on farm labor issues and Latino youth empowerment at UC Santa Barbara Extension.

It is little wonder that Dr. Champommier's work has earned him federal, state, and county commendations. I am pleased to add my voice to this chorus of congratulations. I thank Dr. Champommier for his many years of exemplary dedication to the families and children of my 40th Congressional District and beyond. I hope he will celebrate a very happy 75th birthday this Saturday, June 20th, with his beautiful wife—and my good friend—Dr. Marie S. Torres, and their extended family and friends.

CONGRATULATING CRAIG HOWARD ON HIS RETIREMENT FROM THE DEPARTMENT OF VETERANS AFFAIRS

HON. TOM REED

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. REED. Mr. Speaker, I rise today to congratulate Craig Howard on the completion of a successful career with the Department of Veterans Affairs.

Mr. Howard has dedicated his career to serving our veterans. During his 37 years with the Department of Veterans Affairs, he has worked tirelessly to ensure that veterans receive the medical care they need and deserve.

Mr. Howard has served as Director for the Canandaigua VA Medical Center since 2005. His leadership was instrumental in establishing the Center of Excellence for Suicide Prevention and PTSD, the Veterans Crisis Line, the National Homeless Call Center, and the National Caregiver Support Line. These resources and services have had a profoundly positive impact on the lives of our local veterans.

During his tenure as Director, the Canandaigua VA Medical Center has ranked highly in both patient and employee satisfaction. Mr. Howard leaves behind a strong legacy of service and leadership: his work has left a lasting imprint on our community.

I thank Mr. Howard for his years of dedicated service to our veterans and wish him the very best in his retirement.

AMERICA GIVES MORE ACT OF 2015

SPEECH OF

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Friday, June 12, 2015

Mr. VAN HOLLEN. Mr. Speaker, I rise in opposition to the Customs bill—a bill that was included as part of a trade package that includes Trade Adjustment Assistance and Trade Promotion Authority, also known as Fast Track. This vote represents a flawed and hurried process to expedite the proposed Trans-Pacific Partnership Agreement. Moreover, the Customs Bill fails to strengthen trade policy and enforcement and instead is being used as a way to weaken TPA and its negotiating objectives.

While the Customs bill is designed to modernize customs operations and promote enforcement at the border through trade laws, it takes a number of steps back in these areas. For example, this bill cuts funding for the Interagency Trade Enforcement Center and the Trade Enforcement Trust Fund. It also removes a currency manipulation provision that passed out of the Senate with bipartisan support that would have imposed countervailing duties against countries that manipulate their currencies. I am also troubled by a provision that weakens a human trafficking negotiating objective that would have prevented the U.S. from entering into trade agreements with countries in the State Department Human Trafficking Report such as Malaysia, by allowing the President to simply certify that countries are taking ''concrete steps'' to address human trafficking.

In addition, I am deeply opposed to a new negotiating objective that was added in the 11th hour, which ensures that trade agreements do not create new obligations related to combating climate change or that would require changes in U.S. domestic laws. Trade agreements must not restrict our ability to tackle climate change in the 21st century.

This bill also adds restrictive language related to immigration to ensure that trade agreements do not require changes to U.S. immigration laws or the issuance of new visas.

Mr. Speaker, we have to strengthen TPA and its negotiating objectives—not weaken it. We must improve TPA before moving forward on any future trade agreement that will have wide-ranging consequences for America's working class. I strongly urge a ''no'' vote.

PERSONAL EXPLANATION

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. BLUM. Mr. Speaker, on roll call no. 364 severe weather unavoidably detained my flight in Chicago, Illinois and I was unable to make the vote series. Had I been present, I would have voted ''yes.''

TRIBUTE TO HEIDI VANDERHOLM

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize the achievements of Heidi Vanderholm of Stanton, Iowa for receiving a $2,500 grant from Iowa Communications Alliance to attend Central College.

The Iowa Communications Alliance offers this grant scholarship to high school seniors as well as students already enrolled in technical schools, colleges, and universities who receive service from a telecommunications provider that is a member of the Iowa Communications Alliance. This honor was awarded to Heidi in order to help her achieve her dreams of earning a college education.

Mr. Speaker, it is an honor to represent future leaders like Heidi Vanderholm from the great state of Iowa in the United States Congress. I know my colleagues in the United States Congress will join me in congratulating her for receiving this prestigious award. I wish her the best of luck in her studies and future career.

PERSONAL EXPLANATION

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Mr. ROSKAM. Mr. Speaker, on roll call no. 364, flight was delayed due to weather. Had I been present, I would have voted ''Aye.''

PERSONAL EXPLANATION

HON. YVETTE D. CLARKE

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, June 16, 2015

Ms. CLARKE of New York. Mr. Speaker, on June 15, 2015, I was unavoidably detained in my district due to weather and missed recorded votes #364–365. Had I been present, on Roll Call #364, H. Res. 233—Expressing the sense of the House of Representatives that Iran should immediately release the three United States citizens that it holds, as well as provide all known information on any United States citizens that have disappeared within its borders, I would have voted YEA; and on Roll Call #365, H.R. 2559—To designate the ''PFC Milton A. Lee Medal of Honor Memorial Highway'' in the State of Texas, I would have voted YEA.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S4171–S4211.

Measures Introduced: Twelve bills were introduced, as follows: S. 1578–1589. **Page S4202**

Measures Reported:

H.R. 2578, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2016, with an amendment in the nature of a substitute. (S. Rept. No. 114–66) **Page S4202**

Measures Considered:

Department of Defense Appropriations Act—Cloture: Senate began consideration of the motion to proceed to consideration of H.R. 2685, making appropriations for the Department of Defense for the fiscal year ending September 30, 2016.

Pages S4171–73

A motion was entered to close further debate on the motion to proceed to consideration of the bill, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, June 18, 2015.

Page S4171

National Defense Authorization Act—Agreement: Senate resumed consideration of H.R. 1735, to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, taking action on the following amendments proposed thereto:

Pages S4173–94

Adopted:

By 78 yeas to 21 nays (Vote No. 209), Feinstein (for McCain) Amendment No. 1889 (to Amendment No. 1463), to reaffirm the prohibition on torture.

Pages S4178–82

Rejected:

By 54 yeas to 45 nays (Vote No. 210), McCain (for Ernst/Boxer) Amendment No. 1549 (to Amendment No. 1463), to provide for a temporary, emergency authorization of defense articles, defense services, and related training directly to the Kurdistan Regional Government. (Pursuant to the order of Thursday, June 11, 2015, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S4185–86**

By 50 yeas to 49 nays (Vote No. 211) Reed (for Gillibrand) Amendment No. 1578 (to Amendment No. 1463), to reform procedures for determinations to proceed to trial by court-martial for certain offenses under the Uniform Code of Military Justice. (Pursuant to the order of Thursday, June 11, 2015, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S4186–87**

By 26 yeas to 73 nays (Vote No. 213), Vitter/Moran Further Modified Amendment No. 1473 (to Amendment No. 1463), to limit the retirement of Army combat units, and to provide an offset.

Pages S4192–94

Withdrawn:

Lee Amendment No. 1687 (to Amendment No. 1473), to provide for the protection and recovery of the greater sage-grouse, the conservation of lesser prairie-chickens, and the removal of endangered species status for the American burying beetle.

Page S4189

Pending:

McCain Amendment No. 1463, in the nature of a substitute. **Page S4173**

McCain Amendment No. 1456 (to Amendment No. 1463), to require additional information supporting long-range plans for construction of naval vessels. **Pages S4173, S4188**

Cornyn Amendment No. 1486 (to Amendment No. 1463), to require reporting on energy security issues involving Europe and the Russian Federation, and to express the sense of Congress regarding ways the United States could help vulnerable allies and partners with energy security. **Page S4173**

Markey Amendment No. 1645 (to Amendment No. 1463), to express the sense of Congress that exports of crude oil to United States allies and partners should not be determined to be consistent with the national interest if those exports would increase energy prices in the United States for American consumers or businesses or increase the reliance of the United States on imported oil. **Page S4173**

Reed (for Blumenthal) Modified Amendment No. 1564 (to Amendment No. 1463), to enhance protections accorded to servicemembers and their spouses. **Page S4173**

McCain (for Paul) Modified Amendment No. 1543 (to Amendment No. 1463), to strengthen employee cost savings suggestions programs within the Federal Government. **Page S4173**

Reed (for Durbin) Modified Amendment No. 1559 (to Amendment No. 1463), to prohibit the award of Department of Defense contracts to inverted domestic corporations. **Page S4173**

Fischer/Booker Amendment No. 1825 (to Amendment No. 1463), to authorize appropriations for national security aspects of the Merchant Marine for fiscal years 2016 and 2017. **Page S4173**

McCain (for Hatch) Amendment No. 1911 (to Amendment No. 1456), to require a report on the Department of Defense definition of and policy regarding software sustainment. **Page S4188**

During consideration of this measure today, Senate also took the following action:

By 83 yeas to 15 nays (Vote No. 212), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on McCain Amendment No. 1463 (listed above). **Pages S4187–88**

A unanimous-consent agreement was reached providing that all time during morning business and the adjournment of the Senate count post-cloture on McCain Amendment No. 1463 (listed above). **Page S4209**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to the Atomic Energy Act of 1954, the proposed Agreement for Cooperation Between the Government of the United States of America and the Government of the Republic of Korea Concerning Peaceful Uses of Nuclear Energy; which was referred to the Committee on Foreign Relations. (PM–20) **Pages S4198–99**

Nominations Received: Senate received the following nominations:

Linda Thomas-Greenfield, an Assistant Secretary of State (African Affairs), to be a Member of the Board of Directors of the African Development Foundation for the remainder of the term expiring September 27, 2015.

Linda Thomas-Greenfield, an Assistant Secretary of State (African Affairs), to be a Member of the Board of Directors of the African Development Foundation for a term expiring September 27, 2021.

John Morton, of Massachusetts, to be Executive Vice President of the Overseas Private Investment Corporation.

A routine list in the Air Force. **Page S4211**

Messages from the House: **Page S4199**

Measures Referred: **Page S4199**

Executive Communications: **Pages S4199–S4200**

Petitions and Memorials: **Pages S4200–02**

Additional Cosponsors: **Pages S4202–04**

Statements on Introduced Bills/Resolutions: **Pages S4204–06**

Additional Statements: **Pages S4197–98**

Amendments Submitted: **Pages S4206–09**

Authorities for Committees to Meet: **Page S4209**

Privileges of the Floor: **Page S4209**

Record Votes: Five record votes were taken today. (Total—213) **Pages S4182, S4186, S4187, S4194**

Adjournment: Senate convened at 10 a.m. and adjourned at 6:15 p.m., until 9:30 a.m. on Wednesday, June 17, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S4209.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Appropriations: Subcommittee on Department of Homeland Security approved for full committee consideration an original bill entitled, ''Fiscal Year 2016 Homeland Security Appropriations''.

BUSINESS MEETING

Committee on Appropriations: Subcommittee on Department of the Interior, Environment, and Related Agencies approved for full committee consideration an original bill entitled, ''Fiscal Year 2016 Interior, Environment, and Related Agencies Appropriations''.

NOMINATIONS

Committee on Energy and Natural Resources: Committee concluded a hearing to examine the nominations of Jonathan Elkind, of Maryland, to be an Assistant Secretary of Energy (International Affairs), and Monica C. Regalbuto, of Illinois, to be an Assistant Secretary of Energy (Environmental Management), after the nominees testified and answered questions in their own behalf.

TRADE PROMOTION AND CAPACITY-BUILDING IN THE ASIA-PACIFIC REGION

Committee on Foreign Relations: Subcommittee on East Asia, the Pacific, and International Cybersecurity Policy concluded a hearing to examine strategic implications of trade promotion and capacity-building in the Asia-Pacific region, after receiving testimony from Kurt Tong, Principal Deputy Assistant Secretary, Bureau of Economic and Business Affairs, and Tom Malinowski, Assistant Secretary, Bureau of Democracy, Human Rights and Labor, both of the Department of State; and Jason Foley, Deputy Assistant Administrator, Bureau for Asia, Agency for International Development.

FEDERAL REAL PROPERTY REFORM

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine Federal real property reform, focusing on how cutting red tape and better management could achieve billions in savings, after receiving testimony from David Mader, Controller, Office of Management and Budget; Norman Dong, Commissioner, Public Buildings Service, General Services Administration; and David Wise, Director, Physical Infrastructure Issues, Government Accountability Office.

HEALTH INFORMATION TECHNOLOGY

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine health information technology, focusing on what providers and the Department of Health and Human Services can do to improve electronic health record user experience, after receiving testimony from Vindell Washington, Franciscan Missionaries of Our Lady Health System, Baton Rouge, Louisiana; Timothy A. Pletcher, Michigan Health Information Network Shared Services, East Lansing; and Meryl Moss, Coastal Medical, Inc., Providence, Rhode Island.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 10 public bills, H.R. 2788–2797; and 5 resolutions, H.J. Res. 57; and H. Res. 317–320, were introduced.

Page H4431

Additional Cosponsors: **Pages H4432–33**

Reports Filed: Reports were filed today as follows:

H.R. 2580, to provide for a technical change to the Medicare long-term care hospital moratorium exception, and for other purposes, with an amendment (H. Rept. 114–156);

H. Res. 319, providing for consideration of the bill (H.R. 160) to amend the Internal Revenue Code of 1986 to repeal the excise tax on medical devices, and providing for consideration of the bill (H.R. 1190) to repeal the provisions of the Patient Protection and Affordable Care Act providing for the Independent Payment Advisory Board (H. Rept. 114–157);

H.R. 2506, to amend title XVIII of the Social Security Act to delay the authority to terminate Medicare Advantage contracts for MA plans failing to achieve minimum quality ratings, with an amendment (H. Rept. 114–158, Part 1);

H.R. 2507, to amend title XVIII of the Social Security Act to establish an annual rulemaking schedule for payment rates under Medicare Advantage, with an amendment (H. Rept. 114–159, Part 1);

H.R. 2579, to amend title XVIII of the Social Security Act to improve the risk adjustment under the Medicare Advantage program, and for other purposes, with an amendment (H. Rept. 114–160, Part 1); and

H.R. 2581, to amend title XVIII of the Social Security Act to establish a 3-year demonstration program to test the use of value-based insurance design methodologies under eligible Medicare Advantage plans, to preserve Medicare beneficiary choice under Medicare Advantage, to revise the treatment under the Medicare program of infusion drugs furnished through durable medical equipment, and for other purposes, with an amendment (H. Rept. 114–161, Part 1). **Pages H4430–31**

Speaker: Read a letter from the Speaker wherein he appointed Representative Hultgren to act as Speaker pro tempore for today. **Page H4385**

Recess: The House recessed at 10:08 a.m. and reconvened at 12 noon. **Page H4386**

Journal: The House agreed to the Speaker's approval of the Journal by a voice vote. **Pages H4386, H4395**

Directing the President, pursuant to section 5(c) of the War Powers Resolution, to remove United States Armed Forces deployed to Iraq or Syria on or after August 7, 2014—Order of Business: Agreed by unanimous consent that it be in order at any time to consider in the House H. Con. Res. 55, directing the President, pursuant to section 5(c) of the War Powers Resolution, to remove United States Armed Forces deployed to Iraq or Syria on or after August 7, 2014, other than Armed Forces required to protect United States diplomatic facilities and personnel, from Iraq and Syria, if called up by the chair of the Committee on Foreign Affairs or his designee; that the concurrent resolution be considered as read; and that the previous question be considered as ordered on the concurrent resolution to adoption without intervening motion or demand for division of the question except for two hours of debate equally divided among and controlled by Representatives Royce, Engel, and McGovern or their respective designees. **Page H4389**

Intelligence Authorization Act for Fiscal Year 2016: The House passed H.R. 2596, to authorize appropriations for fiscal year 2016 for intelligence and intelligence-related activities of the United States Government, the Community Management Account, and the Central Intelligence Agency Retirement and Disability System, by a recorded vote of 247 ayes to 178 noes, Roll No. 369. **Pages H4396–H4421**

Rejected the Dingell motion to recommit the bill to the Permanent Select Committee on Intelligence with instructions to report the same back to the House forthwith with an amendment, by a recorded vote of 183 ayes to 240 noes, Roll No. 368. **Pages H4419–21**

Pursuant to the Rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–19 shall be considered as an original bill for the purpose of amendment under the five-minute rule, in lieu of the amendment in the nature of a substitute recommended by the Permanent Select Committee on Intelligence now printed in the bill. **Page H4404**

Agreed to:

Israel amendment (No. 1 printed in H. Rept. 114–155) that requires the Director of National Intelligence to provide a report to the congressional intelligence and defense committees on the trends related to tunnel use by our adversaries and an update on collaborative efforts with partner countries; **Pages H4404–05**

Israel amendment (No. 2 printed in H. Rept. 114–155) that requires the Director of National Intelligence to provide a report to the congressional intelligence and defense committees on the cyber threat trends identified by the Cyber Threat Intelligence Integration Center, an assessment of collaborative efforts between federal agencies, and recommendations to improve those collaborative efforts; **Pages H4405–06**

Crowley amendment (No. 3 printed in H. Rept. 114–155) that allows the Director of National Intelligence to provide grants to Hispanic-serving institutions of higher education for the purpose of offering advanced foreign language programs deemed in the immediate interest of the intelligence community and for study abroad and cultural immersion programs; **Pages H4406–07**

Keating amendment (No. 4 printed in H. Rept. 114–155) that requires a report on intelligence sharing with members of the EU and NATO regarding the travel of foreign fighters to and from Iraq and Syria and an analysis of the challenges impeding coordinated intelligence efforts; **Pages H4407–08**

Keating amendment (No. 5 printed in H. Rept. 114–155) that restores reporting requirement on the progress of the Federal Bureau of Investigation in implementing information-sharing principles; **Page H4408**

Rooney (FL) amendment (No. 7 printed in H. Rept. 114–155) that requires a report detailing the Intelligence Community's utilization of the National Science Foundation's CyberCorps Scholarship for Service program; **Pages H4409–10**

Moulton amendment (No. 8 printed in H. Rept. 114–155) that requires a report and briefing regarding the impacts on the intelligence community (IC) of the recently disclosed cyber breach at OPM; **Pages H4410–11**

Turner amendment (No. 9 printed in H. Rept. 114–155) that requires the Director of National Intelligence to submit a report to Congress on the funding of political parties and NGOs in former Soviet states by the Russian Federation and the security and intelligence services of the Russian Federation; **Pages H4411–12**

Farr amendment (No. 10 printed in H. Rept. 114–155) that requires the Office of the Director of National Intelligence to submit a report on continuous evaluation of security clearance; **Page H4412**

Sinema amendment (No. 11 printed in H. Rept. 114–155) that expresses the sense of Congress that the Intelligence Community should dedicate necessary resources to defeating the revenue mechanisms of the Islamic State; directs the Director of National Intelligence to submit a report on the strategy efforts; **Pages H4412–13**

Crowley amendment (No. 12 printed in H. Rept. 114–155) that requires a report from the Director of National Intelligence on possibilities for growing national security cooperation between the United States, Israel, and India; **Pages H4413–14**

Wilson (SC) amendment (No. 13 printed in H. Rept. 114–155) that directs the Director of National Intelligence to study how we measure cyber attacks and report to the relevant committees in both a classified and unclassified format; **Pages H4414–15**

Poe (TX) amendment (No. 14 printed in H. Rept. 114–155) that requires the Director of National Intelligence to report to Congress on the nexus between terrorist groups and wildlife trafficking, how wildlife trafficking impacts U.S. national security, and key actors and facilitators of wildlife trafficking; **Pages H4415–16**

Poe (TX) amendment (No. 15 printed in H. Rept. 114–155) that requires the Director of National Intelligence to submit a report that represents the coordinated assessment of the intelligence community on how terrorists and terrorist organizations are using social media; and **Pages H4416–17**

Poe (TX) amendment (No. 16 printed in H. Rept. 114–155) that requires the Director of National Intelligence to submit to Congress a strategy to defeat ISIL and al-Qaeda. **Pages H4417–18**

Rejected:

Schiff amendment (No. 6 printed in H. Rept. 114–155) that sought to strike four sections of the bill which add new restrictions to prevent the Administration from closing the Guantanamo Bay Detention Camp (by a recorded vote of 176 ayes to 246 noes, Roll No. 367). **Pages H4408–09, H4418–19**

Agreed that the Clerk be authorized to make technical and conforming changes to reflect the actions of the House. **Page H4421**

H. Res. 315, the rule providing for consideration of the bill (H.R. 2596) was agreed to by a yea-and-nay vote of 236 ayes to 189 noes, Roll No. 366, after the previous question was ordered. **Pages H4389–95**

Recess: The House recessed at 4:02 p.m. and reconvened at 5 p.m. **Page H4418**

Presidential Message: Read a message from the President wherein he transmitted the text of a proposed Agreement for Cooperation between the Government of the United States of America and the Government of the Republic of Korea Concerning Peaceful Uses of Nuclear Energy, as well as his written approval, authorization, and determination concerning the Agreement, and an unclassified Nuclear Proliferation Assessment Statement concerning the Agreement—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 114–43). **Pages H4395–96**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page 4389.

Senate Referral: S. 565 was referred to the Committee on Oversight and Government Reform. **Page H4430**

Quorum Calls—Votes: One yea-and-nay vote and three recorded votes developed during the proceedings of today and appear on pages H4395, H4418–19, H4420–21, and H4421. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 7:28 p.m.

Committee Meetings

MISCELLANEOUS MEASURE

Committee on Appropriations: Full Committee held a markup on the Interior, Environment, and Related Agencies Appropriations Bill for FY 2016. The Interior, Environment, and Related Agencies Appropriations Bill for FY 2016 was ordered reported, as amended.

CHILD NUTRITION ASSISTANCE: ARE FEDERAL RULES AND REGULATIONS SERVING THE BEST INTERESTS OF SCHOOLS AND FAMILIES?

Committee on Education and the Workforce: Full Committee held a hearing entitled ''Child Nutrition Assistance: Are Federal Rules and Regulations Serving the Best Interests of Schools and Families?''. Testimony was heard from Tom Vilsack, Secretary, Department of Agriculture.

LEGISLATIVE MEASURE

Committee on Education and the Workforce: Subcommittee on Health, Employment, Labor, and Pensions held a hearing on H.R. 511, the ''Tribal Labor Sovereignty Act of 2015''. Testimony was heard from public witnesses.

LEGISLATIVE MEASURE

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled ''Examining H.R. 2646, the Helping Families in Mental Health Crisis Act''. Testimony was heard from Creigh Deeds, Senator, State of Virginia; former Representative Patrick J. Kennedy; and public witnesses.

EPA'S PROPOSED OZONE RULE: POTENTIAL IMPACTS ON MANUFACTURING

Committee on Energy and Commerce: Subcommittee on Energy and Power; and Subcommittee on Commerce, Manufacturing, and Trade, held a joint hearing entitled "EPA's Proposed Ozone Rule: Potential Impacts on Manufacturing". Testimony was heard from public witnesses.

PROGRESS TOWARD A NATIONWIDE PUBLIC SAFETY BROADBAND NETWORK

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled "Progress Toward a Nationwide Public Safety Broadband Network". Testimony was heard from T.J. Kennedy, Acting Executive Director, First Responder Network Authority; and Stu Davis, State Chief Information Officer, Assistant Director, Ohio Department of Administrative Services.

MISCELLANEOUS MEASURE

Committee on Energy and Commerce: Full Committee began a markup on H.R. 805, the "Domain Openness Through Continued Oversight Matters Act of 2015".

A GLOBAL PERSPECTIVE ON CYBER THREATS

Committee on Financial Services: Subcommittee on Oversight and Investigations held a hearing entitled "A Global Perspective on Cyber Threats". Testimony was heard from public witnesses.

LEGISLATIVE PROPOSALS TO MODERNIZE BUSINESS DEVELOPMENT COMPANIES AND EXPAND INVESTMENT OPPORTUNITIES

Committee on Financial Services: Subcommittee on Capital Markets and Government Sponsored Enterprises held a hearing entitled "Legislative Proposals to Modernize Business Development Companies and Expand Investment Opportunities". Testimony was heard from public witnesses.

ADVANCING UNITED STATES' INTERESTS AT THE UNITED NATIONS

Committee on Foreign Affairs: Full Committee held a hearing entitled "Advancing United States' Interests at the United Nations". Testimony was heard from Samantha Power, Permanent Representative, United States Mission to the United Nations, Department of State.

REVIEWING THE ADMINISTRATION'S FY 2016 BUDGET REQUEST FOR EUROPE AND EURASIA

Committee on Foreign Affairs: Subcommittee on Europe, Eurasia, and Emerging Threats held a hearing entitled "Reviewing the Administration's FY 2016 Budget Request for Europe and Eurasia". Testimony was heard from Alina Romanowski, Coordinator of U.S. Assistance to Europe and Eurasia, Bureau of European and Eurasian Affairs, Department of State; Daniel Rosenblum, Deputy Assistant Secretary for Central Asia, Bureau of South and Central Asian Affairs, Department of State; Jonathan Stivers, Assistant Administrator, Bureau for Asia, U.S. Agency for International Development; and Susan Fritz, Acting Assistant Administrator, Europe and Eurasia Bureau, U.S. Agency for International Development.

HOW TSA CAN IMPROVE AVIATION WORKER VETTING

Committee on Homeland Security: Subcommittee on Transportation Security held a hearing entitled "How TSA Can Improve Aviation Worker Vetting". Testimony was heard from John Roth, Inspector General, Department of Homeland Security; Stacey Fitzmaurice, Deputy Assistant Administrator, Office of Intelligence and Analysis, Transportation Security Administration, Department of Homeland Security; and Jennifer Grover, Director, Transportation Security and Coast Guard Issues, Homeland Security and Justice Team, Government Accountability Office.

MISCELLANEOUS MEASURES

Committee on Homeland Security: Subcommittee on Transportation Security held a markup on H.R. 2750, the "Improved Security Vetting for Aviation Workers Act of 2015"; and H.R. 2770, the "Keeping Our Travelers Safe and Secure Act". H.R. 2750 was ordered reported to the full committee, as amended. H.R. 2770 was ordered reported to the full committee, without amendment.

LEGISLATIVE MEASURE

Committee on the Judiciary: Subcommittee on Regulatory Reform, Commercial and Antitrust Law held a hearing on H.R. 2745, the "Standard Merger and Acquisition Reviews Through Equal Rules Act of 2015". Testimony was heard from public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Federal Lands held a hearing on H.R. 482, the "Ocmulgee Mounds National Historical Park Boundary Revision Act of 2015"; H.R. 496, the "Alabama Hills National Scenic Area Establishment Act"; H.R. 959, the "Medgar Evers House Study Act"; H.R. 1138, the "Sawtooth National Recreation

Area and Jerry Peak Wilderness Additions Act''; H.R. 1554, the ''Elkhorn Ranch and White River National Forest Conveyance Act of 2015''; and H.R. 2223, the ''Crags, Colorado Land Exchange Act of 2015''. Testimony was heard from Representatives Bishop of Georgia; Austin Scott of Georgia; Simpson; and Thompson of Mississippi; Leslie Weldon, Deputy Chief, Forest Service; Karen E. Mouritsen, Deputy Assistant Director, Energy, Minerals, and Realty Management, Bureau of Land Management; and a public witness.

ARCTIC RESOURCES AND AMERICAN COMPETITIVENESS

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled ''Arctic Resources and American Competitiveness''. Testimony was heard from Brian Salerno, Director, Bureau of Safety and Environmental Enforcement, Department of the Interior; and public witnesses.

OPM: DATA BREACH

Committee on Oversight and Government Reform: Full Committee held a hearing entitled ''OPM: Data Breach''. Testimony was heard from the following Office of Personnel Management officials: Katherine Archuleta, Director; Donna K. Seymour, Chief Information Officer; and Michael R. Esser, Assistant Inspector General for Audits, Office of Inspector General; Andy Ozment, Assistant Secretary, Office of Cybersecurity and Communications, National Program Preparedness Directorate, Department of Homeland Security; Tony Scott, U.S. Chief Information Officer, Office of E-Government and Information Technology, Office of Management and Budget; and Sylvia Burns, Chief Information Officer, Department of the Interior.

FAIR COMPETITION IN INTERNATIONAL SHIPPING

Committee on Oversight and Government Reform: Subcommittee on Government Operations held a hearing entitled ''Fair Competition in International Shipping''. Testimony was heard from Robert Taub, Acting Chairman, Postal Regulatory Commission; Robert Faucher, Acting Deputy Assistant Secretary, Bureau of International Organization Affairs, Department of State; Randy Miskanic, Acting Chief Information Officer and Executive Vice President, United States Postal Service; David Williams, Inspector General, United States Postal Service; and public witnesses.

PROTECT MEDICAL INNOVATION ACT OF 2015; PROTECTING SENIORS' ACCESS TO MEDICARE ACT OF 2015

Committee on Rules: Full Committee concluded a hearing on H.R. 160, the ''Protect Medical Innovation Act of 2015''; and H.R. 1190, the ''Protecting Seniors' Access to Medicare Act of 2015''. The committee granted, by record vote of 7–3, a closed rule for H.R. 160. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. The rule waives all points of order against consideration of the bill. The rule provides that the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill, modified by the amendment printed in part A of the Rules Committee report, shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. The rule also granted a closed rule for H.R. 1190. The rule provides one hour of debate equally divided among and controlled by the chairs and ranking minority members of the Committee on Ways and Means and the Committee on Energy and Commerce. The rule waives all points of order against consideration of the bill. The rule provides that the amendment printed in part B of the Rules Committee report shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions.

THE SCIENCE AND ETHICS OF GENETICALLY ENGINEERED HUMAN DNA

Committee on Science, Space, and Technology: Subcommittee on Research and Technology held a hearing entitled ''The Science and Ethics of Genetically Engineered Human DNA''. Testimony was heard from public witnesses.

SAVING TAXPAYER DOLLARS IN FEDERAL REAL ESTATE: REDUCING THE GOVERNMENT'S SPACE FOOTPRINT

Committee on Transportation and Infrastructure: Subcommittee on Economic Development, Public Buildings, and Emergency Management held a hearing entitled ''Saving Taxpayer Dollars in Federal Real Estate: Reducing the Government's Space Footprint''. Testimony was heard from Representative Denham; David Mader, Controller, Office of Management and

Budget; David J. Wise, Director, Physical Infrastructure Team, Government Accountability Office; Norman Dong, Commissioner, Public Buildings Service, General Services Administration; and a public witness.

WESTERN HEMISPHERE DRUG INTERDICTION EFFORTS

Committee on Transportation and Infrastructure: Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled "Western Hemisphere Drug Interdiction Efforts". Testimony was heard from Vice Admiral Charles D. Michel, Deputy Commandant for Operations, Coast Guard; and Rear Admiral Karl L. Schultz, Director of Operations, United States Southern Command.

SOCIAL SECURITY ADMINISTRATION'S MANAGEMENT OF EARNINGS REPORTS FROM DISABILITY BENEFICIARIES TRYING TO GO BACK TO WORK

Committee on Ways and Means: Subcommittee on Social Security held a hearing on the Social Security Administration's (SSA) management of earnings reports from disability beneficiaries trying to go back to work. Testimony was heard from David A. Weaver, Associate Commissioner, Office of Research, Demonstration and Employment Support, Social Security Administration; and Daniel Bertoni, Director, Education, Workforce, and Income Security, Government Accountability Office.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JUNE 17, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on the Budget: to hold hearings to examine CBO's analysis of the Federal government's deepening fiscal challenges, 10 a.m., SD–608.

Committee on Commerce, Science, and Transportation: Subcommittee on Consumer Protection, Product Safety, Insurance, and Data Security, to hold an oversight hearing to examine the Consumer Product Safety Commission, 10 a.m., SR–253.

Committee on Environment and Public Works: to hold an oversight hearing to examine the Environmental Protection Agency's final rule to regulate disposal of coal combustion residuals from electric utilities, 9:30 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine the nomination of Gayle Smith, of Ohio, to be Administrator of the United States Agency for International Development, 2 p.m., SD–419.

Committee on Health, Education, Labor, and Pensions: to hold hearings to examine reauthorizing the Higher Education Act, focusing on evaluating accreditation's role in ensuring quality, 10 a.m., SD–430.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine governing through goal setting, focusing on enhancing the economic and national security of America, 9:30 a.m., SD–342.

Full Committee, to hold hearings to examine the nomination of Carol Ochoa, of Virginia, to be Inspector General, General Services Administration, 2 p.m., SD–342.

Committee on Indian Affairs: to hold an oversight hearing to examine accessing capital in Indian Country, 2:15 p.m., SD–638.

House

Committee on Agriculture, Full Committee, markup on H.R. 2647, the "Resilient Federal Forests Act of 2015"; and H.R. 2620, to amend the United States Cotton Futures Act to exclude certain cotton futures contracts from coverage under such Act, 10 a.m., 1300 Longworth.

Committee on Appropriations, Subcommittee on Labor, Health and Human Services, and Education, markup on the Labor, Health and Human Services, and Education Appropriations Bill, FY 2016, 9 a.m., 2358–C Rayburn.

Full Committee, markup on the Financial Services and General Government Appropriations Bill for FY 2016, 11 a.m., 2359 Rayburn.

Committee on Armed Services, Full Committee, hearing entitled "U.S. Policy and Strategy in the Middle East", 10 a.m., 2118 Rayburn.

Subcommittee on Seapower and Projection Forces, hearing entitled "Capacity of U.S. Navy to Project Power with Large Surface Combatants", 2 p.m., 2212 Rayburn.

Committee on the Budget, Full Committee, hearing entitled "Why Congress Must Balance the Budget", 10 a.m., 210 Cannon.

Committee on Education and the Workforce, Subcommittee on Health, Employment, Labor, and Pensions, hearing entitled "Restricting Access to Financial Advice: Evaluating the Costs and Consequences for Working Families and Retirees", 10 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Full Committee, markup on H.R. 805, the "Domain Openness Through Continued Oversight Matters Act of 2015" (continued), 10 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled "The Annual Report of the Financial Stability Oversight Council", 10 a.m., 2128 Rayburn.

Subcommittee on Monetary Policy and Trade, hearing entitled "The Impact of the International Monetary Fund: Economic Stability or Moral Hazard?", 2 p.m., 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, hearing entitled "Assad's Abhorrent Chemical Weapons Attacks", 10 a.m., 2172 Rayburn.

Subcommittee on Asia and the Pacific, hearing entitled "China's Rise: The Strategic Impact of Its Economic and Military Growth", 2 p.m., 2200 Rayburn.

Subcommittee on the Middle East and North Africa, hearing entitled ''The Iran, North Korea, and Syria Nonproliferation Act: State Department's Non-Compliance'', 2 p.m., 2172 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''Human Rights Abuses by Vietnamese Authorities'', 2 p.m., 2255 Rayburn.

Committee on House Administration, Full Committee, hearing entitled ''The State of the Smithsonian'', 10:30 a.m., 1310 Longworth.

Committee on the Judiciary, Full Committee, markup on H.R. 2315, the ''Mobile Workforce State Income Tax Simplification Act of 2015''; H.R. 1643, the ''Digital Goods and Services Tax Fairness Act of 2015''; and H.R. 2584, the ''Business Activity Tax Simplification Act of 2015'', 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Subcommittee on Indian, Insular and Alaska Native Affairs, hearing on H.R. 1157, the ''Santa Ynez Band of Chumash Mission Indians Land Transfer Act of 2015''; H.R. 2386, the ''Unrecognized Southeast Alaska Native Communities Recognition and Compensation Act''; and H.R. 2538, the ''Lytton Rancheria Homelands Act of 2015'', 11 a.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Drones: The Next Generation of Commerce?'', 9 a.m., 2154 Rayburn.

Subcommittee on National Security; and Subcommittee on Health Care, Benefits, and Administrative Rules, joint hearing entitled ''A Review of the President's Executive Actions on Immigration'', 2 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Energy, hearing entitled ''Department of Energy Oversight: Energy Innovation Hubs'', 10:30 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Crude Intentions: The Untold Story of the Ban, the Oil Industry, and America's Small Businesses'', 11 a.m., 2360 Rayburn.

Committee on Ways and Means, Full Committee, hearing entitled ''Long-Term Financing of the Highway Trust Fund'', 10 a.m., 1100 Longworth.

Joint Meetings

Joint Economic Committee: to hold hearings to examine the economic exposure of Federal credit programs, 10 a.m., SH–216.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, June 17

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond one hour), Senate will continue consideration of H.R. 1735, National Defense Authorization Act.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, June 17

House Chamber

Program for Wednesday: Consideration of H. Con. Res. 55—Directing the President, pursuant to section 5(c) of the War Powers Resolution, to remove United States Armed Forces deployed to Iraq or Syria on or after August 7, 2014. Consideration of H.R. 160—Protect Medical Innovation Act of 2015 (Subject to a Rule) and H.R. 1190—Protecting Seniors' Access to Medicare Act of 2015 (Subject to a Rule).

Extensions of Remarks, as inserted in this issue.

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